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House of Representatives

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. FLEISCHMANN).

DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
June 19, 2014.

I hereby appoint the Honorable CHARLES J. FLEISCHMANN to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
Speaker of the House of Representatives.

MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 7, 2014, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes, but in no event shall debate continue beyond 11:50 a.m.

IMMIGRATION CRISIS

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIÉRREZ) for 5 minutes.

Mr. GUTIÉRREZ. Mr. Speaker, I usually come here to talk about the ongoing crisis in American cities and towns related to our unrelenting deportation of moms and dads and longtime residents with no criminal history.

There is no doubt we will see substantial action to dial back the record deportation this country has suffered over the past 5 years and a retargeting of deportations at criminals.

The only question is whether the Republican majority gets its act together to participate in that process as legislators and leaders in the next 6 legislative days before the July 4 recess.

Now, in addition to the deportation crisis, we face a new crisis quickly becoming a human tragedy of catastrophic proportions. Thousands and thousands of young children are fleeing Central America because they think it is their only option for survival.

Faced with death threats, sexual assault, poverty, and no legal immigration options, little boys and girls are simply leaving their Central American countries by the tens of thousands.

Some are coming to the United States to reunite with relatives, while many others are seeking asylum in any country they can get to, including this one.

Girls as young as 11 and 12, threatened with rape in their own country, are risking rape, smugglers, murder, and exploitation for the slim chance of a life in the United States. Eighty percent are coming from just three countries—Honduras, El Salvador, and Guatemala—countries that top the list of the highest murder rates in the world.

Gangs, drugs, poverty, and hopelessness are driving kids as young as kindergartners to countries like Belize, Costa Rica, Mexico, and the United States. It is a complex international crisis that does not have easy solutions.

The Obama administration, Homeland Security, and FEMA are mobilizing like they would for a major natural disaster. They are trying to address each case one by one, following the laws of this country we have for unaccompanied minors, families, and asylumseekers.

The first goal must be to get the children in a safe place. Eventually, some may pass the rigorous test for asylum. Others may be considered for legal status as victims of traffickers, but many have no legal avenue and had none to begin with.

In many cases, children will face an immigration judge alone, without a lawyer and without a clue what is going on. The majority get orders of removal and face deportation immediately.

I have urged parents in the home countries that the risks are too great, the dangers too real, and the survival rate too low to attempt such a perilous journey, but let's be clear, adults on all sides of the border are failing when children feel they have no way to survive, other than risking their lives to cross thousands of miles.

I do not see the countries of Central America stepping up to take responsibility for the danger, dysfunction, death, and despair in their other countries, cities, and towns. The Congressional Hispanic Caucus told their embassies that in a very testy meeting yesterday.

Nor do I see the United States taking responsibility for the insatiable appetite for drugs on our streets—that, in most cases, fuel the drug trafficking, gangs, and desperation in Central America.

In Congress, we are quick to point fingers of blame—especially in an election year—but surely, we must accept some of the responsibility ourselves.

For decades, no realistic legal immigration options have existed for most people, and this breeds a clandestine network of smugglers that feeds on desperation and hopelessness.

Invading or propping up failing states on the other side of the world—like Iraq—has meant we have paid little attention to the failing states in our own backyard in this hemisphere.

Opponents of immigration and immigration reform mock the children on their radio shows and have even cooked up a new conspiracy theory that claims that President Obama has been calling these children to our country, so he can put more of them on welfare, so

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that these children, who can never become citizens, will somehow be allowed to vote for him. It is outrageous.

We must not make light of this tragedy. These are children—desperate boys and girls who are being demonized after being brutally victimized by drug traffickers. Opponents of immigration are exploiting their desperation for political sport, but the stakes could not be higher for the Republican Party.

With only 6 legislative days before the July 4 recess, Republican leaders have little or no time to demonstrate compassion and understanding of the immigration issue, enact real border security, allow legal immigration that feeds our economy, and get people who have lived here for decades on the books.

Six days, Mr. Speaker, before this issue clobbers the Republican Presidential nominee in the 2016 election. You may have waited too long to act, but that is—as it always has been—up to you.

AMERICA NEEDS NATIONAL ENERGY POLICY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. SHIMKUS) for 5 minutes.

Mr. SHIMKUS. Mr. Speaker, headlined today in one of the papers: ''Oil Prices to Rise as High as $120 Per Barrel Due to the Iraqi Crisis.''

Headlined a couple of days ago: ''Oil at a 3-Month High on Iraq Anxiety.''

This brings me back to an issue that I have spoken of many times throughout the years as a Member of Congress, that this Nation needs to have a national energy policy and, just like you would in a good investment portfolio, a diversified energy portfolio.

In the energy arena, I break it into two areas: electricity generation and transportation fuels. In electricity generation, we need to have the full range of competitive fueling technologies to have enough electricity at low prices to fuel and run our economy.

It is hot in Washington, D.C., today. A lot of air conditioners are on, and we want to be able to cool our homes at low prices. That means having a diversified energy portfolio: nuclear power, coal, natural gas, hydro, wind, and solar.

A debate on a diversified energy portfolio doesn't put all of your eggs in one basket. It allows you to have flexibility when there is a crunch or crisis in one of the other areas—likewise in the transportation fuel arena, especially with the crisis in Iraq.

Mr. Speaker, who would have thought, after all these years, we would still be held hostage to high crude oil prices from an unstable region far away off our shores? Shame on us for not taking advantage of what we have locally and in the North American continent.

That is why we need to continue our focus on a diversified portfolio for liquid transportation fuels. Based upon the premise of energy security, we should not be held hostage to countries that don't like us, who want to do us harm, who use our money to fund extremists, but here we are again, in that same position.

So what would a diversified liquid transportation fuel portfolio look like? Well, we know what it would look like. Let's make sure we use this new technology of fracking and take this crude oil and natural gas out of our ground and use that to fuel ourselves, not relying on other countries.

Let's finish the Keystone XL pipeline from our North American neighbors—the Canadians—who are our friends and allies, who will not be an unstable regime, but would be a loyal ally, as they have been for years and years and years.

Let's continue to move on a renewable fuel portfolio, use our agricultural resources in ethanol and soy diesel and beef tallow to ensure that there is a diversified portfolio, so that if any one sector is stressed, you have other sectors in the liquid transportation arena that can pick up the slack and make sure that we are never held hostage again by these foreign regimes.

It is very frustrating to go through this energy cycle where we think everything is fine, the world is at peace, and we start having debates about shutting down this diversified portfolio, only to be reminded—like we are right now—of unstable regimes that don't like us, that when they go into crisis, we all pay.

Mr. Speaker, it is time that we remember energy security means energy security and a diversified portfolio on electricity generation and liquid transportation fuels. I hope we continue to make that message as we move through the legislative calendar this year.

NATIONAL POLLINATOR WEEK

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, Members of Congress come to the floor to take the opportunity to urge that we deal with the great issues of the day—the failure of the House of Representatives to deal with climate challenge and global warming; to reduce senseless gun violence; and the crying need to rebuild and renew America and pay for the rebuilding—but there are also a range of other issues that don't, on the surface, appear to be quite that important, but play a critical part in the bigger picture.

Today, I would like to address just one small part of the bigger picture because this is National Pollinator Week, where we recognize the importance of honeybees and over 250,000 other species that pollinate our food and which create $20 billion to $30 billion in agricultural production in the United States every year. Honeybees alone are responsible for pollinating one in every three bites of food we eat. Nearly 100 varieties of fruits depend on honeybee pollination.

While significant media attention has been devoted in recent years to the decline of honeybees, there is evidence of wild pollinator declines. Native bees are especially important to a number of iconic northwest agricultural products—such as cherries, apples, berries, as well as seed crops like alfalfa, canola, and vegetable seed.

I am proud that, in my community, we are home to the internationally-renowned Xerces Society, a nonprofit in the forefront of pollinator protection and habitat conservation, which harnesses the knowledge of scientists and the enthusiasm of citizens to implement conservation programs worldwide.

We saw in our community that businesses were stepping up to educate citizens and give pollinators a home. Last year, the rooftops of two local New Seasons Market grocery stores became home to several honeybee colonies—over 50,000 small pollinators—as part of the store's Bee Part of the Solution campaign.

Last summer, the Overlook neighborhood in my district started a project to become Portland's first pesticide-free neighborhood. Hundreds of households have committed to landscaping without the use of toxic chemicals to protect the habitat for not just bees, but wildlife as well.

These efforts are very important because the pollinator species and the livelihoods they support are suffering catastrophic loss, reaching an alarming 42 percent loss in recent studies.

□ 1015

American beekeepers have been consistently reporting severe colony losses of this magnitude for the last several years. The situation is serious and can have a devastating impact both on our food systems and the environment.

A certain class of insecticides, neonicotinoids, have been linked to damaging effects on honeybees and other pollinators, such as impairing their foraging and feeding behavior, disorientation, failure to find their way back to the beehives, weakened immunity, and interrupting the reproductive process.

A year ago, over 50,000 bumblebees died in Oregon as a direct result of an exposure to a neonicotinoid lawfully applied to trees for cosmetic purposes—the largest bumblebee kill on record.

Citing the mounting threats from these pesticides that honeybees and other pollinators now face and the importance and the value of the pollination process, last year Congressman CONYERS and I introduced H.R. 2692, Saving America's Pollinators Act. The bill would direct the Environmental Protection Agency to immediately suspend the use of the most bee-toxic neonicotinoids and review the impact

they have on pollinators and on the entire food chain and make a new determination about their proper application and safe use.

I hope that during Pollinator Week my colleagues will consider joining the 65 bipartisan cosponsors in this effort. While lots of major issues tie Congress into partisan knots, being able to protect the pollination process and its impact on the environment is a small step to protect the environment and is one that can actually bring us together in a low-cost, high-impact way.

I urge my colleagues to consider joining me in this effort.

HONORING MARVIN TEIXEIRA

The SPEAKER pro tempore. The Chair recognizes the gentleman from Nevada (Mr. AMODEI) for 5 minutes.

Mr. AMODEI. Mr. Speaker, tomorrow in Carson City, Nevada, there will be a memorial service for former Mayor Marv Teixeira. Marv called Carson City home for about 50 years, coming from the bay area as the IBM typewriter—I know that is a phrase that is foreign to many of you—as the IBM typewriter salesman in the State capital of Nevada. During those decades, Marv set a blistering pace as a member of the community: husband, coach, businessman, public servant, lobbyist, and kind of a self-appointed Carson City gadfly.

Before he became what we friendly referred to him as the ''mayor for life,'' he was the unofficial youth sports czar for Carson City. He coached recreation league basketball, coached Little League baseball, founded the Pop Warner football league in Carson City. In this later role as the founder of the Pop Warner football league, he had the distinction of molding a then young DEAN HELLER, now a United States Senator from Nevada, into the football athlete that Senator HELLER didn't become.

Once he was elected mayor of Carson City, his Portuguese charm was on full display. If he called you ''pal'' during a board of supervisors meeting, you weren't a pal. He called for motions to adjourn when the agenda was completed by announcing, ''We are out of Schlitz.''

He fancied himself a top-tier lobbyist for Carson City, both at the State level and here in the Nation's Capital, because if lawmakers didn't do what he thought should be done, he simply questioned your intelligence and, in a fatherly way, advised you to do what he wanted you to do, and please be quick about it.

Finally, Marv understood that he was both good-looking and a sharp dresser. In this role, he taught me an invaluable lesson as a public servant: when you are at functions, the proper thing to wear was not a tie, that you should wear a turtleneck; because, invariably, if food was being served at these functions and you happened to drip something down the front, you could, as Marv demonstrated to me on one occasion at a function, simply go to the men's room, turn the turtleneck around, put your sport coat back on, and come back as if nothing ever happened.

Carson will miss our mayor for life. When you go by the bypass, the hay barn as we like to call it, or Governors Field, think of our mayor for life, Marv Teixeira.

Rest in peace, Your Honor; and thank you, Coach.

OUR CRUMBLING INFRASTRUCTURE

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, for generations, this country's infrastructure served as the backbone for our economic success. We dreamed big, we built bigger, and our economy flourished; but today our infrastructure is crumbling, and the growth of our economy is slow. Without serious long-term investments in our transportation infrastructure, we simply will not be able to compete in today's global economy.

Over the past 50 years, as a share of our economy, our investment in transportation has shrunk by half. Europe now invests twice as much as we do in transportation. China invests four times as much. Over time, America has fallen into 19th place when it comes to the quality of our infrastructure.

Nowhere is this more apparent than in my hometown of Chicago, where 1,000 miles of road in the city of Chicago are in need of total reconstruction. 675 bridges in Cook County are structurally deficient or functionally obsolete. North Lake Shore Drive is one of the highest accident locations in the State as a result of its aging infrastructure.

The CTA is a century-old transit system that desperately needs updates to keep up with increased capacity. Oh, by the way, the CTA in Chicago in 1 month carries more passengers than Amtrak does in an entire year.

All of these things will cost money, but the long-term economic benefits they will provide will far outweigh the upfront cost. The President likes to say that first-class infrastructure attracts first-class jobs, and he is right. Business needs strong infrastructure to grow. They need good highways and railways to move their products. They need reliable public transit to get their employees to work.

Infrastructure investment requires forward thinking; it requires long-term planning. The fact that Congress faces its lowest public approval ratings ever while this country's infrastructure is crumbling is no coincidence. In my second year on the Appropriations Committee, I know all too well how little this Congress is investing in our future.

I became an appropriator to help bring much-needed funding back to my city and my State, but politics has replaced progress when it comes to my committee's once immense power of the purse. The important work of the Appropriations Committee to help cities and States fund critical infrastructure improvements has been stymied by the inability of this Congress to set aside our differences and look beyond the next election. We are trying to rebuild America's crumbling infrastructure one year at a time, and we are coming up short. When did we decide that planning one year ahead was good enough? Name one successful business that operates this way.

We shouldn't be forcing cities like Chicago and States like Illinois to make plans based on stopgap funding measures. We owe it to our constituents to provide a far-reaching plan that gives cities and States the certainty they need to plan ahead and invest in tomorrow. We should be empowering cities and States to make their own choices for their long-term success by providing them with the funding to do so.

It is time for this Congress to go big and plan for the long-term projects that will modernize our infrastructure, spur economic growth, create jobs. Remember, every billion dollars invested in infrastructure creates 30,000 jobs.

Congress will face an important test over the next few months. Over the summer, the highway trust fund will run out and soon MAP–21 will expire. Allowing Federal funding for transportation projects to run out would force States to stop ongoing projects, risking over 700,000 jobs over the next year.

The consequences for inaction are too great. It is time for Congress to step up to the plate and finally enact a long-term highway bill that reforms the trust fund and makes it solvent for years to come, because as President Reagan said: rebuilding our infrastructure is an investment in tomorrow we must make today.

END HUNGER NOW

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. MCGOVERN) for 5 minutes.

Mr. MCGOVERN. Mr. Speaker, each week I come to this floor to talk about ways that we can End Hunger Now. I have a simple premise that hunger is a political condition. We can end hunger now if we simply muster the political will to do so.

Over the past year, I have defended the SNAP program, formerly known as food stamps. I have discussed the importance of nutritious school meals and have sung the praises of the WIC program. The Federal antihunger programs are amazing. They are effective, and they are efficient and are preventing hunger from becoming worse than it already is.

The Federal antihunger programs can't do it alone, at least not the way they are currently structured. Despite what many critics claim, the Federal antihunger programs are too meager,

and they still don't reach every hungry person in America. They fall under multiple agencies and departments and are not always connected, and they don't target the root cause of hunger, which is poverty.

As a result, we have seen the rise of many nonprofit antihunger organizations. The majority of these nonprofit organizations are food pantries that distribute food to needy people. But there are other innovative organizations that are doing amazing work.

One such organization is Share our Strength, founded by my friends Billy Shore and his sister Debbie Shore. Share our Strength is an amazing organization that is fighting hunger both through Federal and State policy and through programs that directly touch the hungry living in our country.

Their flagship program is the No Kid Hungry campaign. They are working in States across this country to develop statewide plans to end childhood hunger in those participating States. They tailor these programs to fit each State and are focusing through this program on the scourge that is child hunger.

Two more of their locally based programs are Shopping Matters and Cooking Matters. The Shopping Matters program teaches low-income families how to spend their food dollars. Whether it is cash or from an antihunger program, they are taught how to spend it wisely and how to purchase nutritious food with the limited money that they have. The Cooking Matters program teaches these families how to cook food in a healthy way.

These three programs show both how important it is to creatively attack the problem of hunger in America and highlight the ways the Federal Government is failing these low-income families by not doing more.

Just look at the No Kid Hungry campaign. Share our Strength is targeting States because the Federal Government hasn't created a national antihunger strategy. Share Our Strength turned to Governors because they are willing to do what Congress and the White House aren't—develop a plan. That is why I continue to call on this White House to do a White House conference on food and nutrition, to bring everyone together to develop a plan to end hunger now. Governors are doing this for kids. It is time that we do this for everyone.

Look at the Shopping Matters program and the Cooking Matters program. These programs exist because Congress has cut the SNAP nutrition education program, necessitating a private, nonprofit sector program to teach people how to shop for and cook nutritious food.

Share Our Strength is also conducting outreach and education in different ways. They promote and host events at the national, State, and local levels to combat hunger. These range from bake sales, to dining out events, to barbecues. These are not just feel-good events, Mr. Speaker. These are events that come with teaching programs, programs that allow hosts to promote ways to fight hunger in ways that don't seem so daunting.

Mr. Speaker, there are many fantastic antihunger organizations both in Washington, D.C., and around this country. Share our Strength is one of these organizations that does fantastic work. I am proud of all of these groups that have stepped up to do what the Federal Government should be doing. I am proud of everyone who is banding together to fight hunger.

However, my goal, my ultimate goal, is to put Share our Strength and these other groups out of business, not because they aren't a great organization, but because they are no longer needed. But the only way to put these groups out of business is by ending hunger, and the best way to do so is to increase wages as well as expand SNAP and other nutrition programs. Until then, we need to ensure that no person in this country goes hungry. Until the Federal antihunger programs reach everyone they need to in the best possible way, we are going to need organizations like Share our Strength to help vulnerable populations.

Finally, Mr. Speaker, the failure of our government to make ending hunger more of a priority is appalling. To be indifferent, to blame poor people for being poor, as some in this House have done, is something that should make all of us ashamed. Republican leaders have attacked our antihunger programs and the White House, sadly, has been too timid. What we need is a war on poverty in this country, Mr. Speaker, not another war in Iraq. We can all do better. We can End Hunger Now.

□ 1030

COMMEMORATING ANNIVERSARY OF TITLE IX

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Hawaii (Ms. HANABUSA) for 5 minutes.

Ms. HANABUSA. Mr. Speaker, I rise to commemorate the 42nd anniversary of the signing of the Title IX Amendment to the Higher Education Act. As you know, Hawaii's own Congresswoman Patsy Mink authored this groundbreaking law, and it was later renamed the Patsy Mink Equal Opportunity in Education Act. Congresswoman Mink was a true pioneer, advancing the legal status of women and girls in higher education. This law was the spark that ignited the fire of a larger cultural revolution—yes, a revolution, regarding the status of women.

While title IX is most famous for opening up opportunities for women in college athletics, it has had really a greater implication for women in higher education. This essential law banned colleges from preventing female students from enrolling in courses that were perceived to be male-oriented, such as auto mechanics and criminal justice, just to name a few. Title IX also banned male-dominated professional schools like medical and law schools from limiting the number of women allowed to be admitted.

Patsy Mink, a former attorney herself, was committed to ensuring that women following in her path, like myself, would not have to face the same battles she did. For that we are all grateful to her. Mrs. Mink once said that: ''We have to build things we want to see accomplished, in life and in our country, based on our own personal experiences, to make sure that others do not have to suffer the same discrimination.''

Similar to the legislation she authored, Patsy Mink—the person—was a true groundbreaker in her own right. She served Hawaii and our Nation as the first woman of color and the first Asian-American woman elected into Congress. Impressively, she was the first Asian-American to seek the Presidential nomination for the Democratic party.

While title IX is responsible for many advancements for women in higher education, we know that there is still more work to be done for women at every level, including in our high schools. While serving in the Hawaii State senate, I was proud to vote for Hawaii's Gender Equity in Athletics law, which applies title IX in public high schools, and also to serve on the commission it created.

My commitment has not waned, and I recently cosponsored the High School Data Transparency Act, which is meant to help ensure equality for high school athletics. This fundamental bill would require schools to report critical data on funding and participation in boys and girls athletic programs, allowing school districts to better identify and rectify discriminatory disparities.

Mr. Speaker, I urge you to bring this crucial bill to the floor. The High School Data Transparency Act is an obvious partner to title IX, extending the spirit of the same law. We have an obligation to ensure that young women receive the same opportunities as their male counterparts at every level. I am committed to continuing the example set by my predecessor, Congresswoman Mink, and find inspiration in her words: ''It is easy enough to vote right, but it is more often more important to be ahead of the majority, and this means willing to cut the first furrow in the ground and stand alone for a while if necessary.''

In closing, I would like to share a meeting I just had yesterday with Kaili Higuchi, an eighth-grader from my alma mater, St. Andrew's Priory. Accompanied by her proud grandmother, she is here for National History Day. Her entry is a Web site on title IX. Kaili said a question asked was: Is title IX still necessary? Her answer is a resounding ''yes.'' I believe Patsy would be proud of Kaili, and that 42 years later a young girl is continuing to educate and share title IX with others.

Mr. Speaker, I encourage you to join me in continuing the work of this committed visionary and powerful voice for equality. Please bring the bill to the floor.

WITNESS WEDNESDAY: FACES OF THE UNEMPLOYED

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Illinois (Ms. SCHAKOWSKY) for 5 minutes.

Ms. SCHAKOWSKY. Mr. Speaker, in the United States, we have always had a bipartisan tradition of assisting fellow hardworking Americans who have fallen on hard times—until now. As they are looking for their next job, we used to make sure that they had assistance through unemployment insurance to cover their basic needs. That is why yesterday I stood with Congresswoman DINA TITUS, DONNA EDWARDS, GWEN MOORE, and nearly a dozen group advocates for what we are calling ''Witness Wednesdays.'' We all read stories about real people, submitted by them, who are struggling since their unemployment insurance has expired.

During that event, the National Women's Law Center released a study with some very sobering statistics. Women, particularly older women, women of color, and women heads of households, are deeply affected by unemployment, as are their children by the lack of emergency unemployment insurance benefits.

Last year, in my State of Illinois, more than 140,000 children lived in households headed by a long-term unemployed parent. Also, in my State, by the end of the year, nearly a quarter-million people will be left without benefits they need to meet their families' basic needs if we don't renew emergency unemployment insurance.

These are real people and real families behind these numbers. These are people looking for jobs. I am going to read four stories from Illinoisans who have suffered setbacks as they look for the work they need—for us to renew unemployment insurance without any further delay.

Chris from Glenview, Illinois, says:

My husband and I will never recover financially and are praying we will not lose our home. I don't think I will ever be able to retire, which is concerning as I have health problems. My 28-year-old son is still living at home because he was unemployed for over a year and is now serving coffee for minimum wage. He has a bachelor's degree from Loyola University, and between his student loans and our parent loans, we will all be in debt for the rest of our lives. We are not alone. I know of so many who are struggling as we are.

Sue from Chicago says:

Due to new management at the HIV/AIDS agency where I worked for over 10 years, I was fired on May 23 in order for them to save money. I am 58 years old, have an auto-immune liver disease that limits me physically and requires regular health care from specialists, as well as six medications. I have no savings and retirement is a laughable matter. Because I had no warning that this was going to happen, I am now looking at having no income, no health, and having to move from Chicago to downstate Springfield, where the cost of living is much lower, though job prospects are dismal.

Dinah from Chicago says:

I am losing my hair, apartment, and car. I have borrowed from everyone in my family, hoping to pay them back soon. I have worked since 1993 and am now unemployed. Soon I will be in a shelter, car repossession, and bald. I am looking for work. I have been on several interviews but so far no luck.

And Celia from Chicago says:

I had a job interview in December 2013, about the time my unemployment ran out. I really wanted this job. It was not just the fact that I would be able to pay bills; the work would be rewarding. Unfortunately, the tension I felt when it was clear that I had to get this position, that there would be no extension of benefits, caused me to freeze up at the interview when asked to display my skills. This had never happened to me. I am usually the type to have no problems once I land the interview.

My confidence is way down. I am 62. I have no income and can't seem to find decent jobs to even apply to. I have had to regularly take money out of my retirement savings in order to stay out of debt. The worst thing about this time after a good career is to feel dropped, disappeared, and no longer of value. There is a dry feeling, dusty, of everything being cheap and on sale and no way to get back. I am ashamed of being out of the work world.

Chris, Sue, Dinah, and Celia are 4 of nearly 5 million Americans who will continue to suffer and struggle if we don't renew emergency unemployment insurance by the end of this year. We should vote and pass the bill to renew unemployment insurance without any further delay.

HAPPY JUNETEENTH

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Texas (Ms. JACKSON LEE) for 5 minutes.

Ms. JACKSON LEE. Mr. Speaker, today is June 19, an ordinary day in the lives of many, many Americans. That is why it is important to come to the floor and wish so many in our Nation Happy Juneteenth. For some, that may be a foreign terminology. But we are now in the 149th year of the 1865 Emancipation Proclamation for several States in the Deep South.

Those who know their history would say the Emancipation Proclamation was in 1863. They are absolutely right. But it took 2 years for States like Texas, Louisiana, and many others to, unfortunately, receive notice that the slaves were free. Two more years my fellow Texans, African American slaves, had to languish in the abomination of slavery because someone failed to think it was important enough to reach those boundaries and say we were free.

So it speaks very loudly to the reason I am an advocate and a fighter that justice must be maintained no matter who you are in this country. Those in Texas that, as I speak, are commemorating and celebrating Juneteenth Freedom Day, are proudly acknowledging, not their fault that they did not know, not a joke, not humorous, but a sad statement which we in Texas and Southern States have turned into a joyful jubilee. We celebrate freedom wherever and however we can.

This Congress needs to be a promoter of freedom and justice. I join my colleagues in being appalled at the fact that we have not yet extended unemployment insurance for hardworking Americans. Let me say that again: unemployment insurance. It means that it is not a handout; it means that these are individuals who worked for weeks, months, years, decades. They have given back to America. Now they have fallen on difficult times.

Because of this leadership in this House of Representatives, we have not been able to put the extension of the unemployment insurance passed in the other body on the floor of the House. That means in my district that individuals who were rehabilitating themselves and were working and fell upon hard times because of the economy have no jobs and cannot get unemployment insurance.

When I met with some of them. A trained welder said, I want to work, I am between jobs, and he was literally driven to homelessness and walking the streets because we could not give him unemployment insurance based upon the fact that he has worked—or those who are now losing homes or not able to pay their rent.

Where is the mercy and justice? Are we following in the pathway of Juneteenth when we did not tell thousands upon thousands of slaves you were free? I thought America would not return to the devastation and dastardliness of injustice to anyone. Let us put unemployment insurance on the floor of the House and address the questions of Americans who have worked and contributed to society.

Then, Mr. Speaker, I would argue that there is an injustice going on in Iraq. I traveled to Iraq many times during the raging war. I saw the valiant soldiers, many of whom maybe after I left were part of those who were casualties. I had in my office the list of casualties in the 18th Congressional District. I would be very mindful of going back into that quagmire.

What I would say is that America does stand for justice and democracy. We should have the position to treat Sunnis and Shiites and Kurds freely and justly, and that they have to come together and treat each other with respect. We should call upon Saudi Arabia and Kuwait, Jordan, and Yemen, we should give them support—the Arab League—to stand Iraq up and to tell this leader, who is a selfish leader, who is not in any way reflected on bringing people together, that he must bring people together. And we must say to the ISIS that the world will not stand for its violence and its horribleness.

And yes, we must say to those who are in the yesteryear, who were part of

last time's term, those who are former Vice Presidents and their extended relatives, that this is no time to cast dirt on President Obama, who has done an excellent job.

Americans come together when there is difficulty and tragedy. I am very disappointed in The Wall Street Journal article that wants to cast blame when people are dying in Iraq. Let's stand up and be united.

Just a few days ago, I came back from Nigeria, where the horrific Boko Haram is killing people and kidnapping girls. I ask my colleagues to please stand with us to not let the kidnapping of the Nigerian girls be a side story, Mr. Speaker.

As I close, I intend to introduce human trafficking legislation as a senior member of Homeland Security to address the question of the human trafficking of these girls, and girls and women of color, the highest population of those who are trafficked. We can do things together in America, and I ask us to stand together.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess until noon today.

Accordingly (at 10 o'clock and 45 minutes a.m.), the House stood in recess.

□ 1200

AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

PRAYER

Mr. Rajan Zed, Universal Society of Hinduism, Reno, Nevada, offered the following prayer:

We meditate on the transcendental glory of the deity supreme, who is inside the heart of the Earth, inside the life of the sky, and inside the soul of the heaven. May He stimulate and illuminate our minds.

Lead us from the unreal to the real; from darkness to light; from death to immortality.

Fulfill all your duties; action is better than inaction. Selfish action imprisons the world. Act selflessly, without any thought of personal profit. Strive constantly to serve the welfare of the world; by devotion to selfless work, one attains the supreme goal of life.

May we become united with the all-powerful and all-knowing Lord, who dwells in the hearts of all, is the supreme goal of life and infinite peace and love. Lord, be kind to us with Your invisible form, lead us to eternal joy, fill our hearts with unending peace, and free us from all bondage. Abandon us not.

That this body supports diversity of spirituality and cultures is a testament to our great institution.

For his continued spiritual leadership and for traveling from afar, I would like to thank Mr. Zed for leading us in prayer.

THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentlewoman from Maryland (Ms. EDWARDS) come forward and lead the House in the Pledge of Allegiance.

Ms. EDWARDS led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate disagrees to the House amendment to the Senate amendment to the bill (H.R. 3230) ''An Act to improve the access of veterans to medical services from the Department of Veterans Affairs, and for other purposes,'' agrees to a conference requested by the House on the disagreeing votes of the two Houses thereon, and appoints Mr. SANDERS, Mr. ROCKEFELLER, Mrs. MURRAY, Mr. BROWN, Mr. TESTER, Mr. BEGICH, Mr. BLUMENTHAL, Ms. HIRONO, Mr. BURR, Mr. ISAKSON, Mr. JOHANNS, Mr. MCCAIN, Mr. COBURN, and Mr. RUBIO, to be the conferees on the part of the Senate.

The message also announced that the Senate has passed a bill of the following title in which the concurrence of the House is requested:

S. 1237. An act to improve the administration of programs in the insular areas, and for other purposes.

WELCOMING MR. RAJAN ZED

The SPEAKER. Without objection, the gentleman from California (Mr. HONDA) is recognized for 1 minute.

There was no objection.

Mr. HONDA. Mr. Speaker, it is my privilege to welcome Mr. Rajan Zed to offer the opening prayer before the U.S. House of Representatives.

A native of the State of Nevada, he attended San Jose State University in San Jose, California, my alma mater.

As president of the Universal Society of Hinduism and a senior fellow/religious adviser to the Foundation for Religious Diplomacy, he has advocated for religious freedom and tolerance throughout the world.

His contributions to the religious community worldwide led him to be invited by the president of the European Parliament in Brussels, Belgium, for a meeting to promote interfaith dialogue. He is particularly known for his work within the Roma community, acting as a voice for the human rights of the 15 million Roma in Europe.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (Mr. POE of Texas). The Chair will entertain up to 15 further requests for 1-minute speeches on each side of the aisle.

HONORING CAROL DIXON

(Mr. CONAWAY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CONAWAY. Mr. Speaker, as the chairman of the Committee on Ethics and along with my colleague, LINDA SÁNCHEZ, the ranking member, and other members of the committee, past and present, we rise today to honor the life and work of Carol Dixon.

Every so often, through hard work, immense talent, and a zealous dedication to the mission of this body, a staffer becomes an institution of the House. Carol Dixon had achieved that status.

Known to many simply as the Ethics Lady, Carol's intelligence, candor, and infectious laugh made the House a better, more honorable place. As director of our Advice and Education section, Carol's command of the ethics rules was unmatched, as evidenced by the large number of Members and employees from both sides of the aisle who continually sought out Carol to specifically ask for her guidance.

Her sudden passing this weekend is a tremendous loss for both the Ethics Committee and the House.

MOMENT OF SILENCE HONORING CAROL DIXON

(Ms. LINDA T. SÁNCHEZ of California asked and was given permission to address the House for 1 minute.)

Ms. LINDA T. SÁNCHEZ of California. Mr. Speaker, I, too, rise to honor the life of Carol Dixon.

Carol's public service was not just to the Ethics Committee, but to the entire House. Carol provided wise counsel to hundreds of Members and to thousands of staff. This House will miss Carol's sage advice and her deep institutional knowledge. The members and staff of the Ethics Committee will also miss our good friend.

While Carol loved her job and her coworkers in the House, most of all, Carol loved her family. We know this because she spoke of them warmly and often. Carol's mother and father and family members are here with us today. On behalf of all of the members and staff of the Ethics Committee, thank you so much for sharing Carol with us.

Mr. Speaker, at this time, I would ask for everyone to rise to observe a moment of silence in the House to honor the life and memory of our friend, Carol Dixon.

IRS EMAIL LOSS

(Mr. PAULSEN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PAULSEN. Mr. Speaker, I couldn't believe my ears when the IRS revealed last week that they have lost all of the emails that have been received and sent to outside individuals by Lois Lerner from 2009 to 2011.

Coincidentally, this timeframe is critical to the investigation into the IRS's targeting of Americans based on their personal beliefs. This excuse would be laughable if it weren't so serious.

Despite the agency's promise of full cooperation and full disclosure, we now know that is not happening. It turns out that the IRS knew since February, and they sat on this knowledge that they would not be able to produce Ms. Lerner's emails.

They waited 3 months, and then they buried it in a 27-page report and released it on a Friday afternoon news dump. This is not the transparency the American people deserve.

Mr. Speaker, enough is enough. While the House will continue its investigation to get answers, it is time for full accountability and the Department of Justice to step up to the plate and fully investigate the targeting of Americans by the IRS.

HONORING PASTOR MAURICE EDWARD BARNES

(Mr. VEASEY asked and was given permission to address the House for 1 minute.)

Mr. VEASEY. Mr. Speaker, I rise today to express my sadness and also honor the passing of a great man, Pastor Maurice Edward Barnes. Pastor Barnes lived a life of service to both the church and community.

Born on July 30, 1945, to Charittie and the late Reverend Robert Barnes, Sr., he grew up in the Lake Como community of Fort Worth.

After completing his undergraduate studies at Texas Wesleyan University, Trinity Valley, and Southern Bible Institute, he answered his call to preach. For over 20 years, he was the faithful servant of God in the church in which he grew up, at the Zion Missionary Baptist Church on Horne Street in the Como community.

As a man who diligently served those around him, Pastor Barnes was not only a leader in the church, but also showed great leadership in organizations aimed at improving the community, like the NAACP.

My heartfelt sympathy to his wife, first lady Debra Watson Barnes; his children; extended family; and his friends.

Pastor Barnes made a positive impact on my life, and I ask my colleagues to join me in remembering this great man.

IMMIGRATION CRISIS

(Mr. WILLIAMS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILLIAMS. Mr. Speaker, a national crisis is happening right now in my home State of Texas. Thousands upon thousands of people from Central America are coming across our so-called southern border, and they are bankrupting Texas and wearing out our resources.

A recent headline reads: ''Feds looking for babysitters to help with illegal immigrant kids.'' This is where our tax dollars are going. The border towns in Texas are literally overflowing with unaccompanied minors.

More than 162,000 people from countries other than Mexico have crossed the southern border of the United States since last October. That is more than a 100 percent increase from the previous year.

As my Democratic colleague Congressman HENRY CUELLAR said:

> If we don't send the message that they can't come and stay here, this problem is going to continue.

It is going to get worse. The answer is simple: secure the border.

If we don't secure our border, our work in Congress is obsolete. Of course, the President is absent during this crisis, and it should be his number one priority: enforce the law of the land, and secure our border.

In God we trust.

FUNDING PANCREATIC CANCER RESEARCH

(Ms. HAHN asked and was given permission to address the House for 1 minute.)

Ms. HAHN. Mr. Speaker, pancreatic cancer is one of the deadliest cancers. A diagnosis of pancreatic cancer is often a death sentence. Of all of the patients diagnosed with pancreatic cancer, 73 percent die within the first year, most within the first 3 to 6 months.

I think we should reverse these alarming statistics and give hope to those who are affected by this disease. Fifty years ago, women were dying of breast cancer at an alarming rate; but today, with more scientific research, early detection techniques, and affordable health care, the survival rate is much higher. Women are fighting and beating breast cancer.

I think we should invest more funding for advanced research for pancreatic cancer that could save thousands of lives.

Pancreatic cancer, unfortunately, touched the life of my friend, Larry Clark, former mayor of Rancho Palos Verdes, California; but thanks to a successful surgery and clinical trials, Larry is alive and well.

Now, he has dedicated his life to working with the Pancreatic Cancer Action Network to help others fight this deadly disease. They were here Monday, walking the halls of Congress, urging us for more research money.

My hope is that the awareness of this critical issue will be an impetus for action and improvement of the way we treat pancreatic cancer in order to fight the disease and save lives.

HONORING SERGEANT FAYNE HAYNES

(Mr. DESJARLAIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. DESJARLAIS. Mr. Speaker, I rise today to honor a courageous American and proud son of Tennessee, Sergeant Fayne Haynes.

Mr. Haynes of Murfreesboro was only 20 years old when he entered the Army in 1942 at the height of World War II. He served on the front lines of Europe and was one of the first to land on Omaha Beach.

He also fought in the Battle of St. Lo, the Battle for Brest, and the Battle of the Bulge. He credits the good Lord for saving his life numerous times in combat.

Sergeant Haynes was eventually captured and spent 4 months in a prisoner of war camp, but managed to escape, aided by a German Army field map which hangs in his office today.

After the war, Sergeant Haynes became a successful businessman, operating the Haynes Brothers Candy Company in Murfreesboro. In 2000, Mr. Haynes switched his business to flags. Known as the Flag Man, he sells thousands of American flags each year.

Thank you, Sergeant Haynes, for your service. You truly embody the spirit of the Greatest Generation.

□ 1215

VOTING RIGHTS AMENDMENT ACT

(Ms. CHU asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. CHU. Mr. Speaker, one of the most precious rights we have as Americans is the right to vote. But every day it is becoming more difficult to do it.

Today is nearly 1 year after the Supreme Court's Shelby decision, which gutted provisions of the Voting Rights Act. States quickly moved to restrict voting rights. In fact, hours after Shelby, Texas announced its voter ID law would be implemented immediately. Thank goodness the Federal court blocked it.

Without these protections, minority communities will be disproportionately affected. The Voting Rights Act ensured equal access to the ballot box, and it protected voters like Rose

Thompson. Rose is 79 years old and has voted all her life, but this November she will likely be turned away. Rose was born at home in Jackson, Mississippi, and never received a birth certificate, so she can't obtain a voter ID as her State requires. Without an ID, Rose loses a fundamental right that was guaranteed to all Americans.

Now is the time for action. I urge my colleagues to support the bipartisan Voting Rights Amendment Act and restore our ability to have a voice in this democracy.

VETERANS CONTRIBUTE TO HSA

(Mr. SAM JOHNSON of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SAM JOHNSON of Texas. Mr. Speaker, you know, we have heard the horror stories of our veterans experiencing long wait times, subpar care, or worse, no care at all at VA's across the country. While we can't fix a broken VA system overnight, we can do something now to help our brave men and women in uniform.

That is why I am introducing the Helping Veterans Save for Health Care Act that would allow veterans who receive care through the VA to contribute to a health savings account. Such savings could then be used by the veteran or their family.

Veterans want, need, and deserve more choices when it comes to saving for health care, particularly when our VA is failing to provide the care they earned. We must continue to put our veterans first, and we can start by making it easier for them to save through an HSA for quality care.

I ask my colleagues to join me in this effort. It is the right thing to do.

HONORING OFFICER SCOTT HEWELL

(Mr. MCNERNEY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. MCNERNEY. Mr. Speaker, I rise today to recognize the life and service of Scott Hewell, a police officer in Stockton, California, who died as a result of injuries in the line of duty.

On May 28, Officer Hewell and his partner were headed to assist another officer with an armed suspect when their car crashed. Both officers sustained serious injuries, and Officer Hewell, sadly, died on June 11.

Only 33 years old, Officer Hewell was a graduate of San Francisco State University and joined the Stockton Police Department in September 2012. He was well-liked on the force. He trained at the Sacramento Police Academy and worked with the Sacramento Sheriff's Department.

Officer Hewell was the 11th officer to die in the line of duty in Stockton, the first since 1993. Our law enforcement officials risk their lives every day to work to protect ours.

Our community mourns the loss of Officer Scott Hewell, and our thoughts and prayers are with his family. I ask my colleagues to remember Officer Hewell and all the fallen officers and to thank our first responders for their service.

BORDER PATROL: PRESIDENT'S AMNESTY PROMISE CAUSES SURGE

(Mr. SMITH of Texas asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. SMITH of Texas. Mr. Speaker, tens of thousands of unaccompanied minors are surging across our southern border.

According to an internal Border Patrol report, the blame falls squarely on the President. The report shows that 95 percent of the illegal immigrants interviewed came to the U.S. to get a ''free pass'' from the President's announced amnesty policy. His failure to enforce immigration laws and his promise of amnesty by executive order entices these immigrant children to enter the U.S. illegally. The estimate for this year alone is expected to reach 90,000—15 times more than 4 years ago.

The President's solution is to issue public service announcements in Central America, but the administration's actions speak louder than their words. The President's pro-amnesty policies have caused this crisis. The real solution to the border surge is to enforce current immigration laws, not undermine them as the President has done.

RECOGNIZING ANTWON LAMON

(Ms. KELLY of Illinois asked and was given permission to address the House for 1 minute.)

Ms. KELLY of Illinois. Mr. Speaker, as kids across the country celebrate the end of the school year, I want to take a moment to recognize the outstanding students and educators who make our communities better. When good teachers, involved parents, innovative curriculum, and motivated students come together, our communities shine.

Today I recognize Antwon Lamon of Washington High in Chicago, who was recently recognized by the President at the White House Maker Faire. This event celebrated students whose innovative technologies and techniques will transform America's way of life.

Along with a team of pioneering Washington students, Antwon created ''Baller's Life,'' a 3–D interactive game whose objective was to provide a nonviolent educational experience that stimulates the minds of adults and children alike. It is so good, that even the President noticed.

Antwon's achievements include placing in Chicago's academic decathlon, completing rigorous AP courses, maintaining an honor average, all while competing on Washington's football, wrestling, track, basketball, and volleyball teams.

As Antwon prepares for college at Northern Illinois University this fall, my alma mater, I am reminded that not only was the Second District made better by him, it has a brighter future because of students like him.

RESCUING THE CREW OF AQUA QUEST

(Mr. BILIRAKIS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. BILIRAKIS. Mr. Speaker, I rise to ask for the collective prayers of this Chamber to help bring my constituents back home to Tarpon Springs, Florida. Robert Mayne, James Kelly Garrett, Devon Butler, Nick Cook, Steve Matanich, and Michael Mayne are the crew of the Aqua Quest, a boat company hired to teach locals in Honduras how to safely scuba dive.

On a quest to do good, these men have been illegally detained without benefit of due process for 44 days and have spent several, as I said, several weeks in a dilapidated Honduran jail living in unacceptable conditions.

Together with my colleague, Congressman MIKE FITZPATRICK, we have urged the State Department and Honduran officials to work towards a quick resolution to free these men so that they may return to the loving arms of their families.

Your prayers are appreciated, and I have confidence that we will bring them home.

THE 50TH ANNIVERSARY OF FREEDOM SUMMER

(Mr. DEUTCH asked and was given permission to address the House for 1 minute.)

Mr. DEUTCH. Mr. Speaker, this year we mark the 50th anniversary of the 1964 Freedom Summer, when hundreds of Americans traveled to Mississippi to fight discrimination and advance voting rights and equality under the law.

Today I rise to recognize three Americans who gave their lives in that struggle: James Chaney, Michael Schwerner, and Andrew Goodman. On June 21, 1964, these three activists—one African American and two Jewish—were kidnapped and murdered for working to register Black voters.

Their lives, the lives of James Chaney, Michael Schwerner, and Andrew Goodman, were claimed by hate, yet their faith in equality and justice and the right to vote lives on today through the historic Black-Jewish alliance born out of the civil rights movement.

I proudly support honoring these three activists with a Congressional Gold Medal and would like to thank the Foundation for Ethnic Understanding for championing this cause.

For 25 years, the foundation has advanced the values shared by the Jewish

and African American communities, including tolerance, equal rights, and justice. As a Jewish American, it is an honor to fight for these values here in Congress today and every day.

RALLYING TO THE FAMILIES OF THE FALLEN AND WOUNDED

(Mr. ROTHFUS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROTHFUS. Mr. Speaker, the situation unfolding in Iraq is a tragedy.

Almost 4,500 fellow Americans made the ultimate sacrifice in Iraq defending our freedom and fighting oppression and tyranny. More than 32,000 men and women who served our country in Iraq bear the wounds of war, and all who served had extraordinary pressures put on their families.

Unless you have lived it, one cannot begin to know the pain experienced by the families of the fallen and the wounded. Our men and women in uniform fought for an ideal. That ideal is freedom: the freedom of religion, the freedom of speech, the freedom to assemble and vote and make one's voice heard, freedoms like those we have right here in this Chamber. That ideal will never die.

During these difficult days, Mr. Speaker, let us make sure we are mindful of the sacrifice of so many and let us always rally to the families of the fallen and stand in solidarity with all of our veterans.

VA HEALTH CARE

(Ms. EDDIE BERNICE JOHNSON of Texas asked and was given permission to address the House for 1 minute.)

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, the Senate voted last week to pass comprehensive legislation aimed at addressing the longstanding issues within the Department of Veterans Affairs' health care system. Now it is time for the Republican House leadership to bring a comprehensive package to the floor.

With more than 8 million veterans turning to the VA for medical care each year, it is absolutely critical that we thoroughly address these issues in a timely fashion. That is why I commend Congresswoman KIRKPATRICK for introducing companion legislation to the Sanders-McCain bill to improve the quality of care within the VA.

Our veterans should not have to endure excessive long waits, tolerate canceled appointments, and question the quality of care they are receiving, nor should the persons reporting these activities be punished. The legislation would increase access to care while also improving on the quality of care, and it is something that we can act upon today.

Mr. Speaker, our Nation will be judged by how we treat our veterans. I urge this Congress to act swiftly on comprehensive legislation so that we can bring real accountability—and some sanity—back to the VA.

HONORING KANE COUNTY'S EDUCATOR OF THE YEAR

(Mr. HULTGREN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. HULTGREN. Mr. Speaker, I rise today to honor the Kane County Educator of the Year, Carol Mertes of East Aurora School District 131. For Carol, teaching is in her blood. Her grandfather was a principal and her aunt was a teacher in Chicago public schools.

Carol has been an exemplary first grade teacher for decades who has touched many lives through her exceptional teaching skills and care for her students. She has served on the East Aurora District's School Improvement Review Team, Language Arts Curriculum Council, Reading Leaders Committee, and the Reading Task Force.

Teachers like Carol have one of the hardest but most influential jobs in the country. They are in charge of shaping our future generations, and they have the ability to make a huge impact on our youth.

I am grateful for Carol's undying patience and care for our children in Kane County, ensuring that the impact is a positive one.

HONORING JUNETEENTH

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, I rise today to honor Juneteenth.

Each June 19th, we celebrate Juneteenth to commemorate the announcement of the end of slavery in the United States. Juneteenth is a celebration of African American freedom, but it is also an opportunity to reflect on opportunities for self-improvement and set goals for the future.

This past weekend, I was honored to take part in the 39th annual Juneteenth Festival in Buffalo. Started in 1976, this festival has grown over the years to become one of the largest of such celebrations in the world and has established its position as an important tradition within the Buffalo community.

Mr. Speaker, I am honored to recognize Juneteenth today to celebrate our Nation's rich African American history and express my thanks to those who organize these important community celebrations of culture and heritage.

IN FAVOR OF A STRONG NATIONAL DEFENSE

(Mr. PALAZZO asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PALAZZO. Mr. Speaker, events in Iraq over the past week serve as a chilling reminder of the fact that the world is not getting safer. I am disturbed by these events, but I am not surprised. Over the past few years, my colleagues and I have warned against our Nation's weakening foreign policy and the devastating defense cuts this President insisted on making on the backs of our men and women in uniform. The result is a strained military and a world where our enemies don't fear us and our friends no longer trust us.

On Monday, the USS *Mesa Verde*, one of our Navy and Marine Corps' amphibious warships in the LPD class, entered the Persian Gulf with 550 marines onboard. These ships have a long history of supporting our missions and responding to numerous threats all around the world. This LPD ship sitting in the Persian Gulf full of marines sends a clear message: we will not waiver in defense of American interests or protecting American lives.

I believe we need to keep sending that message. We must adequately fund our Nation's military, and we must provide for more ships like the LPD class amphibious warships so we can ensure the safety and security of our Nation and those who defend it.

□ 1230

NONDISCRIMINATION FOR LGBT FEDERAL CONTRACTORS

(Mrs. DAVIS of California asked and was given permission to address the House for 1 minute.)

Mrs. DAVIS of California. Mr. Speaker, with the stroke of a pen, President Obama will extend workplace protections to 14 million LGBT Federal contractors.

Thankfully, LGBT San Diegans are already protected by State law, but this is not the case for all Americans.

I applaud the President for doing the right thing. Now it is time for Congress to end discrimination for all workers.

California and 17 other States have shown that these protections aren't just the right thing to do, they are good policy and good business.

Discrimination has no place in government. Discrimination has no place in the work place.

It is past time for Congress to listen to the American people. The Senate has already passed the Employment Nondiscrimination Act. Let's bring ENDA to the floor and pass it today.

WISHING MARTELL AND RHONDA MENLOVE ALL THE BEST

(Mr. BISHOP of Utah asked and was given permission to address the House for 1 minute.)

Mr. BISHOP of Utah. Mr. Speaker, Utah has some large educational shoes to fill.

Martell Menlove, the State superintendent of public instruction in Utah, is ending a nearly four-decade career in public education. He has

served kids as a classroom teacher, a counselor, and an administrator in the Jordan, Tooele, and Rich districts, and he was my superintendent while I was teaching in the Box Elder district.

Twice he was named Superintendent of the Year in Utah before he joined the State office in 2009.

His wife, State Representative Rhonda Rudd Menlove, is also a career educator and is retiring after five terms in the Utah State legislature.

Utah is losing a great team who inspired kids. They will be missed. We want to wish both Martell and Rhonda all the best in the new adventures they will be taking together.

We thank you for what you have done for kids in Utah.

REMEMBERING JIM ROGERS

(Ms. TITUS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. TITUS. Mr. Speaker, Nevada lost a good man and I lost a good friend this past week when Jim Rogers lost his long battle with cancer at the age of 75.

Those who knew or briefly encountered Jim quickly realized that he had no fear. His business acumen, philanthropic generosity, and ferocious passion for learning made him a true game changer. Whether it was improving higher education or strengthening the integrity of the media, Jim never shied away from his convictions or backed down from his steadfast commitment to progress and quality. He started the conversation, directed the dialogue, and produced results that propelled Nevada, sometimes kicking and screaming, towards a brighter future.

My thoughts go out to his wife, Beverly; his son, his other family members, and the people who worked with him and for him at Channel 3. They brought the world into our living rooms every evening. We will miss him very much and so will they.

CONGRATULATING ACTUATED MEDICAL

(Mr. THOMPSON of Pennsylvania asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. THOMPSON of Pennsylvania. Mr. Speaker, I rise today to congratulate Actuated Medical, Incorporated, a Bellefonte, Pennsylvania-based medical device company that focuses on state-of-the-art, minimally invasive instruments, for being selected by the Small Business Administration as a 2014 Tibbetts Award winner.

The SBA presents the Tibbetts award to companies who exemplify the best of the Small Business Innovation Research Program.

Recipients of the Tibbetts award are selected by a panel of judges based upon the economic impact of their innovation, how they supported Federal research and development needs, and their ability to increase commercialization of Federal research.

As a former Member of the House Small Business Committee, I witnessed firsthand this woman's business enterprise grow from a young start-up to the top National Institutes of Health SBIR-funded company in Pennsylvania for 2013, placing them fifth in the country.

Mr. Speaker, small businesses remain the backbone of our economy, and innovators like Actuated Medical not only create devices that save lives and change the face of modern health care, they also provide good-paying, family-sustaining jobs in our local communities.

I lend my congratulations to everyone at Actuated Medical, Incorporated.

DEPARTURE OF OHIO STATE UNIVERSITY PRESIDENT DR. ALUTTO

(Mrs. BEATTY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. BEATTY. Mr. Speaker, we have heard a lot about education today, probably because education is the economic engine of our future.

Ohio State University plays a pivotal role in K-Life education. It is located in my district, and it serves not only my district but the Nation.

Today, I rise to acknowledge Ohio State University's outgoing interim president, Dr. Joseph Alutto, a former colleague and a friend, and to welcome incoming president, Dr. Michael Drake.

Thank you, Joe Alutto, for your leadership in preparing our next generation of teachers, artists, medical, corporate, and community leaders. In an era where innovation in science and technology and creative entrepreneurialism will determine our global station in the world, it is critical that we have capable leaders at the helm of our education and research institutions.

I thank Joseph Alutto for his service to Ohio State University, the single-largest campus university in the country. God speed and good luck.

PROVIDING FOR CONSIDERATION OF H.R. 4413, CUSTOMER PROTECTION AND END USER RELIEF ACT

Mr. SESSIONS. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 629 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 629

Resolved, That at any time after adoption of this resolution the Speaker may, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of the bill (H.R. 4413) to reauthorize the Commodity Futures Trading Commission, to better protect futures customers, to provide end users with market certainty, to make basic reforms to ensure transparency and accountability at the Commission, to help farmers, ranchers, and end users manage risks to help keep consumer costs low, and for other purposes. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and amendments specified in this resolution and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Agriculture. After general debate the bill shall be considered for amendment under the five-minute rule. It shall be in order to consider as an original bill for the purpose of amendment under the five-minute rule an amendment in the nature of a substitute consisting of the text of Rules Committee Print 113-47. That amendment in the nature of a substitute shall be considered as read. All points of order against that amendment in the nature of a substitute are waived. No amendment to that amendment in the nature of a substitute shall be in order except those printed in the report of the Committee on Rules accompanying this resolution. Each such amendment may be offered only in the order printed in the report, may be offered only by a Member designated in the report, shall be considered as read, shall be debatable for the time specified in the report equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole. All points of order against such amendments are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. Any Member may demand a separate vote in the House on any amendment adopted in the Committee of the Whole to the bill or to the amendment in the nature of a substitute made in order as original text. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions.

The SPEAKER pro tempore. The gentleman from Texas (Mr. SESSIONS) is recognized for 1 hour.

Mr. SESSIONS. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to my dear friend, the gentleman from Florida (Mr. HASTINGS), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SESSIONS. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SESSIONS. Mr. Speaker, House Resolution 629 provides for a structured rule for consideration of H.R. 4413. This rule makes in order eight amendments which provide the opportunity for Members of the minority and the majority to participate in this debate.

The legislation before us today reauthorizes the Commodity Futures Trading Commission, known as the CFTC,

through fiscal year 2018, and makes important reforms to promote market stability and to protect end users from unnecessary regulations. Most of all, Mr. Speaker, we are here because we want to learn from the past, be prepared for the future, and to allow this organization to adapt as it needs to to produce better decisions and better outcomes in the future, and that is why Republicans are here today. This bipartisan bill out of the Agriculture Committee does exactly that.

Over the past 20 years, financial services companies have started to employ financial derivatives—historically used by farmers, ranchers, and utility co-ops to manage risk—as new types of investment vehicles. They are a part of the day-to-day life of millions of people across this country that help us to not only get better prices, but to be able to hedge against the uncertainty.

Today, the derivatives marketplace represents trillions of dollars' worth of futures contracts, swaps, and other similar financial instruments. In response to the incredible growth of the derivatives market, the CFTC has promulgated rules and regulations designed to promote fairness and stability throughout the economy directly in relationship to this activity.

Unfortunately, regulations have been written so broadly and with such inconsistency that many end users—such as farmers, ranchers, manufacturers, and municipal utility companies that rely on these contracts for the delivery of critical grain and natural gas—are forced to comply with rules intended for sophisticated investment firms rather than the instruments on which they rely and use for their own trading and commodity work. Such blind enforcement of the law is not fair nor efficient and unnecessarily punishes small businesses that are trying to effectively manage their risk.

Simply put, as a direct result of the CFTC's regulations, American families are paying more for everything from a box of cereal to a new dishwasher to their monthly energy bills. In recognition of this fact, H.R. 4413 exempts end users from these regulations to restore fairness, to promote American companies, and to give them flexibility that they need to run their day-to-day operations and to protect consumers from unnecessary price increases.

Mr. Speaker, this bill has been well understood by the Agriculture Committee on a bipartisan basis. All the way to the top on both sides of the committee, there is an agreement about how to move forward with effectiveness, with efficiency, and to allow those end users to be able to have the market strategies available to them to hedge their own risk, and to understand the things that are in their own natural best interest, and that is stability of prices, a marketplace that they understand, and, perhaps more importantly, one which keeps American jobs in America and, secondly, that allows Americans to be able to invest in America, from American-made products to American-made users.

What we are here to do today is to bring this commonsense piece of legislation to the floor on behalf of a bipartisan large group of members. It is common sense, it is pro-business, it promotes appropriate regulation of our Nation's derivatives market, it is well thought through. What this will allow is this House to be able to get on record, put themselves to where they can then go to a conference to meet with the Senate, if they believe it is the right thing to do, and move forward to make the CFTC even better than what it is today based upon the history and based upon where it wants to go.

□ 1245

The discussion we had at the Rules Committee was, on a bipartisan basis, very uplifting. I believe the effort that we are going to bring together with that legislation means that we can vote not only ''yes,'' but have confidence that we have made better the things which we touch today.

Mr. Speaker, I urge my colleagues to support the rule and the underlying legislation, and I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I yield myself such time as I may consume.

I thank the gentleman, my good friend, the chairman of the Rules Committee, Mr. SESSIONS, for yielding the customary 30 minutes.

I rise today in opposition to the rule for H.R. 4413, the Customer Protection and End User Relief Act, which reauthorizes through 2018 the Commodity Futures Trading Commission.

Mr. Speaker, the CFTC plays a critical role in protecting market participants and our Nation's economy from fraud, manipulation, abusive practices, and systemic risk related to derivatives, both futures and swaps, as well as in fostering transparent, open, competitive, and financially sound markets.

However, H.R. 4413 contains several harmful provisions that impede the CFTC's ability to enforce existing derivatives rules and roll back meaningful reforms in the Dodd-Frank Wall Street Reform and Consumer Protection Act.

Specifically, title II of this bill carves out the CFTC from the Administrative Procedure Act process for establishing regulations, which represents the most longstanding and broadly applicable requirements for Federal rulemaking and was written to bring regularity and predictability to agency decisionmaking.

Furthermore, section 203 of the legislation imposes burdensome cost-benefit requirements that likely serve only to prevent, delay, or weaken any rules that implement Dodd-Frank.

Current law already requires the CFTC and other agencies to conduct economic analyses pursuant to the Paperwork Reduction Act, the Congressional Review Act, and the Regulatory Flexibility Act.

In addition, the CFTC is also bound by the Commodity Exchange Act to consider the protection of market participants and the public; the efficiency, competitiveness, and financial integrity of futures markets; price discovery; sound risk management practices; and other public interest considerations, under the supervision of the courts.

The redundant cost-benefit requirements contained in H.R. 4413 will not only hamper the appropriate consideration and promulgation of new rules, but expose the CFTC to greater industry litigation.

Finally, H.R. 4413 threatens American taxpayers by deregulating foreign derivatives transactions. Under section 722(d) of Dodd-Frank, the CFTC is authorized to oversee derivatives transactions that ''have a direct and significant connection with activities in, or effect on, commerce of the United States.''

Section 359 of this bill exempts overseas derivatives transactions from regulation, creating a loophole in our system of regulatory oversight that could be gamed by large multinational swaps dealers.

Just 6 years ago, derivatives trading related to the activities of the corporate structure AIG and Lehman Brothers nearly brought down our economy and cost every American household more than $50,000.

I related last night in the Rules Committee that we were there—Ms. SLAUGHTER and I and the chairman, Mr. SESSIONS—all of us—when Mr. Paulsen and Mr. Bernanke brought to us the notion on three or four paragraphs and two pages that this Nation was about to go bust.

It is clear that derivatives transactions outside of the United States pose real risks to United States financial institutions, yet instead of strengthening the CFTC's ability to effectively regulate derivatives transactions involving the foreign operation of U.S. banks, H.R. 4413 presumes that they will be governed by foreign rules, disregarding whether those foreign rules are adequate or if the trades will import risk back to the United States.

Moreover, this presumption can only be overturned after the CFTC and the Securities and Exchange Commission go to considerable procedural lengths to make a joint determination that a foreign host country's regulations are not broadly equivalent to United States regulations.

The futures and swaps markets are essential to our economy and the way that businesses and investors manage risk, particularly for farmers, hospitals, manufacturers, and certain utilities industries.

While I share my colleagues' concern regarding issues affecting many of

these end users, I believe that this legislation falls short of the goals of comprehensive Wall Street reform and ensuring that derivatives transactions do not contribute to another global economic crisis.

I also said last yesterday, in the Rules Committee, that I predict that if this measure were to become law, we could reasonably expect that we would have the same kind of financial crisis that we did 6 years ago.

Instead of creating new, heavy administrative burdens, we should further empower the CFTC to be able to carry out its responsibilities, including those under Dodd-Frank.

Just last week, House Republicans proposed to dangerously underfund the CFTC at 22 percent below the President's request, with an appropriation that will likely lead to either agency-wide closures or employee layoffs. This would make the already underfunded CFTC less effective at protecting consumers, end users, and investors.

Additionally, because this bill retroactively reverses rules that have already gone into effect and many of those that are in the pipeline, it increases uncertainty and costs to businesses and end users that will unnecessarily have the rules of the game changed on them.

I simply don't understand this logic. Reducing the CFTC's ability to effectively oversee these financial activities only increases the likelihood that we will find ourselves in another potentially disastrous situation.

Additionally, I would also like to take this opportunity to point out that several of my colleagues on the Financial Services Committee share these concerns.

It was also pointed out by my colleague that this came out unanimously from the Agriculture Committee. It did in fact do so, but in the Rules Committee, we had the prerogative, if we so chose, to allow the Financial Services Committee to be able to make presentations that I believe—and in a bipartisan way—other Members, particularly those of the Financial Services Committee, believe should be a part of this discussion today. However, this rule cuts them out of the debate.

In fact, H.R. 4413 rehashes several earlier bills that Financial Services Committee members have previously voiced concern over, including H.R. 1256, the Swap Jurisdiction Certainty Act; and H.R. 1003, to improve consideration by the Commodity Futures Trading Commission of the costs and benefits of its regulations and orders.

The administration has also come out in opposition to the bill. We can't continue with more of the same failed partisan practices and effect a different outcome.

Mr. Speaker, I reserve the balance of my time.

Mr. SESSIONS. Mr. Speaker, I appreciate the gentleman from Florida bringing up a few of the ideas and assertions that I believe that he thinks are frailties in the bill, and I yield myself such time as I may consume.

What I would like to do, if I can, is let him know that we had a full hearing yesterday and enabled our members time to read and understand and hear these ideas. We were assured yesterday by the chairman of the committee and the ranking member that this is a good process. We are not trying to do an end run around anybody.

Mr. Speaker, there is something that is well established, known as the Administrative Procedure Act. This is an opportunity for agencies to interact with each other through an agreement, whereby they consult with each other and provide information and procedurally be able to walk through who is doing what and how things might be done.

I don't think it means they always have to have consent. I don't think it means they always have to have agreement, but there is a process that goes on.

I would refer the gentleman to section 211 of the bill on page 18. Section 211 says quite clearly—no ambiguity here—that everything in this act is meant to comply with and give guidance to the Administrative Procedure Act, which means that there is nothing in here that says that the CFTC does not share its information, understand its rulings, work with the FTC, work with the SEC, work with anyone about those rules that they are going to promulgate.

As a matter of fact, it says that the CFTC does have the ability to do that, and instead of them making their own rules and regulations without working through the Administrative Procedure Act would be a mistake. It is authorized here in law.

Further, if one goes back to a later section, page 47 of the bill, section 359, for the Members of Congress that are sitting in their offices and interested in this and want to know, this bipartisan bill by two senior Members—by the way, a former chairman and the current chairman today—says, ''Section 359. Cross-border regulation of derivatives transactions.''

That means that, in a world market, we want to make sure that Japanese, Russian, Indian, German, whatever the marketplace holds for a commodity that we are talking about in particular, this would mean that, as the bill says:

> Not later than 270 days after the date of enactment of this act, the Securities and Exchange Commission and the Commodities Futures Trading Commission shall jointly issue rules setting forth the application of United States swaps requirements for the Securities Exchange Act of 1934 and the Commodity Exchange Act related to cross-border swaps and security-based swaps transactions involving U.S. persons or non-U.S. persons.

Mr. Speaker, we are trying to do the right thing. This is not about causing some market crash or failure. This comes from the Agriculture Committee, on a bipartisan basis, making sure that, in section 211 and section 359, they very effectively address exactly what we are being told we didn't do.

□ 1300

We are trying to have this government know what the right hand and the left hand are doing, not the reverse, and I believe it is simply not a true statement to say that we are not trying to accomplish this.

Look, we don't all have to agree on this, but on a bipartisan basis—unanimous out of the Agriculture Committee—they thought they did a pretty good product. I think they did a pretty good product, and my job is to come defend us on the floor. So, when somebody says you did something wrong, I say, ''Read the bill.''

I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, I would remind the chairman, my good friend, that good intentions don't always manifest themselves in a positive way. I am sure before we had the recession that there were good intentions. My prediction is that, without appropriate regulation, we can reasonably expect that these same kinds of recessive measures might come into play. I recognize my good friend, the chairman, has his script together when it comes to something bipartisan coming out of the Agriculture Committee, but I also know that this is an end run around the Financial Services Committee, which also has germane interests in the particular legislation at hand.

Mr. Speaker, I am very pleased at this time to yield 3 minutes to the gentlewoman from New York (Ms. SLAUGHTER), my very good friend and the ranking member of the Rules Committee.

Ms. SLAUGHTER. I thank the gentleman for yielding me the time.

Mr. Speaker, how quickly we forget what got us into the economic mess in the first place.

I was here 6 short years ago when the recklessness on Wall Street triggered the worst financial crisis since the Great Depression and cost millions of hardworking Americans their jobs and their homes. Since then, Democratic majorities in the House and Senate have enacted reforms, known commonly as Dodd-Frank, to stop the worst of these abuses with the aim of preventing another economic meltdown. Obviously, since that time, copious American dollars have been spent, and legions of lobbyists have come in, to try to undo Dodd-Frank. This is the first of other bills that we will get that will do away with regulation. Unfortunately, the authorization passed out of the Rules Committee last night is a backdoor attempt to undo some of the crucial reforms and is a precursor to another financial crisis.

Why wouldn't the Rules Committee give equal debate time to the Financial Services Committee, which has real jurisdiction over what we are doing here today? Why would they disallow that?

It is because they didn't want anybody to hear it. If the Agriculture Committee were unanimous, I don't know what its reason was, but many Democrats and, certainly, those of us on the Rules Committee and others who are going to be here today want to be solidly in the ''no'' column because, if what we fear will happen happens, we want the country to know that somebody tried to stop it as there are crucial reforms that we talk about in this bill which are going to handcuff and obstruct the law enforcement officials who are charged with overseeing the markets and enforcing the regulations on Wall Street.

When we found out 6 years ago, I was a member of the leadership then and was chair of the Rules Committee. We got a message on Saturday afternoon. It was three paragraphs, which Mr. HASTINGS did a wonderful job of explaining, from Secretary Paulson and the head of the Fed, Mr. Bernanke. It was very short and quite succinct. Basically, if we did not provide them—the Treasury and the Fed—with $800 billion by Tuesday—and this was Saturday—the financial services in the United States would be defunct. We would be finished.

This was pretty frightening because all we knew is that fancy things were going on on Wall Street and that mortgages were being chopped up and sold in pieces. I think they unloaded a lot of it onto Germany's Deutsche Bank. We not only affected our economy, but we affected other parts of the world. It was a disaster—people lost houses that they had spent their lives trying to get; children were displaced from their homes and from their schools; people were without their jobs—simply because they were playing tricks, passing paper back and forth to each other, and there was not strong enough regulation in this country for the people who did the oversight to even know what was going on.

The SPEAKER pro tempore. The time of the gentlewoman has expired.

Mr. HASTINGS of Florida. I yield the gentlelady an additional 2 minutes.

Ms. SLAUGHTER. This was one of the most awful things that we had ever gone through. We watched what happened to our neighbors and to those in other parts of this country where people were literally forced out onto the streets because of what Wall Street had done, not because of anything they had done. People who had paid their mortgages faithfully every single month suddenly found out that those mortgages were worthless, that their mortgages were more expensive to them at that time than their houses were worth on the market.

Why in the world would we have any attempt here to undo any of that? Those lobbyists and all of that money made their statements pretty clear.

On our side, we are trying to hold up the other side. We want to speak for those people who lost their jobs. We want to speak for those people who lost their homes. We want to say to the small businesses that had no access to capital and went under that we are trying to protect your interests here.

Whatever happens, we know we don't have the votes—you have got them. We do know that this is a majority that hates regulation whether it is clean air or clean water. Whatever it is, get rid of it. Then you come back down here to Wall Street and know the effect that it has had. We haven't completely recovered from that recession. God knows we have not passed any legislation in the House of Representatives to create jobs or to make it any better. We do everything that we can just to benefit those people who have the money. We all know how this movie ends. If it moves forward as written, we are sowing the seeds for future disaster in this country.

Last night, at the Rules Committee, we called for a ''no'' vote, and we said specifically what we were doing. We wanted to be on record on our side as trying to protect the American public and their futures so that they have some confidence again in what they are doing. We would love it if banks would again stop passing paper back and forth to each other and would make loans and get people back to work. We, of course, were not able to do that as 2–9, I believe, was the vote. We will see what happens when this comes to the floor, as it certainly will. We just simply, as I said, want to make sure because, the last time this came up, we didn't have the opportunity to speak. We are a solid ''no.''

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

I really do appreciate the gentlewoman from New York, the ranking member of the Rules Committee, for coming down and taking her very important time.

I would, with great respect, remind her and my colleagues who are listening that the Agriculture Committee has jurisdiction over the CFTC, not the Financial Services Committee, which is why we are here doing this bill today.

I want to just say to the gentleman and the gentlewoman that, if they are unable to give time during the debate or now to their Democrat colleagues they would choose, I am sure they could come talk to us and ask for time, but I don't see anybody lined up here to come down and argue the point, because this is a bipartisan bill, because this is a commonsense bill, because this makes sense that we are trying to avoid problems by getting this administration and the commissions that are spoken about here to work together, to use the benefit of the knowledge of the past. This is not about deregulating or doing away with something or defunding somebody. That is just not the case.

The case is section 211 and section 359. The entire bill has been well vetted and well understood on a bipartisan basis. Mr. COLLIN PETERSON, the ranking member, came with the chairman, Mr. LUCAS from Oklahoma. They sat there very succinctly and said they were going to work together. They were asking us to consider working together. We have had lots of bills, lots of appropriators. Just the other day, Armed Services, on a bipartisan basis, brought us their bill. I am sure there will be people who will fight that also. They will say that those darned Republicans just want to ruin this country, that they want to go back to the other ages.

Mr. Speaker, not true.

In fact, work that is done on our Appropriations Committee and work that is done, as an example, on the Agriculture Committee is done together to try and address the problems of their constituencies. They're the people who live in rural America—people who get up early, who go to bed late, who care about this country—who do the things that, I think, are all American, in my mind, including having their sons and daughters join our military and they are helping each other—good neighbors—and looking out for each other. That is what we are doing. That is what this is. This isn't to have a debating group about things that are wrong. It is about things that can be done right.

I would just say that, if the Democratic manager is unwilling to yield his time to Ms. WATERS, who is the gentlewoman who came up from Financial Services, she ought to ask a Republican if he will yield time, and it wouldn't surprise me if he would.

I reserve the balance of my time.

Mr. HASTINGS of Florida. Mr. Speaker, through you, I would advise my good friend that we have no further speakers and that I am prepared to close at this time if he is.

In closing, what has transpired here is interesting. The Agriculture Committee had finished its product, and then it came yesterday to add provisions that in the final analysis are dealing with the Securities and Exchange Commission. Then my friend, the chairman, would argue that it is an agriculture bill. Clearly, it is smackdab in the lane of Financial Services, and they were excluded. Yes, Ms. WATERS did come to the Rules Committee last night, and there is no requirement that she be here now, but what we could have done—we keep saying ''last night,'' but it was late yesterday evening—is to let the Financial Services people participate in this debate—but no. What we have are the two people, the chairman and ranking member, who are given time with reference to this matter, and the Financial Services Committee is shut out of this debate. That is just plain wrong, and I believe most people know that.

Mr. Speaker, H.R. 4413 creates significant loopholes for derivatives by hamstringing the CFTC, and it undermines comprehensive financial reform.

Six years after the Great Recession, families are still struggling in this

country. As of last week, 3 million Americans have lost their emergency unemployment insurance since it expired in December 2013. I want to repeat that: 3 million Americans have lost their emergency unemployment insurance since it expired in December 2013.

After my friends finish their reconstitution of their leadership this afternoon, I would hope that their new then leadership would come down here and put something on the floor that would allow us at least to have a vote, up or down, as to whether or not people should receive unemployment compensation.

Other things that have expired, along with unemployment compensation that expired in December, are the tax extender provisions, which help individual families and small businesses invest. In the coming months—real soon—Congress is going to be faced with even more pressing challenges as our Nation's highway trust fund is expected to go 0.0—bankrupt—and the authorizations for Federal surface transportation projects will also expire. The Export-Import Bank and the Terrorism Risk Insurance Act are set to expire. The House still has eight appropriations bills left to pass, and with each passing day of inaction on these items, we come closer to another economic crisis.

Republicans and Democrats must come together to prevent this from happening as well as to move our Nation forward on comprehensive immigration and tax reform, raising the minimum wage, protecting voter rights, and securing equal pay.

□ 1315

Let me go back through that. Securing equal pay, protecting voter rights.

I am personally tired of the suppression and oppression measures with reference to voting in this country. Why in the world would we want less people to vote than, under the circumstances, people that should be participating in this great democracy of ours?

And yet we have States, including my own, circumventing the process of voting, restoring, if you will, age-old problems having to do with voting rights.

How about raising the minimum wage?

Put something down here on the floor and stand up and vote for it or against it. But don't come in here and have everybody believe that you are moving this country forward.

I predict for you what is going to happen: 28 more days, 27 more days, are going to go through the rest of this process. There is going to be further obstruction from the majority in this particular House of Representatives, and then we will go out and we will have an election, and the American people will speak again to those of us that are in the House of Representatives.

Most of us are likely to be back here, and we will be right back here in what is referred to as a ''lame duck session,'' and we will hold that lame duck session, pass some kind of an omnibus bill, and be off into the sunset for the 2016 election.

Enough already. Stop pretending, and have people know that we are confronted with real problems in this country, and it is this institution that has a responsibility to attend to them.

The reauthorization of CFTC is both important and necessary. However, H.R. 4413 includes provisions that put the safety and the stability of the United States financial system at risk. Therefore, I urge a ''no'' vote on the rule, and I yield back the balance of my time.

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

I appreciate the gentleman, my dear friend from Florida, for not only attending the meetings, Rules Committee meetings, that were directly related to this subject. It took some time yesterday. He was offered an opportunity and took us up on asking questions.

But I will tell you, not all of Denmark is rotten, Mr. Speaker. Not all of Denmark is rotten.

We are here today to put a bill on the floor to reauthorize the CFTC. We are not here for housing bills. We are not here for Wall Street bills. We are not here for all the problems of voter regulations. We are not here for all the problems of the world.

I am for world peace too, by the way. But that is not what we are here to do today.

What we are here to do is to reauthorize the Commodity Futures Trading Commission, CFTC, through a bill that was worked through by the Agriculture Committee, on a bipartisan basis, where they bring people together and actually listen to ideas. And certain sections in here may have been written by a Republican, certain may have been written by a Democrat, but there was agreement that they saw the same direction.

What did we do?

We made sure we empowered, by recognizing the role of what we are reauthorizing for the CFTC, and gave them what we believe are the proper statutes and direction, which is what the Congress of the United States is supposed to be doing, giving direction, working in consultation, and we have done this over and over and over.

By the way, this is not a 3,000-page bill. This bill was read by Members of Congress before we passed it.

Section 211, right here, we want people to work together. We would like to ask this administration to please work together.

Oh, by the way, we included the Federal courts in here also, and we said, a person adversely affected by a rule of the commission promulgated under this act may obtain the review of this rule in the United States Court of Appeals for the District of Columbia.

So we included the court system in here. We went through a process to make sure that we were dealing properly with a bipartisan answer to the past and to make us better for the future.

Oh, did we include other countries to where we want others in the world marketplace to know what we are doing? Yes, we did. Section 359, cross-border regulations of derivatives.

Mr. Speaker, we have tried to do the right thing. We don't debate every day every bill. We do debate lots of bills. We are trying to do the right thing. We are trying to work together. We are even trying to give enough time.

By the way, Mr. Speaker, how much time remains on my side?

The SPEAKER pro tempore. The gentleman from Texas has 12½ minutes remaining.

Mr. SESSIONS. Twelve and one-half minutes. My guess is that the gentleman from Florida had at least 12½ minutes. That is 24 minutes that we had available where, if there are other Members of the body that would wish to come down and participate in this debate, they can do just that.

I have not had anybody seek time. So I think the arguments are fair, but I think that they hold less water than what some assume.

What we are trying to do here today, the Republican majority, is to bring bills forward through regular order, through committees, where we know what we are doing, and we try and get things—try to get things done together. In this case, a successful rain dance has a lot to do with timing.

Well, the timing is right here today, Mr. Speaker, and we are right here on the floor with a bill. I see very little in terms of content where people want to come down and beat up the product. And the reason why is because this product is kind of like an American farm product—it is really pretty good. It really is a product of hard work, getting up early, going to bed late, being honest about it, trying to make things as efficient as they can.

So I am going to stand behind this product today. I am going to stand behind this product because I think they did a good job.

I will tell you that I think that our young chairman, FRANK LUCAS, is a great young leader. He is doing great things, and that is why I can say I urge my colleagues to vote ''yes'' on this rule, ''yes'' on the underlying legislation, and I can say with some 10 minutes left in time given me, and some time, about the same that was given to my Democrat colleague, I am going to yield back the balance of my time because I believe that the job we did was worthy and the product will show itself.

Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The previous question was ordered.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. HASTINGS of Florida. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

MESSAGE FROM THE PRESIDENT

A message in writing from the President of the United States was communicated to the House by Mr. Brian Pate, one of his secretaries.

RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 1 o'clock and 23 minutes p.m.), the House stood in recess.

□ 1635

AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. MARCHANT) at 4 o'clock and 35 minutes p.m.

PROVIDING FOR CONSIDERATION OF H.R. 4413, CUSTOMER PROTECTION AND END USER RELIEF ACT

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the vote on adoption of the resolution (H. Res. 629) providing for consideration of the bill (H.R. 4413) to reauthorize the Commodity Futures Trading Commission, to better protect futures customers, to provide end users with market certainty, to make basic reforms to ensure transparency and accountability at the Commission, to help farmers, ranchers, and end users manage risks to help keep consumer costs low, and for other purpose, on which the yeas and nays were ordered.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. The question is on the resolution.

The vote was taken by electronic device, and there were—yeas 230, nays 184, not voting 17, as follows:

[Roll No. 317]

YEAS—230

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Enyart
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Yoder
Yoho
Young (AK)
Young (IN)

NAYS—184

Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Roybal-Allard
Ruiz
Ruppersberger
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)

NOT VOTING—17

Bishop (UT)
Capuano
Clarke (NY)
Costa
Kirkpatrick
Lankford
Marino
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Stewart
Woodall
Yarmuth

□ 1701

Messrs. HONDA and HOYER changed their vote from ''yea'' to ''nay.''

Mr. CASSIDY, Mrs. MILLER of Michigan, Messrs. STIVERS, MURPHY of Pennsylvania, CULBERSON, Ms. HERRERA BEUTLER, and Mr. HALL changed their vote from ''nay'' to ''yea.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

REPORT ON H.R. 4903, DEPARTMENT OF HOMELAND SECURITY APPROPRIATIONS ACT, 2015

Mr. CARTER, from the Committee on Appropriations, submitted a privileged report (Rept. No. 112–481) on the bill making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes, which was referred to the Union Calendar and ordered to be printed.

The SPEAKER pro tempore. Pursuant to clause 1, rule XXI, all points of order are reserved on the bill.

ANNUAL CONGRESSIONAL WOMEN'S SOFTBALL GAME

(Ms. WASSERMAN SCHULTZ asked and was given permission to address the House for 1 minute.)

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I rise with many of the women of the House, both Republican and Democrat—the members of the Congressional Women's Softball Team—to share with our colleagues that, last night, at the Sixth Annual Congressional Women's Softball Game, the Members beat the press and took back the trophy.

Now, unbelievably, the press seems to be absent. They want to cover us on

everything else, but they seem to be absent in observing these proceedings. We are so proud to report to you that we didn't just beat them, but we beat them badly—10–5.

We were able to raise the most that we have ever raised for the Young Survival Coalition. In total, over the last 6 years, we have raised just over $500,000 for the Young Survival Coalition, which helps raise awareness and takes care of young women who are facing breast cancer. I know all of you know by now that I am a breast cancer survivor myself. I was diagnosed at 41, and so this is so personal for me.

I want to thank all of my teammates who have become my sisters and friends. The best thing about this game, besides that we were able to raise awareness for young women all across this country, are the friendships that we all formed and that many of us know would not ever have been made without our playing together on this team. It was so much fun for such a good cause.

Actually, what we would like to do before I turn it over to my cocaptain, Mrs. MOORE CAPITO, is we would like to ask Coach Nat to come join us at the front because she never gets the recognition that she deserves. We love her so much. Natalie gave us such incredible skill-building drills this year that it really made a difference. Our bats were hot, and our fielding was great. We had very few errors, and we jelled as a team.

If I can just say one thing before I turn it over to Mrs. MOORE CAPITO, it is that we are really so proud of the fact that this is a bipartisan team, and, hopefully, we set an example for how it really is possible to set aside politics and work together. We are very proud of being able to do that. Many of us work together in the Chamber now that we have played together on the field, so we hope that we can continue to set an example and make sure that we can, as much as possible, put aside politics so we can do things together for the country.

With that, I yield to the gentlelady from West Virginia (Mrs. CAPITO), my cocaptain.

Mrs. CAPITO. Mr. Speaker, I would like to thank my cocaptain, and I would like to thank the Members of the Senate who played with us as well. It was wonderful.

You all will be happy to know that we did not exploit the youth and inexperience of the press too much, because we had several grandmothers on the team, and for the poor folks who aren't grandmothers, I felt a little sorry for them.

I would like to call down our other coach, Mr. ED PERLMUTTER, who helped us every morning when we got up.

I would also like to give special recognition to two new members of the team this year—Katherine and Jaime. They did great.

To our Members who did not play with us this year, they were dressed and cheering right by the sidelines, so thank you all for coming.

Thanks to all of you who came out and supported us. Thanks to all of you for supporting such a great cause.

Sorry we beat you—not really.

We are on to next year because we do enjoy it. It is a labor of love because we are up early in the morning in the wind and in the rain. Thanks so much for all of the support that you give us.

Thanks, everybody.

DEPARTMENT OF DEFENSE APPROPRIATIONS ACT, 2015

GENERAL LEAVE

Mr. FRELINGHUYSEN. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on the further consideration of H.R. 4870, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from New Jersey?

There was no objection.

The SPEAKER pro tempore. Pursuant to House Resolution 628 and rule XVIII, the Chair declares the House in the Committee of the Whole House on the state of the Union for the further consideration of the bill, H.R. 4870.

Will the gentleman from Georgia (Mr. COLLINS) kindly resume the chair.

□ 1708

IN THE COMMITTEE OF THE WHOLE

Accordingly, the House resolved itself into the Committee of the Whole House on the state of the Union for the further consideration of the bill (H.R. 4870) making appropriations for the Department of Defense for the fiscal year ending September 30, 2015, and for other purposes, with Mr. COLLINS of Georgia (Acting Chair) in the chair.

The Clerk read the title of the bill.

The Acting CHAIR. When the Committee of the Whole rose on Wednesday, June 18, 2014, a request for a recorded vote on an amendment offered by the gentlewoman from Michigan (Mrs. MILLER) had been postponed, and the bill had been read through page 141, line 4.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments on which further proceedings were postponed, in the following order:

An amendment by Mr. GOHMERT of Texas.

Amendment No. 4 by Mr. BLUMENAUER of Oregon.

An amendment by Mr. NADLER of New York.

An amendment by Mrs. WALORSKI of Indiana.

The Chair will reduce to 2 minutes the time for any electronic vote in this series.

AMENDMENT OFFERED BY MR. GOHMERT

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Texas (Mr. GOHMERT) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 130, noes 292, not voting 9, as follows:

[Roll No. 318]

AYES—130

Amodei
Bachmann
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Blackburn
Brady (TX)
Braley (IA)
Bridenstine
Broun (GA)
Brownley (CA)
Buchanan
Burgess
Campbell
Carter
Chabot
Coble
Conaway
Costa
Crenshaw
Daines
Denham
Dent
DeSantis
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Enyart
Farenthold
Fincher
Fleischmann
Garrett
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Green, Gene
Griffith (VA)
Hall
Hanna
Harper
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hurt
Jenkins
Johnson, Sam
Jolly
Jones
Jordan
King (IA)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Latta
Loebsack
Lummis
Maffei
Marchant
Massie
Matheson
McCarthy (CA)
McCarthy (NY)
McCaul
McClintock
McHenry
McIntyre
McKinley
McMorris Rodgers
McNerney
Meadows
Messer
Miller (FL)
Miller (MI)
Neugebauer
Olson
Palazzo
Paulsen
Perry
Peters (MI)
Petri
Pitts
Poe (TX)
Pompeo
Price (GA)
Rahall
Rogers (KY)
Rooney
Roskam
Rothfus
Royce
Rush
Ryan (WI)
Salmon
Scalise
Schweikert
Sensenbrenner
Sessions
Sinema
Smith (NE)
Smith (TX)
Southerland
Stockman
Takano
Terry
Tiberi
Tipton
Walberg
Weber (TX)
Webster (FL)
Welch
Westmoreland
Wolf
Yoder
Yoho

NOES—292

Aderholt
Amash
Bachus
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blumenauer
Bonamici
Boustany
Brady (PA)
Brooks (AL)
Brooks (IN)
Brown (FL)
Bucshon
Bustos
Butterfield
Byrne
Calvert
Camp
Cantor
Capito
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Cassidy
Castor (FL)
Castro (TX)
Chaffetz
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Connolly
Conyers
Cook
Cooper
Cotton
Courtney
Cramer
Crawford
Crowley
Cuellar
Culberson
Cummings
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Ellmers
Engel
Eshoo

Esty
Farr
Fattah
Fitzpatrick
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gardner
Gerlach
Gibbs
Granger
Graves (GA)
Graves (MO)
Grayson
Green, Al
Griffin (AR)
Grijalva
Grimm
Guthrie
Gutiérrez
Hahn
Hanabusa
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Heck (NV)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Hultgren
Hunter
Israel
Issa
Jackson Lee
Jeffries
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kuster
Langevin
Larsen (WA)
Larson (CT)
Latham
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Marino
Matsui
McAllister
McCollum
McDermott
McGovern
McKeon
Meehan
Meeks
Meng
Mica
Michaud
Miller, Gary
Miller, George
Moore
Moran
Mullin
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neal
Negrete McLeod
Noem
Nolan
Nugent
Nunes
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pearce
Pelosi
Perlmutter
Peters (CA)
Peterson
Pingree (ME)
Pittenger
Pocan
Posey
Price (NC)
Quigley
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (MI)
Rohrabacher
Rokita
Ros-Lehtinen
Ross
Roybal-Allard
Ruiz
Runyan
Ruppersberger
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schock
Schrader
Schwartz
Scott (VA)
Scott, Austin
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Shuster
Simpson
Sires
Slaughter
Smith (MO)
Smith (NJ)
Smith (WA)
Speier
Stewart
Stivers
Stutzman
Swalwell (CA)
Thompson (CA)
Thompson (MS)
Thompson (PA)
Thornberry
Tierney
Titus
Tonko
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wagner
Walden
Walorski
Walz
Wasserman Schultz
Waters
Waxman
Wenstrup
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Womack
Woodall
Yarmuth
Young (AK)
Young (IN)

NOT VOTING—9

Capuano
Kirkpatrick
Lankford
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Ryan (OH)

□ 1713

Mr. ELLISON changed his vote from ''aye'' to ''no.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 4 OFFERED BY MR. BLUMENAUER

The Acting CHAIR (Mr. MARCHANT). The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Oregon (Mr. BLUMENAUER) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 179, noes 242, not voting 10, as follows:

[Roll No. 319]

AYES—179

Bass
Beatty
Becerra
Bera (CA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duncan (TN)
Edwards
Ellison
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Garamendi
Garcia
Gibson
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (MI)
Petri
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Roybal-Allard
Ruiz
Ruppersberger
Rush
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sires
Slaughter
Smith (WA)
Speier
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOES—242

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Bustos
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duckworth
Duffy
Duncan (SC)
Ellmers
Engel
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Latham
Latta
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lujan Grisham (NM)
Lummis
Maloney, Sean
Marchant
Marino
Massie
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peters (CA)
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Swalwell (CA)
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Veasey
Wagner
Walberg
Walden
Walorski
Weber (TX)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—10

Capuano
Kirkpatrick
Lankford
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Ryan (OH)
Webster (FL)

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1718

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MR. NADLER

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from New York (Mr. NADLER) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This is a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 187, noes 233, not voting 11, as follows:

[Roll No. 320]

AYES—187

Amash
Barber
Bass
Beatty
Becerra
Bera (CA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Costa
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Gibson
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Massie
Matheson
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Petri
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Rohrabacher
Roybal-Allard
Ruppersberger
Rush
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOES—233

Aderholt
Amodei
Bachmann
Bachus
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Marchant
Marino
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Scalise
Schock
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—11

Capuano
King (IA)
Kirkpatrick
Lankford
Moran
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Ryan (OH)

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1722

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MRS. WALORSKI

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from Indiana (Mrs. WALORSKI) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 238, noes 179, not voting 14, as follows:

[Roll No. 321]

AYES—238

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Brown (FL)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (NY)
Kingston
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Latham
Latta
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Maloney, Sean
Marchant
Marino
Matheson
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (FL)
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peters (MI)
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Scalise
Schock
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—179

Amash
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brownley (CA)
Bustos
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly

Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Massie
Matsui
McCarthy (NY)
McCollum
McDermott
McGovern
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Roybal-Allard
Ruppersberger
Rush
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—14

Capuano
Ellison
King (IA)
Kirkpatrick
Labrador
Lankford
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Ryan (OH)
Schweikert
Wittman

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR (during the vote). There is 1 minute remaining.

□ 1726

So the amendment was agreed to.

The result of the vote was announced as above recorded.

□ 1730

AMENDMENT NO. 2 OFFERED BY MR. COTTON

Mr. COTTON. I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title) insert the following:

SEC. ____. None of the funds appropriated or otherwise made available by this Act may be used to transfer or release any individual detained at United States Naval Station, Guantanamo Bay, Cuba to the individual's country of origin or to any other foreign country.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Arkansas and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arkansas.

Mr. COTTON. I yield myself such time as I may consume.

Mr. Chairman, my amendment would very simply prohibit the use of funds in this legislation from being used to transfer detainees at Guantanamo Bay to their country of origin or any foreign country.

There are two main reasons why this amendment is necessary, both related to the President's action in trading five senior Taliban commanders for Private Bowe Bergdahl.

First, he has proven that section 1035 of the National Defense Authorization Act is inadequate; and, second, we need to review conditions of the release of the Taliban Five.

On the first point, this Congress granted the President, last year, expanded authority to release detainees from Guantanamo Bay, conditioned on 30 days' notice to the Congress, as well as certain conditions.

The President abused that authority by releasing the Taliban Five without notification, even to the so-called Gang of Eight, the senior leaders of both parties in both Chambers, the senior leaders of both Intelligence Committees in both Chambers.

The President, having duly signed the National Defense Authorization Act into law with those restrictions, but then did not obey those restrictions, did not claim his core article II constitutional powers to override them. Therefore, it is imperative on our institution to reclaim, on principle, our constitutional authority.

Second, the Taliban Five have been released into the country of Qatar. We need to take a year to review the conditions of those released. As many of you have seen, they appear to be moving about freely in the country of Qatar without any restrictions on their movement, absent the requirement that they remain in Qatar.

This would allow them—senior commanders, mind you—to communicate freely with Taliban on the battlefield against our troops in Afghanistan. We should be able to take at least 1 year to see if such conditions are adequate to support the release of such hardened terrorist commanders.

What does this amendment not do? This is not a permanent ban on transfers of detainees from Guantanamo Bay, nor does it authorize indefinite detention. It simply says we will take a 1-year pause to evaluate the conditions under which five senior Taliban commanders were released and to reassert our constitutional prerogatives.

Who are these detainees? They are not goat herders who were innocently swept up by the American military, nor are they foot soldiers or couriers. These are the worst of the worst, 149 hardened terrorists, which Joint Task Force Guantanamo Bay says 120 of are high risk to return to the battle.

In fact, just this week, a former Guantanamo Bay detainee was arrested in Spain, recruiting for the Islamic States of Iraq and Syria, the terrorist group that is currently rampaging through both Syria and Iraq.

I urge my colleagues to support this amendment, stand up for your honor as a coequal branch, stand up for our national security, and stand up for the safety of your constituents.

I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Mr. Chairman, the gentleman would have a restriction, and I would point out, after today's vote, this would now be the fifth restriction relative to the detainees at Guantanamo Bay. While the gentleman suggests that it is not a permanent ban, it is a mantra of let's do nothing.

These are human beings, whether we want to admit that or not, and to simply continue, after 13 years, to do nothing is wrong. We are a Nation of laws.

I believe the continued operation of Guantanamo Bay reduces our Nation's credibility and weakens our national security by providing terrorist organizations with recruitment material.

Also, we are debating an appropriation bill, and people ought to understand that we are spending $2.7 million annually per inmate at Guantanamo Bay, which is about 35 times more than the cost of an inmate at a supermaximum Federal prison in the United States.

I would also point out that the United States has transferred 620 detainees from Guantanamo since May of 2002, with 532 transfers occurring during the Bush administration and 88 transfers occurring during the Obama administration.

At this point, Mr. Chairman, I would reserve the balance of my time.

Mr. COTTON. Mr. Chairman, I yield 1 minute to the gentleman from Florida (Mr. YOHO).

Mr. YOHO. Mr. Chairman, I would like to thank my colleague for yielding.

I rise today in support of the gentleman from Arkansas, TOM COTTON's amendment, which would prohibit any funds from being used to transfer or release any of the prisoners held at Guantanamo Bay.

We are a Nation of laws, and we need to make sure we follow those laws. I support this amendment for a litany of reasons, chief among them is that it sends a clear message to the President that he cannot circumvent Congress and that he, the President, cannot override the law of the land.

He should have notified Congress 30 days prior to releasing the five prisoners in exchange for Sergeant Bergdahl. The implications of this release will have a far-reaching impact on the national security of the United States.

Just recently, as the gentleman from Arkansas (Mr. COTTON) pointed out, Spanish authorities arrested a former

Guantanamo Bay detainee on suspicions of running a terrorist recruitment network.

The Director of National Intelligence has said that, by January of 2014, about 29 percent of the 614 detainees released from the prison at Guantanamo Bay had returned to violence.

Our brave men and women in uniform have fought too hard and have sacrificed too much to have the President release these detainees who will likely return straight to the battlefield. We understand this, and our constituents understand this. I support this amendment, and I urge my colleagues to support this strongly, too.

Mr. VISCLOSKY. Mr. Chairman, I would point out, relative to the gentleman's suggestion that we need to make sure the laws of the land are followed, that that is exactly what we do in this bill.

Chairman FRELINGHUYSEN had an amendment in the full committee, which I supported and spoke on behalf of, given the recent transfer of Taliban prisoners by the administration, and the fact is, in section 9015 of the bill, as printed and pending, it says:

> No more than 15 percent of the funds made available may be obligated until the Secretary of Defense provides the congressional Defense and Intelligence Committees with a detailed spend plan for the funds provided.

Essentially, the chairman's initiative that I supported—and the committee voted for—fences that money off to make sure the law is followed. This amendment is unnecessary.

I will continue to reserve the balance of my time.

Mr. COTTON. Mr. Chairman, with due respect to the gentleman from Indiana on numerous points, this is the fifth restriction that this Congress has undertaken.

If it were to pass, it simply shows the judgment of this Congress, the people's representatives, that these remaining 149 detainees are too dangerous to be cavalierly released into a country without adequate constraints or without notification to Congress, as the law that the President signed demanded.

I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I yield 2 minutes to the gentleman from Virginia (Mr. MORAN).

Mr. MORAN. Mr. Chairman, I rise in opposition to this bill. There are some facts that need to be put on the table that are inconsistent with what has been suggested by the gentleman from Arkansas. 18.6 percent of the people that were released by the Bush administration were ''confirmed'' recidivism cases, but it needs to be made clear that the Obama administration has released 95 people, and five of them have gone back to the battlefield.

Now, we don't want anyone to go back to the battlefield. There are 149 detainees still at Guantanamo. Fifteen are clearly the worst of the worst. Nobody is talking about transferring them, ever; but among them are a number of Muslim men who are innocent of any act against this country or our allies who were in the wrong place at the wrong time and were kidnapped by bounty hunters.

Only 5 percent of the prisoners held at Guantanamo were actually apprehended by U.S. forces, and as many as 86 percent were delivered to coalition forces in exchange for a bounty of millions of dollars per head.

There are 78 people who have been cleared for release by the Department of Defense, and they are still under detention. That is a travesty. That is not right. That is inconsistent with everything we believe and stand for in terms of American jurisprudence.

I think the gentleman has made it sufficiently clear by now that many of us know that the political and legal expediency of this detention center at Guantanamo has not been worth the cost to America's reputation around the world, nor to the erosion of our legal and ethical standards here at home.

For far too long, over the course of this war, we have let our fear and anger triumph over our commitment to the rule of law, and every day that we continue to hold these men without charge, we diminish ourselves and cede our moral authority in the world.

So, Mr. Chairman, this amendment is wrong. We need to exercise our judgment. Not all are the same. Not all should be there. Some should be tried in our courts, and this country has the ability to try and prosecute them.

□ 1745

Mr. COTTON. I reserve the balance of my time.

Mr. VISCLOSKY. I yield my remaining time to the gentleman from New York (Mr. NADLER).

Mr. NADLER. Mr. Chairman, Mr. COTTON says that by this amendment, Congress recognizes the danger presented by these detainees. But legislative bodies have no right to make such judgments about individuals. Ever since Magna Carta, we have denied the government the power to imprison or punish people on mere accusations. Just because the government or Congress labels someone a terrorist doesn't make him one. The government must be required to prove the accusation in court. That has always been a bedrock American principle until we opened Guantanamo. Now we imprison people indefinitely without trial. By what claim of right do we do this?

How can we be sure we are punishing actual terrorists and not innocent people when we hold no trials? Guantanamo should be closed and its inmates either tried or released. It is beyond time to close Guantanamo to end this shame on American justice.

The Acting CHAIR. The time of the gentleman has expired.

Mr. COTTON. Mr. Chairman, in conclusion, I would simply say that the 149 terrorists left at Guantanamo Bay are not goat herders, they are not couriers, and they are not even foot soldiers. They are bomb-makers, they are commanders, and they are intelligence experts who have killed American soldiers, sailors, airmen, and marines around the world.

Yes, there have been releases in the past, but many of those release were of less dangerous terrorists. The Joint Task Force Guantanamo Bay says 120 out of 149 of the remaining detainees are at high risk to return to the battlefield. That is over 80 percent.

Mr. Chairman, I urge a ''yes'' vote to put a pause on the President's lawless release of the Taliban Five from Guantanamo Bay.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arkansas (Mr. COTTON).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. VISCLOSKY. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Arkansas will be postponed.

Mr. VISCLOSKY. Mr. Chairman, I move to strike the last word.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Mr. Chairman, I would like to yield to the gentlewoman from Ohio (Ms. KAPTUR).

Ms. KAPTUR. I thank the gentleman for yielding.

Mr. Chairman, I rise today to support this bill and provisions therein which underscore that a free, independent, and democratic Ukraine is in the interests of liberty everywhere, most especially the European continent, which largely shares America's constitutional values and respect for the rule of law.

The road ahead will not be easy. Ukraine faces enormous challenges in transitioning to a democratic society as Russia eats away at her eastern provinces and now begins to sabotage her internal assets. The incomes of ordinary people in Ukraine have dropped significantly. Consumer inflation for the year is up 16 percent at the same time the Hryvnia has depreciated sharply, forcing private consumption to drop precipitously and further pushing GDP to decline. Life for ordinary citizens has become increasingly unsympathetic. Liberty hangs in the balance. With winter's approach, economic pressures will further mount as Russia restricts gas supplies to Ukraine.

This is a time for attention to Ukraine, which holds enormous potential to be the world's breadbasket in this 21st century, if only political conditions are stabilized to allow a better future to be built for all.

One powerful dimension of Ukrainian society most often ignored by Ukraine's former leaders and by the world community is Ukraine's village women. Despite all obstacles, they continue to produce nearly half the food

that that nation's citizens eat. In village after village, on plots that are small and open pastures, these stalwart women—many of them grandmothers—toil, using simple hand tools, worn out handcarts, wearing old boots, and planting seed and plants whose germplasma is nearly worn out. Their timeworn, horse-drawn wagons need tires to navigate the rough back roads. Their dwellings often lack water and indoor plumbing. Life is survival, and it is hard.

Empowering Ukraine's women to lighten their load and make their task a bit easier would be one important step our country and world leaders could take to allow Ukraine to transition through these delicate years to a better future.

For these reasons, the Appropriations Committee included language in the Defense bill directing the Secretary of Defense to submit a report to the congressional defense committees not later than 60 days after the enactment of this act describing additional assistance that the Department may provide to Ukraine, including out of its surplus warehouses.

The goal of our humanitarian efforts is to empower the women of Ukraine, who, despite enormous obstacles, literally hold their families and that nation together. It is to use humanitarian shipments from our country, from government surplus—anywhere in the world we can acquire it—to simply provide items to help them with their food production and preservation. Give to these village women: good seed, buckets, wheelbarrows, gloves, boots, shovels, scythes, hoes, rakes, plastic on rolls, fencing, carts, used tires that will fit their horse-drawn wagons, simple canning equipment for putting up fruits and vegetables, drying equipment, scissors, hand shovels, grass clippers, pruners, loppers, saws, hammers, small hoop houses, hose, rope, and string. And while we are at it, how about some shortwave radios so they can connect to the world beyond their meager circumstances?

We anticipate with other provisions in this legislation States with lift capacity, such as Ohio, can arrange Department of Defense humanitarian shipments through their National Guard Partnership for Peace programs to transport the above-mentioned agricultural tools and supplies to the Ukrainian women in their villages through charitable networks in that country.

Mr. Chairman, I rise today to recognize this important inclusion in this bill. I thank the chairman of our committee, Mr. FRELINGHUYSEN, the ranking member, Mr. VISCLOSKY, and all freedom-loving people everywhere for understanding the vital consequence of these provisions at this moment of history. I would like to include for the RECORD an article entitled ''Ukraine Faces Hurdles in Restoring Its Farming Legacy.''

[From the New York Times, May 27, 2014]

UKRAINE FACES HURDLES IN RESTORING ITS FARMING LEGACY

(By Danny Hakim)

ZIBOLKY, UKRAINE.—Like many of her neighbors in this old Soviet collective farm, Maria Onysko prefers to be paid in grain instead of cash for the modest plot of land she rents out.

''I have two cows and four pigs, many chickens,'' said Ms. Onysko, 62. ''So we use it for them.''

After the breakup of the Soviet Union, farmland in newly independent Ukraine was divided among villagers, acre by acre, creating a patchwork of agricultural endeavors that are often inefficient or unprofitable. Some land is rented to fruit growers, grain operators or large-scale farming businesses. Some locals work small plots on their own. Some acreage sits fallow, stuck in legal limbo after the owner has died.

Ukraine was once the breadbasket of the Soviet Union, known for its rich soil where grain, sunflowers and livestock flourished. But farming production dropped sharply in the chaotic decade after the collapse of communism, and recovery has come in fits and starts. Production is only now returning to peak levels of the 1990s, stymied by the corruption, red tape and inefficiencies that have plagued the broader Ukrainian economy for years and left the villagers living humble existences.

Restoring Ukraine's farming legacy will be crucial to the success of the country's newly elected president, the billionaire businessman Petro O. Poroshenko. Such efforts would go a long way toward fixing Ukraine's economy and reducing its dependence on Russia. Agriculture once accounted for nearly 20 percent of the gross domestic product; it is now roughly 10 percent.

The potential became clear last year when a strong harvest helped Ukraine avoid a drop in output. ''It was just because of agriculture,'' said Pavlo Sheremeta, Ukraine's minister of economic development. ''Otherwise, it would have been a decline.''

Against the backdrop of the crisis with Russia, Western interests are pressing for change. The European Union is moving forward with a plan to bolster trade by lifting custom duties on Ukrainian agriculture. As part of a deal with the International Monetary Fund for up to $18 billion in loans, the country's government must push through business reforms that would help alleviate the problems with farming and other businesses.

The hope is that such initiatives will also bolster the confidence of foreign investors as the crisis abates. Big multinationals have expressed tentative interest in Ukrainian agriculture, but they have largely remained on the sidelines, unwilling to invest in an industry hampered by structural deficiencies and, more recently, the uncertainty with its eastern neighbor.

''If cheap capital comes in along with foreign investment, and you have a good government without roadblocks, Ukraine can close to double its production in the future,'' said Roman Fedorowycz, a Ukrainian-American who returned here years ago and now runs a farming company that grows mainly corn, sunflowers and soybeans.

Even small improvements would make a big difference in a highly inefficient industry starved for money. While roughly 70 percent of Ukraine's land is considered suitable for agriculture, it has not been fully cultivated. The country's yield per hectare of grain is about half that of the United States, according to the World Bank.

Change won't come easy, given the challenges. Previous governments have tried to restrict what crops farmers grow and when they rotate crops, as well as limiting exports. Some state inspectors lack cars to conduct on-site inspections, so farmers must bring grain to them before shipping.

Selling farmland is also forbidden in Ukraine, a legacy of its communist past. So fields remain cut up ''like chessboards,'' said Georgiy Vaydanych, land manager for Agrokultura, a Stockholm-based agricultural company that rents 173,000 acres in many such villages. ''For the moment we have 40,000 active landlords,'' Mr. Vaydanych said. ''Forty thousand!''

Making matters worse, paperwork is costly and many villagers never officially inherit the farmland after their parents die. ''There is uncertainty on how to farm this land, because we have the dead souls in the middle of our fields,'' Mr. Vaydanych said, in a reference to Nikolai Gogol, whose 19th-century classic, ''Dead Souls,'' is required school reading here.

Even as the crisis in the east intensifies, life in the agricultural west remains much the same.

A dirt road straddling tilled fields leads into this village, with potholes so deep that drivers zigzag past each other. There are horse-drawn carts, roosters crowing, elderly women in kerchiefs and a church painted pale green topped by bulbous spires.

Few in this pro-European area of Ukraine are nostalgic for Moscow. Still, Oleg Gusak, head of the village council, said life had not improved.

''When it was a collective, the level of life was better,'' he said, explaining that it was once a larger operation that harvested crops, had livestock and made clothing, furniture and jams.

''People even came from other regions, because we had so much work,'' he said, adding, ''Now, it's not the same.''

Trouble raising capital at reasonable prices makes it difficult to start or expand farms.

''I have to pay up to 12 percent if I borrow in euros,'' said Taras Barshchovsky, an entrepreneur who founded T.B. Fruit, which makes fruit juices and whose rented orchards cover thousands of acres. He has expanded into Poland, where he said he could borrow for less than 3 percent.

''Those who work with Ukrainian banks in hryvnias,'' the national currency, ''they pay up to 20 percent or more. I don't believe you can profit and return money on that percentage,'' he added.

And while other former Soviet bloc neighbors like Hungary, Romania and Poland began easing their land sale restrictions after joining the European Union, Ukraine has repeatedly delayed lifting its moratorium, considering the move politically risky in its agrarian society. In 2013, the government of Viktor Yanukovych, the deposed Ukrainian leader, extended the moratorium until 2016, after he expected to stand for reelection.

''I'm afraid if I sell my land in the future my children will say their old grandfather drank away all their money,'' Hrynchyshyn Myroslaw, 62, said as he cleared a willow field near another village.

With a laugh, he added: ''It depends how much you will pay me. If there are enough zeros, you can pay me.''

Volodymyr Baran, 43, a tractor mechanic, said he would never sell his six acres: ''The land is our bread.''

Such dynamics deter foreign investment, which has been tepid for years. Despite some interest from China and multinationals, large agricultural enterprises tend to be Ukrainian owned, and recent prominent deals have been less than they seemed. For example, Cargill paid a reported $200 million

for a stake in UkrLandFarming, an agricultural holding company. But a Cargill spokeswoman emphasized that the shares were collateral for a loan rather than a long-term investment.

The rules make ''it so much more difficult to understand, and to bring in investment,'' said David Sedik, a senior official at the Food and Agriculture Organization of the United Nations. ''It's not that a foreigner or a company has to buy the land, but it breeds opaqueness in the sector. You need transparent land laws.''

At his office, Mr. Vaydanych pulled out a village map and showed how its 2,500 acres were divvied up among 507 villagers.

''Every field is split, by little, little plots,'' he explained.

Being a land manager requires a political touch. Mr. Vaydanych goes from village to village handing out favors, fending off competitors trying to outbid his rental contracts.

A village chief, he said, ''may call us and tell us, it's the wintertime, we have a lot of snowfall, so give us a forklift to clean the road. O.K., well, we do that.''

''He may say this electricity substation is broken so we need urgently to repair it, or he's calling because the water pump at school broke, so we replace it,'' he said. ''That's the commitment that comes with the land.''

''I wouldn't be surprised by any request,'' Mr. Vaydanych said. ''It is about keeping everyone happy. That's my work.''

Mr. VISCLOSKY. Mr. Chairman, I yield to the gentleman from New Jersey (Mr. FRELINGHUYSEN), the chairman.

Mr. FRELINGHUYSEN. I would like to join with the ranking member in commending you for this colloquy and for the purpose of the colloquy.

Mr. Chairman, as you know, we share, love, and represent a number of Ukrainian Americans, and we know their plight, and we salute your efforts. This is an important focus that you have brought to our attention.

Ms. KAPTUR. Thank you so very much for your openness to this, Mr. Chairman. And Mr. Ranking Member, thank you for allotting me the time.

Mr. VISCLOSKY. I want to thank the gentlewoman for her service and for her commitment to her constituents, to her country, and to the Ukrainian people.

Mr. Chairman, I yield back the balance of my time.

AMENDMENT OFFERED BY MR. RUNYAN

Mr. RUNYAN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title) insert the following:

SEC. ____. None of the funds appropriated or otherwise made available by this Act may be used to retire, divest, or transfer, or to prepare or plan for the retirement, divestment, or transfer of, the entire KC-10 fleet during fiscal year 2015.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from New Jersey and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from New Jersey.

Mr. RUNYAN. Mr. Chairman, my amendment simply states that none of the funds made available by this act may be used to retire, divest, or transfer—or to prepare to retire, divest or transfer—the KC–10.

During my time in Congress, I have been a strong supporter of the Air Force's new tanker, the KC–46A. We must bring a new tanker online, but during the transition, it is critical that we are able to meet all mission requirements.

This is why I am strongly concerned by the Air Force's proposal to do a possible vertical cut of the KC–10 tanker and retire it. Having a mission capability shortfall by eliminating the newest tanker currently in our inventory while the KC–46A comes online is simply unacceptable.

As many of you are aware, I am proud to have Joint Base McGuire-Dix-Lakehurst in my district, and my colleague Mr. GARAMENDI has Travis Air Force Base in California, which are both home to the KC–10. This is not parochial. It is an air refueling and air mobility mission readiness issue.

The KC–10 platform has more than proved itself as a workhorse in support of air refueling and air mobility in Iraq, Afghanistan, our homeland defense, and other missions as called upon.

Unlike other tankers in our inventory, it can refuel Air Force, Navy, and international military aircraft with its dual boom and hose-and-drogue systems. The KC–10 itself can also be refueled while in flight, helping extend our global reach.

Most importantly, this aircraft is critical to providing an air bridge across the Arctic, Atlantic, and Pacific routes to support our combatant commanders.

This amendment sends a message to the Air Force and the DOD that Congress remains committed to active oversight of our air refueling mission platforms and sufficient capacity to support our warfighters.

I want to thank the chairman, the members of the subcommittee, and the staff for working with me on this important amendment. I would particularly highlight our appreciation for the strong support Chairman FRELINGHUYSEN has shown for the KC–10 platform, and his concern for ensuring there is no mission gap for our military's air refueling needs.

Mr. Chairman, I urge my colleagues to support this amendment.

Mr. FRELINGHUYSEN. Will the gentleman yield?

Mr. RUNYAN. I yield to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. Let me thank my colleague from New Jersey for raising this important issue. We believe this proposal to be an extremely risky proposition because the KC–10 provides a particularly vital link in the air bridge that enables global operations of our Armed Forces.

We could not have done what we did in Afghanistan and Iraq without this vital link, and to retire the entire fleet would be a huge mistake. This is the only tanker that currently uses the boom to fuel Air Force aircraft and the basket to refuel the Navy and Marine Corps fleet. So it is darn important.

I appreciate the work the gentleman has done to bring this to our attention. We have included, of course, language in our bill which reemphasizes the importance of the KC–10 to national security.

Mr. Chairman, I thank the gentleman for yielding.

Mr. RUNYAN. Mr. Chairman, I thank the gentleman for those kind words, and I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Mr. Chairman, I appreciate the recognition and would certainly at the outset compliment the gentleman for his concern about the KC–10 and also for his remarks about the performance of the aircraft as well as the value to our country. That is not in dispute, and that certainly is not the reason I am on my feet now.

But the amendment, I believe, would reserve a specific element in the Department of Defense force structure. The practice of the committee and in our bill has been to avoid protection of specific weapons systems or bases and to leave the Department flexibility as far as a path going forward, particularly as far as restructuring units, as well as retirement of programs. This language does not comport with the general concepts of this bill.

I would also point out an issue similar to this relative to a transfer of an airlift wing that was in one State of this great country, and the Department proposal that it be transferred to a different State in this country was debated in committee relative to the reporting of this bill, and we had a vote on that issue, and the committee voted against interfering with the decision that the Department had made relative to their military judgment. Therefore, I would urge the rejection of the gentleman's amendment with all due respect to the capabilities of the KC–10.

Mr. Chairman, I yield back the balance of my time.

Mr. RUNYAN. Mr. Chairman, I thank the gentleman for his comments on that. And I will just tell the committee that I have had many conversations with the Air Force about this exact issue, and to be able to take a capability away from what we can do in our global reach and not have a legitimate answer in the near future I think would be devastating to what we can do and how we can project power globally.

So the readiness issue has not been answered, and I think this is a step in the right direction to make sure that our national security is at the forefront. So, with that, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from New Jersey (Mr. RUNYAN).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. MORAN

Mr. MORAN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to carry out sections 8107 and 8108.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Virginia and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

□ 1800

Mr. MORAN. Mr. Chairman, I yield myself 3 minutes to explain that my amendment would allow the U.S. military to transfer to their home countries the 77 detainees who have been cleared for release by the intelligence community and the Joint Chiefs of Staff and to bring those not cleared for release to the United States to be charged, tried, and sentenced.

The Sergeant Bergdahl exchange has brought this issue again to center stage, but the fact is that, if we had dealt with these individuals in a responsible and legal way, we would not be in this situation discussing the merits of the decision to release five of them.

For 12 years now, Guantanamo has operated outside of a legal checks of the American judicial system, serving a physical reminder of the gap between the principles that define us as Americans and our willingness to abandon those principles in the name of national security.

With the final withdrawal of American troops from Afghanistan this year, the continued indefinite detention at Guantanamo enters a new stage. We will no longer be at war, and the current Authorization for the Use of Military Force will expire.

So we have to ask ourselves: Do we have the legal authority to hold these enemy combatants indefinitely? Now is the time to either transfer or bring these men to trial—now—while we can still do so on our own terms, while we can give the Defense Department the legal authority it needs to make the right decisions about these prisoners.

It is costing us $2.7 million per detainee, per year, versus $34,000 at a maximum security prison in the United States. More than 300 individuals convicted of crimes related to international terrorism are currently incarcerated in 98 Federal prisons in the United States, with no escapes or attacks in attempts to free them.

The indictment and capture of Ahmed Abu Khattala for his role in the Benghazi attack is a great example of our ability to deal with high-profile terrorists swiftly and safely.

Mr. Khattala will not be brought to Guantanamo to become yet another symbol of U.S. hypocrisy. He will be brought to the United States to answer for his crimes in a Federal court and punished in accordance with the laws of this Nation. I have every confidence in our legal institutions to bring Mr. Khattala to justice.

General Michael Lehnert, who oversaw the opening of Gitmo has said that its continued operation ''has helped our enemies'' and makes ''a mockery of our values.''

It is time to put an end to this by supporting this amendment, and let me just use one more quote. In the words of the family members of the 9/11 victims, the current system is ''immoral, unlawful, expensive, counterproductive, unnecessary, and has failed to deliver justice for the 9/11 attacks.''

I reserve the balance of my time.

Mr. FRELINGHUYSEN. Madam Chair, I seek time in opposition.

The Acting CHAIR (Mrs. BLACK). The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Madam Chair, I would first like to recognize Mr. MORAN's service on our committee. As just exhibited, in the full committee, he is truly a passionate man, and I must say he has been consistently passionate on this issue, but despite his passion and his reasoning, I stand in opposition to his amendment.

The provisions contained in our bill are the same as current law, and they have been carried in some form since fiscal year 2010, in both the appropriations bill and in the Defense authorization bill. Quite honestly, they need to remain there.

The provisions we carry ensure that the remaining Gitmo detainees who are judged to be the most dangerous will never be brought into our homeland, where U.S. citizens could be threatened. There is a pretty strong and enduring consensus—bipartisan consensus—in Congress that Guantanamo Bay should remain open, that the detainees should not be transferred to the United States for any reason, and that no facility should be built in the United States to house them.

As everyone here is aware and as it has been mentioned in earlier debate, a number of detainees who have been released from Guantanamo have gone back to the fight and killed and wounded Americans. The threat is real. We haven't quite left Afghanistan. The threats there are real.

I strongly oppose the gentleman's amendment, and I ask the House to give it a strong negative vote.

I reserve the balance of my time.

Mr. MORAN. Madam Chair, how much time do I have remaining?

The Acting CHAIR. The gentleman from Virginia has 2½ minutes remaining.

Mr. MORAN. Madam Chair, I yield the balance of my time to the gentleman from New York (Mr. NADLER), a distinguished member of the Judiciary Committee.

Mr. NADLER. Madam Chair, we are holding 154 people at Guantanamo, 77 of whom have been cleared for release. That is to say they have been found guilty of nothing, are thought to be guilty of nothing, and have been judged not to pose any danger, but nonetheless, they are not released.

There is no reason and no right for us to hold them further. The others should be brought to the United States and tried in a secure facility, tried for their offenses.

Madam Chair, I wonder which of our colleagues doesn't believe in the American system of justice. I wonder which of us does not trust our own American courts. I wonder who among us does not believe in the Bill of Rights, who does not believe in the right to counsel or that people should have an opportunity to have their guilt or innocence established in court.

What we have at Guantanamo is a system that is an affront to those beliefs and to the United States. In the last decade, we have begun to let go of our freedoms bit by bit, with each new executive order, each new court decision, and each new act of Congress.

We have begun giving away our right to privacy, our right to our day in court when the government harms us, and with this legislation, we are continuing down the path of destroying the right to be free from imprisonment without due process of law.

The language in this bill, without this amendment, prohibits moving any detainees into the United States or releasing any at all and guarantees that we will continue holding people indefinitely, people who may not be terrorists, who may not be enemy combatants, some of whom we may suspect to be terrorists, none of whom have been proven to be terrorists, none of whom have had a day in court.

We will continue to hold them indefinitely without charge, contrary to every tradition this country stands for, contrary to any notion of due process.

Mr. COTTON says that this Congress has judged that these people are dangerous people. This Congress has no right, under the Constitution, to make such a judgment. That is called the bill of attainder and is specifically prohibited.

People to be found guilty must be found guilty in a court, not by a legislative body. Because of this momentous challenge to the founding principles of the United States that no person may be deprived of liberty without due process of law and certainly may not be deprived of liberty indefinitely without due process of law, we must close the detention facility at Guantanamo now, in order to restore our national honor.

This will afford the detainees no additional constitutional rights. The Supreme Court has already ruled that detainees at Guantanamo have the same constitutional rights at Guantanamo as they would if they were brought here.

They should be brought here. They should be tried in a Federal court,

where they can be convicted if guilty and acquitted if innocent and not wait for years for military tribunals which have succeeded in convicting nobody at trial at all.

We must restore the honor of the United States and eliminate this exception to our traditions and to our rule of law and to our rule of justice.

Just because we think or somebody in the government thinks that somebody is terrorist does not mean that that person is a terrorist—he may or may not be—and it does not mean that he does not have the right to his day in court.

Mr. MORAN. Madam Chair, I yield back the balance of my time.

Mr. FRELINGHUYSEN. Madam Chair, what about justice for the victims of those who died on September 11, 2001? What about justice for those five detainees that were released the other day in the prisoner exchange, how is there justice there?

They were among the worst of the worst. We need to keep the provisions in this bill. I urge a strong ''no'' vote on this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. MORAN).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. VISCLOSKY. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Virginia will be postponed.

Mr. FRELINGHUYSEN. Madam Chair, I move to strike the last word.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Madam Chair, I yield to the gentleman from Alabama (Mr. BYRNE) for the purpose of a colloquy.

Mr. BYRNE. Madam Chair, I rise to engage in a colloquy regarding the Navy's littoral combat ship. The Navy's littoral combat ship represents the future small surface combatant for the United States Navy. This program is in its infancy, but has, so far, cleared many hurdles and is well on its way to becoming an integral part of the fleet.

The Navy reduced the budget request from four ships in fiscal year 2015, as they projected last year, to three ships. Mr. Chairman, your bill has further reduced the program to a recommended level of two ships.

Mr. Chairman, wouldn't you agree that the LCS is an important part of the Navy's future fleet?

Mr. FRELINGHUYSEN. Let me first salute the gentleman from Alabama for his strong advocacy on behalf of the littoral combat ship, and let me say that the littoral combat ship plays an extremely important role in the future of the Navy's fleet.

In fact, the ship represents nearly one-sixth of the 306-ship fleet the Navy has expressed as its stated fleet requirement.

During markup of the bill, the committee spent as much time, if not more, on this issue than any other. In the end, we were extremely concerned with the strong words expressed by the Secretary of Defense with respect to the small surface combat requirements that these ships must have.

Since the littoral combat ship does play a vital role, we want to make sure we are buying the correct version. That is why we slowed the production.

However, we recognize the importance of the industrial base—very much so—and we certainly don't want to let that in any way stagnate, so we have provided funding for two ships to bridge the gap until the Navy can verify the requirements and incorporate them into the production line.

I do recognize that this is an important program for your community, and you have been a remarkable advocate. You have been on my case for quite a long time, and I am hugely admiring of your passion and determination.

I want to assure you that we will continue to work with you to address your concerns. We will continue to monitor, as we proceed to conference with the Senate, and we will work with the gentleman to ensure we adopt the right policy for our national security and the industrial base, including a very important shipyard in the gentleman's district in Mobile, Alabama.

Mr. BYRNE. Mr. Chairman, I appreciate your attention to this matter. I look forward to working with you and Ranking Member VISCLOSKY, as well as Chairman ROGERS, as we move toward conference.

The Navy has been unequivocal in its support for the LCS, and as you say, the LCS plays an extremely important role in the future of the Navy's fleet. It is vitally important the Congress not lose sight of that and that I not lose sight of the importance of this shipyard to my district.

Mr. FRELINGHUYSEN. Madam Chair, I yield back the balance of my time.

AMENDMENT NO. 31 OFFERED BY MS. LEE OF CALIFORNIA

Ms. LEE of California. Madam Chair, I have amendment No. 31 at the desk, preprinted in the CONGRESSIONAL RECORD.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be used for the purposes of conducting combat operations in Iraq.

Mr. FRELINGHUYSEN. Madam Chair, I reserve a point of order on the gentlewoman's amendment.

The Acting CHAIR. A point of order is reserved.

Pursuant to House Resolution 628, the gentlewoman from California and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from California.

Ms. LEE of California. Madam Chair, I rise today, remembering 12 years ago when I stood on this floor and offered an amendment with the same purpose as the amendments I offer this evening: to prevent a war with Iraq; to keep our young men and women—our troops—out of harm's way; and to be prudent with taxpayers' hard-earned dollars, as well as ensuring our national security.

We are all familiar with the reports coming out of Iraq about the horrific sectarian violence taking place. We must not let history repeat itself. Calls to be dragged back into a war in Iraq must be rejected because the reality is there is no military solution in Iraq.

I want to applaud the President for reiterating that again today and for making it clear that he does not want combat troops on the ground in Iraq.

This amendment would not allow funding for combat operations. This is a sectarian war with longstanding roots that were inflamed, unfortunately, when we invaded Iraq in 2003. Any lasting solution must be political and take into account respect for the entire Iraqi population.

□ 1815

The change Iraq needs must come from Iraqis, rejecting violence in favor of a peaceful democracy that represents all and respects the rights of all.

Our job is to continue to promote and support regional and international engagement, recognition of human rights and political reforms, support for women and children, and religious freedom.

Madam Chair, after more than a decade of war, thousands of American lives, and hundreds of billions of dollars, the American people are rightfully war weary. The American people are not interested in repeating the mistakes of the past. A recent poll found that 74 percent of the public is opposed to sending combat troops into Iraq.

This amendment would not impact the President's ability to protect U.S. personnel or our Embassy. We must do that. It does not impact the President's ability to act if there is a direct or imminent threat to our national security. As the President cited in his recent notification to Congress, doing so would be consistent with his responsibilities to protect U.S. citizens both at home and abroad.

Finally, it does not impact the President's ability to send assistance to gather intelligence or advisers and trainers.

Madam Chair, I reserve the balance of my time.

Mr. FRELINGHUYSEN. Madam Chair, I withdraw my reservation, and I seek the time in opposition.

The Acting CHAIR. The reservation is withdrawn.

The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Madam Chair, what is occurring in Iraq is complicated and dangerous and violent.

This is a complicated issue that the gentlewoman seeks to address with multifaceted policy ramifications that really cannot be fully debated in an amendment in this short period of time.

The situation in Iraq remains highly complicated, very dangerous, and does, I believe, and many believe, pose an imminent threat to U.S. and allied interests, particularly regional security; witness the fact that the President has sent over a number of advisers to either protect the Embassy or work with the Iraqi military.

This amendment, in my judgment, goes too far as it attempts to tie the U.S. Government's hands, i.e., the Commander in Chief's hands, in navigating the complicated situation we face related to threats emanating from Iraq, recognizing that half of the country is now in the hands of the Islamic State of Iraq and Syria.

We have to be realistic. What this amendment would do is to remove any possibility of the U.S. engaging under any circumstance, even if such engagement would be in the best interest of our own country or allies. For example, this would preclude the U.S. from providing any assistance to the Iraqi Government to defeat a terrorist group inside Iraq, and it appears we may be on the verge of doing exactly that.

Given the ever-changing dynamics in Iraq and the rising terrorist threats coming from within Iraq—and again, almost half the country is in the hands of terrorists—this is a very ill-advised amendment, and I strongly oppose it.

I reserve the balance of my time.

Ms. LEE of California. Madam Chair, just to clarify, all this amendment does is it would not fund the combat operations in Iraq.

I yield 1 minute to the gentleman from Minnesota (Mr. NOLAN).

Mr. NOLAN. Madam Chair, I rise in support of the Lee amendment. The American people have invested 10 years of precious blood and treasure into this conflict. The simple truth is that the Iraqi Government and the Iraqi Army have failed to win the confidence of their own people. The fact is, the army has cut and run, leaving behind valuable equipment, and the fact is we have no friends in this conflict. It is time to get out and to stay out.

Thank you, Representative LEE, for your amendment.

Mr. FRELINGHUYSEN. Madam Chair, this amendment sends, I think, the wrong message to the Iraqi people, who have suffered a great deal, and of course I recognize the loss of our soldiers and the sacrifice of our soldiers and their families.

I think this is a very ill-advised amendment and I strongly oppose it.

I yield back the balance of my time.

Ms. LEE of California. Madam Chair, how much time do I have remaining?

The Acting CHAIR. The gentlewoman from California (Ms. LEE) has 2½ minutes remaining.

Ms. LEE of California. I yield 1 minute to the gentleman from Arizona (Mr. GRIJALVA).

Mr. GRIJALVA. Madam Chair, I am here to support the amendment to prohibit the use of ground troops in Iraq.

What the American people are seeking is an end to 10, 12, 11 years of a war without end. What the American people are seeking is attention to the needs in this country. What the veterans that have fought in that war are seeking are jobs and the proper care for the visible and invisible wounds of that war.

The only thing we need to protect—and it is not about us going into a conflict and picking sides in what is fundamentally a religious war where there will be no end for us. We must avoid and prevent combat troops being in Iraq. We do that because the American people are against it; we do that because it is the moral imperative; and we do that because we have learned a lesson from history. And history has taught us that this is a war that will not end. We have an opportunity to end it. We have an opportunity to demand of the international community that they use diplomacy to solve the problem in the region.

Ms. LEE of California. Madam Chair, I yield 1 minute now to the gentleman from Minnesota (Mr. ELLISON).

Mr. ELLISON. Madam Chair, it is as simple as this: the al-Maliki government has abused and excluded huge portions of his population. Because of that, there is a conflict in that country of al-Maliki's own making. Now, what we are going to do if we send combat troops there is literally be his air force, be his ground troops. We shouldn't do that. That is not the right thing for the United States to do.

If we want to help, what we should do is engage the regional community, the countries around Iraq and Iraqi leaders, in a diplomatic solution that hopefully includes them having a more inclusive, less abusive government. That is the proper role of the United States. Trying to stop us from being combat troops is the right thing to do. I urge everybody to support this.

I think the gentleman is incorrect; we are right to stay out of this thing. What, after all, have we learned if 11 years has not taught us? Training? We have given plenty of training. We have trained these people up the wazoo. They abandoned their post. It is not a training problem.

Ms. LEE of California. Madam Chair, in closing, let me just underscore the fact that combat operations will not solve the problems in Iraq. This amendment would not fund combat operations. We should not repeat these terrible mistakes of the past.

Let me once again clarify. This amendment would not impact the ability of the United States personnel and our Embassy. We want to protect the United States personnel and Embassy.

Secondly, it would not impact the President's ability to provide unmanned intelligence gathering and assistance. It would not impact the President's constitutional authority to protect U.S. citizens both at home and abroad.

I urge for a ''yes'' vote, and I yield back the balance of her time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. LEE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. LEE of California. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from California will be postponed.

AMENDMENT OFFERED BY MR. WALBERG

Mr. WALBERG. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. 10002. None of the funds made available by this Act may be used to promulgate Directive 293, issued December 16, 2010, by the Office of Federal Contract Compliance Programs.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Michigan and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Michigan.

Mr. WALBERG. Madam Chair, I rise in support of my amendment that would reiterate Congress' objection to a proposed policy change by the Department of Labor Office of Federal Contract Compliance Program. That would treat health care providers as Federal contractors.

In December 2010, OFCCP quietly issued directive 293 asserting that contractual arrangements under Medicare, TRICARE, and the Federal Employees Health Benefits Program will trigger OFCCP jurisdiction. This directive would reclassify a majority of hospitals in the United States as Federal contractors, subjecting hospitals in your district and mine to OFCCP's often crushing regulatory burden.

With respect to TRICARE, the agency aggressively asserted in its jurisdiction in the 2009 administrative case OFCCP v. Florida Hospital of Orlando, OFCCP argued the hospital was a Federal subcontractor by virtue of its participation as a provider in a TRICARE network of providers.

The agency took this troubling position despite the fact that the Department of Defense, which regulates TRICARE, previously included: ''It would be impossible to achieve the TRICARE mission of providing affordable health care for our Nation's Active Duty and retired military members and their families if onerous Federal contracting rules were applied to the more than 500,000 TRICARE providers in the United States.''

Unfortunately, Madam Chair, the administrative law judge in the case did not heed DOD's warning and failed to

see this policy change for what it is: an expansion of government power over the health care sector. As such, Congress acted to oppose this overreach, and the 2012 National Defense Authorization Act clarified that a TRICARE network health care provider is not a Federal contractor or subcontractor.

As chairman of the Subcommittee on Workforce Protections, I am deeply concerned by this attempt by OFCCP to expand its jurisdiction through executive fiat. In response, I introduced the Protecting Health Care Providers from Increased Administrative Burdens Act, which would clarify that health care providers are not Federal contractors subject to the jurisdiction of the Department of Labor's OFCCP.

Our actions on the committee in bringing attention to this issue have been successful in prompting OFCCP to place a moratorium on the policy. However, as OFCCP has previously defied Congress and the Department of Defense, I believe this amendment is necessary. Therefore, Madam Chair, I ask the House to support my amendment that would prohibit funds to be used under this act for implementing this overreach and affirmatively show the House will not support such actions by the Department of Labor and OFCCP.

I reserve the balance of my time.

Mr. VISCLOSKY. Madam Chair, I claim the time in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Madam Chair, I appreciate the recognition.

I appreciate the thrust of the gentleman's amendment. I rise in opposition to it, however, because I think it is overly broad.

One of the concerns I have is, if it is adopted, I am concerned about whether or not technical assistance could continue to be given to contractors and subcontractors; and, obviously, given the complexity of the law, it would be helpful for them to have it, and I would not want it to be prohibited.

Additionally, the amendment would appear to interfere with the OFCCP's ability to connect outreach and, again, technical assistance under the current moratorium to help contractors and subcontractors understand their obligations under the law.

So again, I appreciate where the gentleman is coming from. I am concerned that, given the broadness of the amendment, it may inhibit the type of information and assistance that these contractors and subcontractors really do need. So, for that reason, I am opposed to the gentleman's amendment.

I yield back the balance of my time.

Mr. WALBERG. Madam Chair, I appreciate the gentleman's concern; however, as DOD has recommended in the past and stood on the fact that, for purposes of TRICARE and the like, hospitals are not contractors, they do not contract with the Federal Government, with the Department of Defense.

□ 1830

So I don't see the reason for continuing to address this issue any further for these contractors, at least as defined by OFCCP.

In closing, again, this is an issue that DOD has spoken on strongly, this is an issue that Congress has spoken on, this is an issue that OFCCP continues to push. I believe we would be remiss if we allowed this to happen and allowed the concept that hospitals would be considered government contractors simply for providing health care under TRICARE and the like to our veterans, to our military, and certainly to any of our Federal employees.

I would appreciate support for this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Michigan (Mr. WALBERG).

The amendment was agreed to.

AMENDMENT OFFERED BY MS. DELAURO

Ms. DELAURO. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ___. None of the funds made available by this Act may be used to enter into any contract with an incorporated entity if such entity's sealed bid or competitive proposal shows that such entity is incorporated or chartered in Bermuda or the Cayman Islands, and such entity's sealed bid or competitive proposal shows that such entity was previously incorporated in the United States.

Ms. DELAURO (during the reading). Madam Chair, I ask unanimous consent to dispense with the reading of the amendment.

The Acting CHAIR. Is there objection to the request of the gentlewoman from Connecticut?

Mr. FRELINGHUYSEN. Madam Chair, I object.

The Acting CHAIR. Objection is heard.

The Clerk will read.

The Clerk continued to read.

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from Connecticut and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Connecticut.

Ms. DELAURO. Madam Chair, I yield myself 2 minutes.

My amendment would prohibit Federal contracts issued by the Department of Defense from going to entities incorporated in Bermuda and the Cayman Islands, two nations most often abused as tax havens.

This body accepted a similar provision for the Departments of Transportation and Housing and Urban Development earlier this month.

According to a joint study by the U.S. Public Interest Research Group and Citizens for Tax Justice, 70 percent of the companies in the Fortune 500 used tax havens last year. These companies stashed nearly $2 trillion offshore for tax purposes, with almost two-thirds of that total, 62 percent, being hidden away by just 30 companies.

We just saw the medical device manufacturer Medtronic, a company founded in a Minnesota garage with deep roots throughout the State, announce it was effectively moving operations to Ireland to escape its tax obligations. This is a persistent and a growing problem, and we need to start taking action to rein it in.

We can start with this amendment. Of the companies who have established subsidies in tax havens, nearly two-thirds have registered at least one in Bermuda or in the Cayman Islands. The profits these companies claim were earned in these two island nations in 2010 totaled over 1,600 percent of these countries' entire yearly economic output.

These companies take advantage of our education system, our research and development incentives, our skilled workforce, and our infrastructure, all supported by U.S. taxpayers. They should not be allowed to pretend that they are an American company when it is time to get a defense contract, then claim to be an offshore company when the tax bill comes. We should not spend taxpayer money on Federal contracts to companies that have renounced their American citizenship in favor of an island tax haven.

As I said, a similar amendment became part of the Transportation and Infrastructure bill. I urge my colleagues to pass this amendment, and I reserve the balance of my time.

Mr. FRELINGHUYSEN. Madam Chair, we do not oppose the amendment.

Ms. DELAURO. Madam Chair, I yield 2 minutes to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Madam Chair, that is very good to hear.

I join in supporting this amendment as a coauthor of it. Multinational corporations that do business around the globe have an even greater interest in world order and in national security. They should not be paying a lesser rate of taxes than corporations that focus their business right here in America.

Unfortunately, some of them scheme to avoid their fair share and to shift the burden to smaller businesses and to individuals. Some of these same companies have on more than one occasion paid more to their lobbyists to lobby this Congress and the Treasury to avoid paying taxes than they actually pay to the Treasury. It has been a pretty wise investment for them because our Tax Code is a mess. It is riddled with preferences and loopholes and one exception after another.

This amendment addresses one of the most egregious tax gimmicks. That is where a corporation actually renounces its American citizenship, declares itself a citizen of some other country, and then continues operations in

America, demanding the full protection of the laws and the military and the educational system that it refuses to contribute a fair share to pay for. Tax lawyers call it an ''inversion''; I call it a perversion of our tax laws.

To add insult to injury, some of these same corporations, which have abandoned their citizenship, then ask for American government contracts paid for with the very tax dollars from the small businesses and individuals to whom they have shifted the tax burden.

American companies that stay and contribute to building our country and keeping her strong at home and abroad deserve a level playing field, and that is what this amendment does.

The action that we take in approving this amendment today sends a message to executives that they can pretend that their company is located on some Caribbean beach to avoid paying taxes, but Congress is not going to put its head in the sand about this kind of tax dodging.

Ms. DELAURO. Madam Chair, may I inquire as to how much time is remaining.

The Acting CHAIR. The gentlewoman from Connecticut has 1 minute remaining.

Ms. DELAURO. I thank the Chair.

Madam Chair, I and others have long fought for—and we have succeeded in passing through the appropriations process—a ban on Federal contracts for U.S. companies that acquire a business in a lower tax jurisdiction and claim their headquarters there, despite still being a U.S. company.

According to a 2009 GAO report, 63 of the 100 largest publicly traded U.S. Federal contractors reported having subsidies and tax havens in 2007. These companies are currently paying a tax rate of zero percent—zero percent. So unless you believe tax reform should eliminate taxes for U.S. companies, this avoidance is not about corporate tax reform.

We need to send that clear message. If a company is going to abuse the tax loopholes at the expense of businesses that are paying their fair share, they will not be rewarded with defense contracts.

I am happy to hear and I urge my colleagues to make this stand with me again and to pass this amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Connecticut (Ms. DELAURO).

The amendment was agreed to.

AMENDMENT NO. 14 OFFERED BY MR. FLEMING

Mr. FLEMING. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. _____. None of the funds made available by this Act may be used to appoint chaplains for the military departments in contravention of Department of Defense Instruction 1304.28, dated June 11, 2004, incorporating change 3, dated March 20, 2014, regarding the appointment of chaplains for the military departments.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Louisiana and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Louisiana.

Mr. FLEMING. Madam Chairman, the amendment before you today holds the Department of Defense to current accepted DOD policy and standards when appointing military chaplains. It maintains the status quo, which has been well accepted for decades, if not centuries. My amendment affirms the spiritual role of chaplains in the U.S. armed services, preserving the integrity of the U.S. Chaplain Corps.

I want to thank Representatives JIM BRIDENSTINE and JAMES LANKFORD for their cosponsorship of this amendment. This amendment was adopted last year during the House's consideration of DOD appropriations on a bipartisan basis, although it was ultimately dropped from the Consolidated Appropriations Act of 2014. I would urge my colleagues to support its passage again today.

Chaplains by definition are ministers for spiritual needs to people of secular institutions. They are equipped to do so because, like many other professionals requiring a certain skill set, chaplains possess a belief in God or a spiritual world view. Chaplains are experienced in their field, educationally qualified, and are willing to serve and attend to the spiritual needs of all members of the armed services, regardless of whether or not that soldier, sailor, airman, or marine shares the same faith as that of the chaplain.

Current DOD guidelines requires that the candidates be endorsed by a ''qualified religious organization'' whose primary function is to perform religious ministries to a nonmilitary lay constituency and which holds tax-exempt status as a church.

Faith and spiritual leadership are integral and inseparable from the institution of the Chaplain Corps. It would be difficult for an individual lacking in any faith to be appointed as a military chaplain without first dismantling the purpose of the chaplaincy and making significant changes to the DOD policy.

Madam Chairman, it is an oxymoron to have a secular person attached to a secular institution as a chaplain. How can that person minister to the spiritual needs of others? Even so, there continues to be a movement to appoint atheist chaplains in the military. Such individuals reject the very existence of God, a deity, or even a spiritual world view, and thus an atheist chaplain would not serve any identifiable need for servicemembers that is not already currently being met with the Armed Forces.

There are a host of other nonspiritual services available to support people in a nonfaith context, including social workers, psychologists, and counselors. Through Military OneSource and the Military and Family Life Counselor Programs, servicemembers can receive temporary and confidential counseling services from a licensed professional without any attachment to their records. In addition to these services, military chaplains can stand ready to faithfully and respectfully serve all servicemembers with any resources they might need, regardless of whether the individual shares the chaplain's faith.

My amendment would prevent DOD from making changes to its longstanding appointment process that could undermine the integrity of the chaplaincy and interfere with the chaplain's responsibility to meet the religious needs of our brave men and women in uniform.

I would like to thank the Family Research Council and the Chaplain Alliance for their support of this amendment, and urge all of my colleagues to join me in supporting this amendment.

Madam Chairman, I reserve the balance of my time.

Mr. VISCLOSKY. Madam Chair, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Madam Chair, the gentleman has spoken much about the spiritual role of chaplains in the military. I am very concerned that the impulse here is related to sexual orientation and the limitation in serving as a chaplain in the United States military.

I would tell the gentleman at one time in my life—and I obviously took a bad turn in the road because I got involved in politics—I was in a Roman Catholic seminary. My God is a loving God. My God is a tolerant God. My God passes judgment on the goodness of a person's soul. In this day and in this world, where there is so much hate and violence and anger, I think it is very disappointing that we in public life would try to accentuate that there are differences between us that may cause us not to like each other.

Each of us seeks our God differently. We have different religions, we have different customs, we have different preferences. But it is important to find that chaplain and spiritual guide who meets those needs to help us to find that just and forgiving and kind God.

I think it is wrong to foreclose any avenue for any American, and particularly those who put the uniform of this country on and risk their lives for us and are under incredible stress. To foreclose any avenue of spiritual guidance and relief for them is wrong.

I would simply close by noting that there is a monument—Thomas Jefferson—in Washington D.C.

□ 1845

One of the writings of Jefferson is on the southeast portico. It says:

Laws and constitutions must go hand in hand with the progress of the human mind. As that becomes more developed, more enlightened, institutions must advance to keep pace with those times. We might as well require a man to wear still the coat which fitted him when a boy as a civilized society to remain ever under the regimen of their barbarous ancestors.

My vote would be a vote to have a tolerant policy in a tolerant country. I oppose the gentleman's amendment, and I reserve the balance of my time.

Mr. FLEMING. Madam Chair, may I ask how much time I have remaining?

The Acting CHAIR. The gentleman from Louisiana has 1 minute remaining.

Mr. FLEMING. It is interesting. The gentleman argues that—amazingly—somehow a chaplain is not going to be open to serving the spiritual needs of all, whether they be gay or otherwise.

There is nothing in this amendment that says anything about the choice of one's sexual partner whatsoever. In fact, remember that we already have in our chaplaincy Wiccans, Buddhists, Muslims, Christians, and Jews. Many of those accept same-sex marriages.

This argument that the gentleman makes is for another debate, not for this one. This deals purely with atheism. It is very interesting because the scene is that, on the battlefield, you have a chaplain who is serving the spiritual needs of a dying soldier and the soldier asks the chaplain: What happens now? What happens after my death?

The answer from the atheist chaplain is: There is nothing for you after death.

That is really a very disturbing thought, and I yield back the balance of my time.

Mr. VISCLOSKY. Madam Chair, I stand for a tolerant Nation, and I stand in opposition to the gentleman's amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Louisiana (Mr. FLEMING).

The amendment was agreed to.

AMENDMENT NO. 33 OFFERED BY MS. LEE OF CALIFORNIA

Ms. LEE of California. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be obligated or expended pursuant to the Authorization for Use of Military Force Against Iraq Resolution of 2002 (Public Law 107–243; 50 U.S.C. 1541 note).

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from California and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from California.

Ms. LEE of California. Madam Chair, this amendment would simply prohibit funding for any operations or activities pursuant to the 2002 Authorization for Use of Military Force in Iraq.

Why is this amendment necessary? Well, more than 2 years since the United States troops withdrew from Iraq, the 2002 Authorization for Use of Military Force remains on the books.

Two years ago, President Obama declared the war in Iraq as over. Just yesterday, according to press reports, White House Press Secretary Jay Carney stated that the 2002 AUMF is ''no longer used for any United States Government activities.''

Further, in our Appropriations Committee, our chairman confirmed that this bill does not contain any funding to implement the 2002 authorization. That is good news, and it should make supporting this amendment an easy thing to do for Members on both sides of the aisle.

The American people need an affirmative vote that the war in Iraq that began over 11 years ago through the military operation—shock and awe, which took over 2,000 lives—has come to an end and none of their hard-earned tax dollars are being spent.

Some of us agree that it is well past time that we remove this authorization totally from the books, but on this appropriations bill, we only state very clearly that no funds may be obligated or expended for the authorization.

Congress should never allow war-funding authorizations to remain on the books in perpetuity. We don't do this for the farm bill. We don't do this for the transportation bill.

Madam Chair, we are all familiar with reports coming out of Iraq about the horrific sectarian violence taking place there. Once again, I want to applaud President Obama for reiterating again today that there is no military solution to the sectarian war there and also for his clear position that the United States is not going to be returning to combat in Iraq.

This amendment does not limit the President's authority under the Constitution or War Powers Act to act if there is a direct or imminent threat to our national security.

As the President cited in his recent letter to Congress, doing so would be consistent with his responsibilities to protect United States citizens both home and abroad. This amendment does not take away that authority.

Further, this amendment fully allows for the protection of the United States Embassy and its personnel and would not impede any of those efforts by the United States military.

Given that there is no funding in this bill for the 2002 AUMF, supporting this amendment is just plain common sense. The American people deserve this vote. It is long overdue. We should vote primarily also to ensure that our constitutional role is reasserted in war-making.

I reserve the balance of my time.

Mr. FRELINGHUYSEN. Madam Chair, I claim the time in opposition.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Madam Chair, I rise in opposition to the gentlewoman's amendment.

As the gentlelady knows, U.S. military action in Iraq came to an end in December of 2011. I want to make sure that she also knows that there are no funds in this act for military action in Iraq, pursuant to the Iraq AUMF resolution. Its grant of authority has both practically and legally ended.

This amendment is an amendment in search of a problem, a problem that doesn't exist. This amendment is not about substance. To a great extent, it is about symbolism. It is intended to send a message that the United States has washed its hands of Iraq, which we haven't.

At a time when sectarian tensions are at the highest level since we left and terrorists have, once again, succeeded in capturing large swaths of territory in Iraq and brutalizing the Iraqi people after our troops essentially fought to protect them, what kind of message are we sending with this amendment to both the Iraqi people and to the men and women of our Armed Forces and our international armed forces who so valiantly served?

Let me repeat that there are no funds in this act for the purpose the gentlelady is seeking to limit. The only thing this amendment would accomplish is to make, quite honestly, a political statement.

I recognize, from time to time, that needs to be done, but I think it sends the wrong message at the worst possible time. I don't believe that such an amendment has any purpose on our bill, and I urge strong rejection of the amendment.

I reserve the balance of my time.

Ms. LEE of California. Madam Chair, I yield 30 seconds to the gentleman from Indiana (Mr. VISCLOSKY), the ranking member.

Mr. VISCLOSKY. I appreciate the gentlewoman for yielding.

The fact is the gentlewoman has mentioned this authorization is very dated. The world has changed. It needs to be reconsidered.

I deeply appreciate her efforts not just today on the floor, but in committee and over the years to essentially force the issue and to ask this institution to reconsider what the authorities should be going forward.

I certainly support her effort.

Ms. LEE of California. I want to thank the ranking member for his comments and for reasserting and reassuring Members that our constitutional role is extremely important in matters of war and peace.

I yield 1 minute to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. This Congress has a constitutional obligation to approve military action before any President decides to shoot first and ask questions later. A 12-year-old resolution, enacted in the aftermath of 9/11, should not provide a basis for endless war.

Some of the same self-certified smart people who were talking about mushroom clouds and weapons of mass destruction are, once again, trying to stampede us into war. We have been there, and we have done that, and America is still paying a terrible, terrible price for their past failures, though they refuse to acknowledge them.

Protecting our Embassy in Baghdad is one thing—a true emergency—but if any President wants to launch offensive military action, they need to come and make a specific case to this Congress for authorization, just as President Obama said he would do last year on Syria, not some convoluted interpretation of a resolution from a different time and circumstance.

If there is a case for war, have the courage to come here and make it, but don't rely on an open-ended authorization of military force from long ago.

Ms. LEE of California. Madam Chair, I yield 45 seconds to the gentleman from New Jersey (Mr. HOLT).

Mr. HOLT. Madam Chair, I thank my friend from California for this amendment, but also for her longstanding work on this issue and related issues.

When we hear about this impossible situation which we find ourselves in today in Iraq, with the country clamoring for us to do something, we should be reminded of how we got there. It is not because of something that has expired. It is because of something that still exists.

The gentlelady is absolutely right that we should repeal that, repudiate that, and get ourselves on a new track, which requires deliberate attention by the Congress, if we are ever going to use military force, and not a blank check to the administration.

Mr. FRELINGHUYSEN. Madam Chair, stay tuned as our Commander in Chief and our allies contemplate future action in Iraq. As things get worse, things go south, a lot of innocent people are killed.

I am respectful of the gentlewoman's passion and her continuing battle to get this matter straightened out, but the President is still going to request for Congress to look at things. I think we should stay tuned.

I yield back the balance of my time.

Ms. LEE of California. Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. LEE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. LEE of California. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from California will be postponed.

AMENDMENT OFFERED BY MR. FLORES

Mr. FLORES. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill, before the short title, insert the following new section:

SEC. ____. None of the funds made available by this Act may be used to enforce section 526 of the Energy Independence and Security Act of 2007 (Public Law 110-140; 42 U.S.C. 17142).

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Texas and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. FLORES. Madam Chair, I rise to offer an amendment which addresses another misguided and restrictive Federal regulation.

Section 526 of the Energy Independence and Security Act of 2007 prohibits Federal agencies from entering into contracts for the procurement of fuels, unless their life-cycle greenhouse gas emissions are less than or equal to emissions from an equivalent conventional fuel produced from conventional petroleum sources.

My amendment is simple. It would stop the government from enforcing the ban on agencies funded by the Department of Defense Appropriations bill from being forced to comply with section 526.

The initial purpose of section 526 was to stifle the Defense Department's plans to buy and develop coal-based or coal-to-liquids jet fuel. We must ensure that our military has adequate fuel resources and that it can rely upon the domestic and more stable sources of fuel.

One of the unintended consequences of section 526 is that it essentially forces the American military to acquire fuel refined from unstable Middle Eastern crude resources.

I offered this amendment to 13 prior appropriations bills in fiscal years 2012, 2013, and 2014; and each time, these amendments passed with bipartisan support.

My friend, the gentleman from Texas (Mr. CONAWAY), also added similar language to the latest defense authorization bill, to exempt the Defense Department from this burdensome regulation.

I reserve the balance of my time.

□ 1900

Mr. VISCLOSKY. Madam Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Madam Chairman, the gentleman talks about the burden. The gentleman talks about the requirement. I would talk about our requirement to ease the burden on the American people as far as our continued dependency on fossil fuel, on overseas options as far as how we secure our carbon, and as I have said a number of times during the debate during the last 2 days, we should never foreclose options for our military. There is a purpose for this requirement and this policy because the Department of Defense is the largest entity on the planet Earth relative to the purchase of fuel, and it is a perfect way to begin to wean ourselves from some of these foreign sources.

Some argue that section 526 harms our military readiness. This is simply not the case. In July, the Department of Defense stated very clearly that the provision has not hindered the Department from purchasing the fuel we need today, worldwide, to support military missions, but it also sets an important baseline in developing the fuels we will need in the future.

The Department, itself, supports section 526, recognizing that tomorrow's soldiers, sailors, air personnel, and marines are going to need a greater range—more options—of energy sources. In fact, the Department of Defense says that repealing this section could complicate the Department's efforts to provide better energy options to our warfighters and take advantage of the promising developments in homegrown biofuels.

I do believe that the amendment would damage the developing biofuels sector at the worst possible time for our economy. We need to create jobs, not to eliminate them. It could also send a negative signal to America's advanced biofuels industry and result in adverse impacts in rural development areas and in exports of the world's leading technology. Section 526 doesn't prevent the sale of dirty fuels, nor does it prevent Federal agencies from buying these fuels if they need to. Instead, it simply prevents the Federal Government from propping up the makers of different types of carbon fuels with long-term contracts. Developing and bringing advanced, low-carbon biofuels to scale is a critical step in reducing the Nation's dependency on oil.

As someone who is possessed with the largest inland oil refinery in the United States of America in the First Congressional District, we are going to sell a lot of oil, but we ought to look at having a broad matrix, and the Department of Defense is a place to start, so I am opposed to the gentleman's amendment.

I reserve the balance of my time.

Mr. FLORES. Madam Chair, the opposition does not understand my amendment.

This amendment does not do anything with respect to restricting the ability of the Department of Defense to buy any green fuel, biofuel, experimental fuel, or any other kind of fuel.

What it does do in the situation of the refinery in the gentleman's district, if it turns out to start using Canadian oil sands crude as one of their feedstocks, is to prevent that refinery from not being able to sell its fuel to the military. The gentleman's argument is exactly backwards. This allows the military to buy the fuel from whatever source whether it is biofuels, green fuels, conventional sources, some

other coal-to-liquid source, or a Canadian oil sand source. It gives them the greatest opportunity at the cheapest cost to buy the fuel that allows our warfighters to worry about taking care of defending this country and not to worry about where the source of the fuel comes from.

I yield back the balance of my time.

Mr. VISCLOSKY. Madam Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. FLORES).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. CONYERS

Mr. CONYERS. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be obligated or expended to transfer man-portable air defense systems (MANPADS) to any entity in Syria.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Michigan and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Michigan.

Mr. CONYERS. Madam Chair, if there is one simple lesson that we can take away from our involvement in conflicts overseas, it is this: beware of unintended consequences.

As was made vividly clear with the U.S. involvement in Afghanistan during the Soviet invasion decades ago, overzealous military assistance or the hyperweaponization of a conflict can have destabilizing consequences and, ultimately, undercut our own national interests.

It is for this reason that I offer this bipartisan amendment with my colleague, the gentleman from Florida (Mr. YOHO), and others to prevent funds in this bill from being used to transfer man-portable air defense systems, known as ''MANPADS,'' to parties in the Syrian civil war. MANPADS, also known as ''shoulder-fired antiaircraft missiles,'' can be fired at an aircraft by individuals on the ground, and they can be easily hidden or transported in the trunk of a car.

According to the Los Angeles Times:

U.S. and Israeli officials have feared that they could be used by terrorists to bring down commercial airliners.

Leaders of the Syrian opposition movements have told The Wall Street Journal and other news outlets that they are actively seeking the transfer of MANPADS from the U.S. and our allies and that U.S. officials continue to consider these requests. I urge the support of the amendment.

Mr. FRELINGHUYSEN. Will the gentleman yield?

Mr. CONYERS. I yield to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. We accept your amendment.

Mr. VISCLOSKY. Will the gentleman yield?

Mr. CONYERS. I yield to the gentleman from Indiana.

Mr. VISCLOSKY. I would join the chairman in thanking the gentleman for his initiative. He raises a very good point, and I support his amendment.

Mr. CONYERS. In reclaiming my time, I thank both of the floor leaders for their support.

Madam Chair, I want to make clear that this amendment will simply ensure that no funds may be made available under this bill for the transfer of these devastating and highly mobile weapons to any party in the Syrian civil war. So, regardless of one's opinion about U.S. intervention in foreign conflicts, this prudent and responsible amendment deserves our support.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Michigan (Mr. CONYERS).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. MCKINLEY

Mr. MCKINLEY. Madam Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short tile) insert the following:

SEC. ____. None of the funds made available by this Act may be used to design, implement, administer, or carry out the U.S. Global Climate Research Program National Climate Assessment, the Intergovernmental Panel on Climate Change's Fifth Assessment Report, the United Nations' Agenda 21 sustainable development plan, or the May 2013 Technical Update of the Social Cost of Carbon for Regulatory Impact Analysis Under Executive Order 12866.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from West Virginia and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from West Virginia.

Mr. MCKINLEY. Madam Chairman, this amendment is identical to the one that the House adopted last month to the National Defense Authorization Act. The amendment would prohibit the Department of Defense from spending money on climate change policies forced upon them by the Obama administration.

We shouldn't be diverting financial resources away from the primary missions of our military at a time when we face many threats. Just look at what is happening around the globe: Iraq is splintering; Syria is still engulfed in a civil war; Russia continues its threat against Ukraine and Crimea; North Korea continues its saber rattling; Iran refuses to stop its pursuit of nuclear weapons; the Taliban threatens stability in Afghanistan; Hamas has now captured teenagers and is holding one of them, an American teenager, in Israel; and ISIS, Boko Haram, al Qaeda, and other terrorist groups are promoting instability and threatening liberty and freedom all around the world.

Madam Chairman, we live in a dangerous world, yet our military is being forced to make due with less. Spending precious resources to follow the Obama climate change agenda will compromise our national security.

When this same amendment was being adopted previously, some people claimed the amendment would prevent the military from using science. That is not true. This amendment merely prevents the Pentagon from spending money—precious money—to implement policies based on the Obama administration's climate assessment and on the United Nations' reports. These are widely acknowledged as political documents, adopted by people with an agenda. We should not be spending money pursuing ideological experiments when we face military challenges around the world. This amendment will ensure we maximize our military might without diverting funds for a politically motivated agenda, so I urge my colleagues to support this amendment.

I reserve the balance of my time.

Mr. VISCLOSKY. Madam Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Madam Chairman, I appreciate the gentleman's comment that we should look around the world and see what is happening.

I look in the Pacific, and I am struck because of the gentleman's concern about the Department of Defense and the commander for the United States Pacific Command's pivoting to Asia. Admiral Samuel Locklear states that the single greatest threat to long-term peace in the Pacific basin is climate change. These threats increase with the demand for energy as temperatures rise but also as natural disasters happen with greater frequency, causing increased operational demands on military forces serving in stability and support roles.

With these disturbing trends documented in the most recent assessments, it would be irresponsible, I believe, to prevent the continued assessment of this real and changing threat.

I would note that no funds shall be used for the research program. What has ever happened in this country where we can't do research? What we do today is: let's not see anything; let's not hear anything; let's not learn anything; let's not research anything. If my parents took that attitude of ''let's do nothing,'' we would still be waiting for the interstate system to be built.

It is time we do something. This attack on research and inquisitiveness and on the seeking of knowledge, whether we agree on all of the facts or not, is very disturbing to me, and I am opposed to the gentleman's amendment.

I reserve the balance of my time.

Mr. MCKINLEY. Madam Chairman, with all due respect to the minority leader, in this amendment, we are not stopping research, and we are not denying that there is climate change occurring. We are merely saying that we

should not be diverting money to implement the political documents that we list in the amendment.

□ 1915

There is ample research. There is ample reason to continue the work that we are doing, but we don't need to be using these documents that are widely acknowledged as politically-driven documents.

We want to continue the research, but not using these documents, these very specific documents.

Madam Chair, I yield back the balance of my time.

Mr. VISCLOSKY. Madam Chair, I would simply say that these documents are research-oriented and technical updates, and we ought to pursue knowledge. I am opposed to the gentleman's amendment.

Madam Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from West Virginia (Mr. MCKINLEY).

The amendment was agreed to.

AMENDMENT OFFERED BY MS. HANABUSA

Ms. HANABUSA. Madam Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be used with respect to Iraq in contravention of the War Powers Resolution (50 U.S.C. 1541 et seq.), including for the introduction of United States armed forces into hostilities in Iraq, into situations in Iraq where imminent involvement in hostilities is clearly indicated by the circumstances, or into Iraqi territory, airspace, or waters while equipped for combat, in contravention of the congressional consultation and reporting requirements of sections 3 and 4 of such Resolution (50 U.S.C. 1542 and 1543).

Ms. HANABUSA (during the reading). Madam Chairman, I ask unanimous consent to waive the reading.

The Acting CHAIR. Is there objection to the request of the gentlewoman from Hawaii?

There was no objection.

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from Hawaii and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Hawaii.

Ms. HANABUSA. Madam Chairman, the Hanabusa-Garamendi amendment is simple. It would ensure that President Obama does not circumvent the War Powers Resolution by unilaterally committing U.S. forces to operations in Iraq.

I have opposed our involvement in Iraq since 2002 and continue to oppose it today.

On Monday, President Obama invoked the War Powers Resolution to send an additional 275 troops into Iraq to increase security at the U.S. Embassy in Baghdad. Today, we heard possibly an additional 300 personnel.

While I understand the need to send troops into Iraq for the express purpose of providing security for U.S. personnel in Iraq, and this amendment would not prevent the additional Embassy security recently announced by the administration or any evacuation operations, I remain resolute that we should not resume combat operations in Iraq.

Congress and the administration need to seriously consider the lack of objectives or an endgame the U.S. would achieve through further military involvement in Iraq. We know the results when we don't know what the end game is and we don't fully consider the consequences of military action, and this miscalculation is not worth repeating to involve our Nation in a situation that is the result of a long-standing sectarian conflict.

After over a decade of U.S. military action in the Middle East that has taken lives and come at far too high a cost of our Nation's resources, we must let the Iraqi people decide their own future.

The wars in Afghanistan and Iraq are estimated to have cost between $4 trillion to $6 trillion, taking into account the medical care of wounded veterans and expensive repairs to the force depleted. This monetary figure cannot come even close to measuring the human lives that were taken as a result of our involvement in the Middle East.

Madam Chairman, we simply cannot afford the options under consideration. U.S. forces should be on a new strategy for regional engagement, rather than considering options that we get involved as we have in the past. This amendment would do that.

I ask my colleagues to vote for this amendment and ensure that the President abides by the law and does not put American lives at risk by involving U.S. troops in combat operations in Iraq.

Mr. VISCLOSKY. Will the gentlewoman yield?

Ms. HANABUSA. I yield to the gentleman from Indiana.

Mr. VISCLOSKY. I appreciate the gentlewoman for offering the amendment. I certainly would rise in support of it and certainly think it is acceptable to the committee.

I would point out to my colleagues though that, if you would, your view has been anticipated. I would draw my colleagues' attention to section 8113 of the underlying legislation, as well as section 9013.

So I do not want anyone to think that the committee itself, including the chairman, was inattentive to the points you raise.

Ms. HANABUSA. Madam Chairman, I thank the chair and the ranking member of the subcommittee for accepting my amendment.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Hawaii (Ms. HANABUSA).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. FORTENBERRY

Mr. FORTENBERRY. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available in this Act may be used to provide weapons in Syria.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Nebraska and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Nebraska.

Mr. FORTENBERRY. Madam Chair, I believe this amendment is absolutely consistent with the underlying portions of the bill that reaffirm that the policy of the United States should be that we will not enter into armed conflict in Syria.

Madam Chair, along the Syrian-Turkish border there is a family—a mother, a father, and six children. One of the children is named Elias.

Elias, one day, in his home town in Syria, was walking to school. He had his hand on the schoolroom door. Then all of a sudden he felt another hand come across his face and everything went dark as he was blindfolded and kidnapped by a Syrian rebel group in the name of liberating the Syrian people.

Fortunately, the family was able to get Elias back, but they had to flee to a refugee camp from their hometown in Syria. Perhaps they are the lucky ones, because 160,000 other Syrians are dead.

Let's make no mistake: the current President, the ruler of Syria, Assad, is responsible for many of these deaths. Assad is a brutal tyrant. But many innocent Syrians, like Elias and his family, fear the rebel armies even more than Assad.

The rebel movement is a battleground of shifting alliances and bloody conflicts between groups that now include multinational terrorist organizations. Some of the most violent and the successful rebel militias are linked to al Qaeda.

Now, sending our weapons into this chaotic war zone could inadvertently help these extremists, jihadists who would be all too eager to seize American weaponry. And it has already happened.

The horror show now unfolding in Iraq suggests that we have already, unintentionally, aided sociopathic zealots. The murderous leaders of the so-called Islamic State of Iraq and Syria have seized American Humvees and weaponry from the disintegrating Iraqi army.

Madam Chair, a CIA analyst on acid could not have imagined this nightmare scenario a week ago. Our best foreign policy analyst could not have seen the ferocity and speed of the collapse of large portions of Iraq.

What we are witnessing is the development of a multinational quasi-emirate, ruled with a ruthless interpretation of Shari'a law. The ISIS marches under the black flag of death.

Madam Chair, the naive notion that we can deliver weapons to vetted, moderate opposition groups at war with other rebel militias gives no guarantee that our weaponry won't be seized or diverted, making an already terrible civil war even worse.

The ad-hoc arming of Syrian rebels, absent a broader multinational strategy in the region, is a recipe for disaster, for further disaster.

Look, I understand this is a complicated situation. It is a hard situation, and there are no good options here. But we cannot afford to do something that may make the situation worse.

In my judgment, the potential benefits from this policy do not outweigh this very significant risk. Just talk to the people in the refugee camps. Talk to Muslim families, Christian families who have had to flee their home. Talk to them. I think we should all remember Elias and what his family has had to go through.

Madam Chair, at this time I yield as much time as he would like to consume to the Congressman from New York, Representative CHRIS GIBSON, Army Iraq war veteran, Purple Heart, professor at West Point.

Mr. GIBSON. I thank my friend and colleague.

Madam Chair, if another country gave arms to a rebel group or another country for the express purpose of attacking our country, we would view that act as an act of war. But for some reason, we don't hold ourselves to that same standard.

If it is the intent of the administration to give arms to any group then, under our Constitution, the administration must first come here and debate it on the floor and get authorization from the people's representatives.

So, Madam Chair, I oppose us getting involved in the Syrian civil war. I believe that there is more that we can do diplomatically to isolate the Assad regime, but I don't think giving arms to any rebel group is in our best interest.

But most certainly, if that is ever to occur, there first has to be an authorization. So I urge my colleague to support this amendment.

The Acting CHAIR. The gentleman's time has expired.

Mr. VISCLOSKY. Madam Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman is recognized for 5 minutes.

Mr. VISCLOSKY. Madam Chair, I appreciate the heartfelt arguments and the concern of the gentleman who serves on the committee. We had a discussion of this amendment in committee, and it did fail on a voice vote.

I would agree with the gentleman when he said that the situation in Syria and that part of the world is very complicated, and that there are no good options. I can't argue that point either.

He also stated that there are significant risks if weapons are, if you would, provided, and I could not deny that.

But at some point in time, given the problems we have in that area of the world and the people who have been displaced and who are in those refugee camps, I think we ought to keep what few unpleasant options we have open, to assume a reasonable risk if, at some future point in time during the next year to year and a half, we can work to improve the situation.

So with all due respect and understanding of the gentleman's concerns, I rise in opposition to the amendment.

Mr. FRELINGHUYSEN. Will the gentleman yield?

Mr. VISCLOSKY. I yield to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. Madam Chairman, let me say I rise in opposition to the gentleman's amendment. But we appreciate the passion in which they make their case and certainly, Mr. FORTENBERRY, in the committee, did a very fine job recognizing congressional concerns regarding potential U.S. involvement in Syria.

Our bill, as you are aware, contains a provision, section 9013, which prohibits the introduction of U.S. military forces into hostilities in Syria, except in accordance with the War Powers Act.

The situation in Syria is as dire as you have described it. We have about 4 million refugees outside the country, doing incredible things, destabilizing one of our best allies, Jordan, in a huge way.

The ranking member and I had an opportunity to visit one of those refugee camps. We need to be mindful of the actions we take here and, perhaps, what we might be doing to limit the President's assistance and our U.S. support for one of our greatest allies, two of our greatest allies in the Middle East, both Israel and Jordan.

So I think we ought to move with caution. We understand your underlying sentiment. In some ways we agree with it.

We don't think we ought to tie the administration's and the Commander in Chief's hands in the way that you have suggested.

I thank the gentleman for yielding.

Mr. FORTENBERRY. Will the gentleman yield?

Mr. VISCLOSKY. I yield what remaining time I have to the gentleman.

□ 1930

Mr. FORTENBERRY. I thank both the chairman and the ranking member for this respectful dialogue.

These are tough judgment calls. I understand that. In my judgment, the risks do not outweigh the potential rewards here.

Until we have a strong, significant multinational strategy to contain this contagion, I believe an ad hoc policy—which it appears to me we now have—by sending weapons into this area, potentially could make this situation worse.

As the gentleman from New York, Congressman GIBSON, pointed out, it is the responsibility of Congress to potentially revisit this issue if we need to reassess the situation, and it becomes much clearer and necessitates U.S. action; but now, to me and my conscience, it is important to say no.

Last year, we had a very strong bipartisan vote that demanded that the United States would not enter into a military conflict in Syria. The American people spoke loudly and clearly, and I think this is simply an extension of that understanding.

I understand the differences of opinion here in judgment, and I very much appreciate the time and respect accordingly.

Mr. VISCLOSKY. I yield back the balance of my time.

Mr. ENGEL. Madam Chair, I rise in opposition to the Fortenberry amendment to H.R. 4870, although I understand my friend's intentions. Our country is wary of intervention halfway across the world.

I understand the impetus to avoid engagement in these very urgent challenges around the world.

Syria's horrendous civil war has seen over 140,000 deaths, 4 million refugees, the use of chemical weapons, mass starvation, the obliteration of entire cities, and growing instability throughout the region.

Syria's odious dictator, Bashar Assad, remains in power and continues to slaughter and starve his people. Innocent civilians have been denied food and medicine, their towns and villages have been razed, and their friends and families driven into refugee camps.

The war crimes and crimes against humanity committed by the Assad regime are a horrific stain on the 21st century, and they demand a much more serious international response.

To many, the carnage in Syria has seemed like a distant problem.

But we can no longer take comfort that our nation is thousands of miles from the Levant. This conflict, which has often seemed like it couldn't get any worse, is evolving in an even more ominous direction.

Of course, we're seeing how the extremist terrorist group, the Islamic State of Iraq and the Levant (ISIL) has used Syria and Iraq as its breeding ground. Our headlines show the group is carrying out a bloody offensive in places all too familiar to U.S. marines.

I am most concerned that in recent months, ISIL and its likeminded extremist groups have begun to turn their attention to the west. It appears that they are using the Levant and Iraq.

But choosing between ISIL on one hand and Assad on the other is a false choice. Assad has. .let these extremist groups fester in Syria. His plan is to show how reasonable he looks compared to an emerging terrorist threat.

This false choice leaves out the moderate Syrian opposition that doesn't subscribe to Assad's brutality or Al-Qaeda's extremism.

With the emergence of this dual threat in Syria, it is clear that we need a new strategy to end Assad's carnage and prevent Al Qaeda and like-minded groups from establishing safe havens in Syria that could be used to plot attacks against the U.S. and our allies.

Yet, the Fortenberry amendment constrains that strategy. I believe we must aggressively ramp up our efforts to support the moderate opposition in Syria.

It is not too late.

It is not too late to help the moderate opposition. It is not too late to transition to a Syria without Assad. It is not too late to protect ourselves and our regional allies from the threat that ISIL poses. It is not too late to help Syrians build the future they deserve.

Ultimately, I don't believe that the future of Syria will be resolved on the battlefield.

But until the day comes when Syrians representing all segments of society are ready to negotiate peace, we must be prepared to do what's necessary to counter the dangers and tragedy in Syria.

The lives of millions of innocent people and, indeed, our own national security compel us to act—and act quickly.

I urge my colleagues to oppose the Fortenberry amendment.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Nebraska (Mr. FORTENBERRY).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. FORTENBERRY. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Nebraska will be postponed.

AMENDMENT OFFERED BY MR. GRAYSON

Mr. GRAYSON. I have an amendment at the desk, Madam Chair.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be used to transfer aircraft (including unmanned aerial vehicles), armored vehicles, grenade launchers, silencers, toxicological agents (including chemical agents, biological agents, and associated equipment), launch vehicles, guided missiles, ballistic missiles, rockets, torpedoes, bombs, mines, or nuclear weapons (as identified for demilitarization purposes outlined in Department of Defense Manual 4160.28) through the Department of Defense Excess Personal Property Program established pursuant to section 1033 of Public Law 104–201, the 'National Defense Authorization Act For Fiscal Year 1997'.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Florida and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. GRAYSON. Madam Chair, you may recall, yesterday, I gave an impassioned plea in favor of a different version of this amendment, which was ruled out of order. I am hoping for a better result tonight; but in any event, there is only so much passion in the world, so I will keep my remarks short.

I rise today to address a growing problem throughout our country, which is the militarization of local law enforcement agencies. The New York Times recently reported that police departments have received thousands of pieces of camouflage and night-vision equipment and hundreds of silencers, armored cars, and aircraft directly from the Department of Defense. These are military weapons.

I think this is appalling. That is why my amendment would prohibit the Department of Defense from gifting excess equipment, such as aircraft—including drones—armored vehicles, grenade launchers, silencers, and bombs to local police departments. Those weapons have no place in our streets, regardless of who may be deploying them.

As The New York Times article ''War Gear Flows to Police Departments'' explains:

Police SWAT teams are now deployed tens of thousands of times each year, increasingly for routine jobs. Masked, heavily armed police officers in Louisiana raided a nightclub in 2006 as part of a liquor inspection. In Florida in 2010, officers in SWAT gear and with guns drawn carried out raids on barbershops that mostly led only to charges of ''barbering without a license.''

One South Carolina sheriff's department now takes a new tank that it received from the Department of Defense with a mounted .50-caliber gun to schools and community events. The department's spokesman calls that tank a ''conversation starter.''

I don't think this is the way I want my America to be. I think we should help our police act like public servants, not like warriors at war.

I think we should facilitate a view of America where the streets are safe and they don't resemble a war zone, no matter who is deploying that equipment. We don't want America to look like an occupied territory.

I hope for the support of my colleagues, and I reserve the balance of my time.

Mr. FRELINGHUYSEN. Madam Chair, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. The Department of Defense Excess Property Program provides surplus military equipment to State and local civilian law enforcement agencies for use in counternarcotics, counterterrorism operations, and to enhance officer safety.

It has provided aircraft, including helicopters and small planes; four-wheel drive vehicles, such as pickup trucks and ambulances that can be used for mobile command vehicles with search warrant; entry teams; it has provided vests and helmets to protect officers, as well as other equipment.

Coming from a State and a region which suffered many deaths on September 11, 2001, we welcome this equipment. It is not misused, and the law enforcement agencies in the Northeast and throughout the country that benefit from this equipment have used it to make sure that all of our citizens are protected.

I now would be happy yield to the gentleman from Florida (Mr. NUGENT), who is a former sheriff, for some comments.

Mr. NUGENT. I thank the chairman for yielding.

Madam Chair, as a past sheriff, we utilized that equipment in a responsible way. All of the helicopters we had in our fleet were all surplus helicopters that flew as far back as Vietnam. Some of the weapons that we had came from the military. We didn't receive any bombs.

At the end of the day, you can always find misuses of any equipment that is given or utilized by law enforcement. It is the responsibility of those communities to keep that law enforcement agency in check.

To just outright ban the usage of that equipment would devastate local law enforcement agencies across the Nation, not just in Florida, but everywhere.

With that, I do appreciate the comments of the gentleman from New Jersey.

Mr. FRELINGHUYSEN. I thank the gentleman from Florida for his comments and reserve the balance of my time.

Mr. GRAYSON. Madam Chair, what I am saying is not so much a question of whether the equipment is being occasionally misused. The question really has become whether it is ever properly used.

Can any of the gentlemen here tonight or anyone else identify a single act of terrorism that was thwarted by handing police officers helicopters that are militarized, bombs, and all sorts of gear that you would only expect to see on the battlefield?

In fact, I would venture to say that the only examples we can come up with for the actual use of these objects is the misuse of these objects, the examples that I gave that were pointed out in national media.

These weapons are not being used to defeat terrorism on our streets. Where is the terrorism on our streets? Instead, these weapons are being used to arrest barbers and to terrorize the general population. In fact, one may venture to say that the weapons are often used by a majority to terrorize a minority.

Certainly, we know of many cases—both recent and in the deep, dark past—where police have used their weapons improperly for the sake of brutality. Now, it used to be that they could only use billy clubs or guns.

Now, they can use helicopters and bombs. Before long, I suppose, given the logic propounded by my colleagues, they will be able to deploy nuclear weapons. That is not an America that I want to live in.

I respectfully submit that this amendment deserves support. We are not cutting off the use of any equipment that is already in the field. On the contrary, that is gone. That is out the door.

Bear in mind that, under the current program, these weapons are given without any strings attached. These are weapons of mass destruction, and they are deployed within our borders by our military to our law enforcement. That is not something I can abide.

I reserve the balance of my time.

Mr. FRELINGHUYSEN. I yield such time as he may consume to the gentleman from Florida (Mr. NUGENT).

Mr. NUGENT. Madam Chair, I have heard a lot of things in my life as a sheriff and in my 38 years in law enforcement, but I will tell you this: first of all, the Federal Government does not give local law enforcement or any law enforcement agency bombs.

The helicopters that local law enforcement receive are all demilitarized. They are all stripped out of any capability of having weapons in them. Those are used to save people's lives. They are used to find guys that have murdered people or to find rapists.

This is absolutely ludicrous to think that the equipment that is utilized by law enforcement is utilized for any reason except for public safety interests, and it happens across this Nation every day in a responsible way.

Mr. FRELINGHUYSEN. I thank the gentleman for his comments.

Madam Chair, these are not weapons of mass destruction. What a ridiculous characterization, respectfully. These vehicles, these aircraft are used to protect American citizens, and the law enforcement community uses them wisely, and they are overseen by responsible elected officials.

I have registered my strong opposition to this amendment and yield back the balance of my time.

Mr. GRAYSON. I think my colleagues must be attacking some other amendment, not this amendment. This is not an amendment that restricts the distribution of guns or ammunition; rather, this is an amendment that restricts the distribution of armored vehicles, grenade launchers, silencers, toxicological agents, chemical agents, biological agents, launch vehicles, guided missiles, ballistic missiles, rockets, torpedoes, bombs, mines, and nuclear weapons.

Unfortunately, Madam Chair, those are all legally permitted to be distributed to our local law enforcement under current law. That is what I am trying to prevent here.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. GRAYSON).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Mr. GRAYSON. Madam Chair, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Florida will be postponed.

AMENDMENT NO. 27 OFFERED BY MR. NUGENT

Mr. NUGENT. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to plan for or carry out a furlough of a dual status military technician (as defined in section 10216 of title 10, United States Code).

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Florida and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. NUGENT. Madam Chairman, the amendment treats the National Guard dual status military technicians as uniformed personnel in the event of furlough.

Dual status technicians are uniformed full-time guardsmen, but a lot of their workweek falls into a legal gray area between active duty and civilian. Essentially, they wear two hats.

They are trained to perform a particular job in the Armed Forces, and they drill in that role like all other guardsmen. However, these dual service technicians are the ones that actually keep the equipment operational.

My son serves in the Florida Army National Guard as a Black Hawk pilot. These dual service technicians are there all week long, to make sure that the helicopters he flies are viable, are safe, and can do a mission.

When they were furloughed last time under this President, we lost the ability to respond to natural disasters within the State of Florida. When we were in the hurricane season and the helicopters were not flyable because our dual service technicians had been furloughed and not treated like other full-time military personnel, we lost the capability to respond to issues that are State issues.

More than that, this same unit that I am talking about—and it goes across this Nation with regard to National Guard units and dual service technicians—they have deployed to Afghanistan, to Iraq; and when they deploy, they actually go with them because they are in uniform. They are military.

Because of the gray area they fall in, they can be furloughed by the President, like they did this last time, and the gentleman from Mississippi (Mr. PALAZZO) and I had come to this floor to talk about that issue, and we had this same amendment, which passed unanimously, I believe, because it protects not only the States, but it also protects our national mission of self-defense here in the homeland and being able to project the force that we need.

□ 1945

So at the end of the day, these technicians who during the day wear a uniform of the United States—this time it would be the Army—in keeping the equipment serviceable and operational—and in this instance were Black Hawk helicopters—they were furloughed. And guess what? They can only be there when they were on the drill weekend. Well, unfortunately, 3 days out of a month is not enough to keep a Black Hawk operational.

So this is really important. We are lucky this time that sequestration is put off in 2015. But that doesn't stop the Commander in Chief from changing that and furloughing these employees, another reason to save money.

At the end of the day, it is about readiness. We should do nothing that hurts readiness in our military, whether it is National Guard or Reservists, but particularly, and I will tell you from my standpoint in the State of Florida that is hurricane prone, those Black Hawks deliver rescue capability that no other vehicle provides for. And we need to make sure those dual-service technicians are treated with respect and kept on the payroll to do the job of keeping our military active with that Reserve component, the National Guard, keep them ready to respond to emergencies here at home and abroad.

Mr. FRELINGHUYSEN. Will the gentleman yield?

Mr. NUGENT. I yield to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. I thank the gentleman from Florida for yielding.

Thank you for bringing this important issue to our attention. It is important that we get this right, and you put a very personal face on something which needs correction to make sure we don't go through this again. I appreciate your taking up this challenge and doing it so well.

Mr. NUGENT. Mr. Chairman, I appreciate it. And, Mr. Chairman, I appreciate your comments, and I appreciate the work that you have done on this.

With that, Madam Chair, I reserve the balance of my time.

Mr. VISCLOSKY. Madam Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Madam Chair, I seek the time because I agree with the assertion of the gentleman, and that is the service that is provided by the military technicians that he is looking to exempt, I agree with every word he said. I want to make it clear to my colleagues that these civilian employees, as a condition of their employment, are a member of the unit in which they work.

My problem is there are other people who are employed by the Federal Government who also do very important work, and I would include everyone who is in the Federal service. I have always taken umbrage, regardless of who was in charge of an administration, at making distinctions between essential or nonessential employees. If you do not have an essential job, I do not know why you are working for anyone.

I find it abhorrent that we lock Federal employees out. I find it abhorrent that we malign Federal employees who

are working very hard. And, again, I agree with the gentleman as far as the value of these military technicians. I made the point when this government was shut down last October and I opposed it that people wanted to ameliorate the discomfort because the Federal Government does nothing for me, and I am also sick of hearing that. My suggestion was, not wanting to shut the government down, well, then, no Federal employee should go to work.

And I happen to use O'Hare International Airport a long time. Maybe people should sit there because FAA employees do very important work to keep us safe when we are at 38,000 feet. I think of all the civilian employees who are doing very important medical work at our hospitals treating those who are wounded and damaged in body and mind because of their service. I think of Federal firefighters who have lost their lives, who have been injured fighting fires. I think of FBI civilian employees who risk their lives every day. I think of those in the Border Patrol who risk their lives every day. I think of civilian employees at the Coast Guard, and obviously I could go on.

So the one concern I have with the gentleman's amendment is we should not be discerning and choosing. We should either be all inclusive or exclusive. And the fact is we would be better spent doing our work, getting our budgets done, and never furloughing any Federal employee again, all of whom are essential.

I yield back the balance of my time.

Mr. NUGENT. I certainly do appreciate the ranking member's comments about other Federal employees, and I am the last one to malign Federal employees, but this is specifically in regard to—do you remember back when we passed the Pay Our Military Act? It was that act that allowed for the President and the Department of Defense to make that determination that these folks were essential. They decided that they weren't. And, in fact, we know they are because they are the ones, like I said, that keep the equipment operational, that allows our pilots and, in particular, Black Hawk pilots the ability to fly to respond to missions at home and abroad.

So while I don't disagree with a lot of what the ranking member said, this is really about those that wear the uniform of this country and allowing them to make sure that they are paid, A, and make sure that they are on duty to keep that equipment operational.

With that, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. NUGENT).

The amendment was agreed to.

AMENDMENT OFFERED BY MS. SPEIER

Ms. SPEIER. I have an amendment at the desk, Madam Chair.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), add the following new section:

SEC. 10002. None of the funds made available by this Act may be used to implement Executive Order 12473 of April 13, 1984, as amended by Executive Order 13669 of June 13, 2014, as those amendments apply to section 405(i) of the Rules for Courts-Martial.

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from California and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from California.

Ms. SPEIER. Madam Chair, last Friday, the President signed Executive Order 13669, which amended the Manual for Courts-Martial. This order delivers a significant blow to an already broken military justice system that will further revictimize servicemembers brave enough to come forward and report that they have been sexually assaulted.

Specifically contained in this executive order is a provision that makes Military Rules of Evidence 412 admissible in article 32 preliminary proceedings. This particular rule of evidence outlines when previous sexual history is admissible in court-martial proceedings and is currently applied to make all sorts of demeaning and irrelevant innuendos about a victim's previous sexual history admissible in courts-martial. Now, mind you, rape shield laws have been passed by virtually every State in the Union, and the question I have is why should servicemembers be considered second-class citizens in this country?

Shockingly, this order doubles down on this harmful rule and allows the sexual history to be admissible in preliminary hearings. What is even worse, under the order, the convening authority will be able to read and consider evidence deemed inadmissible by the article 32 hearing. The military has clearly learned nothing from the Wilkerson case in Aviano, Italy.

You maybe remember that General Franklin, the convening authority, justified overturning a court-martial jury that convicted Wilkerson of having sexually assaulted a woman, and even though he was convicted by five colonels, peers of his, the general was able to look at inadmissible evidence that the judge had ruled out of order and consider that in overturning the decision.

This amendment will prohibit funds to implement the component of Executive Order 13669 to prevent this harmful and wrongheaded provision to go into effect. This order usurps and reverses the progress that, in fact, this Congress has been making in reforming article 32 proceedings, and I hope my colleagues will support the amendment.

Mr. VISCLOSKY. Will the gentlewoman yield?

Ms. SPEIER. I yield to the gentleman from Indiana.

Mr. VISCLOSKY. I appreciate her yielding.

I appreciate her devotion to the issue and to the victims of these crimes and rise in strong support of her position, and I appreciate not only her work but for offering the amendment today.

Mr. FRELINGHUYSEN. Will the gentlewoman yield?

Ms. SPEIER. I yield to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. I served on the Naval Academy Board for 5 years, and I know there is some issues in some people's mind as to whether this executive order either strengthens or weakens the case for rape shield, but I was appalled by what happened there. So I am supportive of what you are doing. There may be some arguments people may have as to whether you are strengthening or weakening it, but your desire is to strengthen and make this unacceptable behavior go away.

Ms. SPEIER. That is correct.

Mr. FRELINGHUYSEN. I am supportive of that and congratulate you on your efforts.

Ms. SPEIER. I thank the gentleman.

Mr. FRELINGHUYSEN. I was on that Academy Board of Visitors for a number of years. The inability of the leadership of that academy, and to think that this midshipman had to go through this 30 hours is outrageous, so I commend you for what you have put forward here.

Ms. SPEIER. I thank the gentleman.

Well, Madam Chair, with that, I thank my colleagues for recognizing the importance of this amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. SPEIER).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. GOSAR

Mr. GOSAR. Madam Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title) insert the following:

SEC. ___. None of the funds appropriated or otherwise made available by this Act may be used to pay for storage for patrol boats procured under the Department of Navy Memorandum #105-E2P-196 dated October 12, 2010.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Arizona and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GOSAR. Madam Chair, I rise today to offer a commonsense, cost-saving amendment to the Department of Defense Appropriations Act for fiscal year 2015.

Specifically, my amendment prohibits the Federal Government from wasting more money on storage for eight patrol boats which have cost taxpayers $3 million, have never been used, and have been sitting in storage for almost 4 years.

Recent media reports and an inspector general's report brought this issue to my attention, and the wasteful spending involved is deplorable.

In 2010, the Federal Government spent more than $3 million on patrol

boats for the Afghan National Police that were never shipped to landlocked Afghanistan. Even more troubling, the cost of each patrol boat was more than $265,000. The Washington Post has reported that similar patrol boats can be purchased in the United States for approximately $50,000 each.

The Office of the Inspector General for Afghanistan Reconstruction, also known as SIGAR, was so concerned about this waste of taxpayer money that it conducted an investigation and recently released a report. The report includes a letter dated April 24, 2014, from the inspector general to the commanding general of the Combined Security Transition Command for Afghanistan.

I would like to share a few excerpts from letter:

I am writing to request information on a $3 million procurement of patrol boats for the Afghan National Police initiated by the Combined Security Transition Command for Afghanistan in 2010.

My focus is on the operational requirements that initiated the procurement of the patrol boats for the Afghan National Police and the reasons for the cancelation 9 months later.

Additionally, I am also interested in the requirement for the United States Government to pay for the storage and related expenses for these boats for the last 3 years, boats that apparently have no planned use.

According to official at the Defense Security Cooperation Agency, the patrol boats were manufactured and delivered to the Navy in 2011 and have been in storage at the Naval Weapons Station/Cheatham Annex, Yorktown, Virginia, ever since.

The full report goes on to detail some other troubling findings, which include missing storage records, missing expenditure authorizations and justifications, and missing documents which should detail the reason for canceling the procurement order.

□ 2000

The inspector general's June 6, 2014, letter is even more harsh as it stated:

I continue to have concerns because the Combined Security Transition Command for Afghanistan was unable to answer a significant number of my questions regarding the patrol boats. The list of unanswered questions is particularly troubling.

Further, the Combined Security Transition Command for Afghanistan's response indicates that its Security Assistance office led a review board that determined that the boats do not fill a valid requirement for Afghanistan.

To help the inspector general better understand how these decisions were made and to help us prepare lessons learned reports intended to avert the waste of U.S. taxpayer funds in the future, please provide a detailed accounting of all the elements of the Security Assistance office review boat's proceedings which led to that decision, including transcripts, testimony, and exhibits.

By letter today, I have also requested the Department of the Navy to provide their plans for disposition of the boats.

I wholeheartedly agree with the inspector general, and not another penny of Federal taxpayer money should be spent on these boats that cost $3 million to produce, were never utilized, and have been sitting in storage since 2011.

These boats either need to be put in the water or resold, per Federal law. I urge my colleagues on both sides of the aisle to support passage of my commonsense amendment that will ensure better use of taxpayer money.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GOSAR).

The amendment was agreed to.

AMENDMENT NO. 34 OFFERED BY MS. LEE OF CALIFORNIA

Ms. LEE of California. Mr. Chairman, I have amendment No. 34 at the desk, preprinted in the CONGRESSIONAL RECORD.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be obligated or expended pursuant to the Authorization for Use of Military Force (Public Law 107–40; 50 U.S.C. 1541 note) after December 31, 2014.

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from California and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from California.

Ms. LEE of California. Mr. Chairman, my bipartisan amendment is straightforward. It is cosponsored by Congressman BROUN of Georgia and Congressman SANFORD of South Carolina.

It will prohibit any funding in this bill pursuant to the 2001 Authorization for Use of Military Force after December 31, 2014.

This date is set as the official end of combat operations in Afghanistan. Furthermore, it gives the President and Congress sufficient time to determine what, if any, authorization would be needed to replace the 2001 AUMF.

The fact of the matter is the world has changed dramatically in the aftermath of the horrific tragedy of September 11.

On September 14, 2001, I could not vote for the resolution, an authorization that I knew would provide a blank check to wage war any time, anywhere, for any purpose, and for any length. Thirteen years later, this authorization is still on the books.

According to the Congressional Research Service, there are over 30 known instances of the executive branch invoking authority to engage in hostilities or deploy Armed Forces under this AUMF.

The report, which is on my Web site, lists 30 instances where the AUMF has been invoked by President Bush and President Obama, including to deploy troops in Ethiopia, Djibouti, Georgia, Yemen, justify detentions at Guantanamo Bay, and conduct military commissions, among many other uses, for which this resolution served as the legal justification for.

No executive office, not President Bush, not President Obama, nor any future President can be handed such broad authority to wage war with no oversight.

In fact, President Obama has stated that he looks forward to engaging Congress and the American people in efforts to refine and ultimately repeal the AUMF's mandate, and he will not sign laws designed to expand this mandate further.

We need to take up the President's suggestion. There was very little debate on this resolution. I was here 12 years ago, and so year after year, I have introduced legislation to repeal this resolution.

It is long past time for Congress to have a meaningful debate. I remember that night. There were five or six maybe on the floor, maybe a few more, and we had probably an hour's debate that evening.

We need to have a real debate about our constitutional role in declaring war and our obligation to conduct rigorous oversight, accountability, and to demand transparency and accountability for the American people for their tax dollars. I ask Members to support this amendment.

I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I claim the time in opposition.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. I oppose this amendment. This amendment, while disguised as a funding limitation, is really an attempt to put in place a major policy change that does not belong on our bill. It would essentially repeal the 2001 Authorization for Use of Military Force.

Let me be clear about what this amendment does. This amendment cripples our ability to conduct counterterrorism operations against terrorists who pose a threat to U.S. persons and interests.

In my judgment, this amendment dangerously and erroneously assumes that the terrorist threat from al Qaeda and its affiliates ends once military operations end in Afghanistan.

The terrorist threat today is no less real and, in many ways, is more daunting than it was when Congress overwhelmingly gave to President Bush and to President Obama the authority to protect us against those who want to do us harm.

While some would argue that core al Qaeda has weakened, as events in Yemen and most recently Iraq and Syria have not shown, we know that al Qaeda and other terrorist groups are on the rise. This amendment would end our ability to conduct any operations against them at the end of this year—inconceivable.

Core al Qaeda isn't the only threat. Al Qaeda in the Arabian Peninsula, operating out of Yemen, is now considered to pose the greatest threat to U.S. citizens.

This amendment would effectively eliminate the President's ability to address the threat or other emerging threats of AQ-affiliated and like-minded groups in north Africa, the Horn of Africa, and elsewhere.

If adopted, this would send terrorists the message that they just need to wait out the military authority to conduct counterterrorism operations, and then they are free to launch their attacks.

The President himself, with all due respect, has reaffirmed the need for this continued authority and uses it, I can assure you, each and every day. It would be a mistake to tie the hands of our Commander in Chief and our military by removing this authority that protects U.S. citizens and our country from terrorist threats.

I strongly oppose this amendment and urge others to do so as well.

I reserve the balance of my time.

Ms. LEE of California. Mr. Chairman, I yield 2 minutes to the gentleman from Minnesota (Mr. ELLISON).

Mr. ELLISON. Mr. Chairman, I thank the gentlelady from California.

No, repealing the AUMF will not leave America vulnerable to terrorists. What it will do is put this U.S. Congress in a position to debate the legitimate—or not so legitimate, in some cases—justification for further military action.

It will update the debate. It will put us in a position to really drill down and find out whether there is a national security interest, which would justify military force in the situation moving forward.

Members of Congress, this thing is over a decade old, and it has gone far afield from its original purpose.

This AUMF has been used more than 30 times to take our country into conflict, countries literally hundreds and maybe thousands of miles away from where it was originally intended.

It is time for a new debate. It is time for a new Authorization for Use of Military Force, if we should have one. It is nothing more than a scare tactic to say that this will leave our country vulnerable.

The President is the Commander in Chief and has authority to protect the interests of the United States, but this AUMF has brought us in a direction that was not contemplated.

As the representatives of the people of the United States—that is us—we should have a say on the future of where military conflicts might be conducted. That means we repeal this AUMF, and if there is a legitimate national security interest moving forward, we should debate it on the floor and, if necessary, pass it. It is time to repeal the AUMF.

Ms. LEE of California. Mr. Chairman, first of all, let me say I don't know how much time—how much more time the opposition to this amendment wants to see this authorization on the books and continue to fund it. There is no reason that a 13-year authorization should continue to be funded.

I just want to read you this, as I close, what this authorization said 13 years ago, which totally has abdicated our constitutional responsibility and authority as Members of Congress. We are abdicating our constitutional authority by not going back to the drawing board and debating any further efforts as it relates to military force.

> The President is authorized to use all necessary and appropriate force against those nations, organizations, or persons he deems planned, authorized, and aided the terrorist attacks that occurred on September 11.

That is 2001. Again, the Congressional Research Service has cited 30 instances. We know there are more. Once again, we need to come back and have a debate. We need to talk about how far removed now we are from 2001.

If we think this needs to be brought up to date, bring it up to date, but we definitely need to stop the funding.

I yield back the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. LEE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. LEE of California. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from California will be postponed.

AMENDMENT OFFERED BY MR. ROGERS OF ALABAMA

Mr. ROGERS of Alabama. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

> At the end of the bill (before the short title), insert the following:
>
> SEC. __. None of the funds made available by this Act may be used to implement the Treaty on Open Skies, done at Helsinki March 24, 1992, and entered into force January 1, 2002.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Alabama and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Alabama.

Mr. ROGERS of Alabama. Mr. Chairman, I rise today to urge Members to support my amendment and to support the underlying bill by my friend from New Jersey. I regret I have to bring this amendment today. It deals with a very arcane issue, the Treaty on Open Skies.

In the FY15 NDAA, H.R. 4435, we included a bipartisan provision to require certification of the national security implications for Russian Federation proposals to implement new sensors on their Open Skies aircraft.

These aircraft are allowed to fly over the United States to conduct surveillance flights. They are not supposed to supplement Russian intelligence collection on the U.S., yet not long after this body passed the NDAA on a 325–98 vote, the administration opted to ignore this body's concerns, ignore the concerns of a bipartisan group of Senators on the Senate Select Committee on Intelligence, and approve a Russian request to improve its sensor platform.

The administration did this without regard to Russia's invasion of Ukraine and illegal seizure of Crimea. The administration did this without regard to Russia's violation of the INF treaty. The administration did this without regard to Russia's compliance failings in the New START Treaty.

The administration did this without regard to the fact that Russia is cheating on the Open Skies Treaty itself—just look at the State Department Web site. The administration did this without regard to the concerns of the Department of Defense and other government agencies.

How did Russia respond to this decision by the administration to accede to Putin's wishes? The New York Times this past weekend answered that question this way:

> Rebels also claim to have shot down a Ukrainian AN–30 surveillance plane on June 6, 2014. The June 6 episode was of particular concern because it involved the destruction of one of the two planes that Ukraine used to monitor the Open Skies Treaty.

Mr. Chairman, when will we learn that we can't respond to Russian aggression with concession?

Putin responded, as he always does, by taking our concession and having his shock troops in Ukraine shoot down an airplane.

We cannot continue like this. We cannot continue to ignore Russia cheating when it comes to our treaties. We cannot continue to allow Russia to misuse arms control treaties like the Open Skies Treaty. We cannot continue to allow Russia to foment violence on NATO's borders.

□ 2015

We cannot continue to ignore the concerns of our military and other national security agencies just to make Russia feel good.

I urge support of my amendment to send a message to Russia and safeguard our national security.

With that, I would urge my colleagues to accept the amendment and yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Alabama (Mr. ROGERS of Alabama).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. MURPHY OF FLORIDA

Mr. MURPHY of Florida. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

> At the end of the bill (before the short title), add the following new section:
>
> SEC. ____. None of the funds made available by this Act may be used to maintain or improve Department of Defense real property

with a zero percent utilization rate according to the Department's real property inventory database, except in the case of maintenance of an historic property as required by the National Historic Preservation Act (16 U.S.C. 470 et seq.) or maintenance to prevent a negative environmental impact as required by the National Environmental Policy Act of 1969 (42 U.S.C. 4321 et seq.).

Mr. MURPHY of Florida (during the reading). Mr. Chair, I ask unanimous consent that the amendment be considered as read.

The Acting CHAIR. Is there objection to the request of the gentleman from Florida?

Mr. FRELINGHUYSEN. Objection.

The Acting CHAIR. Objection is heard.

The Clerk will continue to read.

The Clerk continued to read.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Florida and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. MURPHY of Florida. Mr. Chair, I rise today to offer an amendment to the Department of Defense Appropriations bill that would eliminate wasteful spending on unused and underutilized facilities.

With the Federal Government being the largest holder of land in the country, management of these properties must be economically responsible. Unfortunately, our government continues to misuse taxpayer dollars maintaining vacant and underutilized properties. This mismanagement must be addressed so that taxpayer money is no longer squandered on these unused facilities.

That is why I am once again introducing this commonsense amendment, as I have with previous appropriations bills, and will continue to do so until wastefulness, both in terms of cost and efficiency, is rooted out of our government.

This proposal is an extension of the bipartisan SAVE Act I had put forward that would cut $230 billion in government spending by rooting out waste and mismanagement such as this.

I am proud that my amendment is endorsed by a broad coalition, including the Project on Government Oversight and the National Taxpayers Union. I thank them for their support of this commonsense measure to save taxpayers money by making our government more efficient.

The Department of Defense, alone, has hundreds, possibly thousands, of buildings and structures that it has rated at zero percent utilization, yet the Federal Government continues to maintain these unused facilities at an incredible cost to taxpayers. As a CPA, this just doesn't add up. It is unacceptable that taxpayers are on the hook for maintaining these unused facilities. Putting an end to this misuse of resources could save tens of millions of dollars a year, smart savings we should all support, regardless of party affiliation.

Mr. Chair, when I came to Congress, I promised my constituents that I would scrutinize the Federal budget so that their money was not wasted, promoting smarter governing. This is a simple solution to do just that.

This amendment was passed by the House last year with bipartisan support, and I ask my colleagues to again support this measure that can save American taxpayers tens of millions of dollars in this year alone. Let's come together and show the American people that we can work together to promote better government and smarter spending.

Mr. FRELINGHUYSEN. Will the gentleman yield?

Mr. MURPHY of Florida. I yield the balance of my time to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. I am pleased to accept your amendment.

I yield to Mr. VISCLOSKY, if you care to make any comments.

Mr. VISCLOSKY. I appreciate the gentleman yielding.

I certainly appreciate the fact that the gentleman is looking to be very cost effective in avoiding the expenditure of unnecessary funds and strongly support his position. I appreciate his offering the amendment, and I appreciate the gentleman yielding.

Mr. FRELINGHUYSEN. I thank the gentleman for yielding.

Mr. MURPHY of Florida. Mr. Chair, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. MURPHY).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. GOSAR

Mr. GOSAR. Mr. Chairman, I have an amendment, 148, at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to procure any Army Aircrew Combat Uniforms.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Arizona and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Arizona.

Mr. GOSAR. Mr. Chairman, I rise today to offer a commonsense, cost-saving amendment to the Department of Defense Appropriations Act for fiscal year 2015.

It has been brought to my attention from numerous sources within my district that in 2009 the Department of Army fully phased out the CWU–27/P Army aviation flight uniform and moved to the Army Aircrew Combat Uniform, also known as the A2CU.

Constituents of mine, many of whom are Active Duty, retired, or friends and family of military personnel, have expressed a strong desire for the Army to go back to the CWU–27/P model uniform.

There are multiple reasons to switch back to the CWU model uniform. The most important reasons to switch back to the CWU model are safety and efficiency. But to sweeten the deal, when making the pitch to me, my constituents explained that moving back to the CWU model would also save the Department millions of dollars a year in procurement costs. Talk about hitting two birds with one stone.

First and foremost, let's touch on CWU model's proven track record of safety and practicality. The CWU model is still authorized for Army Special Operations aviators, all of the aviators in other service branches of the U.S. military, and most air forces and navies around the world. Yes, these points are a testament to the safety and efficiency of the CWU model.

And these safety aspects are of paramount importance to our Army aviators, because the chances of a fire in an aviation crash are very high. The CWU model flight suits have antistatic fiber woven in them to prevent sparks, which, for obvious reasons, are not desirable when operating an aircraft with thousands of pounds of highly volatile jet fuel on board.

The one-piece design of the CWU model is also extremely important as it does not, in the event of a fire, leave any opportunities for exposed skin. Being that the A2CU is a two-piece model exactly like ground troop uniforms, it cannot offer the same amount or types of protection. Moreover, the A2CU is also cut to a looser standard than the CWU–27/P, creating the potential for more items of clothing to snag on controls in the cockpit.

Speaking to the cost savings, the A2CU model costs an average of 56 percent more than the CWU model, and the A2CU has proven to wear out faster than the CWU. Further, every time the Army decides to change the camouflage pattern of the duty uniform, they have to spend millions more purchasing the new flight uniform. The CWU model, to my knowledge, is usually only one color per uniform.

The nonpartisan Congressional Budget Office stated that this amendment does not score as it is written; but being that the intent is to move back to the CWU model, the effects of the policy should actually net some cost savings. Conservative estimates show that the Army could save around $5 million a year in procurement costs if it were to move back to the CWU model. Further, it should not cost anything to reintroduce the CWU model back into the supply system, as the rest of service branches still use them. In other words, there is no need to reboot the supply chain.

Further, the Army could replace the A2CU's with CWU's as they are exchanged by soldiers without the upfront cost of re-outfitting each soldier. The cost savings are tantalizing for someone like me who was sent to this town to rein in spending. More importantly, I listen to these Army aviators and flight operators. They tell me it is safer, and being that they are the ones

doing the training and fighting, I will take them at their word.

Given the safety and practicality applications, and given that the United States is not exactly running a budget surplus right now, saving a few million here and there in the name of safety and practicality is something we should all strive to achieve.

I urge my colleagues to support this commonsense amendment which cuts costs and improves safety.

With that, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Arizona (Mr. GOSAR).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. ELLISON

Mr. ELLISON. Mr. Chair, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available in this Act may be used to enter into a contract with any person whose disclosures of a proceeding with a disposition listed in section 2313(c)(1) of title 41, United States Code, in the Federal Awardee Performance and Integrity Information System include the term ''Fair Labor Standards Act.''.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Minnesota and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Minnesota.

Mr. ELLISON. Mr. Chairman, if there is one thing I think Democrats and Republicans can actually agree on, it is that, if a penny is earned, that penny must be paid. This amendment is very straightforward. In fact, a version of it has already passed the House of Representatives. What it says is that, if there is a Federal contractor who has been found to engage in wage theft, that they may not benefit from this appropriation.

Now, there are many contractors who work for the Department of Defense who have employees that cook the meals for our troops, wash their uniforms, do all manner of many, many important tasks to keep fighting men and women in a position to serve our Nation. Some of them may even work in the commissary. They may work at various jobs. And they sometimes, the Federal contractors who serve the Federal Government, do not pay these workers.

Mr. Chairman, you may think, well, you know, maybe that happens, but how often does it happen? Is it really a big problem? I am here to tell you that it is a serious problem. In fact, the Economic Policy Institute found that, in total, the average low-wage worker loses a stunning $2,634 per year in unpaid wages, representing 15 percent of their earned income.

A recent report by the Health, Education, Labor, and Pensions Committee of the United States Senate revealed that 32 percent—that is 32 percent, fully a third—of the largest Department of Labor penalties for wage theft were levied against Federal contractors.

Now, I think that Democrats and Republicans can agree that, if you are a Federal contractor and you want to do business with the United States, you should be fair to your workers. This bill doesn't go out and look and we are not asking anyone to make any judgments. We are talking about people who have been found to engage in wage theft already.

This amendment simply says that the funds made available in this act may be used to enter into contract with any person whose disclosures of a proceeding with a disposition listed under section 2313(e)(1), title 41, and it goes on. But what it means is that you must be fair to your workers, and if you are not, you cannot benefit.

Last word I want to say about this is that don't we want to incentivize good contractors and discourage bad ones? One way we can do that is say, if you don't treat your workers right, we are going to find some Federal contractors who will.

I urge all of my colleagues to support this amendment.

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Mr. VISCLOSKY. Will the gentleman yield?

Mr. ELLISON. I yield to the gentleman from Indiana.

Mr. VISCLOSKY. I appreciate the gentleman offering the amendment and speaking out on behalf of the dignity of labor, whatever human labor that may be, and certainly believe that the amendment is acceptable to the committee. Thank you very much.

Mr. ELLISON. I certainly appreciate that.

Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Minnesota (Mr. ELLISON).

The question was taken; and the Acting Chair announced that the ayes appeared to have it.

Mr. ELLISON. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Minnesota will be postponed.

AMENDMENT OFFERED BY MR. FORBES

Mr. FORBES. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be obligated or expended to implement the Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-Personnel Mines and on their Destruction.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Virginia and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. FORBES. Mr. Chairman, if you turn on your TV tonight, you will see U.S. foreign policy in shambles almost across the globe. It shouldn't surprise us because basically this administration has given our adversaries or potential adversaries almost everything they wanted, even when it jeopardized our national defense.

Let me just walk you around the globe.

The number one concern the Russians had was for us to pull our missile defense systems out of Europe, and we did that, even though it left huge gaps for us in our missile defense.

The number one concern the Iranians wanted was to pull off their sanctions, and we agreed to that.

The number one concern the Afghan insurgents had was a time certain when we were going to get out.

The number one concern the Chinese had was that we not increase our Navy and we decrease it, and we saw the President send over a budget that would have effectively taken an aircraft carrier out of our fleet, would have beached half of our cruiser fleet, would have essentially eliminated or severely impacted the production of our Tomahawk missiles, and they have plans to bench six destroyers next year. Now they are getting ready to do something that is probably as egregious as all the rest, and that is to execute within the next couple of weeks the Ottawa Treaty, which would require us to pull our landmines up along the DMZ, which is the number one concern for the North Koreans.

When President Clinton looked at this, he rejected that treaty because he realized that those landmines were what kept the North Koreans from invading South Koreans for decades. When George W. Bush looked at it, he rejected it because he realized how militarily impractical it would be. And when this administration looked at it in 2009, this is what their State Department said:

We would not be able to meet our national defense needs nor our security commitments to our friends and allies if we signed this.

Then when a White House aide pushed back on that about 3 years later, the commander of our forces in South Korea, General Thurman, said this:

I wake up every morning with 1 million North Korean troops right across the border.

When we asked our current general, who is in charge of our South Korean forces, whether he thought we should move those landmines, he said they were critical to the defense of South Korea.

When we asked the top uniformed general in the United States, General Dempsey, the Chairman of the Joint Chiefs of Staff, he said it was a critical part of our defense. And when we asked him if anything had changed since 2009,

he quickly came back and said things have gotten worse, not better.

Mr. Chairman, these are not the landmines of yesterday that were just dropped somewhere and you worried a child would come along and stumble on them. These landmines are very targeted. They only come on when we activate them, and then they deactivate within a certain number of hours after that. In fact, the United States has already spent more than $2 billion over the last 20 years taking those up.

So, Mr. Chairman, what this would do is to prohibit any funds from being made available under this act for the implementation of that Ottawa Treaty. It is time we start listening to our military experts at the Pentagon and we start taking their advice on what we need for national security.

With that, I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I rise in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Mr. Chairman, I rise in opposition, essentially, for two reasons.

One, I believe that the gentleman's amendment is moot because we are not a signatory to the convention. The United States Senate has not ratified the treaty so funds could not be expended for it.

Secondly, I do think it sends a very bad signal. The gentleman alludes to the sophistication of mines that are used today compared to say a generation ago. I don't think it is a secret that the United States does use such equipment.

But I would point out, and it is a different program within the bill—and I thank publicly the chairman, as well as the members of the subcommittee and the full committee, for increasing funding for Humanitarian Mine Action Program. It is not a large program, but its mission is of immense value. All too often innocent civilians are victims of explosive remnants of war, not just new sophisticated U.S. equipment. It is only right that we share our expertise with others, and I acknowledge it is a different program.

But the chairman and others have alluded to our visit to Afghanistan, and still remember a picture of two brothers—one didn't have a leg and the other was blind because of a mine. So I don't want to send negative signals internationally. I know that is not the gentleman's intent, but, unfortunately, I think it is inferred and, therefore, am opposed to his amendment.

I yield back the balance of my time.

Mr. FORBES. Mr. Chairman, could I inquire as to how much time I have remaining.

The Acting CHAIR. The gentleman from Virginia has 1¾ minutes remaining.

Mr. FORBES. Mr. Chairman, first of all, this is not moot. We have it on widespread information that the administration is planning to do this within the next 2 weeks. We even had various embassies tell us the same thing.

Secondly, as he mentioned, he is talking apples to oranges. These are not the same two kinds of programs. There is nothing more humanitarian than preventing war. We have 28,500 troops in South Korea facing all those troops in North Korea, and the thing that stands between them and us are those landmines. The gentleman can't tell me one thing that is going to stop them from coming over there if we pull those landmines up. That is why it is crucial we act now and make sure we don't make this crucial mistake and see another part of this globe in shambles over our foreign policy.

With that, Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. FORBES).

The amendment was agreed to.

AMENDMENT NO. 32 OFFERED BY MS. LEE OF CALIFORNIA

Ms. LEE of California. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will designate the amendment.

The text of the amendment is as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be used for the purpose of conducting combat operations in Afghanistan after December 31, 2014.

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from California and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from California.

Ms. LEE of California. Mr. Chairman, my straightforward bipartisan amendment is cosponsored by Representatives WALTER JONES and JIM MCGOVERN.

What this amendment does is prohibit any funding for combat operations in Afghanistan after December 31, 2014. Even though some of us would rather have all of our troops returned, the President announced in May that the United States would end the U.S. combat mission in December 2014.

This simple amendment codifies and clarifies the President's position. It would also allow Congress to determine and reauthorize any further combat operations in Afghanistan should the President deem it necessary.

By reinserting Congress' constitutional authority, this amendment would ensure that we have a debate and a vote in this body for the future of combat operations in Afghanistan.

Last month, I joined Congressmen MCGOVERN, JONES, GARAMENDI, and Armed Services Ranking Member ADAM SMITH in offering an amendment to the National Defense Authorization Act that would have required a congressional vote to continue deployment of U.S. combat troops in Afghanistan after December 31, 2014.

Unfortunately, that amendment was not allowed to come to the floor.

Instead, to date, the Republican leadership of this House has failed to allow the American people any say in the future of America's longest war. It is really unconscionable that the Afghan public through the Afghan parliament has ample opportunity to weigh in on the future presence of United States combat troops in Afghanistan, while the American public has been given no such opportunity through this Congress.

For many years, we have known there is simply no military solution in Afghanistan, and our constituents are sick and tired of this endless war.

This war has cost taxpayers over $750 billion, and promises to cost tens of billions more for every year our troops remain in Afghanistan. We have lost thousands of our young men and women. They conducted themselves in a way that everything we asked them to do they did, and so it is time now to honor them by ending this endless war.

This war, again, when you look at the human cost, the lives of I think it is 2,321 soldiers, and tens of thousands injured, it is really time to end this. It is time to look out for our veterans, our brave young men and women, bring them home, not fund any more combat operations, and ensure their job security, their health, their mental health, and their future.

I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Mr. Chairman, I strongly oppose this amendment.

This amendment is very vaguely crafted. It could have undue consequences. This very short amendment would make no funds available for ''the purpose of conducting combat operations in Afghanistan after December 31, 2014.''

Our bill contains funding for combat operations, not only for United States troops, but provides funding, equipment, lift, and sustainment of allies in the fight.

Further, within the overseas contingency operations funding account—when the OCO budget finally arrives, and we have been asking for it for months—there will be funding for combat operations for Afghanistan troops, and I suspect other troops, American troops, or international troops, through what we call the Afghan Security Forces Fund. I think there is a degree of inevitability that that will happen. Certainly we are going to have troops there I think for some time.

This amendment, in my judgment, goes too far, as it attempts to tie the U.S. Government's hands in navigating the complicated situation we face related to threats emanating from Iraq.

Let's be realistic. What this amendment would do is it would remove the possibility of the U.S. engaging under any circumstances, even if such engagement would be in the best interest of our country or allies.

I strongly oppose the amendment. It doesn't make sense.

I reserve the balance of my time.

Ms. LEE of California. Mr. Chairman, first of all, this amendment says we are not going to fund combat operations after December 31, 2014. That is what it says. That is what it will do. That is what the President has indicated.

For the life of me I don't understand why the opposition really believes that there is a military solution in Afghanistan. We have been there 13 years. History shows that the United States military is not going to continue to have a military presence and support what has taken place in Afghanistan. It is now up to the Afghan government and people to secure their own future.

Of course, we are not taking away any authority from the President. We have taken away our authority here, our constitutional duty and responsibility. We can't allow funding for combat operations beyond December 2014. The President has said that will not happen. So what in the world are we talking about by saying, yes, here is the money, we want you to continue funding these combat operations?

He said they would end in December of 2014, so we should do what we need to do here in Congress. We should end it, we should not allow any more funding. If, in fact, the President believes, and if you believe, that we want to engage in more combat action and operations—which, of course, the American public I believe are telling us in no uncertain terms they are war-weary—but if you believe that, then come back to Congress and exercise your constitutional duty and responsibility, and vote for whatever it is that the President is asking for. This doesn't make any sense—13 years. Again, we sunset in the farm bill, the transportation bill. Here we have got an authority now and funding for the last 13 years. It doesn't make any sense. We want to do what the President has said he is going to do.

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This Congress needs to reassert itself and do our constitutional duty, engage in our constitutional authority and responsibility, and say in no uncertain terms: no funding for combat operations after December 31, 2014.

I yield back the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from California (Ms. LEE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. LEE of California. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentlewoman from California will be postponed.

AMENDMENT OFFERED BY MR. MCCLINTOCK

Mr. MCCLINTOCK. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to carry out any of the following:

(1) Sections 2(b), 2(d), 2(g), 3(c), 3(e), 3(f), or 3(g) of Executive Order 13423.

(2) Sections 2(a), 2(b), 2(c), 2(f)(iii-iv), 2(h), 7, 9, 12, 13, or 16 of Executive Order 13514.

(3) Section 2911 of title 10, United States Code.

(4) Sections 400AA or 400 FF of the Energy Policy and Conservation Act (42 U.S.C. 6374, 6374e).

(5) Section 303 of the Energy Policy Act of 1992 (42 U.S.C. 13212).

(6) Section 203 of the Energy Policy Act of 2005 (42 U.S.C. 15852).

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from California and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from California.

Mr. MCCLINTOCK. Mr. Chairman, my amendment forbids defense dollars from being spent to fund two executive orders and several other provisions of law that require the military to squander billions of dollars on so-called green energy.

For example, according to the GAO, the Navy has spent as much as $150 per gallon for jet fuel. In 2012, the Navy purchased 450,000 gallons of biofuel for its so-called green fleet at the cost of $26.60 per gallon, at a time when conventional petroleum fuel cost just $2.50.

What taxpayer in his right mind would pay $26.60 per gallon to fill up his car when, next door, they are selling it for $2.50? Yet that is precisely what our Armed Forces are ordered to do—except they are not just filling up their cars, they are filling up entire ships and aircraft, and this all comes out of our precious defense dollars.

The Air Force paid $59 per gallon for 11,000 gallons of biofuel in 2012—10 times more than regular jet fuel.

It is not just biofuels. The Pentagon expects to purchase 1,500 Chevy Volts at a subsidized price of $40,000 apiece and a production price of $90,000 apiece, paid for by other subsidies. As Senator COBURN's office points out:

Each one of these $40,000 Chevy Volts represents the choice not to provide an entire infantry platoon with all new rifles or 50,000 rounds of ammunition that cannot be used for realistic training.

Under these green energy mandates, the Army and Navy have been required to install solar arrays at various facilities. At Naval Station Norfolk, the Navy spent $21 million to install a 10-acre solar array, which will supply a grand total of 2 percent of the base's electricity.

According to the inspector general's office, this project will save enough money to pay for itself in only 447 years. Of course, solar panels only last about 25 years.

In Alaska, the Pentagon was ordered to convert three radar stations from diesel fuel to wind turbine energy. The Air Force claimed it will take 15 years to pay for itself, but auditors found that the generators produce only ''sporadic, unusable power,'' and the inspector general charged that the Air Force claim was completely unsubstantiated.

As of 2013, the Defense Department had at least 680 such projects, including 357 solar, 29 wind, and 289 thermal energy projects.

There are several arguments that we hear for this mandate. One of them is it is going to save us money, but as you can see, these orders are running up huge costs. We don't know exactly how much because, as the GAO said:

There is currently no comprehensive inventory of which Federal agencies are implementing renewable energy-related initiatives and the types of initiatives they are implementing.

Outside estimates are as much as $7 billion for the Department of Defense for this year, a figure that will only grow each year.

We are told it is to move our Armed Forces toward energy independence from hostile foreign sources. This is from an administration that has obstructed every effort to develop America's vast oil shale reserves that would make Saudi Arabia look like a petroleum pauper. The XL Keystone pipeline, by itself, would bring a half-million barrels of Canadian crude a day into this country.

Finally, we are told this is all a grand strategy to protect us from climate change, which the Secretary of State has called as big a threat as terrorism. Even if it were possible to wage an environmentally-sensitive war—which I doubt—I think there is a good chance that climate will continue to change, as it has that past 4 billion years, whether or not we waste our defense dollars to pay for this quixotic venture.

This explanation does reveal the real reason for this folly. This is an ideological crusade imposed on our military that will pointlessly consume billions of defense dollars, mainly to keep money flowing to politically well-connected green energy companies that can't get anybody else to buy their products.

These green activists are willing to squander the resources of our military to do so. This is a travesty that we can end here and now with this amendment.

I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I claim the time in opposition to the gentleman's amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Mr. Chairman, this debate will mirror one that took place earlier today.

The fact is I would talk about flexibility. The gentleman talks about the costs involved. I think, when you develop new products, new technologies, there is going to be a cost, as far as that research and development.

I will point out that the comparisons, as far as some of the costs, perhaps do not fully factor into the issue of transportation and how some of those fuels get on those ships and in those airplanes in remote parts of the world.

The gentleman also alluded to the flexibility on foreign soil, where you don't have a gas station handy for some of the energy that those troops may need, so I would also reiterate that the commander for the Pacific Command, Admiral Samuel Locklear, did state that the greatest threat to long-term peace in the Pacific region is climate change.

I certainly do think that alternative fuels, given the fact that the Department of Defense is the largest consumer on the planet Earth, is worth abiding by, and therefore, I am opposed to the gentleman's amendment.

I reserve the balance of my time.

Mr. MCCLINTOCK. Mr. Chairman, I would simply point out that forcing the military to pay $26.60 per gallon for fuel that can be obtained for $2.50 a gallon isn't about flexibility. It is about insanity, and it is time that we put an end to this.

I yield back the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I would, again, simply assert that the comparison of a gallon of gasoline at a local station compared to getting it to a jet aircraft for the Department of Defense perhaps is not necessarily comparing apples to apples.

I renew my objection to the gentleman's amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from California (Mr. MCCLINTOCK).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. GRAYSON

Mr. GRAYSON. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC.____. None of the funds made available by this Act may be used to ''consult'', as the term is used in reference to the Department of Defense and the National Security Agency, in contravention of the ''assur[ance]'' provided in section 20(c)(1)(A) of the National Institute of Standards and Technology Act (15 U.S.C. 278g–3(c)(1)(A).

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Florida and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. GRAYSON. Mr. Chairman, this is an amendment that is substantially similar to an amendment that passed by unanimous voice vote among Democrats and Republicans on the House Science and Technology Committee a couple of weeks ago.

My amendment, the Grayson-Holt-Lofgren amendment, seeks to address a serious problem. Recently, it was revealed that the National Security Agency has been recklessly subverting American cryptographic standards—and deliberately so.

Cryptographic standards for the national security community and the commercial software industry are developed by the National Institute of Standards and Technology, or NIST. That is an agency within the House Science and Technology jurisdiction.

These standards are intended to protect Americans from foreign intelligence agencies, from cyber criminals, from industrial espionage, and from privacy violations by those who wish us harm. They are embedded in software products which are used and sold widely—in fact, almost universally in this country and elsewhere.

Unfortunately, recent media reports indicate that the National Security Agency successfully and deliberately weakened encryption standards promulgated by NIST to further NSA surveillance goals at the cost of the privacy of ordinary U.S. citizens—in fact, universally throughout the United States.

This is extremely dangerous. It leaves users of these standards vulnerable to anybody who is familiar with these weaknesses.

We can recall that, just a few weeks ago, millions of Americans were told that they had to change their user IDs and their passwords. That, Mr. Chairman, was because of this.

The NSA apparently is doing this as part of its domestic spying program, but as World Wide Web inventor Tim Berners-Lee put it:

It's naive to imagine that, if you deliberately introduce into a system a weakness, you will be the only one to use it.

My amendment would seek to address this issue by prohibiting the intelligence community from subverting or interfering with the integrity of any cryptographic standard that is proposed, developed, or adopted by NIST.

It is only common sense that we should not want taxpayers' dollars that are appropriated to one agency being used to deliberately and actively subvert the work of another agency and, at the same time, destroy the privacy and the liberty and the personal property of our own citizens.

I urge support for this amendment on both sides of the aisle, and I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I claim the time in opposition to the amendment.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Mr. Chairman, I am not actually opposed to the amendment, but I would like to talk about some of the assertions or allegations made by the gentleman, and I do that respectfully. I am not in opposition to the amendment, but I think there are some things that have been said that need to be replied to.

The National Security Agency has participated in standards setting with the National Institute of Standards and Technology, known as NIST. Of course, they would participate.

Wouldn't we want our Nation's best cryptographers to help strengthen and secure the Internet?

Their participation in setting standards is a no-brainer. You want the standards to be designed by the people who best understand the threat. They recommended the standards that they themselves use.

As the National Security Agency stated on September 30 of last year:

NSA is responsible for setting the security standards for systems carrying and transporting the Nation's most sensitive and classified information. We use cryptography and standards that we recommend, and we recommend the cryptographic standards we use.

We do not make recommendations that we cannot stand behind for protecting national security systems and data. The activity of NSA in setting standards has made the Internet a far safer place to communicate and to do business.

Indeed, our participation in standards development has strengthened the core encryption technology that underpins the Internet.

The idea that NSA has deliberately sabotaged security is ridiculous. These folks know the threat we face and are helping to secure the Internet we all rely on so heavily.

Again, I don't oppose the amendment, but the assertions need to be rebutted.

I reserve the balance of my time.

Mr. GRAYSON. Mr. Chairman, I want to, in some respects, associate myself with the remarks of the gentleman from New Jersey.

Obviously, we have a difference of agreement about the facts, but I think we agree that the NSA should actually be helping to establish the best possible standards for privacy in this country, regardless of whether the published reports that have been widely reported in the media are true or not.

I appreciate the gentleman's allegiance to the underlying principle that Americans deserve privacy.

□ 2100

How much time do I have remaining, Mr. Chairman?

The Acting CHAIR. The gentleman from Florida has 2¼ minutes remaining.

Mr. GRAYSON. Mr. Chairman, I yield 2 minutes to the gentleman from New Jersey.

Mr. HOLT. I thank my friend from Florida for offering this amendment. It should go a long way toward recovering the lost reputation of the National Institute of Standards and Technology.

Mr. Chairman, this came about because the National Security Agency

has a dual role of developing encryption standards and breaking encryption. The reports widely circulated and, I think, generally verified show that these two dual roles caused real problems for American standards and, hence, for American technology and American companies.

It is unfortunate that NIST, which is supposed to be an impartial arbiter of national and of even global standards for technology, was effectively used to propagate defective encryption standards, and this amendment, I think, will help correct that. It is important that we keep high standards and that everyone knows it. This is an important amendment, and I thank the gentleman for offering it. I also appreciate the comments of the chair of the committee.

Mr. FRELINGHUYSEN. Mr. Chairman, I think the National Institute of Standards and Technology, aka NIST, has always enjoyed a good reputation. I served on the committee as a ranking member, and we heavily invested in the work they do. They enjoy an incredible reputation, and the suggestion that somehow they have lost their luster and their reputation is totally inappropriate, but let's move on.

I support the bill with the reservations that I have made about some of the earlier assertions that have been basically within the media that have been pumped up, maligning not only NIST but the National Security Agency, which I think does an incredible job of protecting national security and all of us.

I yield back the balance of my time.

Mr. GRAYSON. Mr. Chairman, I join in the gentleman's desire to move on, and I appreciate the gentleman's fair consideration of this amendment on the merits.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. GRAYSON).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. WITTMAN

Mr. WITTMAN. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), add the following new section:

SEC. 10002. None of the funds made available by this Act may be used to propose, plan for, or execute an additional Base Realignment and Closure round.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Virginia and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Virginia.

Mr. WITTMAN. Mr. Chairman, this amendment is pretty simple. It says that we are not going to use any funds at this particular time to propose, plan, or execute any additional Base Realignment and Closure rounds, better known as BRAC, the reason being that this language was adopted in the National Defense Authorization Act by an overwhelming vote of 325–98. The House has spoken and has said now is not the time to use these funds to begin this. I want to make sure that people understand that this is also in the Senate language.

I want to make sure people understand, too, that this is a process by which we want to make sure we are understanding how decisionmaking takes place. A force structure comes before decisions on infrastructure, and as you know, the service branches are still making the decision about what the end strength should be—how many people we should have in our military. That will determine what our infrastructure should be. We are also undergoing an overseas base and housing assessment to determine what our presence should be overseas. That is ongoing. That should be completed before we even entertain any consideration about what our base structure needs to be here at home.

The cost estimates for the last Base Realignment and Closure Commission in 2005 indicated that it would cost $21 billion. Now we see it costs $35 billion. The 2005 BRAC, as we see, hasn't saved money at all at this particular point, and it won't save money until 2018, so now is not the proper time to pursue a Base Realignment and Closure.

Mr. FRELINGHUYSEN. Will the gentleman yield?

Mr. WITTMAN. I yield to the gentleman from New Jersey.

Mr. FRELINGHUYSEN. Let me thank the gentleman for his incredible service on the House Armed Services Committee.

May I say that the Defense Appropriations Committee has worked very closely with Chairman MCKEON as well as with you, and as you know, our bill contains no funding for a future BRAC. I think all of us are still digesting the last BRAC and understand how expensive it was. I think it is important for you to know that we will repeat in our bill, through your amendment, what you put in the authorization bill, which would make it quite clear to the administration.

Mr. WITTMAN. I thank the chairman for his leadership.

Mr. Chairman, I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I claim the time in opposition to the gentleman's amendment, although I am not opposed to his amendment.

The Acting CHAIR. Without objection, the gentleman from Indiana is recognized for 5 minutes.

There was no objection.

Mr. VISCLOSKY. Mr. Chairman, I rise to make just a couple of points.

The gentleman noted that the last BRAC in 2005, if I am correct, is not going to save money until 2018. That implies it is going to save money in 2018. The concern I have is we do have to think about the future budgets for the Department of Defense, and sometimes we have to make hard decisions in years like 2014 so that we can begin to accrue savings in the out-years.

I mentioned in my opening statements and more than once over the last couple of days—but I feel compelled to do it again—that I do have a concern about Congress' continued failure to confront our long-term fiscal challenges relative to the Department of Defense. The Department of Defense proposed significant initiatives, including military pay adjustments, the restructuring of TRICARE, changes in commissaries, the retirement of several weapons programs—the A–10, the Kiowa Warriors, and others—to provide for future flexibility and to meet our national security strategy.

A number of the proposals—I am not saying they all have incredible value—do possess merit, but with few exceptions, these proposals have not gained any traction in Congress. Most have been excluded in language, prohibiting or postponing the start in the most recently passed National Defense Authorization Act. I certainly don't dismiss the results and impacts on many Members' congressional districts, but, again, I don't think we should foreclose any options to consider in order to possibly save money in the out-years.

I would make the observation, although I am not going to vote against the gentleman's amendment, that we have got to stop saying ''no'' to everything. We have got to start saying ''yes'' to some things, but, unfortunately, for the last 2 days, all we have been doing is saying, ''Don't do anything.''

I appreciate the gentleman's amendment, and I yield back the balance of my time.

Mr. WITTMAN. Mr. Chairman, I yield 2 minutes to the gentlelady from Missouri (Mrs. HARTZLER).

Mrs. HARTZLER. I want to thank the gentleman from Virginia for his leadership on this issue as well as for the chairman's support of this amendment.

Mr. Chairman, now is not the time for BRAC. Due to the passage of the Budget Control Act, our military is facing unprecedented cuts which, I believe, could jeopardize our national defense—maintenance is being deferred; force structure is being reduced to levels we haven't seen since before World War II; training is being deferred as well. A BRAC would siphon precious defense dollars away from our military at a time when the ultimate end strength is uncertain.

We should learn from past lessons. We are still paying for the last BRAC. In 2005, a BRAC was approved. It was supposed to cost $21 billion, but in fact, it is actually costing taxpayers $35 billion. We are still paying off the last BRAC. Now is not the time to take the precious dollars that need to be going to our men and women in uniform and spend them on a BRAC, especially when we have not determined the ultimate force end strength at this point.

What are we not going to spend money on for our defense if we okay a

BRAC? Are our men and women in uniform not going to get the equipment they need? Are we going to cease even more training? Are we going to just mothball further platforms? Are we going to cut the benefits to our military families?

We need every dollar in defense right now to go to protect our national defense, not to reduce our future options that we may need. With all of the threats facing our country—and as we watch TV now, we see all of the threats that are in the world—we need to make sure we have a strong national defense and that we not further weaken it and not weaken our options. I urge my colleagues to support this amendment.

Mr. WITTMAN. Mr. Chairman, may I inquire as to how much time I have remaining?

The Acting CHAIR. The gentleman from Virginia has 30 seconds remaining.

Mr. WITTMAN. Mr. Chairman, in closing, we are at a decisive point.

As you know, right now, we are bringing equipment back from Afghanistan. We are resetting our force, and we are training them for the next missions that they are about to face. Those efforts take resources, and we cannot forget that we have to devote those resources on the list of priorities. Making sure that our men and women are properly trained and that the equipment they have is properly operating and maintained is critical to this Nation's readiness. That should be job one. That is not to say we shouldn't look at saving money elsewhere through infrastructure, but we must restore lost readiness now. That is where those funds need to go. We certainly can look at infrastructure later, but now is the time to make sure we maintain readiness.

With that, Mr. Chairman, I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Virginia (Mr. WITTMAN).

The amendment was agreed to.

AMENDMENT OFFERED BY MS. JACKSON LEE

Ms. JACKSON LEE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be used in contravention of Article II, section 2 of the Constitution.

The Acting CHAIR. Pursuant to House Resolution 628, the gentlewoman from Texas and a Member opposed each will control 5 minutes.

The Chair recognizes the gentlewoman from Texas.

Ms. JACKSON LEE. Let me thank the chairman of the subcommittee and, as well, the ranking member for the courtesy of your staffs and for the work that this committee is doing on behalf of our Nation.

Mr. Chairman, I rise today as the ranking member of Homeland Security's Border and Maritime Security Subcommittee, working on human trafficking and smuggling, as I come from a city that has been called the epicenter of human trafficking—Houston, Texas. So I thank both the chairman and the ranking member for this opportunity to put forward this simple and straightforward amendment that affirms the example of the national goodness that makes America the most exceptional nation on Earth.

The amendment says that none of the funds made available by this act may be used in contravention of article II, section 2 of the Constitution.

I am joined on this amendment by Congressman STEVE STOCKMAN, Congresswoman LOIS FRANKEL, Congresswoman FREDERICA WILSON, and Congressman JOHN CONYERS.

Mr. Chairman, recently, I was proud to support House Resolutions 573 and 617, strongly condemning the ongoing violence and systematic gross human rights violations against the people of Nigeria that have been carried out by the militant organization Boko Haram, especially the April 15, 2014, kidnapping of more than 200 young girls who were kidnapped from the Chibok school by Boko Haram.

□ 2115

This is what the people of northeast Nigeria are facing every single day. Since 2013, more than 4,500 men, women, and children have been slaughtered by Boko Haram.

In addition, it took the United States 25 months after the first two Americans were attacked, and 1 year after the third and fourth Americans were targeted, before Boko Haram was designated a foreign terrorist organization.

It took the United Kingdom 16 months from the time its first citizen was killed by Boko Haram to legally brand them as terrorists.

It took the United Nations 33 months after the United Nations headquarters in Nigeria was bombed before Boko Haram was sanctioned as an al Qaeda-linked terror group.

On June 2, 2014, the European Union finally designated Boko Haram as a terror group.

NGOs have indicated that, in April, the average deaths were hundreds a week by Boko Haram, and later it was an average of 100 deaths a day.

So they couldn't do enough killing, killing of Christians and Muslims and journalists and health care providers and relief workers and schoolchildren. They had to kidnap 200 children, 200 girls.

The international community, working with the African Union, is assisting the government of Nigeria in locating and rescuing the missing girls, bringing an end to Boko Haram's reign of terror, and ensuring that they are brought to justice because of their crimes against humanity.

On May 21, 2014, the President notified the Congress that, pursuant to the authority vested in him by article 2, section 2, as the Commander in Chief, and to conduct foreign relations, that he had directed deployment of approximately 80 U.S. Armed Forces personnel to Chad as part of the U.S. efforts to locate and support the safe return of our 200 girls reported to have been kidnapped in Nigeria.

The President informed the Congress that these personnel would support the operation of intelligence, surveillance, and reconnaissance aircraft for missions over northern Nigeria and the surrounding area. The force will remain in Chad until its support in resolving the kidnapping situation is no longer needed.

My simple amendment indicates that nothing in this bill will contravene the President's authority while these girls are missing.

Mr. Chairman, four Members of Congress, over June 12 to June 16, went to Nigeria. We were in northeast Nigeria. We were in the Borno State, in Abuja. We visited with the victims, the girls who escaped from the Chibok school. They drove 2 days to meet with us to tell us of the outrageous violence, and how they were laid on the ground, and the Boko Haram, pointing AK–47s at their heads, said: Answer my questions or die.

Then we met a woman whose throat was sliced, and her husband, a police officer, was decapitated.

The enforcement, the military, and the police officers of Nigeria need our help.

No, this is not an encouragement or a suggestion at all for boots on the ground. It is a simple collaboration that will stop the siege of Boko Haram that is spreading across Africa and the surrounding area. It is almost like the unknowing understanding of the Taliban by many in America before 9/11.

Boko Haram is a disaster waiting to happen for the continent. In a state like Nigeria that is about to be 440 million people, that has a 7 percent growth rate, and is one of the most prosperous nations in Africa, it has 60 percent poverty, it has 10 million children out of school. And Boko Haram is burning hospitals, schools, Christian churches, mosques, and killing pastors and emirs.

So this amendment is to remind us, just as Hubert Humphrey said, ''People are the great issue of the 20th century.'' Now they are the great issue of the 21st century.

It is time to treat our boys and girls and women with respect.

As I close, I ask my colleagues to support the amendment, to stop the headlines like this, as Boko Haram continues to rage across Nigeria. I ask support for the Jackson Lee amendment.

I yield back the balance of my time.

Mr. Chair, I want to thank Chairman FRELINGHUYSEN and Ranking Member VISCLOSKY for shepherding this legislation to the floor and for their devotion to the men and women of the Armed Forces who risk their lives to keep our nation safe.

Mr. Chair, thank you for the opportunity to explain my amendment, which is simple and straightforward and affirms an example of the national goodness that makes America the most exceptional nation on earth:

At the end of the bill (before the short title), insert the following:

SEC.____. None of the funds made available by this Act may be used in contravention of Article II, section 2 of the Constitution.

Mr. Chair, it was a proud occasion when the House passed H. Res. 573 and H.R. 617, resolutions strongly condemning the ongoing violence and the systematic gross human rights violations against the people of Nigeria carried out by the militant organization Boko Haram, especially the April 15, 2014 kidnapping of more than 200 young schoolgirls kidnapped from the Chibok School by Boko Haram.

Since 2013, more than 4,400 men, women, and children have been slaughtered by Boko Haram.

The victims include Christians, Muslims, journalists, health care providers, relief workers. And schoolchildren.

The international community, working with the African Union, is assisting the Government of Nigeria in locating and rescuing the missing girls, bringing an end to Boko Haram's reign of terror, and ensuring that its crimes against humanity are documented so its leaders can be held accountable.

On May 21, 2014, the President notified the Congress that pursuant to the authority vested in him by Article II, Section 2, as Commander in Chief and to conduct foreign relations, that he had directed the deployment of ''approximately 80 U.S. Armed Forces personnel to Chad as part of the U.S. efforts to locate and support the safe return of over 200 schoolgirls who are reported to have been kidnapped in Nigeria.''

The President informed the Congress that ''these personnel will support the operation of intelligence, surveillance, and reconnaissance aircraft for missions over northern Nigeria and the surrounding area. The force will remain in Chad until its support in resolving the kidnapping situation is no longer required.''

The Jackson Lee Amendment simply makes clear that nothing in the bill contravenes the President's authority to take the actions just described which he has determined to be in furtherance of U.S. national security and foreign policy interests.

Boko Haram's outrageous conduct will not be tolerated or overlooked for not only is it a violation of the girls' human rights, it is also contrary to United States policy which supports and promotes equal access to education and economic opportunity for women and girls.

''People are the great issue of the 20th century,'' declared, then-Senator Hubert Humphrey in 1948.

Mr. Chair, the well-being of people remains the great issue of the 21st century.

And there is no better measure of any society than the way its treats its women and girls and boys and families.

Boko Haram understands that when Nigerian girls are educated, Nigerian women can succeed; and when Nigerian women succeed, Nigeria succeeds.

And that is why it is so important that the United States help Nigeria ensure that Boko Haram fails.

I urge my colleagues to support the Jackson Lee Amendment.

The Acting CHAIR. The question is on the amendment offered by the gentlewoman from Texas (Ms. JACKSON LEE).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. KING OF IOWA

Mr. KING of Iowa. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be used to transfer weapons to the Palestinian Authority.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Iowa and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Iowa.

Mr. KING of Iowa. Mr. Chairman, simply, this amendment says, as the gentlelady read, ''None of the funds made available by this Act may be used to transfer weapons to the Palestinian Authority.''

I would like to express why I brought this amendment. I take you back, Mr. Chairman, to April 23, 2014, when Fatah and Hamas unified within the Palestinian Authority in the Palestinian organization. That unification brought about a terrorist-designated organization, a foreign terrorist organization, joined together with Fatah. This is April 23.

On June 6 of 2014, State Department spokeswoman Jen Psaki said: ''We will work with and fund the new Palestinian Authority government.''

So what that means is, they have decided, for the first time, that our taxpayers' borrowed money is going to be committed to a terrorist organization.

1997 was when Hamas was designated as a foreign terrorist organization. Since 1997, Hamas has launched tens of thousands of rockets from the Gaza Strip into Israel.

Khaled Mashal of Hamas said the reconciliation of the two organizations, Fatah and Hamas, will consolidate the resistance. Not bring about peace, but consolidate the resistance.

We can't afford and cannot fund a power-sharing Palestinian government that includes Hamas because they are a foreign trade organization.

I would bring to the attention of the floor, Mr. Chairman, the Palestinian Anti-Terrorism Act of 2006, which bans funding to a government that includes Hamas until they meet three different conditions.

One is that they recognize Israel.

Two is that they renounce violence.

And three is that they accept previous Israeli-Palestinian agreements.

They have done none of those three things and, therefore, can't qualify for this funding. So we cannot fund a power-sharing Palestinian government that includes Hamas because they are a foreign trade organization, because they do not recognize the Jewish state, they do not recognize their right to exist.

But prior to June 2, 2014, the U.S. has never recognized a government that includes Hamas, and so that is why I bring this amendment.

And I would point out that the administration has been isolating Israel in a number of ways. Secretary Kerry, in April of this year, compared Israel to an apartheid state. I have been there a number of times and I have not seen that. I don't recognize that, and I don't think it is true. I think Israel would reject that, and I would encourage them to do so.

But in May of 2011, President Obama said that Israel should return to its 1967 borders. That would be indefensible for Israel to do that.

So we need to stick with the existing statute, the 2006 Palestinian Anti-Terrorism Act. And this amendment cuts off funding to that military supply and support.

Mr. Chairman, I urge adoption of my amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Iowa (Mr. KING).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. GRAYSON

Mr. GRAYSON. Mr. Chairman, I have an amendment at the desk, Grayson Amendment 5.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to detain, without conviction, any person for more than 15 years at United States Naval Station, Guantanamo Bay, Cuba.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Florida and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Florida.

Mr. GRAYSON. Mr. Chairman, the amendment at the desk is simple. It reads as you just read it.

As you know, Guantanamo was opened for business, so to speak, in January of 2002. It is now June of 2014.

My amendment seems to give some kind of clue as to how long we, a free people who respect freedom, are willing to incarcerate and imprison people who have been accused of no crime, have faced no judge, no jury, and have never been subject to the American system of justice.

My amendment has no immediate effect during this fiscal year. As it says, it is limited to persons who have served for 15 years or more at Guantanamo Bay. The facility itself is only 12 years old.

What this amendment does do is ensure that no funds will be made available by this bill that are carried over to future fiscal years and are then used to imprison anyone for 15 years or longer if they haven't been accused, much less convicted of any crime.

I would hope that we, as a free people, would understand that principle and agree that this is reasonable.

Nobody, nobody, foreign or American, should be subject to imprisonment for more than 15 years without ever even facing his accusers, much less being convicted of a crime. That is particularly true under the auspices of the U.S. Government because we are a people of laws, not a people of people.

This amendment is silent as to whether detainees could be convicted under an article III court, a military tribunal, a commission, or some other form of court with the authority to render any judgment.

It simply says that a person must be convicted of a crime or must be released from Guantanamo if they have served 15 years, 15 years, Mr. Chairman, of detention.

We have speedy trial rules in this country that guarantee the right to face your accusers within 6 months. These prisoners, both the innocent ones and the guilty ones, have been incarcerated without hearing any charges against them now for more than a decade.

I would urge my colleagues to support this commonsense amendment and recognize the dignity of all human beings, whether or not they have the privilege to be American citizens.

In the year 1209, in a French city called Beziers, a monk oversaw the Albigensian crusade. The crusaders were brought into that city to deal with the heretics, the Albigensians, who lived in that French town. Arnaud Amelric, a monk, was asked: What should we do with these people, these Christians who are like us who don't believe exactly what we believe?

He said: Kill them all and let God sort it out.

That has stood for many years as a signal that we must expect more from civilized people than that. We are holding these people in that prison, all of them, the innocent and the guilty apparently, under current rules, forever and ever and ever.

What is worse, killing them all and letting God sort it out, or holding them forever and not letting them ever meet their God but remain in prison for their entire lives?

I submit to you that we Americans are better than this. There has to be some kind of limitation.

This amendment will not force the release of anyone imminently, but will be a signal to all mankind that we, the American people, we retain our dignity and our humanity.

Mr. Chairman, I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Mr. Chairman, I strongly oppose the gentleman's amendment.

Our Nation has invested millions of dollars in building state-of-the-art, humane, safe, and I may say, air-conditioned facilities to detain and prosecute the terrorist detainees at Guantanamo.

In order to close that facility, we need to know what the President intends to do with those terrorist detainees who are too dangerous to release but could not be tried.

They had an opportunity to prosecute. What has been going on for the last 6 or 7 years?

How will he ensure that the terrorists transferred overseas don't return to the fight?

No way, apparently, he can reassure us of that because plenty have, and they have killed a lot of our soldiers in the process.

And what will he do with terrorists we capture in the future, like the one we captured the other day in Libya?

Well, we know what he does. He brings them back to this country, and they are prosecuted as common criminals, not as enemy combatants.

He hasn't answered those questions, so our committee is just as adamant as the authorizing committee in opposition to this amendment. I strongly oppose this amendment, and urge my colleagues to do so.

Mr. Chairman, I reserve the balance of my time.

□ 2130

Mr. GRAYSON. I would respectfully submit that, on the gentleman's logic, there is no longer any distinction between the innocent and the guilty.

Those who are at Guantanamo Bay undoubtedly contain both innocent and guilty, but those categories, under the gentleman's logic, do not even apply to them any longer. They are simply captives forever and ever, going untried until they themselves decide to end their life, and we permit it. That is a fundamentally undignified view of the human conditions.

Whatever these people may be, American or not American, they are not just innocent until proven guilty, but on the gentleman's logic, they are not just guilty until proven innocent. They are guilty, guilty, guilty—no matter what.

That is something that is fundamentally unfair to them and to us and has cast an aspersion and a blotch on the American reputation throughout the world. That is why I call on this to end.

I am not saying that these people need to be released. I am saying that they need to be tried. Let's get to the bottom of it and determine if they are guilty or innocent. For God's sake, let's stop punishing the innocent.

I reserve the balance of my time.

Mr. FRELINGHUYSEN. Let's remember the innocent people who were killed on September 11, 2001. How about justice for them?

I yield back the balance of my time.

Mr. GRAYSON. Well, of course, nothing that we do here today is likely to bring any of those victims back; but as President Lincoln once said, It is for we, the living—we, the living, that carry forth the principles of justice.

I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Florida (Mr. GRAYSON).

The amendment was rejected.

AMENDMENT OFFERED BY MR. MASSIE

Mr. MASSIE. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following new section:

SEC. ____. (a) Except as provided in subsection (b), none of the funds made available by this Act may be used by an officer or employee of the United States to query a collection of foreign intelligence information acquired under section 702 of the Foreign Intelligence Surveillance Act of 1978 (50 U.S.C. 1881a) using a United States person identifier.

(b) Subsection (a) shall not apply to queries for foreign intelligence information authorized under section 105, 304, 703, 704, or 705 of the Foreign Intelligence Surveillance Act of 1978 (50 U.S.C. 1805; 1842; 1881b; 1881c; 1881d), or title 18, United States Code, regardless of under what Foreign Intelligence Surveillance Act authority it was collected.

(c) Except as provided for in subsection (d), none of the funds made available by this Act may be used by the National Security Agency or the Central Intelligence Agency to mandate or request that a person (as defined in section 1801(m) of title 50, United States Code) alter its product or service to permit the electronic surveillance (as defined in section 1801(f) of title 50, United States Code) of any user of said product or service for said agencies.

(d) Subsection (c) shall not apply with respect to mandates or requests authorized under the Communications Assistance for Law Enforcement Act (47 U.S.C. 1001 et seq.).

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Kentucky and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Kentucky.

Mr. MASSIE. Mr. Chairman, the American people are sick of being spied on. Our Founding Fathers wrote an important provision into the Bill of Rights—the Fourth Amendment—and that requires probable cause and a warrant before the government and government agents can snoop on any American.

During the debate on the USA FREEDOM Act, we knew that more work was needed to ensure Americans' privacy rights are protected. That is why our bipartisan group has joined together to shut surveillance backdoors that do not meet the expectations of our constituents or the standards required by the Constitution.

At this time, I yield 1½ minutes to my colleague from California (Ms. LOFGREN).

Ms. LOFGREN. Mr. Chairman, I think it is important to know that the Director of National Intelligence has confirmed publicly that the government searches vast amounts of data, including the content of emails and telephone calls, without individualized suspicion or probable cause when it comes to U.S. persons.

Last week, the director of the FBI testified under oath, before the Judiciary Committee, that this information is used for prosecution and without a warrant.

This amendment is simple. It allows us to get the bad guys, but it also says use probable cause and the Fourth Amendment. It also closes a backdoor to technology holes.

The broad support for this, I think, shows why it is important for Mr. SENSENBRENNER of Wisconsin; myself; Mr. CONYERS of Michigan; Mr. POE of Texas; Ms. GABBARD; Mr. JORDAN of Ohio; Mr. O'ROURKE; Mr. AMASH; of course, Mr. MASSIE; Mr. HOLT; Mr. NADLER; Mr. PETRI; Ms. DELBENE; Mr. FARENTHOLD; Mr. SANFORD; and Mr. BUTTERFIELD—this spans all over this House of Representatives, from right to left, with Members saying: yes, we need to protect our country, but we also need to honor our Constitution and especially the Fourth Amendment.

We started this Congress by reading the Constitution of the United States aloud in this Chamber. Let's finish this bill by making sure that we honor that Constitution by adopting this amendment.

Mr. MASSIE. Mr. Chair, I will submit for the RECORD the letter from the Director of National Intelligence that my colleague from California referred to.

DIRECTOR OF NATIONAL INTELLIGENCE,
Washington, DC, Mar. 28, 2014.

Hon. Ron Wyden,
U.S. Senate,
Washington, DC.

DEAR SENATOR WYDEN: During the January 29, 2014, Worldwide Threat hearing, you cited declassified court documents from 2011 indicating that NSA sought and obtained the authority to query information collected under Section 702 of the Foreign Intelligence and Surveillance Act (FISA), using U.S. person identifiers, and asked whether any such queries had been conducted for the communications of specific Americans.

As reflected in the August 2013 Semiannual Assessment of Compliance with Procedures and Guidelines Issued Pursuant to Section 702, which we declassified and released on August 21. 2013, there have been queries, using U.S. person identifiers, of communications lawfully acquired to obtain foreign intelligence by targeting non U.S. persons reasonably believed to be located outside the U.S. pursuant to Section 702 of FISA. These queries were performed pursuant to minimization procedures approved by the FISA Court as consistent with the statute and the Fourth Amendment. As you know, when Congress reauthorized Section 702, the proposal to restrict such queries was specifically raised and ultimately not adopted.

For further assistance, please do not hesitate to contact Deirdre M. Walsh in the Office of Legislative Affairs, at (703) 275–2474.

Sincerely,

JAMES R. CLAPPER.

Mr. MASSIE. At this point, I reserve the balance of my time.

Mr. FRELINGHUYSEN. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from New Jersey is recognized for 5 minutes.

Mr. FRELINGHUYSEN. Mr. Chairman, I strongly oppose the gentleman's amendment. This is our Appropriations bill. There is nothing in this amendment about funding. You won't see one dollar sign or numeral. The goal was to change policy—that is why they are here—and the application of the law without the oversight of the authorizing committees. The authorizers ought to be dealing with this issue.

It is my pleasure to yield such time as he may wish to consume to the distinguished gentleman from Virginia (Mr. GOODLATTE), the chairman of the Judiciary, to respond to this amendment.

Mr. GOODLATTE. Mr. Chairman, last month, the House passed H.R. 3361, the USA FREEDOM Act, with overwhelming bipartisan support. This amendment undoes the carefully crafted reforms that this body passed, with overwhelming support.

A similar amendment regarding section 702 was offered and rejected by the House Judiciary Committee during its markup of H.R. 3361.

The bipartisan legislation passed by the House last month was closely negotiated on a bipartisan basis with the House Intelligence Committee, House leadership, and the intelligence community—to create a product that provides real, meaningful reforms to intelligence-gathering programs, while ensuring that the operational capabilities of the intelligence community are protected.

H.R. 3361 explicitly codifies existing minimization procedures for section 702 of the FISA Amendments Act that requires the intelligence community to minimize the collection and prohibit the retention and dissemination of wholly domestic communications.

H.R. 3361 also prohibits the government from using communications to or from a United States person or a person who appears to be located in the United States, except where the communication relates to a target under section 702 or to protect against an immediate threat to human life.

The intelligence community is strictly prohibited from using section 702 of the FISA Amendments Acts to target a U.S. person. If a U.S. person is the target of intelligence gathering under FISA, this must, at all times, be carried out pursuant to an individualized court order based upon probable cause.

Mr. FRELINGHUYSEN. Mr. Chairman, I yield 1 minute to the gentleman from Maryland (Mr. RUPPERSBERGER), the ranking member of the Intelligence Committee.

Mr. RUPPERSBERGER. Mr. Chairman, I urge my colleagues to vote against this amendment.

The USA FREEDOM Act that reformed the Foreign Intelligence Surveillance Act was the product of nearly a year of carefully considered negotiation and debate. It passed the House last month with an overwhelming bipartisan majority of 303 votes, but now, we have an amendment to an appropriations bill that makes major legislative changes to FISA with only 10 minutes of debate, and it makes our country less safe.

It would prohibit the urgent search of lawfully-collected information to thwart a bomb plot against a synagogue in Los Angeles, a church in Maryland, or the New York Stock Exchange.

It has no emergency exceptions, and it basically says that what you can do to stop a criminal in this country, you can't do to stop a terrorist. That is wrong. We cannot allow this to happen.

We will continue to work on FISA and our other national security laws to maximize privacy and civil liberties, especially for U.S. persons, but we must do so carefully and deliberately. We must make sure to also keep our country and our allies safe from terrorist attacks.

Ultimately, while I applaud these Members for continuing to look for ways to reform our intelligence laws, we shouldn't be doing this on an appropriations bill with only 10 minutes of debate.

Mr. MASSIE. Mr. Chairman, the chairman of the Judiciary Committee is correct. This was in the original FREEDOM Act, and it was stripped out in his committee. That is why many of the Members who originally sponsored the FREEDOM Act did not, in fact, vote for the final version, and I would argue that it was not legislated.

The final version of the FREEDOM Act was done behind closed doors, and when it came to this floor, we would have loved to have offered amendments, but the rules were written such that we could not amend it.

Legislators from 435 districts had no say in the final bill, and that is why we are here tonight with this amendment, to reinsert this provision which over 150 Members of this body sponsored.

At this point, I would like to yield 30 seconds to the gentlewoman from Hawaii (Ms. GABBARD).

Ms. GABBARD. Mr. Chairman, our number one priority is keeping the American people safe. We do that by focusing our resources on those who actually pose a threat to our safety, while upholding the freedoms and civil liberties of the American people, not by continuing this dragnet spying on millions of Americans.

There is no evidence to date that these programs have made our country more secure. Not a single taxpayer dollar should be used to fund a program that spies on innocent Americans, violating the principles of liberty and freedom that so many have fought and given their lives for.

Mr. MASSIE. Mr. Chairman, I yield 30 seconds to the gentleman from Texas (Mr. POE).

Mr. POE of Texas. Mr. Chairman, the NSA has shown they will always interpret the law to the extent that allows them to seize the information. That is why the law has to be much more clear to the NSA. We all must remember that the NSA was violating the PATRIOT Act, as written.

This amendment does something that is very concrete. It tells the NSA: Get a warrant. Get a warrant through the front door. You get a warrant through the backdoor. You can't spy on Americans unless you get a warrant. That is what this amendment does, and I support this amendment.

Mr. FRELINGHUYSEN. I reserve the balance of my time.

Mr. MASSIE. Mr. Chairman, my friend from Texas is correct. The American people can be kept safe, and we can follow the Constitution. We don't have to disregard it, and that is what this amendment would allow us to do, to keep the American people safe while protecting their civil liberties.

There are two provisions here, and they both close backdoors. One backdoor currently allows, without probable cause or a warrant, for the NSA to query a database of American persons' information. This is wrong. They should have a warrant.

The other part of this amendment would prevent money from being spent to fund companies to put backdoors into products. When the government causes these companies to intentionally make defects in their products, they make Americans less safe. They make Americans' data less safe, and they compromise the quality of American goods overseas.

Ultimately, this is about the Constitution, and if you believe in the Constitution, if you believe that it is still valid, if you think we can honor the Fourth Amendment and that we can still keep people safe, then I urge you to vote for this amendment.

I yield back the balance of my time.

□ 2145

Mr. FRELINGHUYSEN. I yield 1½ minutes to the gentleman from Virginia (Mr. GOODLATTE).

Mr. GOODLATTE. Mr. Chairman, the bill passed by this House honors the Fourth Amendment and protects the rights of American citizens. At the same time, Islamic radical terrorists are on the march in Iraq, and the leader has publicly threatened to attack America, Syria has become a vortex of jihadists from across the globe, and the Director of National Intelligence and the Secretary of Homeland Security have warned of the growing threat these jihadists pose to our own homeland. State control has collapsed in Libya, and rival gangs of radical terrorists have established safe havens that rival those in Afghanistan prior to 2001.

Meanwhile, in Afghanistan, the Taliban, Haqqani Network, and al Qaeda continue to fight. Moreover, the administration has released the Taliban Five from Guantanamo, emboldening the terrorists. The terrorist danger is grave and growing. The terrorist threat is not contained overseas. The U.S. homeland remains a prime aspiration and target.

This amendment would create a blind spot for the intelligence community tracking terrorists with direct connections to the U.S. homeland. This amendment would impose greater restrictions on the intelligence community's ability to protect national security than constitutionally required and create an impediment to the government's ability to locate threat information already in its possession. Such an impediment would put American lives at risk of another terrorist attack

I urge my colleagues to reject this amendment and stand by the legislation passed. It is also being considered in the Senate and there will be further negotiations, but this—this—contradicts the intent of the House and endangers America's national security.

Mr. FRELINGHUYSEN. I yield back the balance of my time.

Mr. HOLT. Mr. Chair, this amendment answers questions millions of Americans have asked: Will we stop the government's unconstitutional searches of Americans' stored communications? Will we prohibit the government from deliberately sabotaging the security of the internet and America's technology products?

This amendment would do both while still giving the government all the authority it needs to collect foreign intelligence on real threats. It is a first step towards reversing the current government paradigm of treating our people as suspects first, and citizens second. I urge my colleagues to vote yes on this bipartisan amendment.

It has been over a year now since the nation learned of the scope of the National Security Agency's vast surveillance programs targeting global communications, and thus the communications of every American. These programs have been executed in the absence of true, probing Congressional oversight, and they have been repeatedly rubber-stamped by a secret court that has too often acted as an enabler of this domestic spying rather than a check on it.

Earlier this spring, the House passed a bill—the USA Freedom Act—that if enacted into law would have the effect of essentially enshrining these unconstitutional programs into law. While I hope the Senate will either reject or substantially improve that legislation, there is no guarantee that the USA Freedom Act or any other stand-alone NSA reform legislation will pass the Congress this year. That is why I and over a dozen of my colleagues, on a bipartisan basis, have brought this amendment to the House floor tonight. I should also note that this amendment is supported by dozens of groups from across the political spectrum, as well as some of America's leading technology companies, including Google.

This amendment answers questions millions of Americans have asked: will we stop the government's unconstitutional searches of Americans' stored communications? Will we prohibit the government from deliberately sabotaging the security of the internet and America's technology products? This amendment would do both while still giving the government all the authority it needs to collect foreign intelligence on real threats.

The first part of this amendment would prohibit the government from conducting warrantless searches of the communications of Americans collected under Section 702 of the Foreign Intelligence Surveillance Act. One of the predictions I and others made in 2008 when this provision became law was that it would be misused for the ''reverse targeting'' of Americans' communications while collecting against foreigners. As we now know, that is exactly what happened, and those communications—billions of phone calls, emails, text messages and the like—now sit on National Security Agency servers, available for search without a warrant. This amendment would bar the NSA from using any funds in this act to conduct any search of stored communications of Americans collected under Sec. 702 of FISA, thus protecting the privacy and Constitutional rights of all Americans.

The second part of this amendment would prohibit the government from forcing American technology companies to build in ''back doors'' to their products that would compromise the encryption and privacy safeguards built into them. Early this year, published reports revealed that RSA, which provides the SecureID remote login devices used by House Members and staff, had, at NSA's insistence, built in such ''back doors'' to some of its other products that compromised the privacy and encryption features of the devices in question. This amendment would prohibit that practice, thus helping to restore public confidence in the security and integrity of American produced high technology products.

This amendment is a first step towards reversing the current government paradigm of treating our people as suspects first, and citizens second. I urge my colleagues to vote yes on this bipartisan amendment.

Mr. CONYERS. Mr. Chair, I want to thank Rep. JIM SENSENBRENNER of Wisconsin, Rep. ZOE LOFGREN of California, and the other sponsors of this amendment for their continued leadership on the effort to roll back dragnet surveillance of United States citizens.

Last month, a broad, bipartisan majority passed H.R. 3361, the USA FREEDOM Act. That bill rightly ends domestic bulk collection.

But, as I said then, ending bulk collection is only part of the work that must be done to fully reform government surveillance.

This amendment closes the ''backdoor surveillance'' loophole—through which the government queries U.S. person information without a warrant.

This amendment also prohibits the government from mandating the creation of vulnerabilities in commercial products and services for later exploitation.

Together, these changes end two demonstrated threats to our privacy and civil liberties—without any measurable loss to our national security.

I urge my colleagues to support this amendment.

Mr. NADLER. Mr. Chair, I am proud to be a leading co-sponsor of the Sensenbrenner/Lofgren/Massie amendment and I urge my colleagues to support it.

The NSA must stop conducting illegal 'backdoor searches' into the communications of U.S. citizens. Congress must adopt the Sensenbrenner/Lofgren/Massie amendment and make sure that this loophole is closed in the law. For too long, the NSA has misused authority granted under section 702 of the FISA Amendments Act, which was meant only to authorize spying on foreigners. However, the NSA has misused this authority to search emails, pictures, videos, and other internet

traffic of innocent Americans. This practice is clearly unconstitutional and violates the Fourth Amendment, which protects against unreasonable search and seizure, and normally requires a court-issued warrant. Clearly, this is not how Congress intended the law to be applied.

After the passage of the USA Freedom Act, this amendment is the logical next step to prevent improper surveillance. I will continue to work to improve our nation's privacy laws and to ensure that this Administration, and all those that follow it, respect the constitutional rights of all Americans.

As I said at the time, the USA Freedom Act certainly did not give us everything we wanted or needed. It was far from perfect, but it was an important step forward. We must not leave in place a framework that leads to the dragnet surveillance of our citizens.

During the last several months, I have worked with my colleagues on the House Judiciary Committee to pass the USA Freedom Act. While that bill contains some significant reforms, such as ending NSA's bulk collection of metadata from Americans, more reforms are still needed. And this amendment is an important step in the right direction.

Mr. SENSENBRENNER. Mr. Chair, I rise today to support this amendment to the Fiscal Year 2015 Department of Defense Appropriations Act. I would like to thank Representatives LOFGREN and MASSIE for their work on this issue.

To my colleagues who supported the USA FREEDOM Act, this amendment further defends the constitutional rights we voted to protect. To cosponsors who didn't believe the FREEDOM Act went far enough, this amendment reclaims an important protection stripped from the original bill.

I believe the amended USA FREEDOM Act is an important step toward striking the proper balance between privacy and security, and I look forward to seeing it signed into law. But as I said at the time of that vote, the FREEDOM Act was a first step—not a final step—in our efforts for reform.

The Foreign Intelligence Surveillance Act prohibits the government from targeting U.S. communications. The Administration believes, however, that as long as it incidentally or inadvertently collects Americans' communications, it can read our emails and listen to our phone calls without any judicial process at all.

The Administration has admitted it violates our rights in this way, but it refuses to say how often or to what extent.

The Obama Administration knows that FISA does not authorize collection of wholly domestic communications. It also knows that the content of our communications are, by and large, protected by the Fourth Amendment. But the Administration nevertheless believes that as long as those communications are inadvertently collected, it has the right to disregard the law and the Constitution.

This amendment says that the Fourth Amendment means what it says and there should be no shortcuts around it. For those who believe the sky will fall and U.S. security will be undermined, it has only been since 2011 that the Foreign Intelligence Surveillance Court opened the backdoor and allowed these illegal searches. This amendment closes that door.

I urge my colleagues to support this amendment.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Kentucky (Mr. MASSIE).

The question was taken; and the Acting Chair announced that the noes appeared to have it.

Ms. LOFGREN. Mr. Chairman, I demand a recorded vote.

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, further proceedings on the amendment offered by the gentleman from Kentucky will be postponed.

AMENDMENT OFFERED BY MR. BARROW OF GEORGIA

Mr. BARROW of Georgia. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title), insert the following:

SEC. ___. None of the funds made available by this Act may be used to—

(1) disestablish, or prepare to disestablish, a Senior Reserve Officers' Training Corps program in accordance with Department of Defense Instruction Number 1215.08, dated June 26, 2006; or

(2) close, downgrade from host to extension center, or place on probation a Senior Reserve Officers' Training Corps program in accordance with the information paper of the Department of the Army titled ''Army Senior Reserve Officers' Training Corps (SROTC) Program Review and Criteria'', dated January 27, 2014.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Georgia and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Georgia.

Mr. BARROW of Georgia. Mr. Chairman, I yield myself such time as I may consume.

Mr. Chairman, first, I want to thank the chairman and the ranking member for their work on what is undoubtedly the most important bill we pass on an annual basis.

I rise in support of the bipartisan Barrow-Benishek amendment to H.R. 4870, the Department of Defense Appropriations Act for fiscal year 2015. This is a straightforward amendment that provides the certainty that our Army Reserve Officers' Training Corps needs to select, educate, train, and commission college students to be officers and leaders of character.

In the coming days, the Army is expected to initiate the closure of some ROTC programs. On that list could be any of the 275 ROTC host programs located in every State in the Union. Unfortunately, for thousands of cadets in these programs, the Army's timeline for closure is too short. According to the plans, the Army would close ROTC programs as early as next June. That is simply not fair for the students in these programs or their host universities.

This amendment would simply delay closure of these ROTC programs by 1 year. We would be doing everything we can to make sure that our ROTC programs and our cadets succeed. They are the next generation of Army leadership, and 1 year of delay would give all of us the certainty that we need to do so.

At this time, I would like to yield such time as he may consume to the gentleman from Michigan (Mr. BENISHEK), my partner in this measure.

Mr. BENISHEK. Mr. Chairman, I rise in support of the amendment I co-introduced with my friend, Mr. BARROW, to prevent the closure of Reserve Officers' Training Corps programs across this country.

ROTC programs not only benefit the Army, they strengthen communities and provide opportunities to promising young students. However, in October of this past year, the Army released a list of 13 ROTC programs slated for closure following the 2014–2015 school year.

Following advocacy from Members, including Chairman ROGERS, we were able instead to get the Army to institute a new evaluation system for ROTC programs. This amendment simply holds the Army to their promise of giving these programs enough time to institute changes.

One of these valuable programs is located at Northern Michigan University. Over the 45-year history of the program, Northern Michigan has seen 400 students graduate and go on to military service.

A closure of the NMU ROTC program next school year would prove especially unfair to the cadets currently in the program. These young men and women have worked hard in order to be accepted and maintain their spot. Let's give them a chance to succeed and serve the country they love. Support this amendment. Please vote for it.

Mr. BARROW of Georgia. Mr. Chairman, for all the reasons given, I urge a ''yes'' vote on the bipartisan Barrow-Benishek amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Georgia (Mr. BARROW).

The amendment was agreed to.

AMENDMENT OFFERED BY MR. CONAWAY

Mr. CONAWAY. Mr. Chairman, I have an amendment at the desk.

The Acting CHAIR. The Clerk will report the amendment.

The Clerk read as follows:

At the end of the bill (before the short title) insert the following:

SEC. ___. None of the funds appropriated or otherwise made available in this Act may be used to enter into a contract for the planning, design, refurbishing, or construction of a biofuels refinery any other facility or infrastructure used to refine biofuels unless such planning, design, refurbishing, or construction is specifically authorized by law.

The Acting CHAIR. Pursuant to House Resolution 628, the gentleman from Texas and a Member opposed each will control 5 minutes.

The Chair recognizes the gentleman from Texas.

Mr. CONAWAY. This is a pretty straightforward amendment, Mr. Chairman, that would simply require

that any effort under the Defense Production Act to build a hundreds-of-millions-of-dollars refinery for biofuels could not happen until it was authorized by this body.

It is not allowed to stop this from happening. It simply means that the Department of Defense and the Department of Agriculture, who both are funding this misguided attempt, in my opinion, couldn't do that until they bring a business case to this body for consideration.

I would think my colleagues on the Appropriations Defense Subcommittee as well as the MilCon Subcommittee would be offended by this backdoor approach to spending hundreds of millions of dollars on a project of dubious value.

The Defense Production Act is a World War II, post-World War II vintage program supervised by the Financial Services Committee—not the Defense, not the Armed Services Committee or the Subcommittees on Appropriation—but the Financial Services Committee.

There is currently a refinery that is being proposed to be joint-funded by the Department of Agriculture and the Department of Defense to build a biofuels refinery. Neither of these agencies' core competencies is in this arena. They each have their own core competencies, and it has absolutely nothing to do with biofuels.

I would argue that the Department of Energy—if anybody—should be the one who authorizes this work, but they have got a dubious distinction, as well, with decisions such as Solyndra and others of making really poor decisions.

The other side will argue that this somehow protects the Department of Defense from price shocks on oil and gas that they have simply purchased. They have never brought us that business case. We have no clue what the break-even point on biofuels is against some equivalent cost for fossil-based fuels. Currently, they are spending somewhere between $16 and $27 a gallon for algae-based jet fuel versus the $3 to $4 a gallon commercially available.

These folks who are proponents of biofuels are not proponents of better alternative resources like coal to liquids. So I would urge my colleagues to vote ''yes'' on the amendment to require an authorization for the spending of some $300-plus million on a refinery that is, in my view, of dubious distinction.

I reserve the balance of my time.

Mr. VISCLOSKY. Mr. Chairman, I rise in opposition to the amendment.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. Mr. Chairman, I appreciate very much this is the third iteration of a very similar amendment, so my comments will also mirror those that I have made earlier in the debate.

The first thing I would make clear to the gentleman from Texas, though, is I am not going to suggest in any way, shape, or form that his amendment is offered to protect the oil and gas industry of his State. As I mentioned earlier this evening, the largest inland oil refinery in the United States of America is in the First Congressional District of Indiana, and I am very proud of that. I tell my constituents that we need a matrix of fuels, and while we work from using carbon almost exclusively, we are also a coal State in Indiana. We are not to foreclose our options, and particularly for the Department of Defense.

Given the fact that the Department is the largest consumer of energy on planet Earth as far as a single entity, I do think we ought to also allow them to examine what is the best matrix and mix of fuels for the particular missions and locations that they find themselves in. For these reasons, I am opposed to the gentleman's amendment.

I yield back the balance of my time.

Mr. CONAWAY. Mr. Chairman, I would not take offense—I should—but I won't take offense that the gentleman suggests that somehow this amendment has anything to do whatsoever with respect to oil and gas that we produce in Texas. When you don't like the merits of your own argument, you go ahead and attack the folks on the other side, and I understand that technique.

The truth of the matter is the Department of Defense can, in fact, make judgments for themselves once a product is available to them at commercial products. This just prevents them from going ahead and trying to build something, build up a market and build a fuel that no one else wants. It is only available here in the United States. It would not be available anywhere else in the world to fuel our airplanes, or our ships, or our tanks and other things.

So, this is a misguided attempt driven by the White House on this green initiative that is spending millions and millions of dollars of taxpayer money, and it is a waste every time they do that.

I would argue that the better argument is to say ''no'' to this, allow the Department of Defense to spend their dollars, as has been said previously, on guns, tanks, ships, and salaries for our soldiers. This is a wrong-headed tip. It ought to be authorized by the HASC and by the Senate equivalent, and these two subcommittees on Appropriations ought to be offended by this backdoor approach at spending hundreds of millions of dollars on a program that has no oversight.

Mr. Chairman, I would urge my colleagues to vote ''yes'' on the amendment, and I yield back the balance of my time.

The Acting CHAIR. The question is on the amendment offered by the gentleman from Texas (Mr. CONAWAY).

The amendment was agreed to.

Mr. VISCLOSKY. Mr. Chairman, I move to strike the last word.

The Acting CHAIR. The gentleman from Indiana is recognized for 5 minutes.

Mr. VISCLOSKY. I just want to correct the statement that my colleague just made. At the outset of my remarks, I was careful to note, because in the gentleman's original remarks he said that some would suggest he had offered his amendment to defend the oil and gas industry. I specifically said I know that is why he did not do that in the amendment and made the further point that the largest inland oil refinery in the United States of America is in my district, so I would in no way infer that. So I want the RECORD to be very clear that I am not impugning the motives of the gentleman who offered the amendment. I simply rose in disagreement with his amendment.

Mr. CONAWAY. Will the gentleman yield?

Mr. VISCLOSKY. I yield to the gentleman from Texas.

Mr. CONAWAY. I did misunderstand you. I thought you were saying I was disqualified from offering an amendment like this because I simply represent west Texas, which is the leading oil and gas producer in our country. So if I misunderstood you, I will accept that.

Mr. VISCLOSKY. I yield back the balance of my time.

ANNOUNCEMENT BY THE ACTING CHAIR

The Acting CHAIR. Pursuant to clause 6 of rule XVIII, proceedings will now resume on those amendments on which further proceedings were postponed, in the following order:

An amendment by Mrs. MILLER of Michigan.

Amendment No. 2 by Mr. COTTON of Arkansas.

An amendment by Mr. MORAN of Virginia.

Amendment No. 31 by Ms. LEE of California.

Amendment No. 33 by Ms. LEE of California.

An amendment by Mr. MASSIE of Kentucky.

An amendment by Mr. FORTENBERRY of Nebraska.

An amendment by Mr. GRAYSON of Florida.

Amendment No. 34 by Ms. LEE of California.

An amendment by Mr. ELLISON of Minnesota.

The Chair will reduce to 2 minutes the time for any electronic vote after the first vote in this series.

AMENDMENT OFFERED BY MRS. MILLER OF MICHIGAN

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from Michigan (Mrs. MILLER) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The vote was taken by electronic device, and there were—ayes 300, noes 114, not voting 17, as follows:

[Roll No. 322]

AYES—300

Amash
Amodei
Bachmann
Barber
Barletta
Barr
Barrow (GA)
Barton
Beatty
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (NY)
Bishop (UT)
Black
Blackburn
Bonamici
Boustany
Brady (PA)
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Broun (GA)
Brown (FL)
Brownley (CA)
Buchanan
Burgess
Bustos
Butterfield
Camp
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Cicilline
Clark (MA)
Cleaver
Clyburn
Coble
Coffman
Cohen
Collins (GA)
Conyers
Cook
Costa
Cotton
Courtney
Crawford
Crenshaw
Crowley
Cuellar
Cummings
Daines
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DeSantis
Deutch
Dingell
Doyle
Duckworth
Duffy
Duncan (SC)
Ellison
Ellmers
Engel
Enyart
Esty
Farenthold
Fattah
Fincher
Fitzpatrick
Foster
Foxx
Frankel (FL)
Franks (AZ)
Gabbard
Gallego
Garamendi
Garcia
Gardner
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Graves (GA)
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffin (AR)
Grijalva
Grimm
Guthrie
Gutiérrez
Hahn
Hall
Hanabusa
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Heck (WA)
Himes
Hinojosa
Holding
Holt
Honda
Horsford
Hoyer
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Israel
Jackson Lee
Jeffries
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, E. B.
Jones
Jordan
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kuster
Labrador
LaMalfa
Lamborn
Langevin
Larson (CT)
Latta
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lowenthal
Lowey
Lucas
Luetkemeyer
Luján, Ben Ray (NM)
Lummis
Lynch
Maffei
Maloney, Sean
Marino
Massie
Matheson
Matsui
McAllister
McCarthy (CA)
McCaul
McClintock
McGovern
McHenry
McIntyre
McMorris Rodgers
McNerney
Meadows
Meeks
Messer
Mica
Michaud
Miller (MI)
Miller, George
Mullin
Murphy (FL)
Murphy (PA)
Nadler
Neal
Negrete McLeod
Nolan
Nugent
Nunes
Olson
Palazzo
Pallone
Pascrell
Pastor (AZ)
Payne
Pearce
Pelosi
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pingree (ME)
Pittenger
Pitts
Pocan
Poe (TX)
Pompeo
Posey
Price (GA)
Price (NC)
Rahall
Rice (SC)
Roe (TN)
Rogers (AL)
Rogers (MI)
Rohrabacher
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Roybal-Allard
Ruiz
Runyan
Ruppersberger
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schock
Schrader
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Serrano
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Shuster
Simpson
Sinema
Sires
Smith (MO)
Smith (NJ)
Smith (TX)
Southerland
Speier
Stewart
Stivers
Stockman
Stutzman
Swalwell (CA)
Terry
Thompson (CA)
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Tonko
Turner
Upton
Vargas
Veasey
Vela
Wagner
Walberg
Wasserman Schultz
Waters
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wolf
Woodall
Yoho
Young (AK)

NOES—114

Aderholt
Bachus
Bass
Becerra
Blumenauer
Brooks (IN)
Bucshon
Byrne
Calvert
Campbell
Cantor
Capito
Carter
Cassidy
Chu
Clarke (NY)
Clay
Cole
Collins (NY)
Conaway
Connolly
Cooper
Cramer
Culberson
DelBene
Denham
Dent
DesJarlais
Diaz-Balart
Doggett
Duncan (TN)
Edwards
Eshoo
Farr
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Frelinghuysen
Garrett
Gowdy
Granger
Griffith (VA)
Hanna
Heck (NV)
Hensarling
Herrera Beutler
Higgins
Huffman
Hunter
Hurt
Issa
Johnson, Sam
Jolly
Joyce
Kaptur
Kline
Lance
Larsen (WA)
Latham
Lee (CA)
Lofgren
Long
Maloney, Carolyn
Marchant
McCollum
McDermott
McKeon
McKinley
Meehan
Meng
Miller (FL)
Miller, Gary
Moore
Moran
Napolitano
Neugebauer
Noem
O'Rourke
Owens
Paulsen
Quigley
Reed
Reichert
Renacci
Ribble
Rigell
Roby
Rogers (KY)
Rokita
Royce
Sanford
Schwartz
Sensenbrenner
Slaughter
Smith (NE)
Smith (WA)
Takano
Titus
Tsongas
Valadao
Van Hollen
Velázquez
Visclosky
Walden
Walorski
Waxman
Welch
Wittman
Womack
Yarmuth
Yoder
Young (IN)

NOT VOTING—17

Bishop (GA)
Capuano
Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Scalise
Thompson (MS)
Walz

□ 1227

Messrs. WALDEN, ISSA, ADERHOLT, Mrs. CAROLYN B. MALONEY of New York, Mrs. NAPOLITANO, and Ms. CLARKE of New York changed their vote from ''aye'' to ''no.''

Messrs. PITTS, CARSON, JOHNSON of Ohio, CHAFFETZ, and RODNEY DAVIS of Illinois changed their vote from ''no'' to ''aye.''

So the amendment was agreed to.

The result of the vote was announced as above recorded.

AMENDMENT NO. 2 OFFERED BY MR. COTTON

The Acting CHAIR (Ms. FOXX). The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Arkansas (Mr. COTTON) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 230, noes 184, not voting 17, as follows:

[Roll No. 323]

AYES—230

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Bucshon
Burgess
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Danny
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Grimm
Guthrie
Hall
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Latham
Latta
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Matheson
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Palazzo
Paulsen
Pearce
Perry
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Sanchez, Loretta
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOES—184

Amash
Bass
Beatty
Becerra
Bentivolio
Bera (CA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Broun (GA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn

Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Davis (CA)
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Gabbard
Gallego
Garamendi
Garcia
Gibson
Grayson
Green, Al
Griffith (VA)
Grijalva
Gutiérrez
Hahn
Hanabusa
Hanna
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Labrador
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McCollum
McDermott
McGovern
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Roybal-Allard
Ruppersberger
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (PA)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—17

Bishop (GA)
Capuano
Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Scalise
Thompson (MS)
Walz

□ 2231

So the amendment was agreed to.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MR. MORAN

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Virginia (Mr. MORAN) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 163, noes 249, not voting 19, as follows:

[Roll No. 324]

AYES—163

Amash
Bass
Beatty
Becerra
Bera (CA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Butterfield
Capps
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Gabbard
Garamendi
Gibson
Grayson
Green, Al
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maloney, Carolyn
Maloney, Sean
Matsui
McCollum
McDermott
McGovern
Meeks
Michaud
Miller, George
Moore
Moran
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Pingree (ME)
Pocan
Price (NC)
Quigley
Roybal-Allard
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Velázquez
Visclosky
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth

NOES—249

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellison
Ellmers
Engel
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Latham
Latta
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Maffei
Marchant
Marino
Massie
Matheson
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (FL)
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Peters (MI)
Peterson
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Sanchez, Loretta
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shea-Porter
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vela
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—19

Bishop (GA)
Capuano
Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Meng
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Ruppersberger
Rush
Ryan (OH)
Scalise
Thompson (MS)
Walz

□ 2235

Mr. BARBER changed his vote from ''aye'' to ''no.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 31 OFFERED BY MS. LEE OF CALIFORNIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from California (Ms. LEE) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 165, noes 250, not voting 16, as follows:

[Roll No. 325]

AYES—165

Amash
Barber
Bass
Beatty
Becerra
Benishek
Bera (CA)
Blumenauer
Bonamici

Brady (PA)
Braley (IA)
Broun (GA)
Burgess
Capps
Cárdenas
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Coffman
Cohen
Conyers
Courtney
Crowley
Cummings
Daines
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duncan (TN)
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Garamendi
Garcia
Gibson
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Huffman
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kildee
Kilmer
Kind
Kuster
Labrador
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Maffei
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McClintock
McCollum
McDermott
McGovern
McNerney
Meng
Michaud
Miller, George
Moore
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Peters (CA)
Petri
Pingree (ME)
Pocan
Posey
Quigley
Rahall
Ribble
Rigell
Rohrabacher
Roybal-Allard
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Schweikert
Scott (VA)
Scott, David
Sensenbrenner
Serrano
Shea-Porter
Sinema
Sires
Slaughter
Smith (WA)
Speier
Stockman
Swalwell (CA)
Takano
Thompson (CA)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Veasey
Vela
Velázquez
Waters
Waxman
Welch
Wilson (FL)
Yarmuth
Yoho
Young (AK)

NOES—250

Aderholt
Amodei
Bachmann
Bachus
Barletta
Barr
Barrow (GA)
Barton
Bentivolio
Bilirakis
Bishop (NY)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Bustos
Butterfield
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carney
Carson (IN)
Carter
Cartwright
Cassidy
Chabot
Chaffetz
Clyburn
Coble
Cole
Collins (GA)
Collins (NY)
Conaway
Connolly
Cook
Cooper
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davis, Rodney
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duckworth
Duffy
Duncan (SC)
Ellmers
Engel
Enyart
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gabbard
Gallego
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Horsford
Hoyer
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
Kennedy
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Langevin
Latham
Latta
Lipinski
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Lynch
Marchant
Marino
Matheson
McAllister
McCarthy (CA)
McCaul
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Moran
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Owens
Palazzo
Paulsen
Pearce
Perlmutter
Perry
Peters (MI)
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Price (GA)
Price (NC)
Reed
Reichert
Renacci
Rice (SC)
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ruppersberger
Ryan (WI)
Salmon
Sanchez, Loretta
Scalise
Schock
Scott, Austin
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vargas
Visclosky
Wagner
Walberg
Walden
Walorski
Wasserman Schultz
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (IN)

NOT VOTING—16

Bishop (GA)
Capuano
Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Thompson (MS)
Walz

□ 2239

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 33 OFFERED BY MS. LEE OF CALIFORNIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from California (Ms. LEE) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 182, noes 231, not voting 18, as follows:

[Roll No. 326]

AYES—182

Amash
Bass
Beatty
Becerra
Benishek
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Broun (GA)
Burgess
Capps
Cárdenas
Carney
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Coffman
Cohen
Connolly
Conyers
Courtney
Crowley
Cummings
Daines
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duncan (TN)
Edwards
Ellison
Engel
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Gabbard
Garamendi
Gibson
Grayson
Green, Al
Green, Gene
Griffith (VA)
Grijalva
Gutiérrez
Hahn
Hanabusa
Hanna
Hastings (FL)
Heck (WA)
Herrera Beutler
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Huelskamp
Huffman
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kuster
Labrador
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Massie
Matsui
McClintock
McCollum
McDermott
McGovern
McMorris Rodgers
McNerney
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Paulsen
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Petri
Pingree (ME)
Pocan
Posey
Price (GA)
Price (NC)
Quigley
Rahall
Ribble
Rigell
Rohrabacher
Rooney
Roybal-Allard
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Schweikert
Scott (VA)
Scott, David
Sensenbrenner
Serrano
Shea-Porter
Sherman
Sires
Slaughter
Smith (WA)
Speier
Stockman
Swalwell (CA)
Takano
Thompson (CA)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Veasey
Vela
Velázquez
Visclosky
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Woodall
Yarmuth
Yoho

NOES—231

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Bentivolio
Bera (CA)
Bilirakis
Bishop (NY)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Bustos
Butterfield
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carson (IN)
Carter
Cartwright
Cassidy
Chabot
Chaffetz
Clyburn
Coble
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Davis (CA)
Davis, Rodney
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duckworth
Duffy
Duncan (SC)
Ellmers
Enyart
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Grimm
Guthrie
Hall
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Holding
Hoyer
Hudson
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Latham
Latta
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lummis
Maloney, Sean
Marchant
Marino
Matheson
McAllister
McCarthy (CA)
McCaul
McHenry

McIntyre
McKeon
McKinley
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Owens
Palazzo
Pearce
Perry
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Reed
Reichert
Renacci
Rice (SC)
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rokita
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ruppersberger
Ryan (WI)
Salmon
Sanchez, Loretta
Scalise
Schock
Scott, Austin
Sessions
Sewell (AL)
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Vargas
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Yoder
Young (AK)
Young (IN)

NOT VOTING—18

Bishop (GA)
Capuano
Fudge
Gohmert
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Stivers
Thompson (MS)
Walz

□ 2243

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MR. MASSIE

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Kentucky (Mr. MASSIE) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 293, noes 123, answered ''present'' 1, not voting 14, as follows:

[Roll No. 327]

AYES—293

Amash
Amodei
Barton
Bass
Becerra
Bentivolio
Bera (CA)
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Bridenstine
Brooks (AL)
Broun (GA)
Brown (FL)
Buchanan
Bucshon
Burgess
Butterfield
Byrne
Campbell
Capito
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Cassidy
Castor (FL)
Castro (TX)
Chabot
Chaffetz
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coffman
Cohen
Collins (GA)
Connolly
Conyers
Cook
Courtney
Cramer
Crowley
Cuellar
Culberson
Cummings
Daines
Davis (CA)
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
DeSantis
DesJarlais
Deutch
Dingell
Doggett
Doyle
Duffy
Duncan (SC)
Duncan (TN)
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Fortenberry
Foster
Foxx
Gabbard
Garamendi
Garcia
Gardner
Garrett
Gibbs
Gibson
Gohmert
Gosar
Gowdy
Graves (GA)
Grayson
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grijalva
Guthrie
Gutiérrez
Hahn
Hall
Hanabusa
Hanna
Harper
Harris
Hastings (FL)
Heck (WA)
Hensarling
Herrera Beutler
Higgins
Holt
Honda
Horsford
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jackson Lee
Jeffries
Jenkins
Johnson (GA)
Johnson, E. B.
Johnson, Sam
Jones
Jordan
Kaptur
Keating
Kelly (IL)
Kildee
Kilmer
Kind
King (IA)
Kingston
Kuster
Labrador
LaMalfa
Lamborn
Lance
Larsen (WA)
Larson (CT)
Latta
Lee (CA)
Lewis
Loebsack
Lofgren
Lowenthal
Lowey
Luetkemeyer
Luján, Ben Ray (NM)
Lummis
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Marchant
Massie
Matsui
McAllister
McClintock
McCollum
McDermott
McGovern
McHenry
McIntyre
McKinley
McMorris Rodgers
McNerney
Meadows
Meeks
Meng
Mica
Michaud
Miller (MI)
Miller, George
Moore
Moran
Mullin
Nadler
Napolitano
Neal
Negrete McLeod
Neugebauer
Noem
Nolan
Nugent
O'Rourke
Olson
Owens
Palazzo
Pallone
Pascrell
Pastor (AZ)
Paulsen
Payne
Pelosi
Perlmutter
Perry
Peters (MI)
Petri
Pingree (ME)
Pocan
Poe (TX)
Posey
Price (GA)
Price (NC)
Quigley
Rahall
Reed
Ribble
Rice (SC)
Roe (TN)
Rohrabacher
Rokita
Rooney
Ross
Rothfus
Roybal-Allard
Ruiz
Runyan
Ryan (WI)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Sarbanes
Scalise
Schakowsky
Schneider
Schock
Schrader
Schwartz
Schweikert
Scott (VA)
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Shea-Porter
Sherman
Shimkus
Shuster
Sires
Slaughter
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (WA)
Southerland
Speier
Stewart
Stockman
Stutzman
Swalwell (CA)
Takano
Terry
Tierney
Tipton
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Wagner
Walorski
Waters
Waxman
Weber (TX)
Welch
Wenstrup
Williams
Wilson (FL)
Woodall
Yarmuth
Yoder
Yoho

NOES—123

Aderholt
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Beatty
Benishek
Bilirakis
Boustany
Brady (TX)
Brooks (IN)
Brownley (CA)
Bustos
Calvert
Camp
Cantor
Carter
Coble
Cole
Collins (NY)
Conaway
Cooper
Costa
Cotton
Crawford
Crenshaw
Davis, Rodney
Delaney
Denham
Dent
Diaz-Balart
Duckworth
Ellmers
Forbes
Frankel (FL)
Franks (AZ)
Frelinghuysen
Gallego
Gerlach
Gingrey (GA)
Goodlatte
Granger
Graves (MO)
Grimm
Hartzler
Hastings (WA)
Heck (NV)
Himes
Hinojosa
Holding
Hoyer
Israel
Johnson (OH)
Jolly
Joyce
Kelly (PA)
Kennedy
King (NY)
Kinzinger (IL)
Kline
Langevin
Latham
Levin
LoBiondo
Long
Lucas
Marino
Matheson
McCarthy (CA)
McCaul
McKeon
Meehan
Messer
Miller (FL)
Miller, Gary
Murphy (FL)
Murphy (PA)
Nunes
Pearce
Peters (CA)
Peterson
Pittenger
Pitts
Pompeo
Reichert
Renacci
Rigell
Roby
Rogers (AL)
Rogers (KY)
Rogers (MI)
Ros-Lehtinen
Roskam
Royce
Ruppersberger
Schiff
Sewell (AL)
Simpson
Sinema
Smith (TX)
Stivers
Thompson (CA)
Thompson (PA)
Thornberry
Tiberi
Turner
Upton
Valadao
Visclosky
Walberg
Walden
Wasserman Schultz
Webster (FL)
Westmoreland
Whitfield
Wilson (SC)
Wittman
Wolf
Womack
Young (AK)
Young (IN)

ANSWERED ''PRESENT''—1

Lipinski

NOT VOTING—14

Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Thompson (MS)
Walz

□ 2247

So the amendment was agreed to.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MR. FORTENBERRY

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Nebraska (Mr. FORTENBERRY) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 167, noes 244, not voting 20, as follows:

[Roll No. 328]

AYES—167

Aderholt
Amash
Bachmann
Barletta
Barrow (GA)
Barton
Bass
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Braley (IA)
Bridenstine
Brooks (AL)
Broun (GA)
Buchanan
Burgess
Bustos
Campbell
Capps
Capuano
Cárdenas
Cassidy
Castor (FL)
Chu
Clark (MA)
Clarke (NY)
Clay
Cleaver
Coble
Cole
Collins (GA)
Collins (NY)
Conyers
Daines
Davis, Danny
Dent
DeSantis
DesJarlais
Duffy
Duncan (SC)
Duncan (TN)
Eshoo
Fincher
Fitzpatrick
Fleming
Fortenberry
Garamendi
Garrett
Gibson
Gohmert
Gosar
Grijalva
Guthrie
Hahn
Hall
Hanabusa
Harris
Heck (NV)
Herrera Beutler
Higgins
Holt
Honda
Hudson
Huelskamp
Huffman
Jeffries
Jenkins
Johnson (GA)
Johnson (OH)
Johnson, Sam
Jones
Jordan
Keating
Kuster
Labrador
LaMalfa
Latta
Lee (CA)
Lewis
Loebsack
Lofgren
Lummis
Lynch
Maffei
Maloney, Carolyn
Massie
Matheson

McAllister
McClintock
McCollum
McDermott
McGovern
McHenry
McIntyre
McMorris Rodgers
McNerney
Meadows
Meeks
Messer
Michaud
Miller (FL)
Miller (MI)
Moore
Moran
Murphy (PA)
Nadler
Neugebauer
Nolan
Nugent
Olson
Palazzo
Pallone
Pastor (AZ)
Paulsen
Pearce
Pingree (ME)
Pitts
Pocan
Poe (TX)
Posey
Price (GA)
Ribble
Rice (SC)
Roe (TN)
Rohrabacher
Rooney
Ros-Lehtinen
Ross
Rothfus
Ruiz
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sanford
Schrader
Schweikert
Scott, Austin
Sensenbrenner
Serrano
Shuster
Sinema
Smith (MO)
Smith (NJ)
Speier
Stivers
Stockman
Takano
Tiberi
Tierney
Tonko
Turner
Velázquez
Wagner
Weber (TX)
Webster (FL)
Welch
Westmoreland
Williams
Wilson (FL)
Wilson (SC)
Wolf
Woodall
Yoder
Yoho
Young (AK)

NOES—244

Amodei
Bachus
Barber
Barr
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blackburn
Blumenauer
Bonamici
Boustany
Brady (PA)
Brady (TX)
Brooks (IN)
Brown (FL)
Brownley (CA)
Bucshon
Butterfield
Byrne
Calvert
Camp
Cantor
Capito
Carney
Carson (IN)
Carter
Cartwright
Castro (TX)
Chabot
Chaffetz
Cicilline
Clyburn
Coffman
Cohen
Conaway
Connolly
Cook
Cooper
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Davis (CA)
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Ellmers
Engel
Enyart
Esty
Farenthold
Farr
Fattah
Fleischmann
Flores
Forbes
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Gabbard
Gallego
Garcia
Gardner
Gerlach
Gibbs
Gingrey (GA)
Goodlatte
Gowdy
Granger
Graves (MO)
Grayson
Green, Al
Green, Gene
Griffin (AR)
Griffith (VA)
Grimm
Gutiérrez
Hanna
Harper
Hartzler
Hastings (FL)
Hastings (WA)
Heck (WA)
Hensarling
Himes
Hinojosa
Holding
Horsford
Hoyer
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee
Johnson, E. B.
Jolly
Joyce
Kaptur
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latham
Levin
Lipinski
LoBiondo
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Luján, Ben Ray (NM)
Maloney, Sean
Marchant
Marino
Matsui
McCarthy (CA)
McCaul
McKeon
McKinley
Meehan
Meng
Mica
Miller, Gary
Miller, George
Mullin
Murphy (FL)
Napolitano
Neal
Negrete McLeod
Noem
Nunes
O'Rourke
Owens
Payne
Pelosi
Perlmutter
Perry
Peters (CA)
Peters (MI)
Peterson
Petri
Pittenger
Pompeo
Price (NC)
Quigley
Rahall
Reed
Reichert
Renacci
Rigell
Roby
Rogers (AL)
Rogers (KY)
Rogers (MI)
Roskam
Roybal-Allard
Royce
Ruppersberger
Ryan (WI)
Sarbanes
Scalise
Schakowsky
Schiff
Schneider
Schock
Schwartz
Scott (VA)
Scott, David
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shimkus
Simpson
Sires
Slaughter
Smith (NE)
Smith (TX)
Smith (WA)
Stewart
Stutzman
Swalwell (CA)
Terry
Thompson (CA)
Thompson (PA)
Thornberry
Tipton
Titus
Tsongas
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Visclosky
Walberg
Walden
Walorski
Wasserman Schultz
Waters
Waxman
Wenstrup
Whitfield
Wittman
Womack
Yarmuth
Young (IN)

NOT VOTING—20

Denham
Fudge
Graves (GA)
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Pascrell
Polis
Rangel
Richmond
Rokita
Runyan
Rush
Ryan (OH)
Southerland
Thompson (MS)
Walz

□ 2252

Mr. JOHNSON of Georgia changed his vote from ''no'' to ''aye.''

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MR. GRAYSON

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Florida (Mr. GRAYSON) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 62, noes 355, not voting 14, as follows:

[Roll No. 329]

AYES—62

Amash
Barrow (GA)
Blumenauer
Braley (IA)
Bridenstine
Broun (GA)
Cárdenas
Cartwright
Castor (FL)
Chu
Conyers
Duncan (TN)
Edwards
Ellison
Gibson
Grayson
Griffith (VA)
Grijalva
Holt
Honda
Johnson (GA)
Jones
Jordan
Kingston
Labrador
Lee (CA)
Lewis
Maffei
Massie
Matheson
Matsui
McClintock
McDermott
McGovern
McNerney
Miller, George
Nadler
Negrete McLeod
O'Rourke
Pallone
Perlmutter
Perry
Petri
Pocan
Rohrabacher
Sanchez, Loretta
Sanford
Sarbanes
Schakowsky
Scott (VA)
Serrano
Shimkus
Slaughter
Smith (WA)
Speier
Stewart
Stockman
Takano
Tierney
Tonko
Velázquez
Waters

NOES—355

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barton
Bass
Beatty
Becerra
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Bonamici
Boustany
Brady (PA)
Brady (TX)
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Burgess
Bustos
Butterfield
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Capps
Capuano
Carney
Carson (IN)
Carter
Cassidy
Castro (TX)
Chabot
Chaffetz
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Coble
Coffman
Cohen
Cole
Collins (GA)
Collins (NY)
Conaway
Connolly
Cook
Cooper
Costa
Cotton
Courtney
Cramer
Crawford
Crenshaw
Crowley
Cuellar
Culberson
Cummings
Daines
Davis (CA)
Davis, Danny
Davis, Rodney
DeFazio
DeGette
Delaney
DeLauro
DelBene
Denham
Dent
DeSantis
DesJarlais
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Duffy
Duncan (SC)
Ellmers
Engel
Enyart
Eshoo
Esty
Farenthold
Farr
Fattah
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Frankel (FL)
Franks (AZ)
Frelinghuysen
Gabbard
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Grimm
Guthrie
Gutiérrez
Hahn
Hall
Hanabusa
Hanna
Harper
Harris
Hartzler
Hastings (FL)
Hastings (WA)
Heck (NV)
Heck (WA)
Hensarling
Herrera Beutler
Higgins
Himes
Hinojosa
Holding
Horsford
Hoyer
Hudson
Huelskamp
Huffman
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jackson Lee
Jeffries
Jenkins
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Joyce
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (IA)
King (NY)
Kinzinger (IL)
Kline
Kuster
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Larson (CT)
Latham
Latta
Levin
Lipinski
LoBiondo
Loebsack
Lofgren
Long
Lowenthal
Lowey
Lucas
Luetkemeyer
Luján, Ben Ray (NM)
Lummis
Lynch
Maloney, Carolyn
Maloney, Sean
Marchant
Marino
McAllister
McCarthy (CA)
McCaul
McCollum
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Meeks
Meng
Messer
Mica
Michaud
Miller (FL)
Miller (MI)
Miller, Gary
Moore
Moran
Mullin
Murphy (FL)
Murphy (PA)
Napolitano
Neal
Neugebauer
Noem
Nolan
Nugent
Nunes
Olson
Owens
Palazzo
Pascrell
Pastor (AZ)
Paulsen
Payne
Pearce
Pelosi
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Price (NC)
Quigley
Rahall
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Roybal-Allard
Royce
Ruiz
Runyan
Ruppersberger
Ryan (WI)
Salmon
Sánchez, Linda T.
Scalise
Schiff
Schneider
Schock
Schrader
Schwartz
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Sessions
Sewell (AL)
Shea-Porter
Sherman
Shuster
Simpson
Sinema
Sires
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stivers
Stutzman
Swalwell (CA)
Terry
Thompson (CA)
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Tsongas
Turner
Upton
Valadao
Van Hollen
Vargas
Veasey
Vela
Visclosky
Wagner
Walberg
Walden
Walorski
Wasserman Schultz
Waxman

Weber (TX)
Webster (FL)
Welch
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yarmuth
Yoder
Yoho
Young (AK)
Young (IN)

NOT VOTING—14

Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
McCarthy (NY)
Mulvaney
Nunnelee
Polis
Rangel
Richmond
Rush
Ryan (OH)
Thompson (MS)
Walz

□ 2256

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT NO. 34 OFFERED BY MS. LEE OF CALIFORNIA

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentlewoman from California (Ms. LEE) on which further proceedings were postponed and on which the noes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 157, noes 260, not voting 14, as follows:

[Roll No. 330]

AYES—157

Amash
Bass
Beatty
Becerra
Benishek
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Broun (GA)
Burgess
Capps
Capuano
Cárdenas
Carney
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Cohen
Connolly
Conyers
Courtney
Crowley
Cummings
Davis, Danny
DeFazio
DeGette
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duncan (TN)
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Frankel (FL)
Gabbard
Garamendi
Gibson
Gohmert
Grayson
Green, Al
Griffith (VA)
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Huelskamp
Huffman
Jackson Lee
Jeffries
Johnson (GA)
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kuster
Labrador
Larson (CT)
Lee (CA)
Levin
Lewis
Lofgren
Lowenthal
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Massie
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meng
Michaud
Miller, George
Moore
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (MI)
Petri
Pingree (ME)
Pocan
Posey
Price (NC)
Quigley
Rahall
Rigell
Rohrabacher
Roybal-Allard
Sánchez, Linda T.
Sanford
Sarbanes
Schakowsky
Schiff
Scott (VA)
Scott, David
Sensenbrenner
Serrano
Shea-Porter
Sires
Slaughter
Speier
Stockman
Swalwell (CA)
Takano
Thompson (CA)
Tierney
Tonko
Tsongas
Van Hollen
Veasey
Velázquez
Wasserman Schultz
Waters
Waxman
Welch
Wilson (FL)
Yarmuth
Yoho
Young (AK)

NOES—260

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Bentivolio
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Brown (FL)
Brownley (CA)
Buchanan
Bucshon
Bustos
Butterfield
Byrne
Calvert
Camp
Campbell
Cantor
Capito
Carson (IN)
Carter
Cassidy
Chabot
Chaffetz
Clyburn
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cooper
Costa
Cotton
Cramer
Crawford
Crenshaw
Cuellar
Culberson
Daines
Davis (CA)
Davis, Rodney
Delaney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duckworth
Duffy
Duncan (SC)
Ellmers
Engel
Enyart
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Green, Gene
Griffin (AR)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Herrera Beutler
Holding
Hoyer
Hudson
Huizenga (MI)
Hultgren
Hunter
Hurt
Israel
Issa
Jenkins
Johnson (OH)
Johnson, E. B.
Johnson, Sam
Jolly
Jordan
Joyce
Kelly (PA)
Kind
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
LaMalfa
Lamborn
Lance
Langevin
Larsen (WA)
Latham
Latta
Lipinski
LoBiondo
Loebsack
Long
Lowey
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Matheson
McAllister
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Meeks
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Moran
Mullin
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Olson
Owens
Palazzo
Paulsen
Pearce
Perry
Peters (CA)
Peterson
Pittenger
Pitts
Poe (TX)
Pompeo
Price (GA)
Reed
Reichert
Renacci
Ribble
Rice (SC)
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ruppersberger
Ryan (WI)
Salmon
Sanchez, Loretta
Scalise
Schneider
Schock
Schrader
Schwartz
Schweikert
Scott, Austin
Sessions
Sewell (AL)
Sherman
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Stewart
Stivers
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Titus
Turner
Upton
Valadao
Vargas
Vela
Visclosky
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (IN)

NOT VOTING—14

Fudge
Kirkpatrick
Lankford
Lujan Grisham (NM)
ndWhitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Young (IN)
NOT VOTING—14

□ 2259

So the amendment was rejected.

The result of the vote was announced as above recorded.

AMENDMENT OFFERED BY MR. ELLISON

The Acting CHAIR. The unfinished business is the demand for a recorded vote on the amendment offered by the gentleman from Minnesota (Mr. ELLISON) on which further proceedings were postponed and on which the ayes prevailed by voice vote.

The Clerk will redesignate the amendment.

The Clerk redesignated the amendment.

RECORDED VOTE

The Acting CHAIR. A recorded vote has been demanded.

A recorded vote was ordered.

The Acting CHAIR. This will be a 2-minute vote.

The vote was taken by electronic device, and there were—ayes 212, noes 204, not voting 15, as follows:

[Roll No. 331]

AYES—212

Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bilirakis
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Burgess
Bustos
Butterfield
Cantor
Capito
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Diaz-Balart
Dingell
Doggett
Doyle
Duckworth
Duncan (TN)
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Fitzpatrick
Foster
Frankel (FL)
Gabbard
Gallego
Garamendi
Garcia
Gibson
Grayson
Green, Al
Green, Gene
Griffith (VA)
Grijalva
Grimm
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Hultgren
Israel
Jackson Lee
Jeffries
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kelly (PA)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kuster
Lance
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
LoBiondo
Loebsack
Lofgren
Lowenthal
Lowey
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCollum
McDermott
McGovern
McIntyre
McKinley
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Reichert
Renacci
Rohrabacher

Ros-Lehtinen	Scott, David	Tonko
Roskam	Serrano	Tsongas
Roybal-Allard	Sewell (AL)	Van Hollen
Ruiz	Shea-Porter	Vargas
Runyan	Sherman	Veasey
Ruppersberger	Sinema	Vela
Sánchez, Linda T.	Sires	Velázquez
	Slaughter	Visclosky
Sanchez, Loretta	Smith (WA)	Wasserman Schultz
Sarbanes	Speier	
Schakowsky	Swalwell (CA)	Waters
Schiff	Takano	Waxman
Schneider	Thompson (CA)	Welch
Schrader	Tiberi	Wilson (FL)
Schwartz	Tierney	Yarmuth
Scott (VA)	Titus	Young (AK)

NOES—204

Aderholt	Granger	Petri
Amash	Graves (GA)	Pittenger
Amodei	Graves (MO)	Pitts
Bachmann	Griffin (AR)	Poe (TX)
Bachus	Guthrie	Pompeo
Barletta	Hall	Posey
Barr	Hanna	Price (GA)
Barton	Harper	Reed
Benishek	Harris	Ribble
Bentivolio	Hartzler	Rice (SC)
Bishop (UT)	Hastings (WA)	Rigell
Black	Heck (NV)	Roby
Blackburn	Hensarling	Roe (TN)
Boustany	Herrera Beutler	Rogers (AL)
Brady (TX)	Holding	Rogers (KY)
Bridenstine	Hudson	Rogers (MI)
Brooks (AL)	Huelskamp	Rokita
Brooks (IN)	Huizenga (MI)	Rooney
Broun (GA)	Hunter	Ross
Buchanan	Hurt	Rothfus
Bucshon	Issa	Royce
Byrne	Jenkins	Ryan (WI)
Calvert	Johnson (OH)	Salmon
Camp	Johnson, Sam	Sanford
Campbell	Jolly	Scalise
Carter	Jordan	Schock
Cassidy	Joyce	Schweikert
Chabot	King (IA)	Scott, Austin
Chaffetz	Kingston	Sensenbrenner
Coble	Kinzinger (IL)	Sessions
Coffman	Kline	Shimkus
Cole	Labrador	Shuster
Collins (GA)	LaMalfa	Simpson
Collins (NY)	Lamborn	Smith (MO)
Conaway	Latham	Smith (NE)
Cook	Latta	Smith (NJ)
Cotton	Long	Smith (TX)
Cramer	Lucas	Southerland
Crawford	Luetkemeyer	Stewart
Crenshaw	Lummis	Stivers
Culberson	Marchant	Stockman
Daines	Marino	Stutzman
Davis, Rodney	Massie	Terry
Denham	McAllister	Thompson (PA)
Dent	McCarthy (CA)	Thornberry
DeSantis	McCaul	Tipton
DesJarlais	McClintock	Turner
Duffy	McHenry	Upton
Duncan (SC)	McKeon	Valadao
Ellmers	McMorris Rodgers	Wagner
Farenthold	Meadows	Walberg
Fincher	Meehan	Walden
Fleischmann	Messer	Walorski
Fleming	Mica	Weber (TX)
Flores	Miller (FL)	Webster (FL)
Forbes	Miller (MI)	Wenstrup
Fortenberry	Miller, Gary	Westmoreland
Foxx	Mullin	Whitfield
Franks (AZ)	Murphy (PA)	Williams
Frelinghuysen	Neugebauer	Wilson (SC)
Gardner	Noem	Wittman
Garrett	Nugent	Wolf
Gerlach	Nunes	Womack
Gibbs	Olson	Woodall
Gingrey (GA)	Palazzo	Yoder
Gohmert	Paulsen	Yoho
Goodlatte	Pearce	Young (IN)
Gosar	Perry	
Gowdy		

NOT VOTING—15

Fudge	McCarthy (NY)	Rush
Johnson (GA)	Mulvaney	Ryan (OH)
Kirkpatrick	Nunnelee	Thompson (MS)
Lankford	Polis	Walz
Lujan Grisham (NM)	Rangel	
	Richmond	

□ 2304

Mr. MESSER changed his vote from ''aye'' to ''no.''

Mrs. CAROLYN B. MALONEY of New York changed her vote from ''no'' to ''aye.''

So the amendment was agreed to.

The result of the vote was announced as above recorded.

Mr. FRELINGHUYSEN. Madam Chair, I move that the Committee do now rise.

The motion was agreed to.

Accordingly, the Committee rose; and the Speaker pro tempore (Mr. JOYCE) having assumed the chair, Ms. FOXX, Acting Chair of the Committee of the Whole House on the state of the Union, reported that that Committee, having had under consideration the bill (H.R. 4870) making appropriations for the Department of Defense for the fiscal year ending September 30, 2015, and for other purposes, had come to no resolution thereon.

CONTINUATION OF THE NATIONAL EMERGENCY WITH RESPECT TO THE DISPOSITION OF RUSSIAN HIGHLY ENRICHED URANIUM—MESSAGE FROM THE PRESIDENT OF THE UNITED STATES (H. DOC. NO. 113–122)

The SPEAKER pro tempore laid before the House the following message from the President of the United States; which was read and, together with the accompanying papers, referred to the Committee on Foreign Affairs and ordered to be printed:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days prior to the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the emergency declared in Executive Order 13617 of June 25, 2012, with respect to the disposition of Russian highly enriched uranium is to continue in effect beyond June 25, 2014.

The risk of nuclear proliferation created by the accumulation of a large volume of weapons-usable fissile material in the territory of the Russian Federation continues to pose an unusual and extraordinary threat to the national security and foreign policy of the United States. Therefore, I have determined that it is necessary to continue the national emergency declared in Executive Order 13617 with respect to the disposition of Russian highly enriched uranium.

BARACK OBAMA.

THE WHITE HOUSE, *June 19, 2014.*

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. MULVANEY (at the request of Mr. CANTOR) for today and the balance of the week on account of a medical procedure.

Mr. RICHMOND (at the request of Ms. PELOSI) for today and June 20 on account of attending a family matter.

ADJOURNMENT

Mr. STIVERS. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 11 o'clock and 9 minutes p.m.), the House adjourned until tomorrow, Friday, June 20, 2014, at 9 a.m.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

6043. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Carbon Monoxide Maintenance Plan, Conformity Budgets, Emissions Inventories; State of New York [Docket No.: EPA-R02-OAR-2014-0182; FRL-9911-56-Region 2] received May 29, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6044. A letter from the Director, Regulatory Management Division, Environmental Protection Agency, transmitting the Agency's final rule — Approval and Promulgation of Implementation Plans; Texas; Revisions for Permitting of Particulate Matter with Diameters Less Than or Equal to 2.5 Micrometers (PM2.5) [EPA-R06-OAR-2011-0495; FRL-9909-35-Region 6] received May 29, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6045. A letter from the Associate Bureau Chief, Wireline Competition Bureau, Federal Communications Commission, transmitting the Commissions's final rule — Connect America Fund, Developing a Unified Intercarrier Compensation Regime [WC Docket No.: 10-90] [CC Docket No.: 01-92] received June 3, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6046. A letter from the Chief of Staff, Media Bureau, Federal Communications Commission, transmitting the Commission's final rule — 2014 Quadrennial Regulatory Review — Review of the Commission's Broadcast Ownership Rules and Other Rules Adopted Pursuant to Section 202 of the Telecommunications Act of 1996; 2010 Quadrennial Regulatory Review — Review of the Commission's Broadcast Ownership Rules and Other Rules Adopted Pursuant to Section 202 of the Telecommunications Act of 1996; Promoting Diversification of Ownership in the Broadcasting Services; Rules and Policies Concerning Attribution of Joint Sales Agreements in Local Television Markets [MB Docket No.: 14-50] [MB Docket No.: 09-182] [MB Docket No.: 07-294] [MB Docket No.: 04-256] received June 2, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6047. A letter from the Acting Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Proposed Revisions to Physical Security Early Site Permit and Reactor Siting Criteria [NRC-2014-0101] received May 20, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6048. A letter from the Acting Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Manual Operator Actions in Diversity and Defense-in-Depth Analyses [NRC-2009-0515] received May 20, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6049. A letter from the Acting Director, Office of Congressional Affairs, Nuclear Regulatory Commission, transmitting the Commission's final rule — Proposed Revision 0 to Fitness-for-Duty — Construction [NRC-2014-0099] received May 20, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Energy and Commerce.

6050. A letter from the Assistant Secretary for Export Administration, Department of Commerce, transmitting the Department's final rule — Revisions to the Export Administration Regulations Based on the 2013 Missile Technology Control Regime Plenary Agreements [Docket No.: 131121983-4407-01] (RIN: 0694-AG02) received June 2, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Foreign Affairs.

6051. A letter from the Assistant Secretary for Export Administration, Department of Commerce, transmitting the Department's final rule — Amendments to Existing Validated End-User Authorizations in the People's Republic of China: Samsung China Semiconductor Co. Ltd. and Semiconductor Manufacturing International Corporation [Docket No.: 140506409-4409-01] (RIN: 0694-AG15) received June 2, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Foreign Affairs.

6052. A letter from the Assistant Secretary, Legislative Affairs, Department of State, transmitting the Department's final rule — Amendment to the International Traffic in Arms Regulations: Revision of U.S. Munitions List Category XV (RIN: 1400-AD33) received May 14, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Foreign Affairs.

6053. A letter from the Chief, Division of Management Authority, Department of the Interior, transmitting the Department's final rule — Revision of Regulations Implementing the Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES); Updates Following the Fifteenth Meeting of the Conference of the Parties to CITES [Docket No.: FWS-R9-IA-2010-0083] (RIN: 1018-AW82) received May 22, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

6054. A letter from the Deputy Assistant Administrator for Operations, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Magnuson-Stevens Fishery Conservation and Management Act Provisions; Fisheries of the Northeastern United States; Northeast Groundfish Fishery; Fishing Year 2014; Recreation Management Measures [Docket No.: 140220164-4164-01] (RIN: 0648-BE00) received May 19, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

6055. A letter from the Deputy Assistant Administrator for Operations, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Magnuson-Stevens Act Provisions; Fisheries Off West Coast States; Pacific Coast Groundfish Fishery; Commercial Groundfish Fishery Management Measures; Rockfish Conservation Area Boundaries for Vessels Using Bottom Trawl Gear; Correction [Docket No.: 130808694-4378-03] (RIN: 0648-BD37) received June 2, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

6056. A letter from the Assistant Administrator for Fisheries, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Magnuson-Stevens Fishery Conservation and Management Act Provisions; Fisheries of the Northeastern United States; Northern Red Hake Accountability Measure [Docket No.: 140421359-4359-01] (RIN: 0648-BE08) received June 2, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

6057. A letter from the Deputy Assistant Administrator for Regulatory Programs, NMFS, National Oceanic and Atmospheric Administration, transmitting the Administration's final rule — Fisheries Off West Coast States; West Coast Salmon Fisheries; 2014 Management Measures [Docket No.: 140107014-4014-01] (RIN: 0648-XD072) received June 2, 2014, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Natural Resources.

6058. A letter from the Clerk of the House of Representatives, transmitting annual compilation of financial disclosure statements of the members of the Office of Congressional Ethics, pursuant to Rule XXVI, Clause 3, of the House Rules; (H. Doc. No. 113—121); to the Committee on Ethics and ordered to be printed.

REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. UPTON: Committee on Energy and Commerce. H.R. 6. A bill to provide for expedited approval of exportation of natural gas to World Trade Organization countries, and for other purposes; with an amendment (Rept. 113–477). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 1281. A bill to amend the Public Health Service Act to reauthorize programs under part A of title XI of such Act; with an amendment (Rept. 113–478). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 4092. A bill to amend the Energy Policy and Conservation Act to establish the Office of Energy Efficiency and Renewable Energy as the lead Federal agency for coordinating Federal, State, and local assistance provided to promote the energy retrofitting of schools; with an amendment (Rept. 113–479). Referred to the Committee of the Whole House on the state of the Union.

Mr. MCCAUL: Committee on Homeland Security. H.R. 4263. A bill to amend the Homeland Security Act of 2002 to authorize the Department of Homeland Security to establish a social media working group, and for other purposes; with an amendment (Rept. 113–480). Referred to the Committee of the Whole House on the state of the Union.

Mr. CARTER: Committee on Appropriations. H.R. 4903. A bill making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes (Rept. 113–481). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 3301. A bill to require approval for the construction, connection, operation, or maintenance of oil or natural gas pipelines or electric transmission facilities at the national boundary of the United States for the import or export of oil, natural gas, or electricity to or from Canada or Mexico, and for other purposes; with an amendment (Rept. 113–482, Pt. 1). Referred to the Committee of the Whole House on the state of the Union.

Mr. UPTON: Committee on Energy and Commerce. H.R. 83. A bill to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of action plans aimed at reducing reliance on imported fossil fuels and increasing use of indigenous clean-energy resources, and for other purposes; with amendments (Rept. 113–483). Referred to the Committee of the Whole House on the state of the Union.

Mr. MCCAUL: Committee on Homeland Security. H.R. 4289. A bill to amend the Homeland Security Act of 2002 to require the Under Secretary for Management of the Department of Homeland Security to take administrative action to achieve and maintain interoperable communications capabilities among the components of the Department of Homeland Security, and for other purposes (Rept. 113–484). Referred to the Committee of the Whole House on the state of the Union.

DISCHARGE OF COMMITTEE

Pursuant to clause 2 of rule XIII, the Committees on Transportation and Infrastructure and Natural Resources discharged from further consideration. H.R. 3301 referred to the Committee of the Whole House on the state of the Union.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. HASTINGS of Washington (for himself, Mr. LAMBORN, Mr. CASSIDY, Mr. TIPTON, Mr. YOUNG of Alaska, Mr. JOHNSON of Ohio, Mrs. LUMMIS, Mr. FLORES, Mr. MULLIN, Mr. WITTMAN, Mr. DUNCAN of South Carolina, Mr. BISHOP of Utah, and Mr. CRAMER):

H.R. 4899. A bill to lower gasoline prices for the American family by increasing domestic onshore and offshore energy exploration and production, to streamline and improve onshore and offshore energy permitting and administration, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SAM JOHNSON of Texas:

H.R. 4900. A bill to amend the Internal Revenue Code of 1986 to prevent veterans from being disqualified from contributing to health savings accounts by reason of receiving medical care for service-connected disabilities under programs administered by the Department of Veterans Affairs; to the Committee on Ways and Means.

By Mr. BISHOP of Utah (for himself and Mr. DEFAZIO):

H.R. 4901. A bill to maximize land management efficiencies, promote land conservation, generate education funding, and for other purposes; to the Committee on Natural Resources.

By Ms. LORETTA SANCHEZ of California (for herself, Mr. RICHMOND, Mrs. DAVIS of California, Mr. GRIJALVA, Ms. SCHAKOWSKY, Ms. LINDA T. SÁNCHEZ of California, Mr. GARAMENDI, Mr. VARGAS, Mr. HASTINGS of Florida, Mrs. NAPOLITANO, Mr. KIND, Mr. RANGEL, Ms. CLARKE of New York, Mr. ENGEL, Ms. SHEA-PORTER, Mr. COHEN, Ms. NORTON, Ms. MOORE, Ms. BROWN of Florida, Mrs.

NEGRETE MCLEOD, Mr. NOLAN, Mr. HONDA, Mr. ENYART, Mr. RUSH, Mr. RAHALL, Ms. BROWNLEY of California, Mr. BLUMENAUER, Mr. SIRES, Ms. JACKSON LEE, Ms. PINGREE of Maine, Mr. ELLISON, Mr. CASTRO of Texas, Mr. LANGEVIN, Mr. MEEKS, Mr. CUMMINGS, Mr. LARSEN of Washington, Mr. SERRANO, Mrs. KIRKPATRICK, Mr. BRADY of Pennsylvania, Mr. NADLER, and Mr. LOWENTHAL):

H.R. 4902. A bill to improve college affordability; to the Committee on Education and the Workforce.

By Mr. CARTER:

H.R. 4904. A bill to amend the Food and Nutrition Act of 2008 to provide an incentive for households participating in the supplemental nutrition assistance program to purchase certain nutritious fruits and vegetables that are beneficial to good health; to the Committee on Agriculture.

By Mr. CASTRO of Texas (for himself and Mr. MCCAUL):

H.R. 4905. A bill to establish in the United States Agency for International Development an entity to be known as the United States Global Development Lab, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on Science, Space, and Technology, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. CAPPS (for herself, Ms. MOORE, Ms. HANABUSA, and Mr. LEWIS):

H.R. 4906. A bill to amend title 18, United States Code, to protect more victims of domestic violence by preventing their abusers from possessing or receiving firearms, and for other purposes; to the Committee on the Judiciary.

By Mr. CICILLINE (for himself, Mr. ENGEL, Ms. LOFGREN, Ms. SPEIER, Mr. MCGOVERN, Mr. SEAN PATRICK MALONEY of New York, Mr. TAKANO, Ms. WILSON of Florida, Mr. MCDERMOTT, Mr. LOWENTHAL, Mr. POCAN, Ms. ROYBAL-ALLARD, Mr. POLIS, Ms. ESHOO, Ms. FRANKEL of Florida, Ms. LEE of California, and Mr. MURPHY of Florida):

H.R. 4907. A bill to impose sanctions with respect to foreign persons responsible for gross violations of internationally recognized human rights against lesbian, gay, bisexual, and transgender (LGBT) individuals, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. COLE:

H.R. 4908. A bill to establish the Alyce Spotted Bear and Walter Soboleff Commission on Native Children, and for other purposes; to the Committee on Natural Resources, and in addition to the Committee on Appropriations, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. LANGEVIN:

H.R. 4909. A bill to provide States with assistance in finding a permanent home for every child; to the Committee on Ways and Means, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MCDERMOTT (for himself, Mr. LEVIN, Mr. BLUMENAUER, Mr. DANNY K. DAVIS of Illinois, Ms. NORTON, Mr. LANGEVIN, Ms. SCHWARTZ, Ms. WASSERMAN SCHULTZ, Mr. BECERRA, Mr. LEWIS, Ms. WILSON of Florida, Mr. REED, Mr. PAULSEN, Mr. GRIFFIN of Arkansas, Mr. GERLACH, Ms. LINDA T. SÁNCHEZ of California, Mr. NUGENT, Mr. TIBERI, Mr. ENYART, Mr. LARSON of Connecticut, and Mr. KELLY of Pennsylvania):

H.R. 4910. A bill to amend the Internal Revenue Code of 1986 to extend the authority of the Internal Revenue Service to require truncated social security numbers on Form W-2 wage and tax statements; to the Committee on Ways and Means.

By Ms. MENG:

H.R. 4911. A bill to direct the United States Postal Service to designate a single, unique ZIP Code for Glendale, New York; to the Committee on Oversight and Government Reform.

By Mr. NOLAN:

H.R. 4912. A bill to limit Department of Defense funds to support United States or Iraqi combat activities in or around Iraq, and for other purposes; to the Committee on Armed Services.

By Ms. ROYBAL-ALLARD:

H.R. 4913. A bill to reauthorize the Enhancing Education Through Technology Act of 2001; to the Committee on Education and the Workforce.

By Mr. SALMON:

H.R. 4914. A bill to prohibit funding to the Institute of Peace; to the Committee on Foreign Affairs, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SCHNEIDER (for himself and Mr. CHABOT):

H.R. 4915. A bill to clarify the definition of general solicitation under Federal securities law; to the Committee on Financial Services.

By Ms. SCHWARTZ (for herself, Mr. CROWLEY, Mr. GIBSON, Mr. KING of New York, and Mr. NEAL):

H.R. 4916. A bill to amend the Internal Revenue Code of 1986 to modify the energy credit to provide greater incentives for industrial energy efficiency; to the Committee on Ways and Means.

By Ms. SHEA-PORTER:

H.R. 4917. A bill to amend title 11 of the United States Code to provide bankruptcy protections for medically distressed debtors, and for other purposes; to the Committee on the Judiciary.

By Mr. STIVERS (for himself and Mr. RYAN of Ohio):

H.R. 4918. A bill to require the Food and Drug Administration to expedite review of pharmaceuticals that are approved for marketing in the European Union; to the Committee on Energy and Commerce.

By Mr. TIBERI (for himself, Mr. CHABOT, Mr. WENSTRUP, Mrs. BEATTY, Mr. JORDAN, Mr. LATTA, Mr. JOHNSON of Ohio, Mr. GIBBS, Ms. KAPTUR, Mr. TURNER, Ms. FUDGE, Mr. RYAN of Ohio, Mr. JOYCE, Mr. STIVERS, and Mr. RENACCI):

H.R. 4919. A bill to designate the facility of the United States Postal Service located at 715 Shawan Falls Drive in Dublin, Ohio, as the ''Lance Corporal Wesley G. Davids and Captain Nicholas J. Rozanski Memorial Post Office''; to the Committee on Oversight and Government Reform.

By Mr. TIBERI (for himself, Mr. LARSON of Connecticut, Mrs. BLACK, Mr. VISCLOSKY, Mr. JOHNSON of Ohio, and Mr. JOYCE):

H.R. 4920. A bill to amend title XVIII of the Social Security Act to require State licensure and performance guarantees for entities submitting bids under the Medicare durable medical equipment, prosthetics, orthotics, and supplies (DMEPOS) competitive acquisition program, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WOMACK (for himself, Mr. KINZINGER of Illinois, and Mr. MATHESON):

H.R. 4921. A bill to provide for the revision of certification requirements for the labeling of certain electronic products under the Energy Star program; to the Committee on Energy and Commerce.

By Mr. DESJARLAIS (for himself and Ms. DUCKWORTH):

H. Res. 631. A resolution supporting the goals and ideals of Posttraumatic Stress Disorder Awareness Month; to the Committee on Oversight and Government Reform.

By Ms. JACKSON LEE (for herself, Mr. CONYERS, Mr. PAYNE, Ms. NORTON, Ms. MOORE, Ms. BROWN of Florida, Mr. CLAY, Mr. DAVID SCOTT of Georgia, Mr. BUTTERFIELD, Mr. BISHOP of Georgia, Mr. RANGEL, Ms. WATERS, Mr. DANNY K. DAVIS of Illinois, Ms. CLARKE of New York, Mr. NADLER, Ms. SEWELL of Alabama, Ms. FUDGE, Mr. THOMPSON of Mississippi, Mr. HASTINGS of Florida, Ms. MCCOLLUM, Mr. DOGGETT, Mr. VEASEY, Mr. COHEN, Ms. WILSON of Florida, Mr. LEWIS, Mr. CUMMINGS, Mr. CUELLAR, Mr. RUSH, Mr. CLYBURN, Mr. CROWLEY, Mr. CLEAVER, Mrs. BEATTY, Mr. MEEKS, Ms. DELAURO, Mr. COSTA, Mr. CARSON of Indiana, Mr. JEFFRIES, Mr. HORSFORD, Mr. KENNEDY, Ms. KELLY of Illinois, Mr. AL GREEN of Texas, Ms. LEE of California, Ms. KAPTUR, Ms. HAHN, and Mr. NOLAN):

H. Res. 632. A resolution recognizing June 19, 2014, as this year's observance of the historical significance of Juneteenth Independence Day; to the Committee on Oversight and Government Reform.

MEMORIALS

Under clause 3 of rule XII, memorials were presented and referred as follows:

207. The SPEAKER presented a memorial of the House of Representatives of the State of Arizona, relative to House Memorial 2002 urging the Congress to recognize that open-air burn pits impose significant health risks and enact a presumption of a service connection between open-air burn pit exposure and subsequent illnesses that is similar to the presumption in place for exposure to Agent Orange; to the Committee on Armed Services.

208. Also, a memorial of the Senate of the Commonwealth of Pennsylvania, relative to Senate Resolution No. 340 urging the President and the Congress to reauthorize the Terrorism Risk Insurance Program; to the Committee on Financial Services.

209. Also, a memorial of the House of Representatives of the State of Hawaii, relative to House Concurrent Resolution No. 32 urging the Congress to adopt legislation, policies, and procedures to use identity theft-resistant credit cards; to the Committee on Financial Services.

210. Also, a memorial of the Senate of the Commonwealth of Pennsylvania, relative to Senate Resolution No. 367 designating the month of May 2014 as ''Amyotrophic Lateral Sclerosis Awareness Month'' in Pennsylvania; to the Committee on Energy and Commerce.

211. Also, a memorial of the House of Representatives of the State of Arizona, relative to House Concurrent Memorial 2001 urging the Congress to establish a Select Committee on POW and MIA Affairs; to the Committee on Rules.

212. Also, a memorial of the House of Representatives of the State of Arizona, relative to House Concurrent Memorial 2001 urging the Congress to establish a Select Committee on POW and MIA Affairs; to the Committee on Rules.

213. Also, a memorial of the House of Representatives of the State of Hawaii, relative to House Resolution No. 23 urging the Congress to support the Veterans Health and Benefits Improvement Act of 2013; to the Committee on Veterans' Affairs.

214. Also, a memorial of the House of Representatives of the State of Hawaii, relative to House Resolution No. 22 urging the Congress to grant veterans benefits to Filipino Veterans who fought in World War II; to the Committee on Veterans' Affairs.

215. Also, a memorial of the House of Representatives of the State of Hawaii, relative to House Resolution No. 19 urging the Congress to restore the presumption of a service connection for Agent Orange exposure to United States veterans who served in the waters defined by the Combat Zone and in the airspace over the Combat Zone in Vietnam; to the Committee on Veterans' Affairs.

216. Also, a memorial of the House of Representatives of the State of Hawaii, relative to House Resolution No. 68 urging the Congress to support House Bill 2074; to the Committee on Veterans' Affairs.

217. Also, a memorial of the Senate of the State of California, relative to Senate Joint Resolution No. 18 supporting the extension of the Emergency Unemployment Compensation program; to the Committee on Ways and Means.

218. Also, a memorial of the House of Representatives of the Commonwealth of Pennsylvania, relative to House Resolution No. 663 urging the Congress and the President to restore a presumption of a service connection for Agent Orange exposure for the United States Navy and Air Force veterans who served on the inland waterways, territorial waters and in the airspace of Vietnam, Thailand, Laos and Cambodia; to the Committee on Veterans' Affairs.

219. Also, a memorial of the House of Representatives of the State of Hawaii, relative to House Resolution No. 18 supporting the Troop Talent Act of 2013; jointly to the Committees on Veterans' Affairs and Armed Services.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. HASTINGS of Washington:

H.R. 4899.

Congress has the power to enact this legislation pursuant to the following:

Article IV, Section 3, Clause 2

By Mr. SAM JOHNSON of Texas:

H.R. 4900.

Congress has the power to enact this legislation pursuant to the following:

''The constitutional authority of Congress to enact this legislation is provided by Article I, section 8 of the United States Constitution, specifically clause 1 (relating to providing for the general welfare of the United States) and clause 18 (relating to the power to make all laws necessary and proper for carrying out the powers vested in Congress), and Article IV, section 3, clause 2 (relating to the power of Congress to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States).''

By Mr. BISHOP of Utah:

H.R. 4901.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by:

10th Amendment

Article IV, section 3, clause 2 (relating to the power of Congress to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States)

By Ms. LORETTA SANCHEZ of California:

H.R. 4902.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause I.

By Mr. CARTER:

H.R. 4903.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states: ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law . . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States . . . '' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Mr. CARTWRIGHT:

H.R. 4904.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 2: The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States;

Article I, Section 8, Clause 3: To regulate commerce with foreign nations, and among the several states, and with the Indian tribes;

By Mr. CASTRO of Texas:

H.R. 4905.

Congress has the power to enact this legislation pursuant to the following:

To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

By Mrs. CAPPS:

H.R. 4906.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution.

By Mr. CICILLINE:

H.R. 4907.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8.

By Mr. COLE:

H.R. 4908.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Article I, Section 8 which grants Congress the power to regulate Commerce with the Indian Tribes.

This bill is enacted pursuant to Article II, Section 2, Clause 2 in order the enforce treaties made between the United States and several Indian Tribes.

By Mr. LANGEVIN:

H.R. 4909.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1

By Mr. McDERMOTT:

H.R. 4910.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution

By Ms. MENG:

H.R. 4911.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 7

By Mr. NOLAN:

H.R. 4912.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1, and

Article 1, Section 8, Clause 18 of the United States Constitution.

By Ms. ROYBAL-ALLARD:

H.R. 4913.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 18

By Mr. SALMON:

H.R. 4914.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 9, Clause 7- ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time.''

By Mr. SCHNEIDER:

H.R. 4915.

Congress has the power to enact this legislation pursuant to the following:

Article One, Section Eight

By Ms. SCHWARTZ:

H.R. 4916.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Ms. SHEA-PORTER:

H.R. 4917.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8

By Mr. STIVERS:

H.R. 4918.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, section 8, Clause 3 of the United States Constitution. The Constitution's Commerce Clause allows Congress to enact laws when reasonably related to the regulation of interstate commerce.

By Mr. TIBERI:

H.R. 4919.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 7

By Mr. TIBERI:

H.R. 4920.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mr. WOMACK:

H.R. 4921.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions, as follows:

H.R. 6: Mr. LAMBORN.
H.R. 36: Mr. GOSAR.
H.R. 303: Mr. ROONEY.
H.R. 376: Mr. PRICE of North Carolina.
H.R. 498: Mr. CLEAVER, Mr. WELCH, and Mr. HIGGINS.
H.R. 676: Ms. JACKSON LEE.
H.R. 831: Ms. DUCKWORTH and Mr. MCALLISTER.
H.R. 920: Mr. COHEN.
H.R. 1015: Mr. BISHOP of New York, Mr. CÁRDENAS, Ms. ESTY, and Mr. MCHENRY.
H.R. 1020: Mr. GALLEGO.
H.R. 1024: Mr. BISHOP of New York.
H.R. 1070: Mr. FARR.
H.R. 1078: Mr. COFFMAN.
H.R. 1125: Mr. COURTNEY.
H.R. 1331: Mr. WITTMAN.
H.R. 1333: Ms. WILSON of Florida.
H.R. 1354: Mrs. CAROLYN B. MALONEY of New York.
H.R. 1462: Mr. HANNA and Mr. ROTHFUS
H.R. 1508: Mr. WELCH.
H.R. 1736: Ms. PINGREE of Maine.
H.R. 1750: Mr. HANNA.
H.R. 1761: Mr. ISRAEL.
H.R. 1763: Mr. SCHIFF.
H.R. 1771: Mr. DELANEY and Mr. RUSH.
H.R. 1812: Mr. SCHNEIDER, Mr. PEARCE, Mr. CAMPBELL, Mr. ENGEL, and Mr. DELANEY.
H.R. 1844: Ms. CLARK OF MASSACHUSETTS.
H.R. 1852: Mr. CHAFFETZ and Mr. COLLINS of Georgia.
H.R. 1893: Mr. CLAY.
H.R. 1905: Mr. JEFFRIES.
H.R. 1918: Mr. PASTOR of Arizona and Mr. KEATING.
H.R. 1998: Mr. FATTAH.
H.R. 2002: Mrs. BEATTY.
H.R. 2012: Mr. RANGEL and Mr. FATTAH.
H.R. 2149: Mr. TAKANO.
H.R. 2328: Mr. PETERS of California.
H.R. 2377: Ms. MATSUI.
H.R. 2453: Mr. JOHNSON of Ohio and Ms. LINDA T. SÁNCHEZ of California.
H.R. 2500: Ms. BONAMICI and Mr. FITZPATRICK.
H.R. 2529: Mr. BERA of California.
H.R. 2663: Mr. BRALEY of Iowa.
H.R. 2673: Mr. DUFFY and Mr. JOHNSON of Ohio.
H.R. 2692: Ms. ESHOO, Mr. SCHIFF, and Mr. FARR.
H.R. 2807: Mr. SMITH of Nebraska.
H.R. 2835: Mr. BURGESS.
H.R. 2856: Mr. FATTAH.
H.R. 2921: Mr. KILMER.
H.R. 2959: Mr. LUETKEMEYER, Mr. DENT, Mr. MCHENRY, Mr. HOLDING, Mr. BARLETTA, and Mr. LUCAS.
H.R. 2976: Mr. JOHNSON of Georgia.
H.R. 3040: Mr. MCDERMOTT.
H.R. 3086: Mr. WILLIAMS and Mr. PEARCE.
H.R. 3090: Ms. WILSON of Florida.
H.R. 3199: Mr. KING of Iowa.
H.R. 3367: Mr. SHUSTER and Mr. CÁRDENAS
H.R. 3395: Ms. LEE of California.
H.R. 3486: Mr. FARENTHOLD.
H.R. 3489: Mr. PRICE of Georgia.
H.R. 3508: Mr. O'ROURKE.
H.R. 3556: Mr. JOHNSON of Ohio.
H.R. 3566: Ms. HANABUSA.
H.R. 3662: Mr. RANGEL.
H.R. 3712: Mr. MCDERMOTT.
H.R. 3722: Mr. COLLINS of New York and Mr. TAKANO.
H.R. 3775: Mr. PEARCE.
H.R. 3854: Mr. TIERNEY, Mr. GOODLATTE, and Mr. LYNCH.
H.R. 3877: Mr. CRENSHAW and Ms. DELAURO.
H.R. 3899: Ms. LINDA T. SÁNCHEZ of California.
H.R. 3901: Mr. POE of Texas.
H.R. 3905: Mr. MCGOVERN.
H.R. 3992: Ms. NORTON.
H.R. 4026: Mr. MCGOVERN.
H.R. 4035: Mr. MORAN.
H.R. 4083: Mr. KILMER.
H.R. 4092: Mr. HASTINGS of Florida.
H.R. 4188: Mr. BISHOP of New York, Mr. BURGESS, and Mr. CLAY.
H.R. 4190: Mr. RAHALL and Mr. LIPINSKI.
H.R. 4216: Mr. PERLMUTTER and Mr. HASTINGS of Florida.
H.R. 4217: Mr. ROSS.
H.R. 4236: Mr. PERLMUTTER.
H.R. 4286: Mr. DESJARLAIS.
H.R. 4301: Mr. DENT and Mr. ROGERS of Michigan.
H.R. 4321: Mr. LATHAM and Mr. TIPTON.
H.R. 4325: Mr. DELANEY.
H.R. 4347: Ms. CLARK of Massachusetts.
H.R. 4351: Mrs. HARTZLER and Mr. THOMPSON of California.
H.R. 4365: Mr. RENACCI.
H.R. 4385: Mr. PASCRELL and Mr. TAKANO.
H.R. 4395: Ms. HAHN, Mr. POLIS, Ms. SCHAKOWSKY, and Mr. BISHOP of New York.
H.R. 4447: Mr. YOHO.
H.R. 4450: Mr. WITTMAN and Mrs. CAROLYN B. MALONEY of New York.
H.R. 4510: Ms. ESTY, Mr. BOUSTANY, Mr. COBLE, Mr. LATHAM, Mr. SCHIFF, Mr. GARAMENDI, and Mr. LANGEVIN.
H.R. 4582: Mr. MICHAUD, Mr. PERLMUTTER, Mr. CLEAVER, Mr. NADLER, Mr. LARSON of Connecticut, Ms. BROWN of Florida, Mr. BRADY of Texas, and Mr. KILDEE.
H.R. 4592: Mr. MORAN.
H.R. 4612: Mr. POMPEO, Mr. FINCHER, and Mr. HENSARLING.
H.R. 4620: Mr. MCDERMOTT.
H.R. 4631: Mr. KLINE.
H.R. 4632: Mr. MAFFEI.
H.R. 4636: Mrs. WAGNER and Mr. MULLIN.
H.R. 4643: Mr. MEEKS.
H.R. 4651: Mr. BRADY of Texas, Mr. THORNBERRY, Ms. GRANGER, Mr. FLORES, Mr. OLSON, Mr. GOHMERT, Mr. SMITH of Texas, Mr. WEBER of Texas, Mr. CONAWAY, Mr. BURGESS, and Mr. WILLIAMS.
H.R. 4653: Mr. SALMON, Mr. PASCRELL, Mr. GOWDY, and Mr. DUNCAN of South Carolina.
H.R. 4659: Mr. SALMON.
H.R. 4699: Ms. MOORE.
H.R. 4717: Mr. GUTHRIE and Mr. PETERS of Michigan.
H.R. 4739: Mr. HIGGINS and Ms. NORTON.
H.R. 4749: Mr. DUNCAN of Tennessee, Mr. CRENSHAW, Mr. POMPEO, Mr. ROE of Tennessee, Mr. LONG, Mr. SESSIONS, and Mr. COLLINS of New York.
H.R. 4750: Mr. BURGESS.
H.R. 4780: Mr. SOUTHERLAND.
H.R. 4790: Mr. PETRI.
H.R. 4813: Mr. TIPTON, Mr. FORBES, Mr. HENSARLING, and Mr. SMITH of Nebraska.
H.R. 4828: Mr. CROWLEY, Mr. ENYART, and Mr. POLIS.
H.R. 4874: Mr. LUETKEMEYER and Mrs. WAGNER.
H.R. 4882: Mr. GOHMERT, Mr. LAMBORN, Mr. SOUTHERLAND, Mr. LAMALFA, and Mr. FRANKS of Arizona.
H.R. 4885: Mr. MCGOVERN.
H.J. Res. 44: Mr. HASTINGS of Florida.
H.J. Res. 105: Mr. BOUSTANY.
H. Con. Res. 27: Mr. BISHOP of Georgia.
H. Res. 330: Mr. MARCHANT.
H. Res. 435: Mr. MEADOWS and Mr. SMITH of New Jersey.
H. Res. 480: Mr. RANGEL.
H. Res. 538: Mr. MORAN.
H. Res. 587: Mr. HIGGINS and Mr. DANNY K. DAVIS of Illinois.
H. Res. 601: Mr. LAMALFA, Mr. BACHUS, Mr. DUFFY, Mrs. BROOKS of Indiana, and Mr. GOHMERT.
H. Res. 620: Mr. BURGESS, Mr. NUNNELEE, Mr. DESANTIS, Ms. ROS-LEHTINEN, and Mr. POMPEO.
H. Res. 621: Mr. HENSARLING.
H. Res. 622: Mr. MCKINLEY.
H. Res. 630: Ms. SCHAKOWSKY, Ms. PINGREE of Maine, and Ms. KUSTER.

PETITIONS, ETC.

Under clause 3 of rule XII, petitions and papers were laid on the clerk's desk and referred as follows:

82. The SPEAKER presented a petition of the City of Miami, Florida, relative to Resolution R-14-0165 urging the President and the Congress to grant temporary protective status to Venezuelans living in the United States; to the Committee on the Judiciary.

83. Also, a petition of the Illinois Commerce Commission, Illinois, relative to a resolution urging the Congress, the Administration, and our Nation to confront challenging fiscal decisions; jointly to the Committees on Energy and Commerce and Education and the Workforce.

AMENDMENTS

Under clause 8 of rule XVIII, proposed amendments were submitted as follows:

H.R. 4870

OFFERED BY: MR. WALBERG

AMENDMENT NO. 35: At the end of the bill (before the short title), insert the following:

SEC. 10002. None of the funds made available by this Act may be used to promulgate Directive 293, issued December 16, 2010, by the Office of Federal Contract Compliance Programs.

H.R. 4870

OFFERED BY: MR. GRAYSON

AMENDMENT NO. 36: At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to transfer aircraft (including unmanned aerial vehicles), armored vehicles, grenade launchers, silencers, toxicological agents (including chemical agents, biological agents, and associated equipment), launch vehicles, guided missiles, ballistic missiles, rockets, torpedoes, bombs, mines, or nuclear weapons (as identified for demilitarization purposes outlined in Department of Defense Manual 4160.28) through the Department of Defense Excess Personal Property Program established pursuant to section 1033 of Public Law 104–201, the 'National Defense Authorization Act For Fiscal Year 1997'.

H.R. 4870

OFFERED BY: MR. CONYERS

AMENDENT NO. 37: At the end of the bill (before the short title), insert the following:

SEC. __. None of the funds made available by this Act may be obligated or expended to transfer man-portable air defense systems (MANPADS) to any entity in Syria.

H.R. 4870

OFFERED BY: MR. GRAYSON

AMENDMENT NO. 38: At the end of the bill (before the short title), insert the following:

SEC.____. None of the funds made available by this Act may be used to transfer aircraft (including unmanned aerial vehicles), armored vehicles, grenade launchers, silencers, toxicological agents (including chemical agents, biological agents, and associated equipment), launch vehicles, guided missiles, ballistic missiles, rockets, torpedoes, bombs, mines, or nuclear weapons (as identified for demilitarization purposes outlined in Department of Defense Manual 4160.28) through the Department of Defense Excess Personal

Property Program established pursuant to section 1033 of Public Law 104–201, the 'National Defense Authorization Act For Fiscal Year 1997'.

H.R. 4870

OFFERED BY: MR. GRAYSON

AMENDMENT NO. 39: At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to ''consult'', as that term is used in reference to the Department of Defense and the National Security Agency in section 20(c)(1) of the National Institute of Standards and Technology Act (15 U.S.C. 278g–3(c)(1)), in contravention of the provision therein which mandates:

''to assure—

(A) use of appropriate information security policies, procedures, and techniques, in order to improve information security. . . ''.

H.R. 4870

OFFERED BY: MR. KILDEE

AMENDMENT NO. 40: At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used in contravention of section 1034 of title 10, United States Code.

H.R. 4870

OFFERED BY: MR. MORAN

AMENDMENT NO. 41: At the end of the bill (before the short title), insert the following:

SEC. ____. None of the funds made available by this Act may be used to carry out sections 8107 and 8108.

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PROCEEDINGS AND DEBATES OF THE *113th* CONGRESS, SECOND SESSION

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Senate

The Senate met at 9:30 a.m. and was called to order by the Honorable JOHN E. WALSH, a Senator from the State of Montana.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Creator, Sustainer and Redeemer, strengthen our Senators with Your spirit, infusing them with power for living. Lord, make Your truth real to them, enabling them to discover in Your precepts light for their path. May Your mercy, grace, and peace sustain them through the myriad challenges they face.

Lord, set them free from fear as they remember that nothing can separate them from Your love. As Your grace abounds toward them, give them strength for every weakness and sufficiency for every trial.

We pray in Your merciful Name. Amen.

PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. LEAHY).

The assistant legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
Washington, DC, June 19, 2014.

To the Senate:

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable JOHN E. WALSH, a Senator from the State of Montana, to perform the duties of the Chair.

PATRICK J. LEAHY,
President pro tempore.

Mr. WALSH thereupon assumed the Chair as Acting President pro tempore.

RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

SCHEDULE

Mr. REID. Following my remarks and those of the Republican leader, the Senate will be in a period of morning business for 1 hour. The Republicans will control the first half and the majority will control the final half.

Following morning business, the Senate will resume consideration on the motion to proceed to H.R. 4660.

There was a lot of conversation about how to move forward on this yesterday, but by late last night a way of moving forward was not obtained. We are still working on that. We expect to begin consideration of the bill around 12:45 p.m. today, something like that.

CAMPAIGN FINANCE REFORM

Mr. REID. Last weekend there was something strange and unusual happening out in Southern California near a place called Dana Point, which is north of San Diego. The previous night's guests were being ushered off the premises by hotel security. A private security team moved onto the property, setting up checkpoints. The hotel employees could be seen sweeping the rooms for electronic listening devices, and dozens of wealthy men and women were led into the resort, registering to attend an event deceptively entitled ''T&R Annual Sales Meeting.''

This meeting, once started, turned into a multiple-day event. It was closed to all spectators, journalists, and all those not explicitly invited. No official itinerary was available and details have not been forthcoming.

There were at least two Senators slated to attend and they did attend, but their offices have refused to comment on their participation. After all, attendees were sworn to secrecy—high levels of security, concealment, deception, and oaths of silence. That doesn't sound anything like a typical conference. It sounds more like a cult. But instead of being a religious movement or a secret sect, this is a cult of money, influence, and self-serving politics. This is the cult of Koch, and I am referring to the Koch brothers.

At their twice-yearly secret donor retreat, Charles and David Koch raise millions—millions and hundreds of millions—of dollars they then use to pursue their radical agenda—and it is radical. This year's conference was especially important to the Koch brothers as they coordinate efforts to spend hundreds of millions of dollars dictating this year's elections.

But why cloak their message in secrecy?

In his op-ed in the Wall Street Journal, Charles Koch invited his critics to ''try to understand my vision for a free society.'' It is easy to understand. Look at the Libertarian run he had for Vice President in 1982. They laid out what they wanted to do: privatize Social Security, basically do away with government. So to his critics he said, ''Try to understand my vision of a free society.''

That is pretty easy to do. How could we possibly understand the Kochs' vision, though, when they and their loyal followers try to do everything in secrecy? They hide from America. The truth is the Koch brothers are concealing their massive fundraising because Americans overwhelmingly oppose the purchase of our country. Our country shouldn't be for sale, and it isn't for sale, and I think in a little less than 5 minutes that can be proven.

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Instead of making the case directly to the American people, the Koch brothers funnel unseemly amounts of money into elections, trying to elect representatives who will do their bidding. Again in the paper today, they have all these phony organizations they fund. It is just a way to hide the agenda of the Koch brothers. They don't want their name to appear. They want to do everything they can to mislead the American people.

The influence of unlimited spending on a political system is not right. It allows individuals to dictate their will on the American electoral process, and in this instance in secret. This unlimited campaign spending disenfranchises Americans who don't have the resources to go tit-for-tat with two of the richest men in the world.

When the minority leader was a freshman Senator, he also took exception to the limitless spending of special interests. He said:

If the American public thinks that special interests are having undue influence on the process, then get rid of the PACs. I will be more than happy to eliminate PACs altogether.

But I guess times have changed. Now the Republican leader rails against campaign finance reform when in the past he was in favor. There should be no surprise that he attended the Kochs' planning session this past weekend. Evidently Senator MCCONNELL no longer believes that special interests have an undue influence on our government.

But he wasn't the only member to attend the Koch extravaganza. The junior Senator from Florida found the time to fly across the country and kiss the ring of the Republican Party's billionaire benefactors and, among other things, told them how outrageous it is that people are talking about the climate changing, that the Earth is warming. I am sure the junior Senator got a lot of applause there, even though we were not able to hear the applause because it is all very secret.

What else should we expect? The decisions by the Supreme Court have left the American people with the status quo in which one side's billionaires are pitted against the other side's billionaires—except one side doesn't have any billionaires.

We must undo the damage done by the Supreme Court's recent campaign finance decisions, and we need to do it now. That is why I support the constitutional amendment sponsored by Senators TOM UDALL of New Mexico and MICHAEL BENNET of Colorado. This constitutional amendment grants Congress the authority to regulate and eliminate the raising and spending of money for Federal elections. Senators UDALL and BENNET's amendment will rein in the massive spending of super PACs which have grown so much since the Citizens United decision in January of 2010. This constitutional amendment also provides States with the authority to institute campaign spending limits at the State level.

Simply put, a constitutional amendment is what this Nation needs to bring sanity back to political campaigns and to restore Americans' confidence in their elected leaders.

Let's put an end to the cult of darkness which is corrupting our elections. It is time we revive our constituents' faith in the electoral system and let them know their voices are being heard.

Mr. DURBIN. Will the majority leader yield to a question through the Chair?

Mr. REID. Be happy to.

Mr. DURBIN. I ask the majority leader through the Chair, yesterday afternoon the subcommittee of the Senate Judiciary on the Constitution held a hearing and a vote on Senate Joint Resolution 19, which the majority leader has referenced, offered by Senator UDALL of New Mexico and Senator BENNET of Colorado.

The resolution would basically restore us to the moment in time before the Citizens United decision and before the McCutcheon Supreme Court decision which would allow the Federal Government and the States to regulate campaign spending. It is content neutral in terms of the efforts to be made by the government but reestablishes new standards in terms of contributions in spending across America.

I ask the Senate majority leader, who has followed this closely, as he has followed the amount of money being spent on elections in this country, what he can foresee as the ultimate result if we fail to undo the Citizens United decision?

Mr. REID. We are already seeing it, I am sad to say. In one State the Koch brothers have spent almost $20 million against one Senator, and they say that is just the beginning.

America should not be for sale. I agree with the Republican leader when he said there should be limits put on this. I agreed, as I read the quote from his earlier remarks, it is not right.

Now we have two of the richest men in the world trying to buy America, and they are not only trying to buy Senate seats and House seats, there are votes on secretaries of state around the country, State legislatures. They have far more money than virtually every government and they want to have their view of government be the law: Privatize Social Security, do away with the Internal Revenue Service, and on and on with their money-buying program to convince the American people that the Koch brothers are right.

Mr. President, I would also say this through the Chair to my friend. They not only have all these entities I have talked to you about, they give money to the Chamber of Commerce. I am sure they were their largest contributor. Why? Because the Chamber of Commerce runs ads against us.

I appreciate the question and I would like to go on a little longer but the Republican leader is here.

I will close, but I deeply appreciate my friend who has been such an advocate on the Judiciary Committee and I hope very soon that the full committee reports on that resolution so we can move it on the floor.

RECOGNITION OF THE MINORITY LEADER

The ACTING PRESIDENT pro tempore. The Republican leader is recognized.

ENERGY

Mr. MCCONNELL. Mr. President, last night the Senate Deomocratic leadership pulled the Energy and Water bill from consideration for one reason: to protect the administration's new job-killing coal regulations. So once again Senate Democrats are preventing my commonsense procoal measure from moving forward. They have done the bidding of the administration instead of listening to constituents back home. Kentucky families, especially our coal families, continue to struggle under the Obama economy.

The Senate Democratic leadership's latest action is yet another example of the lengths they are willing to go to defend the Obama administration's regulatory agenda—an agenda Washington Democrats seem willing to protect at all costs, even when supposedly pro-energy Senate Democrats try to make us think otherwise.

NATIONAL SECURITY

Mr. President, historians will note that President Obama's national security policy has been noteworthy for its adherence to consistent objectives: drawing down our conventional and nuclear forces, withdrawing from Iraq and Afghanistan, surrendering the tools necessary to fight the war on terror, and placing substantial trust in international organizations and diplomacy. In short, he has displayed an inflexible commitment to policy positions that would completely erode America's standing in the world, and he has refused to change course even as circumstances have changed.

I, like many in the Senate, profoundly disagree with his view of America's role in the world. I disagree because I believe his attitude has left America weaker and will leave substantial problems to his successor.

I believe that we, as a superpower without imperialistic aims, have a duty to help maintain an international order and a balance of power, not out of altruism but out of national interest. And I believe that international order is best maintained through American military might. In fact, I believe that American military might forms its very backbone.

But President Obama has always been a reluctant Commander in Chief. It seems he has always seen things quite differently. That was clear from his first actions in office, and his more

recent actions set the other bookend to his Presidency—withdrawal from Afghanistan.

Consider that in his very first week in office, he signed an Executive order that sought to end CIA's interrogation and detention programs and to close Guantanamo within a year. The problem was that he didn't have a credible plan for what to do with the detainees afterward. He still doesn't.

That was one of the first things he did in office, and it parallels disconcertingly with one of the most recent things he has done in office: announcing the withdrawal of all of our combat forces from Afghanistan by the end of his term. I say that because once again he announced step A without thinking through the consequences of step B. He seems determined to pull out completely whether or not the Taliban is in a position to reestablish itself, whether or not Al Qaeda's leadership finds a more permissive environment in the tribal areas of Pakistan, and whether or not Al Qaeda has been driven from Afghanistan completely—one of our primary aims in this conflict from the beginning.

The two examples I mentioned serve as bookends to his Presidency, but between these two bookends much has been done that undermines our national security—for instance, the President's inability to see Russia and China for what they are: dissatisfied regional powers intent on increasing their respective spheres of influence.

The failed reset with Russia and the President's commitment to a world without nuclear weapons led him to hastily sign an arms treaty that did nothing to substantially reduce Russia's nuclear stockpile. What do we have to show for the reset? Moscow was undeterred in its assault on Ukraine, as everyone can plainly see, and Russia has repeatedly found ways to undermine our national objectives.

Then there is the President's strategic pivot to the Asia-Pacific—a plan he announced without any real plan to fund it, rendering the strategy largely hollow. We see examples of that almost daily, with China undeterred in its efforts to intimidate smaller nations over territorial disputes. Let's be clear. We cannot pivot forces to Asia that are still needed in places such as the Mediterranean and Persian Gulf, nor can we constrain China's ambitions without investing or developing the forces needed to do so. I fear that the failure to make the kinds of naval, air, and Marine Corps investments that are necessary could have tragic consequences down the road.

Of course, we have all seen how eager the President is to declare an end to the war on terrorism. The threat from Al Qaeda and other affiliated groups has now metastasized. The turmoil unleashed by uprisings in north Africa and the broader Middle East has resulted in additional ungoverned space in Syria, Libya, Egypt, and Yemen. We have seen prison breaks in Iraq, Pakistan, Libya, and the release of hundreds of prisoners in Egypt. Terrorists have also escaped from prisons in Yemen, a country that is no more ready to detain the terrorists at Guantanamo now than they were in 2009. And the flow of foreign fighters into Syria—which has fueled the growth of ISIL—suggests that the civil war there will last for the foreseeable future.

The dogged adherence to withdrawing our conventional strength and sticking to campaign promises has created a more dangerous world, not a stable one—as just one example, the President's failure to negotiate a status of forces agreement with Iraq. An agreement such as that would have allowed for the kind of residual military force that could have prevented the assault by the Islamic State of Iraq and the Levant. Now we see the consequences unfolding before our eyes, and it is incredibly worrying. President Obama's withdrawal-at-all-costs policy regarding Iraq has proved deeply harmful to U.S. interests, and it ignores the sacrifices made by our servicemembers—those who sacrificed life and limb fighting to keep America safe.

Several weeks ago the President spoke at West Point, and in that speech he vaguely described a new counterterrorism strategy and pledged to engage ''partners to fight terrorists alongside us.'' He made clear that he hopes to use special operations forces in an economy of force, and he hopes to deploy, train, and assist missions across the globe—all as he withdraws our conventional forces and as our conventional warfighting ability atrophies.

As I said, he will leave his successor with a great many challenges.

So this morning my Republican colleagues and I will explain how, by inflexibly clinging to campaign promises made in 2008, the President has weakened the national security posture of the United States and why we believe he is likely to leave the next President with daunting security problems to solve.

Mr. President, I see the Senator from Arizona and others are here.

I yield the floor.

RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Under the previous order, there will be a period of morning business for 1 hour, with Senators permitted to speak therein for up to 10 minutes each, with the time equally divided and controlled between the two leaders or their designees, with the Republicans controlling the first half of the time.

The Senator from Arizona.

ORDER OF PROCEDURE

Mr. MCCAIN. Mr. President, I ask unanimous consent that Republicans be allowed an additional 15 minutes.

The ACTING PRESIDENT pro tempore. Is there objection? Without objection, it is so ordered.

Mr. MCCAIN. I thank the Presiding Officer.

FOREIGN POLICY

Mr. MCCAIN. Mr. President, today we see reports that now ISIS has taken over the major oil refinery in Baiji, Iraq. Names that we used to hear quite often, such as, Tal Afar, Mosul, Fallujah, Ramadi—all of these areas are now under the black flag of Al Qaeda and ISIS, which is an even worse organization than Al Qaeda, if that can be believed.

We now see the forces of ISIS marching on Baghdad itself, which I don't believe they can take. But the second largest city in Iraq—Mosul—is now under the black flag, and quantities of military capability and equipment have clearly fallen into the hands of what has now become the richest, largest base for terrorism in history. This has all come about in the last couple of weeks.

What has the United States of America done? Today we see on the front page of the Washington Post: ''U.S. Sees Risk in Iraqi Airstrikes.'' The President of the United States goes for fundraising and golfing and now is fiddling while Iraq burns. We need to act, but we also need to understand why we are where we are today.

The Senator from South Carolina and I visited Iraq on many occasions—more than I can count. We know for a fact that if we would have left a residual force behind, this situation would not be where it is today.

The fact is that the President of the United States, if he wanted to leave a residual force, never made that clear to the American people. In fact, on October 22, 2012, the President said: ''What I would not have had done was left 10,000 troops in Iraq that would tie us down.'' In 2011 he celebrated the departure—as he described it—of the last combat soldier from Iraq.

The fact is that because of our fecklessness and the fact that we did not leave that residual force behind, we are paying the price, and the people of Iraq are paying a heavier price.

What do we need to do? First of all, we have to understand there are no good options remaining. This is a culmination of failure after failure of this administration. But for us to do nothing now will ensure this base for terrorism. We have tracked over 100 who have already come back to the United States of America. There are hundreds who are leaving—not only the battlefield in Syria and Iraq—and they will pose a direct threat to the security of the United States.

I say to the critics who say ''Do nothing and let them fight it out,'' you cannot confine this conflict to Iraq and

Syria. The Director of National Intelligence and the Secretary of Homeland Security have said these people will be planning attacks on the United States of America.

What do we need to do? Of course, Maliki has to be transitioned out, but the only way that is going to happen is for us to assure Iraqis that we will be there to assist. Let me make it clear that no one I know wants to send combat troops on the ground. But airstrikes are an important factor psychologically and in many other ways, and that may require some forward air controllers and some special forces.

We cannot afford to allow a Syria-Iraq enclave that will pose a direct threat to the United States of America. And if we act, we are going to have to act in Syria as well. A residual force of U.S. troops in Iraq could have checked Iranian influence in Iraq.

The other question is, What are the Iranians doing while we are not making any decisions? Well, probably the most evil man on Earth, the head of the Quds Force—an Iraqi terrorist organization—has been reported to have been in Baghdad. There are reports of Iranian forces moving into Baghdad.

I say to my colleagues that we must meet this threat. The President of the United States must make some decisions. I am convinced that the national security of the United States of America is at risk, and the sooner all of us realize it, the better off we will be.

I yield to my colleague from South Carolina.

The ACTING PRESIDENT pro tempore. The Senator from South Carolina.

Mr. GRAHAM. Mr. President, I ask unanimous consent to be recognized for 4 minutes.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. GRAHAM. Mr. President, contrary to what may be popular belief, there are plenty of Democrats in this body who are very much worried about Iraq. The question is, What do we do about it? I will be the first to admit it is complicated.

The first thing we have to assess as a nation is, does it really matter what happens in Iraq? Clearly, I think it does. Economically, if Iraq becomes a failed state, the oil production in the south will fall into the hands of the Iranians, and Iraq will become a failed state that spreads economic chaos throughout the region. We will feel it at the gas pump, and we will eventually feel it in our wallets. An economic collapse in Iraq would affect our economy. I think it would throw the world oil market into turmoil. So it matters economically.

Militarily, does it matter? It does in this regard: ISIS is an offshoot of Al Qaeda because Al Qaeda kicked them out. These people now are going to have a safe haven from Aleppo, Syria, to the gates of Baghdad. They have sworn to attack us. Part of their agenda is to strike our homeland. Their goal is to create an Islamic state—a caliphate—that would put the people under their rule into darkness. I don't want to hear any more war-on-women stories unless we address Iraq and Syria. Do we want to see a war on women? I will show my colleagues one. Can we imagine what little girls are thinking today in the Sunni part of Iraq and in Syria? Can we imagine the hell on Earth? The people who will do that to their own—what would they do to us?

I don't mean to be an alarmist, but I am alarmed. I am just telling my colleagues what they are saying they will do. Our Director of National Intelligence has said that the safe haven for ISIS in Syria, and now in Iraq, presents a great threat to our homeland. The mistake President Obama is making is not to realize we need lines of defense.

Why did we want to leave a residual force behind in Iraq? Ten thousand to 15,000 would have given the Iraqi military the capacity they don't possess today, the confidence they don't possess today. It would have given us an edge against ISIS we don't have. A Toyota truck doesn't do very well against American air power. But when we have no American air power and when the intelligence capability of the American military leaves, the Iraqi Army goes dark. We have seen a collapse of the Iraqi Army that I think could have been prevented.

We can't kill all the terrorists to keep us safe. Our goal in this trying time is to have lines of defense, to keep the war over there so it doesn't come over here. It is in our national security interests to partner with people in Iraq. There were many who wanted a different life than ISIS would have. There are many Shias who want to be Iraqi Shias, not Iranian Shias. I have been there enough to know.

So this fateful decision to look for ways to get out totally has come back to haunt us, and we are on the verge of doing the same thing in Afghanistan. I promised my colleagues the Taliban would be dancing in the streets—they just do not believe in dancing—when they heard we were leaving in 2016. Can we imagine how the Afghan people feel who have fought these thugs by our side believing we would not abandon them and now to hear we are going to pull all of our troops out but for a couple of hundred. Can we imagine how a young woman in Afghanistan feels. Can we imagine how people in Pakistan feel—a nuclear-armed nation that could be in the crosshairs of the people trying to take Afghanistan down.

But it is not just about the people in Afghanistan. What about us? President Obama is going back to a pre-9/11 mentality. On September 10, 2001, we had not one soldier in Afghanistan, not one dollar of aid, not even an ambassador. So those in America who think if we leave these guys alone they will leave us alone, you are not listening to what they are saying. The only reason 3,000 Americans died on September 11 and not 3 million is they can't get the weapons to kill 3 million of us. If they could, they would, and they are very close.

So, Mr. President: Recalculate your decision on Afghanistan. If you pull all of our troops out, the Taliban will regroup, the Afghan National Army will meet a terrible fate, and the people who wish us harm will be coming back our way. The region between Afghanistan and Pakistan is a target-rich environment for the world's most radical terrorists, radical Islamists. So at the end of the day, Mr. President: Your job is to protect us. You are destroying the lines of defense that exist. The Afghan people are willing to have us stay there in enough numbers to protect them and us. Mr. President: Before it is too late, change your policies in Afghanistan. Mr. President: Do not take this country back to a pre-9/11 mentality where we treat terrorists as common criminals when we read them their rights rather than gathering intelligence.

We are letting our defenses erode all over the world. The enemies are emboldened and our friends are afraid. I can tell my colleagues this. If we continue on this track, it will come here again.

With that, I yield the floor for Senator CHAMBLISS.

The ACTING PRESIDENT pro tempore. The Senator from Georgia.

Mr. CHAMBLISS. Mr. President, I rise today to join my colleagues in discussing the current direction of U.S. foreign policy, especially as it relates to the Middle East. The Obama administration's foreign policy in this regard has unfortunately totally unraveled. The President, to his credit, made the Middle East his priority and engaged the Arab world early on in his presidency. He attempted to forge a new beginning between the United States and the Muslim world, but his idealistic strategy simply has not worked.

The Middle East over the last 3 years has been besieged by a resurgence of violence, instability, and terrorism. The administration has chosen to confront this challenge, which has major implications for U.S. national security, by leading from behind and by relying on an ineffective diplomatic strategy that involves few concrete security measures.

The shortcomings of this diplomatic strategy are painfully evident today in both Syria and in Iraq. In September of last year the administration praised the U.S.-Russian deal to disarm Syria of its chemical weapons. The deal was designed to rid Syria of chemical weapons and buy time for a diplomatic solution. Yet here we are today, in a situation where the Syrians have missed countless deadlines, still have chemical weapons, and continue to use barrel bombs filled with chlorine and other chemicals, as well as ball bearings, with impunity. In addition to the humanitarian disaster that has unfolded in Syria, allowing the status quo to

continue has also given the Islamic State of Iraq and the Levant, ISIL, and the al-Nusra Front the safe haven they needed to grow into the force we face today. Make no mistake about it. Terrorists are training inside of Syria today, planning to attack America and American interests.

I have been shocked to hear news commentators and some in this body refer to recent events in the Middle East, including the rise of ISIL in Iraq, as intelligence failures. The intelligence community makes its fair share of mistakes and I am the first to criticize them when they do. But these recent events, including the resurgence of ISIL, are not intelligence failures; they are policy and leadership failures. As we saw in Benghazi, the intelligence community provided ample strategic warning of the deteriorating security situation in Libya. Yet the administration did little to enhance security in Benghazi. Failing to protect the diplomatic facility, despite repeated warnings, is not an intelligence failure, it is a policy and a leadership failure on the part of the administration.

With regard to Iraq, intelligence, including Director Clapper's testimony at a January 29, 2014, hearing, has been abundantly clear that Iraq was vulnerable to the threat from ISIL. I encourage any Member to read the intelligence if they have questions regarding the intelligence community's assessment about security in Iraq and the rise of ISIL before the fall of Mosul. It was clear in 2011, as U.S. forces were withdrawing, that Iraq was vulnerable to a resurgence in extremist activity, and we have seen the violence escalate steadily in the last 3 years during this administration's failed policies. This collapse in security was again easily predicted, but we have stood by and watched as it has occurred. Again, this is a policy failure, not an intelligence failure.

Perhaps the most concerning aspect of this administration's foreign policy is its inadequate counterterrorism strategy. I often hear administration officials touting Al Qaeda's demise or describing the organization as on the run. Yet nothing could be further from the truth. As my friend from South Carolina alluded to earlier, before we began on the floor this morning, he said: Yes, Al Qaeda is on the run. They are running from one country to the next and taking over one country and the next.

Violent extremism is on the rise in the Middle East, and the warning signs have been visible for years. These warning signs include the September 11, 2012, attack in Benghazi, the rising of Al Qaeda-affiliated extremist groups such as the al-Nusra Front in Syria, the resurgence of ISIL, and most recently the fall of Mosul. Just yesterday we saw a terrorist flag raised over the largest refinery inside of Iraq. Despite these stark warning signs, the administration has only been willing to take very limited steps to curb this disturbing trend. Instead of focusing on making counterterrorism operations more effective, the administration has been focused on ending the wars in Iraq and Afghanistan while America's enemies grow stronger. This approach has been a huge gamble that continues to jeopardize America's security.

The administration has sidelined many of the tools we used to successfully counter Al Qaeda in the years immediately after 9/11, including the effective, long-term detention and interrogation of enemy combatants. As a result, we know far less today about many of these terrorist organizations. Since the President ordered the closure of the detention facility at Guantanamo Bay in January of 2009, our Nation has been without a clear policy for detaining suspected terrorists. Without such a policy, including one that identifies a facility for holding terrorists that are captured outside of Afghanistan, the intelligence community's ability to conduct ongoing intelligence operations have been severely limited. I recognize there is no one-size-fits-all solution for handling terrorists, but our detention policies must foster full intelligence collection before any prosecution begins.

Al Qaeda and its affiliates and other terrorist groups are determined to attack the United States. We constantly face new plots and operatives looking for ways to murder Americans, such as the foiled May 2012 AQAP plot to put another IED on a United States-bound aircraft. Thankfully, this plot and others didn't materialize, but we are not going to always be that fortunate.

We know that Al Qaeda in the Arabian Peninsula—or AQAP—today represents one of the biggest threats to the U.S. homeland and personnel serving overseas. They are continually plotting against our interests and seeking new recruits, especially among our own citizens as well as former Guantanamo detainees. Explosive experts such as Ibrahim al-Asiri continue to roam free, posing a tremendous threat to the safety and security of U.S. citizens.

The proposed closure of Guantanamo Bay presents significant risks for the United States and Yemeni efforts to counter AQAP inside Yemen. A substantial portion of the detainees remaining at Guantanamo Bay are Yemeni citizens. Transferring these individuals to a country plagued by prison breaks, assassinations, and open warfare at this point could prove very catastrophic. These detainees would likely join several other former Gitmo detainees who have returned to the fight in Yemen, further destabilizing the country and worsening an already tenuous security situation.

The most recent example of a totally failed and dangerous policy on the part of this administration is the exchange of five Guantanamo detainees for Sergeant Bergdahl. We are all glad Sergeant Bergdahl is back. We should have done everything we could to get him back, and thank goodness he is now with his family. But the deal—the exchange of five individuals from Guantanamo Bay who now wake up every morning thinking of ways to kill and harm Americans—was not the right thing to do. There were other ways to handle it. Yet this administration, almost callously, without notifying Congress—by the way, that was clearly intentional. The failure to notify Congress of what they planned to do when they signed a memorandum on May 12 and didn't release these individuals for another 2½ weeks gives us a pretty clear indication that this administration did not want to come to Congress and say we are going to exchange these five Guantanamo prisoners. The reason they did not is because they knew there would be objections from both sides of the aisle to doing such a dangerous thing and setting such a terrible precedent.

So whether it is in Iraq, Afghanistan or in other parts of the Middle East, Americans have fought and died in the war against Al Qaeda. Our Nation is weary of war, but threatening elements still remain. And those five individuals who I just alluded to are clearly threats to the United States.

I have asked the President to declassify the personnel files on those five individuals: Tell the American people what we know about them, Mr. President, and then look the American people in the eye and say: This was a good deal. I know they are going to return to the fight, and they are going to seek to kill and harm Americans, but this was a good deal.

Well, that is for the American people to decide ultimately.

I urge President Obama and my congressional colleagues, as well as the American people, not to abandon the gains we have made in the fight against terrorism since 9/11, but let's remain steady and let's continue to fight the good fight.

With that, I yield for my friend from North Carolina.

The ACTING PRESIDENT pro tempore. The Senator from North Carolina.

Mr. BURR. Mr. President, I ask unanimous consent to speak for up to 5 minutes.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. BURR. Mr. President, I join my colleagues today to discuss the administration's misguided foreign policy, especially as it relates to Afghanistan and the threat of Al Qaeda, the Taliban, and the Haqqani Network. Despite what the administration would have you believe, Al Qaeda, the Taliban, and the Haqqani Network remain capable and committed adversaries in Afghanistan. They are a clear strategic threat to the safety, the security, and the stability of the region and continue to commit to acts of violence against U.S. troops and plot against U.S. interests in the region and here at home.

Yet, for some reason, this administration has time and again failed to

recognize this simple fact, or worse, they have chosen to ignore it. Al Qaeda is not decimated—regardless of what Ambassador Rice may have communicated to the American people. Its senior leadership continues to plot devastating attacks and, more troubling, serve as an inspiration to a series of affiliates in Yemen, Somalia, Iraq, and elsewhere. These affiliates are plotting against the United States of America here at home, with the guidance, advice, and financial support of Al Qaeda's senior most leadership.

The Al Qaeda brand is alive and well, and the Obama administration's AfPak strategy to end the conflict, not win it, reveals a profound failure to analyze threats to the region, the world, and the United States of America.

Despite what this administration would have you believe, leaving Afghanistan before our work is done will not—will not—end the fighting. We cannot take the pressure off or our enemies will bring the fight to our doorstep here at home.

But Al Qaeda is not alone in Afghanistan. It is well established that the Haqqani Network, one of our deadliest adversaries, is the link between the Taliban and Al Qaeda—a direct link.

The Haqqani Network is directly responsible for a significant number of U.S. casualties and injuries on the battlefield in Afghanistan and continues to actively plan potentially catastrophic attacks against our interests and the interests of others in the region.

The group routinely targets civilians—civilians—and uses murder as an intimidation tactic against the Afghan people. They have mounted numerous assaults and suicide attacks on civilians and U.S. forces with deadly effectiveness. Yet the administration took until late 2012—at the urging of the Senate of the United States in a bill that I introduced—to actually name the Haqqani Network as a foreign terrorist organization.

Why was that important? Because that act changes the game. It provides us the full range of diplomatic and military tools to use directly against the Haqqani Network. It is against that backdrop that the administration then negotiated with the Haqqani Network the release of five high-level Taliban fighters for SGT Bowe Bergdahl's return. In other words, the President rewarded the Haqqani Network for its incarceration of a U.S. servicemember, strengthened its relationship with the Taliban, emboldened the Taliban, and undermined the Afghan Government—all with one decision.

Does anyone in this administration believe that five high-ranking Taliban officials, when set free, would not return to the fight? If they do, then they have not paid attention for the last decade or longer.

I understand that this Nation is weary of war. I understand the sacrifices made by our servicemembers, and I work every day to ensure that our brave veterans are provided the care and treatment they deserve. Their efforts should not be in vain.

As we are here today, Marine Cpl Kyle Carpenter will receive the Medal of Honor. He was a 19-year-old when he signed up to go in the Marine Corps. The young marine, in combat—to save a fellow marine—jumped on a grenade. Kyle Carpenter lived—not only lived—after 40 surgeries, today he just completed his freshman year at the University of South Carolina, at 24 years old.

He is an American hero. He could be any one of our children or grandchildren. What makes this country great is that we have people such as Kyle Carpenter who step up, when asked, and they do more than we could ever ask of them.

Our servicemembers served and sacrificed overseas so that we could be safe at home. We cannot in good faith let the administration dishonor their efforts with a misguided policy.

The continued drawdown of U.S. and coalition forces in Afghanistan will provide Al Qaeda, the Taliban, and the Haqqani Network with a safe haven to train operatives and plot further attacks against the United States of America and our allies.

Contrary to the campaign statements of the President and Vice President, Al Qaeda is not ''on the run,'' and I urge this administration to avoid further actions that may endanger our Nation.

I yield the floor for Senator INHOFE.

The ACTING PRESIDENT pro tempore. The Senator from Oklahoma.

Mr. INHOFE. Mr. President, I ask unanimous consent that I be allowed to speak until the arrival of the Senator from Alabama, Mr. SESSIONS.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. INHOFE. Mr. President, the subject today, of course, is the failed foreign policy of this President and this administration. It is really hard to do it in a limited period of time because once something happens like Benghazi, and we get into the middle of that thing, then all of a sudden you turn around and this President turns loose arguably the five most heinous terrorists from Gitmo. At the same time, we have a policy that was going so well in Iraq, and now we find out that is not working out either. If I have time, I will touch on that.

But the first thing I want to do is just mention this Benghazi thing. Being the ranking member on the Armed Services Committee, I had the opportunity to really be in there and see as it was happening. It happens that Chris Stevens—the Ambassador who was sent over there and who was killed, one of the four who was killed in Benghazi—was a friend of mine. He was in my office. We spent time together. We talked about the threats that were out there. Then, as we got closer to this time, he realized and started sending messages to the President, to the White House, to us, to send security over there. He said that right now the terrorists are actually training in Benghazi. They actually had their flags flying. They knew they were organizing something, probably for an anniversary of 9/11. So he knew that. He had requested it, and the President elected not to send help at that time.

The question a lot of people have is—they will say: INHOFE, how do you know the President knew that was an organized attack? Well, I can tell you how. In our system of government, we have four people who are responsible for advising the President on threats, on intelligence. They are the CIA Director—at that time it was John Brennan. The Director of National Intelligence was James Clapper. The Secretary of Defense at that time was Leon Panetta. The Chairman of the Joint Chiefs of Staff was General Dempsey.

Now, all of them acknowledged, when the annex was hit in Benghazi, that it was an organized—that same day—an organized terrorist attack. They all knew it. They expected it, but then they knew for a fact it was.

So you are talking about the individuals who are responsible for advising the President. All of them were well aware that on the day of the annex attack in Benghazi that it was an organized terrorist attack. It was several days later that they sent Susan Rice to all of these shows in order to try to make it sound like it was some video that somebody had.

Now, why would the President not want to admit that this was an organized terrorist attack? It was right before the election and the polls showed a lot of the people thought—Osama bin Laden having been captured—there was no longer that big threat out there in the Middle East and that would inure to his benefit. So it was for political reasons, and we ended up losing four lives.

Then, just recently, they are saying, oh, they have now found this Abu Khattala. This is someone who has been around for 2 years. The press has been talking to him for 2 years. Why, all of a sudden, are they saying—now of all times—this is the guy who perpetrated Benghazi, when, in fact, this all came from the White House? I just think it is just covering it up, and I am very much offended by that.

But the one thing I wanted to talk about—and I know some of the other Members are going to be here, and I will not abuse the time that has been given to me—but it is having to do with the release of the five Taliban terrorists on the American people. Let me tell you a side of this that people are not talking about that I feel strongly is the reason for it.

First of all, this President is in the last half of his second term—or approaching the last half of his second term. As is always the case, when you get down toward the end of your term, you start looking for a legacy. What was his legacy?

One of his legacies is closing Gitmo. This President has been talking about

closing Gitmo for as long as I can remember, certainly longer than he has been President.

Now, you wonder why. I go back and I tell people in Oklahoma—they say: Why does he want to close Gitmo? You cannot answer that. We have had Gitmo since 1903. It is one of the few good deals we have in government. We only pay $4,000 a year for that, and half the time the Cubans do not cash the check. So we have this thing. We had actually 778 people there incarcerated and being interrogated prior to the time that Barack Obama became the President of the United States. Now we are down to 149.

But as far as Gitmo—that resource—no one argues with the fact that the humane treatment is beyond anyone's expectation. There is no place else in the world they can do that. They are fully compliant with the Geneva Convention. They have had people go in there and look at the maximum security prison, and it is attested to. Human rights organizations, the Red Cross, and everyone else agrees that it is a very humane place while they are interrogating. As I said, there is no place else they can do this. Because if you start doing this in our court system, obviously, they get Miranda rights, constitutional rights, and people are pretty offended when they find out. That keeps us from getting information that would affect some of the others.

We have an expeditionary legal complex there. It is the only one like this in the world, where they can actually do this.

So this is a place where we can actually get in there, interrogate, get information, incarcerate people, not intermingle the terrorists with the prison population in this country, which is what the President has been talking about doing.

Why do I say that? I say that because these guys are terrorists. They are not criminals. You put them in our prison system, and by definition their job is to train other people to become terrorists, and that is what they would be doing in training the prison population to become terrorists.

I have to say this too. All of the talk about Osama bin Laden and the fact that we do have him—and I am very glad we were able to bring him down. But how did we do it? We did it through information that we received through interrogation at Gitmo, Guantanamo Bay.

So I only say that because people wonder, why in the world would he be wanting to do this? And how does he want to fulfill this expectation or this legacy he has?

Let me tell you, tell you how I think. If he would take, out of the 149 individuals who are left there, the 5 most heinous terrorists, most dangerous Taliban terrorists, and turn them loose, that would put him in a position, then, to get rid of the rest of them, with the exception of those who are awaiting war crimes trials.

So what happened? He turned them loose, No. 1. No. 2, he told the Taliban exactly when the United States is going to leave, regardless of the conditions on the ground. And then, thirdly, he has said that he is going to declare an ''end of hostilities.''

That is a proper phrase, ''end of hostilities.'' This is not a war, it is a hostility. If he does that, that would then give him the justification for opening the gates, turning everyone loose from Gitmo and closing Gitmo. That, in my opinion, is the estimation.

What are the threats we are facing as a result of that? We are in a position right now where we have five people who are turned loose. Even if we trusted Qatar to hold these five guys for a period of 1 year, still the philosophy there would be: All right, we will turn you loose if you few promise not to kill Americans for 1 year. That does not make sense.

So this is something that should not have happened. We now have the people there making decisions, and they are celebrating as we speak. One of the five individual's name is named Fazl. I will end with this: There is a guy named Mullah Salem Khan. He is a Taliban commander over in Afghanistan. Listen to this. He is talking about Fazl, one of the five guys. He said:

> His return is like putting 10,000 Taliban fighters into the battle on the side of jihad. Now the Taliban have the right lion to lead them in the final moment before victory in Afghanistan.

That is what happened with these guys. That is how it is viewed over there. It is an atrocity that it did happen.

I yield the floor for Senator CORNYN.

The ACTING PRESIDENT pro tempore. The Republican whip.

Mr. CORNYN. Mr. President, how much time remains in the allocation of this side's time?

The ACTING PRESIDENT pro tempore. The Republicans have 8 minutes remaining.

Mr. CORNYN. I know we perhaps have another Member coming to speak. Would the Chair please advise me after I have used 5 minutes of that 8 minutes?

The ACTING PRESIDENT pro tempore. The Chair will do that.

Mr. CORNYN. Mr. President, I wish to talk about the intersection of national security and our mounting debt. Over the last 5 years, President Obama has had multiple occasions to embrace real structural entitlement reform that would help solve our long-term debt problem. One might wonder why am I talking about debt when the subject we are generally talking about is national security, including what is happening in Iraq and Syria.

It is because as the former Chairman of the Joint Chiefs of Staff said, ADM Mike Mullen, when asked what the single biggest threat to our national security was, he said: It is our debt. The President had an opportunity, when the Simpson-Bowles Commission released its recommendations in late 2010. As you will recall, this is a bipartisan commission the President himself appointed to help come up with a formula to deal with our fiscal problems.

Unfortunately, once they made their recommendations in December of 2010, the President walked away from them and nothing came of it, even though we are facing, in addition to $17 trillion in debt, more than $100 trillion in unfunded liabilities. Perhaps it is because those numbers are so big that we have a hard time getting our head around it, that people have become desensitized to the urgency of dealing with our debt and these unfunded liabilities.

But the President has never once endorsed any sort of reform necessary to deal with this challenge or to prevent a future crisis. The fact is, somebody someday—probably these young men and women who are working as pages and others their age, is going to have to be the ones to pay this back because our generation will have failed them unless we meet the challenges this presents.

It seems as though the only part of the Federal budget the President is eager to cut is national defense. Under his latest budget plan, defense spending would drop from 3.4 percent to 2.3 percent of GDP by 2023. At the same time, we are told the U.S. Army might be shrunk to the smallest size since pre-World War II.

President Obama needs to realize that even America's current military capabilities are proving inadequate to meet global challenges. For example, one former Assistant Secretary of Defense has declared that because of Pentagon budget cuts, President Obama's highly touted pivot to Asia cannot happen. In other words, despite promoting the Asia pivot as a crucial element of American foreign policy, the President has failed to take the necessary fiscal steps to make sure that happens or could happen.

This of course makes it a hollow policy, one where the promises are extravagant, but the delivery is anemic, and one that will do major damage to U.S. credibility among our allies and adversaries. The prospect of bringing DOD spending back down to sequestration levels has alarmed our senior military officials in all branches of government. Chief of Naval Operations ADM Jonathan Greenert has said that reverting to sequester levels in 2016 ''would lead to a Navy that is too small and lacking the advanced capabilities needed to execute the missions that nation expects of its Navy.''

The Secretary of the Air Force has said that going back to those spending levels ''would compromise our national security.'' Ray Odierno, Chief of Staff of the Army, said it would put ''our young men and women [in uniform] at much higher risk.'' In other words, the President cannot simply keep cutting defense spending and the military in order to fund his other priorities and at

the same time ignore the 70 percent of spending that is on autopilot, so-called entitlement spending. That is where the big money is. That is where the reforms need to take place, but it will not happen without a leader.

We all know what is happening in Iraq. I know time is short. I do not want to take away any more time than necessary from my colleague from Alabama, but this map reflects what is happening now in Iraq. The civil war in Syria, the President had drawn a red line which once crossed—there were no consequences associated with that.

The PRESIDING OFFICER. The Senator has consumed 5 minutes.

Mr. CORNYN. Now this border between Iran and Syria has basically been wiped away. We see all of these places where the ISIS, a horrific terrorist group that is even worse than Al Qaeda, has basically taken charge. So this is what happens with a failure of leadership. Unfortunately, this is where we are in so many places around the world.

In short: President Obama simply cannot keep asking America's military to shoulder such a disproportionate share of the spending cuts while our biggest entitlement programs remain virtually untouched. DoD spending did not cause our long-term budget problem, so slashing it to the bone would not solve that problem. Moreover, seemingly every week brings fresh reminders of the challenges our country will face in the years to come. At this very moment, we have Russia's ongoing aggression against democratic Ukraine. We have an Iranian theocracy that shows no signs of abandoning its quest for a nuclear weapon. We have a persistent terrorist challenge in Afghanistan. We have a potential failed state in Libya. We have growing Al Qaeda activity in many parts of Africa. We have a Chinese dictatorship that is increasing its annual military budget by more than 12 percent while continuing to bully its neighbors on the high seas.

Most notably, we have a burgeoning terror state in the heart of the Middle East, where a ruthless band of jihadist killers—a group that is even more radical and murderous than Al Qaeda, if you can believe it—now controls a massive piece of territory spanning both Syria and Iraq. Calling their movement the ''Islamic State of Iraq and Syria,'' or ISIS, members of this organization have taken over major Iraqi cities, including Fallujah, Mosul, Tikrit, and Tal Afar, leaving a trail of blood and medieval terror in their wake.

The map to my left shows just how much territory ISIS has conquered. To make matters worse, they have seized a tremendous amount of weaponry and money—almost half a billion dollars—making them perhaps the most well-resourced terrorist group on earth.

And again, just to reiterate: This group is considered more radical, and more vicious, than even Al Qaeda.

Amazingly, even after ISIS took control of Mosul, Iraq's second-largest city, a National Security Council spokeswoman stuck to the White House's 3-year-old talking points and said, ''President Obama promised to responsibly end the war in Iraq and he did.''

Of course, the President did no such thing. By the time he assumed office in January 2009, Iraq had largely been stabilized. All the President had to do was convince the Iraqi government to sign a new Status of Forces Agreement, SOFA. Unfortunately, he was more interested in keeping a misguided campaign promise from 2008.

As a result of his failure to maintain a significant U.S. troop presence in Iraq, America emboldened the Iranians, the Shiite militias, and the Sunni terrorist groups to become more aggressive. We also emboldened Iraqi Prime Minister Nouri al-Maliki to behave in a more sectarian and dictatorial manner.

Meanwhile, amid the fallout from America's Iraq withdrawal, President Obama's failure to take early, decisive action in Syria made it much easier for Sunni terrorists to increase their territory, weapons, and manpower. As you can see from this map, the jihadists have effectively been using their bases in Syria as a launching pad for attacks in western Iraq.

The path forward in Iraq is highly uncertain, but I would urge President Obama to explain to the American people what is at stake, and to formulate a robust strategy for defending U.S. interests and preventing the creation of a new terror state. The President may well believe—as a recent New York Times article suggested—that ''he is managing an era of American retrenchment.'' But with bloodthirsty jihadists marauding through Iraq and approaching the gates of Baghdad, now is not a time for U.S. retrenchment. Instead, now is a time for clear thinking, clear decisions, and clear action.

The ACTING PRESIDENT pro tempore. The Senator from Alabama.

Mr. SESSIONS. Mr. President, I ask unanimous consent that I be allowed to speak for up to 5 minutes.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. SESSIONS. Mr. President, when a nation commits itself to a military effort, it is a very significant, august decision. I was here when we voted to utilize military force in Iraq and Afghanistan. A majority of the Democrats in this body supported that. The American people supported that.

Through tough times, success was achieved in the sense that Iraq had elections, they had a functioning government, the U.S. military was drawing down its personnel, the country had a reconciliation with the Sunni and the Shia and the Kurds, and we were on a path that gave us some prospect, I believe it is fair to say—critics can have different opinions—but it is pretty clear to me we had prospects for a successful conclusion of that effort which would allow a relatively stable, relatively democratic nation to be established that did not threaten its neighbors or the United States.

So we should have not done that. Well, we did that. That is what has happened. That was the situation when President Obama took office. He failed, in my opinion, in negotiating the kind of drawdown in the status of forces agreement that needed to be established to be able to create credibility in this new and fragile regime and help hold their military together, keep them trained, while we reduced dramatically our presence and military activities. We would be there as support, supplying equipment, intelligence, aircraft lift capability. That would have given them confidence.

It was very clear when we just said: We cannot reach an agreement. We are pulling everybody out. We had General Bednarek talk to us recently. He told us he has 100 solders. I asked him if he was the current General Petraeus.

He said, yes, with a bit of a smile, but he only has 100 people. So I guess I would say we are worried about it. One of the things that is so critical in our conduct and understanding of what we are involved in is to understand that the terrorist threat is going to be there for a long time. We are going to be dealing with this for a long time. There is a significant number, not a majority by any means but a significant number, of radicalized people in the Middle East who want to destroy the United States. They see us as an evil force. They support what we oppose. They want to take over their neighbors and continue to expand. They want to knock down reasonably functioning regimes that provide at least some freedom and order in their societies. They want to impose a caliphate. They want to impose on those countries a theocratic government and legal system.

It is not good for the United States and it is not good for the world. One of the things we have to do and have to understand is that when we capture a person committed to the destruction of the United States, and who is attacking our people, they are not criminals. They are warriors. Most of their activities are clearly contrary to the law of war. So they are unlawful enemy combatants.

When we capture a soldier in battle, whether lawful or unlawful, if they have complied with the rules of war, unlike this group, we do not try them, per se. We hold them until the war is over, until a peace treaty has been signed, until an agreement has been reached. That is not happening now. As a result, we have a confused policy that results in the release of dangerous enemy combatants, such as the five Taliban leaders we just released under this confused thinking.

It fundamentally arose when the left—determined to attack President Bush—attacked the secure terrorist detention facility at Guantanamo Bay. They argued that it became some symbol of the policies we are using to detain people who are captured enemy

combatants, lawful or unlawful. When we capture them, we hold them. We do not release them so they can go back to the war and kill us. We are going to send soldiers out to capture them, and then once they have been captured, we are going to release them so they continue into the war? It goes against all common sense. As Justice Jackson once said: The Constitution is not a ''suicide pact.''

The ACTING PRESIDENT pro tempore. The Senator's time has expired.

Mr. SESSIONS. I ask unanimous consent for 1 additional minute.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. SESSIONS. So they have to be treated properly and that sort of thing, but they do not have to be released. We captured, for example, Nazih Abdul-Hamed al-Ruqai last year for conspiring with bin Ladin to attack U.S. forces in Saudi Arabia, Yemen and Somalia and for his part in the 1998 bombings of two U.S. Embassies in East Africa that killed 224 people before 9/11. He is a treasure trove of intelligence.

U.S. forces went in and captured him, took him away at risk of their lives. He had been undergoing interrogation on the USS *San Antonio* until he said he was sick and not doing well. So what happened? They took him to New York, where he was formally arrested and taken into the custody of the U.S. Justice Department, and put into the civilian justice system. The purpose of capturing him was to get intelligence. This is a warrior. We want to talk to him. We want to see what we can learn about him. Even the New York Times said ''his capture was seen as a potential intelligence coup because he had been on the run for years and so would, presumably, possess information about al Qaeda.'' However, when he appeared in Federal court, he was appointed a lawyer, guaranteed a speedy, public trial—the things that prisoners of war are not entitled to—yet this has been happening over and over again. Al-Ruqai's cooperation ended, leading to a major lost opportunity to obtain valuable intelligence.

This evidences a serious lack of understanding of the nature of the conflict we are engaged in. It evidences a policy that is dangerous to our safety. It is wrong to send Americans to capture people such as this and then treat them in a way that allows them to minimize the opportunity to obtain intelligence.

Indeed, the gravest danger with bringing enemy combatants to U.S. soil is that the President cannot absolutely prevent their release into the United States. And, once foreign nationals are here, there are legal limits on the government's ability to remove them from the U.S. The reality is, once here, their fate is no longer simply up to the administration but also a federal judge.

There are many examples of foreign nationals who have committed murder and other serious crimes and were released into the U.S. when our government could not transfer them to another country.

This risk extends to the detainees at Guantanamo Bay. We saw that in the case of Kiyemba v. Obama. There, the D.C. District Court ordered the release into the United States of a group of ethnic Chinese Uighers who were detained at Guantanamo, many of whom had received military-style training in Tora Bora. Fortunately, the D.C. Circuit reversed the decision based on the fact that the Gitmo detainees had not been brought to the United States. If, however, Gitmo detainees are brought here, a judge may very well order them released into the United States if they cannot be removed to another country. That very real risk obviously does not exist if Gitmo detainees are not brought to the United States in the first place.

The course this administration has chosen on national security matters has steered us into a head-on collision with reality. The American people unequivocally oppose transplanting terrorists from Gitmo into their own communities, either for detention or trial. Our primary goal is to prevent future terrorist attacks, especially through obtaining intelligence. We should not jeopardize that goal in order to afford foreign terrorists who seek to harm the United States and its citizens the rights and privileges granted to ordinary criminals. The administration's policy has put this country at grave risk.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Connecticut.

LORI JACKSON DOMESTIC VIOLENCE SURVIVOR PROTECTION ACT

Mr. BLUMENTHAL. Mr. President, photographs on this poster are of a young woman, Lori Jackson, a Connecticut resident, who died tragically, needlessly, savagely in Oxford at the hands of her estranged husband.

Lori is the reason I have introduced legislation named after her to close a gaping loophole in our Federal law—well, she is not the only reason. Tragically, there are thousands of other women and some men who have shared her fate because of a gap in Federal law that permits intimate partners to continue to have firearms, even when they are under restraining orders from the court. Those restraining orders are placed against them because they evidence clear danger to their partners, whether their husband or their spouse.

The reason they pose danger is that they become violent. The gap in the law is it applies only to permanent restraining orders, not temporary ones.

Lori Jackson sought a temporary restraining order when her estranged husband threatened her physically and her two 18-month-old twins at their home. She sought and she obtained a temporary restraining order and literally the day before that temporary restraining order was to become permanent and the prohibition against her husband having a firearm would have gone into effect, he gunned her down at her parents' home where she had sought refuge with her children—gunned her down and savagely and severely wounded her mother as well with those same firearms.

The temporary restraining order against Lori's husband was completely ineffective, powerless to prevent him from using that gun against her and killing her—and her mother, severely wounding her.

Tragically, Lori's story is far from unique. Jasmine Leonard also had a temporary restraining order against her husband. She died last week after her husband shot her.

Chyna Joy Young celebrated her 18th birthday just days before she was shot and killed by her estranged boyfriend, despite the temporary restraining order she had against him. Young was 3 months pregnant.

Barbara Diane Dye was granted a temporary restraining order and then fled to Texas. She returned only for a hearing on the permanent restraining order, and that is when her husband cornered her in a bank parking lot and shot her repeatedly with a .357 magnum revolver, killing her there.

When domestic abusers have access to firearms, it isn't only abuse victims who are at risk. A violent husband under a temporary restraining order in Brookfield, WI, followed his wife to the salon where she worked. Not only did he shoot and kill his wife but he killed two additional people and wounded four more.

After Erica Bell got a temporary restraining order against her husband, he came to her at church. He followed her there. He shot and killed Erica and he also shot four of her relatives, including her grandparents, great-aunt, and a cousin.

This scourge of domestic violence, combined with the epidemic of guns in our society causing gun violence, is a toxic recipe, and we must do more against domestic abuse. That is why I have formed an organization in Connecticut called Men Make a Difference, Men Against Domestic Violence. It is a program launched in cooperation with our largest domestic prevention and response agency, Interval House, which does a wonderful job against domestic violence. It is a commitment of prominent men, all men, providing role models for young men and boys to reach out to other males and take action to prevent domestic violence. We can truly make a difference as men. We can fight domestic violence. We can gradually make progress against it because it is a cycle.

More than 70 percent of all men who commit domestic violence have seen or experienced it in their own lives, and these kinds of organizations can help stop and stem domestic violence. But

domestic violence, combined with guns, is a recipe for death.

As our former colleague Frank Lautenberg used to say: ''The difference between a murdered wife and a battered wife is often the presence of a gun.'' Women are five times more likely to die as a result of domestic violence when there is a gun in the home than when there is not.

So I have introduced the Lori Jackson Domestic Violence Survivor Protection Act. It is a long name. The most important part of the name is Lori Jackson, because her story tells it all.

There is no reason we should fail to protect women when they are protected by a temporary restraining order rather than a permanent restraining order. In fact, there is every reason to provide more protection in the first week or 2 weeks when there is a temporary restraining order in place. Remember, the temporary restraining order is granted not on a whim or a question, because of specific, credible evidence that an intimate partner poses a physical danger, and it is granted by a judge after considering that evidence.

The moment of danger in a relationship such as Lori Jackson's is when one partner tells another—it may be a spouse, it may be a boyfriend, a girlfriend—she is leaving, she wants a divorce. That is the moment of maximum rage. That is the moment of greatest danger. That is the moment of uncontrollable wrath.

At that moment of greatest danger, the law is at its weakest. There is no prohibition against that enraged, impulsive, hurt, angry individual from continuing to possess or purchase a firearm.

The Lori Jackson Domestic Violence Survivor Protection Act very simply closes that gaping loophole in our law, providing that just as with a permanent protective order, an individual subject to a temporary restraining order cannot purchase or possess a firearm. It is a very simple, commonsense measure, but it can help save lives. It can help save others such as Lori Jackson and the individuals whom I have named—many of them courageous, strong individuals like Lori Jackson who broke with an abusive relationship.

The experts in this field will tell us that is among the most difficult things to do, and it puts a woman at her most vulnerable point in the relationship. Again, that is the time when current law fails her. That is the reason we should close that loophole.

Other measures are also important and necessary.

I salute our colleague Senator KLOBUCHAR for her proposal that will close an equally important loophole in our law relating to people who are convicted of stalking. That is an eminently important and sensible step to take. It will keep guns out of the hands of stalkers; likewise, Representative MOORE's legislation to help States enforce our gun laws.

Similarly, the comprehensive measure of mental health initiatives, school safety steps, background checks, is part of a comprehensive effort to stop gun violence in our country. They are all important and necessary.

I thank my colleague and friend Senator MURPHY of Connecticut for championing them as a teammate in this effort, and he has joined me in supporting this legislation.

I named this legislation after Lori Jackson as a memorial to her and a gesture of sadness and outrage at her death.

Every man or woman who has lost his or her life through a domestic violence gun homicide deserves to be memorialized on this floor, as does every victim of gun violence. With more than 1,000 names added as victims every year, I believe we can honor them best by passing this legislation.

I urge my colleagues to join with me in honoring Lori Jackson, Jasmine Leonard, Chyna Joy Young, Barbara Diane Guy, and Zina Daniel, all of the women who have lost their lives to domestic abusers and whose lives might have been saved. We can't know for sure. There is no certainty they would be alive today, but we know their chances would have been better if that temporary protective order had also protected them from an abuser who possessed or bought a firearm at that moment of maximum danger.

We continue to grieve in Connecticut for all victims of gun violence, especially the 20 beautiful children and 6 great educators who lost their lives. This past Sunday I attended in West Haven the opening of a 24th playground. Where Angels Play is the name of the playground organization headed by a firefighter, a very resolute, steadfast, public servant, Bill Lavin. This playground, honoring one of those children, was on the beach in West Haven—a moment of haunting and exquisite beauty—when all of us gathered in honor of Charlotte Bacon on a sunfilled day, Father's Day. Joel and JoAnn Bacon and their son Guy were with us.

Each of those playgrounds is a memorial to those children who died, and we have likewise honored the six great educators who perished.

There are ways to honor and remember and memorialize these victims. Alexis Volpe in Middletown did a small garden, and she was joined by the Daisy Scouts there.

All of them are beautiful in their own special way, but action is the best way to honor the memory of the victims of gun violence, action to adopt commonsense, sensible measures that will help prevent gun violence in the future. None is more important than honoring, remembering, and acting to save others such as Lori Jackson, who will always be with us in spirit and memory.

I thank my colleagues who have joined me in this effort, Senators DURBIN, MURRAY, BOXER, MURPHY, HIRONO, WARREN, and MENENDEZ, sponsoring the Lori Jackson Domestic Violence Survivor Protection Act.

I yield the floor for my good colleague and friend, the Senator from West Virginia.

CELEBRATING WEST VIRGINIA'S 151ST BIRTHDAY

Mr. MANCHIN. Mr. President, I thank my good friend from Connecticut. I appreciate his unwavering commitment to continue to fight for justice and fairness for all, and he does it every day.

I am here to say happy birthday to West Virginia. Tomorrow, June 20, we will be 151 years old, and I rise to honor my great State.

I have often said this: Some of us were lucky enough to be born and raised there—and I am one of the lucky ones—some people were smart enough to move there, and some people just wish they could get there. So under any circumstance, we will take you.

This is a State that truly embodies a brave and daring declaration of statehood that is unprecedented in American history.

Born out of the fiery battles of the Civil War, West Virginia was founded by patriots who were willing to risk their lives in a united pursuit of justice and freedom for all. Since that day 151 years ago, June 20, 1863—when our State officially became the 35th State admitted into the Union—West Virginia's rich culture and strong traditions grew.

That year the Great Seal of the State of West Virginia was adopted—and we all have our seals and preambles in all of our States—depicting who we are as a people and our culture. With our birth date's inscription forever engraved in its center, the seal features a big boulder rock with two crossed rifles and a liberty cap sitting on top to express our State's importance in fighting for liberty and justice.

On either side of the boulder stand two men: On the left, a farmer stands with an ax and a plow to represent agriculture. On the right, a miner stands with a pickax and a sledgehammer to represent industry. Finally, along the outer ring is carved the text ''State of West Virginia'' and ''Montani Semper Liberi,'' which means ''Mountaineers Are Always Free.''

That Great Seal of West Virginia, designed in 1863 during America's bloody Civil War, leaves a lasting imprint of who we are as the people of West Virginia.

Just like the farmer and miner on our seal, we cannot forget the countless others who fought for our freedom and embarked on our State's improbable journey to independence from Virginia and to our very own place in the Union—a land of the free and home of the brave. We believe—and we believed way back then—that justice would prevail.

Those pivotal figures climbed over mountains, crossed raging rivers, tussled through thick forests, and fought against bondage and oppression to be free. Their resilience succeeded, and because of their bravery and patriotism the ''mountaineers'' are still always free.

Ever since our historic beginning, we, the people of West Virginia, have never failed to answer our country's call. We have almost more veterans per capita than any other State in the Nation. When 9/11 happened to our great country, there were more West Virginians percentagewise who signed up to enter all branches of our Armed Forces to fight for our country. I am so proud of each and every one of our West Virginians and our veterans and the people serving today.

Ever since we chose the stars and stripes and chose to live under a Constitution that promised a constant pursuit of ''a more perfect Union'' of States, no demand has been too great, no danger has been too daunting, and no trial has been too threatening.

Our State's abundance of natural resources, coupled with the hard work and sacrifice of our people, have made America stronger and safer. Since our birth, we have mined the coal that fueled the Industrial Revolution, powered our railroads across the continental United States, and produced the steel that built our ships, skyscrapers, and our factories. Our little State has given every ounce of blood we have.

To this day, West Virginians continue to generate the electricity that lights our cities, heats our homes, and powers our businesses. We have also filled the ranks of our military forces in numbers far greater than should be expected from our little State of less than 2 million people.

West Virginia's population holds one of the highest percentages of veterans among all States. As I always say, West Virginia is one of the most patriotic States in the country. We always have been and we always will be.

''The best steel comes from the hottest fires.'' My father always told me that, and the fires of the Civil War transformed us. We forever branded ourselves to the ideals of the Declaration of Independence and the guarantees of the U.S. Constitution—and, as the ''mountaineers'' who will always be free.

We are tough. We are independent. We are inventive. We are honest. Our character has been shaped by the wilderness of our State. With welcoming mountains, countless hollers, rushing streams, boundless blue skies, and dense green forests, we have it all. West Virginia is a place of coal mines and soaring eagles, Boy Scouts and community leaders, sparkling lakes and captivating mountains, winding backcountry and smoky barbecue joints, battlefields, and hidden trails, college towns and small towns, and it goes on and on. West Virginia is a place of power, pulse, and passion—a special place I get to call home, along with other West Virginians.

Yes, we have had our ups and downs, our setbacks and triumphs, famous family feuds, neighborly fights, timely trials, and unexpected challenges have been thrown our way, but the spirit of West Virginia has never been broken, and it never will. I learned a long time ago, growing up in the small coal-mining town of Farmington, WV, with hardworking men and women, when things get tough, by God, we just got tougher. That is the way it had to be to survive.

Tomorrow, as people across West Virginia celebrate West Virginia's 151st birthday, a day we now also know as West Virginia Day, I encourage all West Virginians to remember who we are, from where we have come, and where we are going to go. I encourage us all to remember the first mountaineers and the brave leaders and strong laborers who paved the way for us and for future generations to come.

We have so many reasons to be proud of our beautiful State, its kind and compassionate people, powerful landscapes, unique customs, rich culture, and fascinating history.

John Kennedy, in 1963, when he came for our centennial celebration and spoke on the capitol steps, once said: Sometimes it is raining cats and dogs. Sometimes the Sun doesn't always shine in West Virginia, but the people always do.

He was so correct, as he felt the heartbeat of our State.

Every West Virginian contributes to our State's amazing story, and on West Virginia Day I encourage all West Virginians to seize this opportunity to imagine the future of this great State—and this Nation—and be proud of how far we have come and how far we will go together.

We are West Virginians. Even in the darkness and the gloom, we look to a just God who directs the storm, and similar to the brave loyal patriots who made West Virginia the 35th star on Old Glory, West Virginians' love of God and country and family and State remains unshakable, and that is well worth celebrating every year.

So God bless every West Virginian. God bless those who came before us and who will come after us. Happy birthday, West Virginia.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. KAINE. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

(The remarks of Mr. KAINE pertaining to the submission of S. Res. 479 are located in today's RECORD under ''Submitted Resolutions.'')

Mr. KAINE. Mr. President, I yield the floor, and I note the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. CARDIN. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CARDIN. Mr. President, I ask unanimous consent to speak as if in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

MARYLAND AGRICULTURE

Mr. CARDIN. Mr. President, about 2 weeks ago I had a chance to meet with the leaders in the agricultural community to go over certain issues that are available to our farmers. I met with the NRCS chief Jason Weller. I met with the Maryland State agriculture secretary Buddy Hance and Lee McDaniels, who is a Harford County, MD, farmer and president of the Maryland Association of Soil Conservation Districts.

We were talking about ways in which the agricultural community, and those citizens who are concerned about our environment, can work together so we can have a clean environment and a healthy agricultural industry in our State. I found the discussion to be extremely helpful. We talked about the Regional Conservation Partnership Program.

I thank Senator STABENOW for her incredible leadership on the farm bill. When we reauthorized it, we consolidated a lot of the conservation programs—particularly for specific great water bodies—into the Regional Conservation Partnership Program. It provided new energy and tools available for conservation within agriculture so we can have a clean environment and also have sustainable agriculture in our country.

Recently, the Chesapeake Bay watershed was designated as one of the critical conservation areas. That becomes important because that allows a certain amount of the funds under the Regional Conservation Partnership Program to be available to the critical conservation areas in our country and will be used by our farmers to conserve their land, and to be better stewards of the land and our environment, and at the same time have a sustainable agricultural program.

The Chesapeake Bay Program first started many years ago under the leadership of then-Governor Harry Hughes of Maryland, who worked with the Governors of Pennsylvania and Delaware and then expanded to include the States of New York, West Virginia, and of course Virginia, to establish the Chesapeake Bay Program. They understood that in order for the program to be successful, they had to deal with development issues and storm runoff, the hardened surface, the loss of forestry land in the Chesapeake Bay watershed, and the causes of the pollutants in the soil and our environment through

surges which rush into our water system, our streams, and rivers, and into the Chesapeake Bay. We have to do a better job of development in dealing with storm runoff.

It also recognized the responsibility of local governments. They are the primary entity responsible for how we treat our waste with the wastewater facility plants and how we can do a better job of preventing pollutants from entering our water system.

We also dealt with business growth and the pollution coming in through business activities.

One of the major focal points was how do we deal with agriculture. In one sense agriculture is very positive for our environment. Maintaining open space is important, and agricultural activities are generally open space. That can be good because it gives us a larger tract of land in order to filter rainwater, to filter the pollutants from perhaps never entering the bay but, if they do enter the water system, they enter in a way that has already been filtered. So in that sense agricultural preservation is important for the conservation of the bay, but because of farming activities that use nitrogen and phosphorus, it can cause significant challenges for the bay.

I think Maryland farmers have done a good job. They have done a good job for many years. But I wish to speak about one farmer particularly because I was very pleased—before this meeting, I had a chance to meet Hank Suchting. He is a farmer in Baltimore County, MD. That is pretty close to the urban centers. The Presiding Officer was referring to me as being the Senator from Baltimore. I am a proud resident of Baltimore, and Mr. Suchting's farm is only a few miles from my house. It is interesting. He has a beef-farming cattle activity. It is in the Oregon branch of the Gwynns Falls River, which has been dammed to provide for the Loch Raven Reservoir to deal with our water supply. In other words, that stream, which is part of his cattle production, is in the watershed that goes into the drinking water that the Presiding Officer and I drink in the Baltimore region. So we all have a significant interest in making sure that water supply is kept safe and that when we turn on our tap and when we drink our water, it is fresh water.

Mr. Suchting's farm activities produce about 30 beef calves a year. That is an important number because in order for that cattle population to be properly grazed, it needs to have a water supply, and it needs to have a place where the cattle can cool off, particularly on a hot day like we had yesterday. So the traditional farming activities for this cattle production were to allow the cattle—as I said, the stream goes right through his property—to use the stream for the purpose of cooling off and for the purpose of the drinking water for the cattle. However, that was not the best way to do it for the purposes of protecting the water supply of Baltimore and to deal with the Chesapeake Bay and to deal with our environment because, as the Presiding Officer knows, free access for the cattle to the river meant that the cattle manure, the phosphorus would go into the waters, causing a challenge for the water system, and it caused significant erosion to the streambed itself.

So Mr. Suchting felt a commitment to help the environment, so he said: Look, why don't I look at fencing in the riverbed so my cattle do not get direct access to the stream and producing a supplemental water system through a water trough—as we see in the photograph. It works through gravity. It uses the aquifer, works through gravity, and produces direct water for the cattle to drink.

Here is the interesting part. His principal motivation was that he wanted to do something that would help the environment, but he still wanted to be able to produce his cattle. He felt an obligation to do this.

The State of Maryland had help for him. In partnerships with the Federal Government and conservation programs, there were funds available to help him fence in the property to have a sensible crossing—because he was on both sides of the creek—so that he could have a way for the cattle to cross safely and still protect the water bed itself. That program made it more financially advantageous for him to put in the fencing so the cattle did not have direct access to the stream and to put in the water trough so they could get fresh water.

But guess what. He put a pencil to it and found out it was better economically for him to do this. It actually made his farming practices more financially viable. How did that happen? Well, he was losing calves every season to storms when there were water surges and they would get caught in the stream and they would actually drown. He was losing calves because of extreme weather. Being in the stream caused hypothermia for the calves, and they would die. Every time he lost a calf, he also lost about $1,000. This was a sound investment from the point of view of the financial viability of his cattle production.

Also, he found it was healthier for his cattle in two respects. First, the water supply did not include the pathogens that can be found in the streams, so he found it was healthier for his cattle to get water through the trough rather than through the stream itself. Secondly, he said the growth around the stream increased dramatically because the cattle were not in the stream, and it gave better shade on the property to allow the cattle to be able to cool off in the shade in a more efficient way than going into the stream itself.

My point is this: This is just one example. I could give hundreds of examples where conservation makes sense for agriculture and our environment.

My reason for being at this farm and my reason for bringing together the leaders in agriculture in Maryland is to talk about this new program that is now available. It is the Regional Conservation Partnership Program, which is available under the farm bill, which makes hundreds of millions of dollars available competitively—it is not earmarked—for farmers to be able to do what Mr. Suchting did through similar types of programs to help themselves and help our environment so we can have a safer environment for our community.

Working together, we can have a cleaner environment and successful agriculture. There are now new tools available. We want people to know about them. We want farmers to know about them. We want conservation districts to get this information out to our farming community because, quite frankly, agriculture is critical to Maryland, it is critical to New Jersey, it is critical to this country. It is the largest single part of our local economy, and I expect it is the same in New Jersey and around the Nation. We want viable agriculture. We outcompete the world in production. We want to be able to continue to do that, but we also want to pass on a cleaner environment to our children. We can do both.

Thanks to the leadership of Senator STABENOW and thanks to the leadership of this body, we now have new tools available to help our farmers in conservation. I hope they will take advantage of them for the sake of our environment and for the sake of agriculture.

With that, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

The PRESIDING OFFICER. The Senator from Oklahoma.

Mr. INHOFE. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

CONCLUSION OF MORNING BUSINESS

The PRESIDING OFFICER. Morning business is closed.

COMMERCE, JUSTICE, SCIENCE, AND RELATED AGENCIES APPROPRIATIONS ACT, 2015—MOTION TO PROCEED

The PRESIDING OFFICER. Under the previous order, the Senate will resume consideration of the motion to proceed to H.R. 4660, which the clerk will report.

The bill clerk read as follows:

Motion to proceed to the consideration of H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

The PRESIDING OFFICER. The Senator from Oklahoma.

Mr. INHOFE. Mr. President, which appropriations bill is this that we just announced?

The PRESIDING OFFICER. The motion to proceed to the Commerce-Justice-Science provisions.

Mr. INHOFE. I thank the Chair.

Let me make two comments on two amendments actually to the THUD appropriations bill having to do with CNG, natural gas vehicles. If I could speak very briefly on two amendments, the first is amendment No. 3245. That amendment is the regulatory streamlining for the use of compressed natural gas. This will allow us to give some of the same treatment to natural gas vehicles that are given to other alternative fuel vehicles. In fact, I am joined with Senator CARL LEVIN on this amendment, which also gives access to HOV lanes for certain vehicles that are using natural gas and other alternative fuel vehicles.

The other one is amendment No. 3275 having to do with light semi trucks that use natural gas, because of the additional weight of the equipment, we would give some leniency—up to 2,000 pounds—in terms of the total weight to allow them and encourage them to use compressed natural gas without facing a freight-weight competitive disadvantage.

Those are the two amendments, when the time comes, that I wanted to get into the RECORD that I will be proposing at that time.

I thank the Senator from Maine for yielding me a few minutes of her time, and I yield the floor.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. BOOKER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Ms. BALDWIN). Without objection, it is so ordered.

Mr. BOOKER. Madam President, I rise to speak on an amendment I have filed on the appropriations bill that this Chamber is now considering. The amendment is cosponsored by Senators ROCKEFELLER, FEINSTEIN, MENENDEZ, SCHUMER, BLUMENTHAL, GILLIBRAND, MARKEY, WARREN, and BROWN.

Madam President, I ask unanimous consent to add as cosponsors to the amendment Senator DURBIN, Senator BOXER, Senator HIRONO, Senator MURPHY, and Senator SCHATZ.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. BOOKER. Thank you, Madam President.

Our amendment would maintain critical evidence-based safety rules that reduce truckdriver fatigue. I am disappointed that this bill currently includes a provision that would roll back the enforcement of these rules—rules that are based on years of scientific evidence. It is doing so without further study. It is rolling back these safety rules without public input. It is rolling back these safety rules without even a hearing.

At a time when truck crashes are actually on a rise in the United States of America, it is paramount that Congress do more in transportation safety to improve the protection of lives—not remove an evidence-based element of reform.

Keep in mind that the rule the bill currently suspends enforcement of was the result of feedback from more than 20,000 formal comments submitted by industry and stakeholders. It was a result of 6 public sessions and incorporated 80 sources of scientific data and research, as well as a regulatory impact analysis.

Over the past week alone, New Jersey has been impacted by at least four major, separate accidents involving tractor trailer collisions. National statistics, unfortunately, show that these tragedies are unfolding more and more frequently.

Many of my colleagues may not spend much time in New Jersey, but I am willing to bet that many have driven on the more than 38,000 miles of public roads that exist in my State. If you know the New Jersey Turnpike, this corridor connects our State and drivers, much of our commerce, and our economy all together. This highway also sees a lot of trucks at all times of the day, all around the clock.

So I am compelled by these facts:

Nearly 4,000 people are killed in truck accidents and over 100,000 people are injured every single year.

From 2009 to 2012, truck crash injuries increased by 40 percent and truck fatalities increased in our Nation by 16 percent.

Truckdriver fatigue is a leading cause of major truck accidents. These drivers, who work extensively long days delivering the goods we depend upon, deserve basic protections allowing them to get sufficient rest to do their job safely and efficiently.

Just this morning the National Transportation Safety Board released a preliminary report about a truck crash that happened on the New Jersey Turnpike on June 7 which killed one passenger traveling in a limousine, and four others were airlifted to a hospital. Six cars were impacted by the collision between the truck and the limo. The truckdriver, according to the NTSB report, had logged 13 hours 32 minutes of work at the time of the crash. Had he reached his destination, he certainly would have exceeded the number of federally permitted hours to work in a given day. The truckdriver will clearly be punished for pushing the limits.

Truckdrivers are working extremely long days to deliver the goods that keep America moving, but it should never ever be at the cost of safer roads.

At a time when we should be doing more to improve safety, we should not be rolling back evidence-based rules. Our amendment prevents readopting a policy that could force many truckdrivers to work over 80 hours per week. It maintains a balanced rulemaking that provides for truckdrivers to be allowed two nights' rest at the end of a taxing workweek.

The Department of Transportation itself—our Federal Department of Transportation—estimates that the current rulemaking is preventing 1,400 crashes each year, saving 19 lives and avoiding 560 injuries on American highways.

Our amendment would simply retain a provision to authorize—it would actually retain a provision to authorize further study. We believe further study on the issue is good. I am not against further study, nor are we against further analysis. But we believe it is absolutely unacceptable to consider suspending these driver rules while the study is being conducted. Safety cannot wait.

I have not been in the Chamber very long and even today may have violated some of the rules of comity of this great body, but I know this effort is an important one, and I know it will be an uphill fight. There are some entrenched interests who tend to have a lot of influence on Capitol Hill, but this, to me, is one worth fighting. I urge my colleagues to join me.

I have heard a lot of the arguments and questions about why this should possibly be rolled back, why we should roll back safety regulations in the face of increasing accidents on our highways. Somebody might say that DOT rules make the roads less safe by forcing trucks on the road during busy rush hour traffic.

The notion that the DOT's rules—which were based on all of those hearings, all of that public input, the scientific study—somehow make the roads less safe, to me, is unfounded. To be sure, the rule does require that scientifically proven optimal sleep hours of 1 a.m. to 5 a.m. be included in the DOT's mandatory 34-hour ''restart'' period. But let me be clear. This restart period only applies when a truckdriver has reached his or her maximum driving hours for the week—the maximum allowed. It only triggers that provision when someone has worked a 70-hour workweek.

Keep in mind that most people work 40-hour workweeks. Requiring those drivers operating 80,000-pound trucks on busy roads to get some rest is not only common sense, it is supported by the science. The Department of Transportation estimates that the current rule, again, is preventing crashes, is preventing the loss of life. Nineteen lives they believe these rules around hours have saved, 560 injuries, 1,400 crashes. Suspending this rule without studying it first is not common sense.

I have heard another argument that the DOT rules are a solution looking for a problem, that truckdriver fatigue is somehow not that common. A study

that was conducted by FMCSA in 2006 found an astonishing number of truckdrivers—65 percent of truckdrivers—reported that they often feel drowsy while driving. Over 40 percent of truckdrivers responded they have trouble staying awake at the wheel. An alarming 13 percent admitted they have fallen asleep while driving.

Fatigue is an issue. The survey illustrates how vitally important rules governing hours of service and rest periods are in keeping our roads and highways safe. Now is not a time to roll back those rules without studying, without evidence, without a hearing, without information.

There are some people who might say this is a partisan issue, that somehow Democrats are safety advocates and are exploiting the severe accident that faced a comedian named Tracy Morgan, that we are using this as a political opportunity. But that suggestion is wrong. Somehow it misses that fatal accidents are common on our highways.

This concern continues to rise in our country as the number of accidents increases. While the accident involving Tracy Morgan on the turnpike was tragic, it was one of thousands of accidents and crashes that occur in our country each day. The incident has brought needed attention to a rising trend of trucking accidents. This is a problem policymakers have long been trying to address through Federal rules and initiatives, based again on years of study and analysis.

In fact, last month I sent a letter to the U.S. Department of Transportation regarding important truck safety concerns. My predecessor, Frank Lautenberg, spent years of his life in public service trying to make our roads safer.

I also have heard that most truckdrivers are negatively impacted by the current rule, that language in the Senate appropriations bills stops this impact that most truckdrivers are seeing.

That is simply not true. A driver is only required to use the 34-hour restart if and only if he or she works the maximum number of hours allowed under the Federal regulation. This restart is most frequently in effect for those long-haul drivers who make up only about 15 percent of the trucking workforce. Those averaging 70 hours per week or less are not affected by the changes to the 34-hour restart, because they would never work the number of hours that would require them to use the restart under the current rule.

The Senate amendment would allow drivers, though, to return to the extreme schedule allowed under the pre-July 2013 rule, when a company could require a driver to work a maximum of 82 hours a week, pushing the limit of human endurance. Not only 82 hours in 1 week, trucking companies would force the limits of human endurance of 82 hours week after week after week after week, 82-hour week after 82-hour week after 82-hour week.

I have also heard this HOS provision in the T-HUD appropriations bill is a low-impact change to the hours-of-service rule, that this is actually not that much of a change. Suspending enforcement of these DOT hours-of-service rules substantially increases the number of hours a truckdriver could be forced to work each week and forced to push the realm of human endurance. In fact, the change would be from an already high 70-hour workweek to a more than 80-hour workweek, which is the equivalent of an extra workday each week and nearly twice the amount the average American works.

The appropriations bill will remove this commonsense guarantee that truckdrivers themselves, as we have seen with the support from the Teamsters Union, that truckdrivers themselves get at least a 2-night rest, the humane 2-night rest at the end of a tasking workweek.

What these changes mean in practice is that drivers may be forced to work grueling hours now, week after week by truck companies that are pushing the limit. Studies have shown this leads to the fatigue that causes accidents such as we are seeing on the New Jersey Turnpike. The DOT hours-of-service rules, some people say, implemented last year were based on insufficient analysis, that somehow these were rushed rules.

But I have said already, this came out of a balanced rulemaking effort and process that took into account both safety and industry interests. DOT rulemaking involved the feedback from 21,000 formal document comments submitted by a wide range of stakeholders, including six public listening sessions, and incorporated 80 basic scientific research data provided by scientists, as well as conducted a formal regulatory analysis.

By contrast, the bill rolling this all back was done in an appropriations process. It was not reviewed. It was not considered by the committee of jurisdiction upon which I sit. It was not subject to public comment. It had no hearings established where both sides were listened to and their comments were weighed and engaged. It rolled back a rule that now will allow truckdrivers to be pushed more into the limits of their human endurance and put more fatigued drivers on our roads.

Some people say this amendment I am putting forth, with many of my colleagues, somehow would prevent further study. That is not true. Our amendment only strips the provision of the appropriations bill that ties the Department of Transportation's hands and prevents them from enforcing the current rules on the books. But we actually leave intact authorization for more study, which I am open to.

This should be done on scientific studies in an open process, with hearings, with information, with testimony. It should not be saddled onto an appropriations bill that ultimately would roll back rules which the DOT themselves are saying will help to preserve the safety and the lives of American citizens. So I caution right now, why not wait? Why not do a study, leaving the current rule intact? Why not keep these regulations, these safety regulations in place, and let's do another round of studies? Let's do another round of hearings. Let's have debate and discussion in committee and the committee of jurisdiction before we roll back rules that put truckdrivers on our roads, pushed by trucking companies, to further their limits of exhaustion.

I yield the floor.

The PRESIDING OFFICER. The Senator from Maine.

Ms. COLLINS. Madam President, it appears I first need to say to my colleague and to those who are listening, there is no one in this body, in the trucking industry, among their customers who wants to see trucking accidents. All of us are committed to safer roads, and to make sure that freight is delivered in a safe manner in this country.

In fact, the former Administrator of the Federal Motor Carrier Safety Administration said in a letter to the committee dated June 17:

> The fact is the Senate Transportation, Housing and Urban Development bill which contains a temporary suspension of two new provisions in the 34-hour restart rule makes the roads safer.

Makes the roads safer. That is what this debate is about.

I am very disappointed to see that the Senator from New Jersey is otherwise engaged and not listening to these comments.

Let me start with a fact. The fact is, under current law, under the Collins amendment, under the provisions we reported in the Appropriations Committee, it is illegal for any driver to operate a commercial motor vehicle when that driver's ability or alertness is impaired through fatigue, illness, or any other cause so as to make his or her driving unsafe.

That is illegal. That is illegal now. That will continue to be illegal if our provisions become law. I think that perhaps it would be helpful, given the disappointing amount of misinformation that has been circulated by the proponents of this amendment, if I were to go through some of the provisions of the hours-of-service regulation. Those are the regulations that are the foundation of the rules that govern truck safety in this country.

The fact is our Transportation-HUD appropriations bill would not suspend the entire hours-of-service regulation or the entire 34-hour restart provisions as some keep saying, both on the Senate floor and in the media. To be clear, our proposal would not change the maximum driving hours that are allowed per day. It would not change the total on-duty window in each shift. It would not change the minimum number of off-duty hours between shifts, which is 10 hours. It would not change the mandatory 30-minute rest break that is required by your eighth hour.

That is a new provision that was adopted last July.

My friend from New Jersey claims I am wiping out all of these rules. Regrettably, he is simply mistaken about that. I am not changing any of these provisions of the hours-of-service regulation, including one that was adopted last July requiring a mandatory 30-minute rest break prior to your eighth hour. I support that. I think that is a good idea. I support the provisions for a limit on how many hours a driver can be behind the wheel. I support the limit on the maximum on-duty hours. I support the requirement for 10 hours off between shifts. So to say I am repealing all of these truck safety regulations is simply false. It is a disservice to the debate on an important issue for wrong information to be circulated about what we are trying to do.

There is another important provision we are not changing that I think is going to help to improve truck safety, and that is the upcoming requirement for electronic, onboard recorders to replace the paper logs that are kept by some truckdrivers now.

The paper logs have been proven to be less accurate, and obviously there is a potential for reporting false information. With electronic logs, that goes away. I am a strong supporter of the rulemaking that is going to lead to the requirement for electronic logs, which many truckdrivers are already using. Our bill, in fact, includes some funding to help truckdrivers of smaller fleets afford the electronic logs.

What are we changing? We are changing only two provisions, and that is why our amendment—my amendment—was adopted by an overwhelmingly strong bipartisan group in the Appropriations Committee. The vote was 21 to 9 because the members of the committee took the time to understand what we were doing and what we were not doing.

Here is one of the problems. The new rules require that a truckdriver have two consecutive nights where he must be off duty and sleeping between 1 a.m. and 5 a.m. There are a lot of people in this country who work a night shift, and if we talk to them they will tell you that what is disruptive to them is to work a day shift part of the week, a night shift part of the week, go back to the day shift, and go back and forth.

Many of our drivers want to drive during the overnight hours because the statistics overwhelmingly show that is the safest time for them to be on the roads.

This isn't a matter of conjecture. It is based on the Federal Motor Carrier Safety Administration's own analysis about what times of the day crashes occur. The fact is, the safest time for trucks to travel is between midnight and 6 a.m. The number of crashes nearly quadruples between 6 a.m. and 9 a.m. It is five times higher between noon and 6 p.m.

Let's think about this for a moment. It just makes sense. There are far fewer vehicles on the road. Why in the world would we want to push truckdrivers to have to be on the road when children are going back and forth from school, when commuters are going to work.

One truckdriver from Maine gave me a great example. For those of us who are familiar with downtown Boston, with all of its small, curvy streets and all of its one-way streets, he said to me: If I have to wait until 5 a.m. to deliver fuel to a convenience store on the corner of two busy streets in downtown Boston and I am going to arrive there at 7 a.m.—during the rush hour, during the time when people are getting up, going to school and to work—it is far more dangerous. It is far more difficult for those commuters trying to stop at that convenience store while I am trying to deliver the fuel. It is far safer for me to be delivering that fuel at 4 a.m. or 5 a.m. in the morning before the convenience store even opens and before the traffic picks up.

But, again, the Senator from New Jersey doesn't have to take my word for it. Please, I would implore the Senator from New Jersey to look at the statistics—and these are the newest statistics the Department has put out. They are very clear that the crashes more than quadruple—quadruple—during those daylight hours.

That is why the truckdrivers would prefer to be on the road at night when it is safer and to do their deliveries when their customers need the deliveries to be done—whether it is to that convenience store that needs gas before the rush hour starts or whether it is to a grocery store that needs to reload its shelves. That just makes sense.

The second change—and the only other change—that our amendment makes to the hours of service provisions has to do with the limitation on the use of the restart. Under the new regulations which were implemented last July about 1 year ago the Department limited the 34-hour restart to once a week. It is once every 168 hours.

How does that make sense? The Presiding Officer and I both come from States where there can be severe winter weather, and a truckdriver who is delivering in Wisconsin or Maine may run into a terrible storm.

Why shouldn't he or she be allowed to take a 34-hour period off while the storm is raging and then restart the clock on the number of hours that he or she can take?

By the way, the restart, under the current law, is voluntary, and we do not change the requirement—which is current law—that a truckdriver cannot drive more than 70 hours in 8 days. What we are saying, however, is we don't want that truckdriver to be out there in bad weather trying to push through and get home because he or she is running up against the clock and can't take a second 34-hour restart.

In fact, as the former administrator—who, by the way, has spent her professional life of 22 years in public safety—has written: We encourage drivers to get more rest, to not take the chance of driving through bad weather.

Now let me address the conflicting arguments I heard from the Senator from New Jersey on the issue of whether these regulations have been studied enough.

On the one hand, he says they have been studied to death and they are well based in scientific research. But the fact is that the current Administrator of FMCSA recently testified over on the House side and was specifically asked if the agency had evaluated the safety and congestion impacts of large trucks being forced by the new regulations to drive during the hours when crashes are most likely.

The Administrator confirmed: The field study did not address or talk about the impact of traffic on the road.

That is why it is critically important to study all aspects of the regulation. It appeared that FMCSA also failed to coordinate with its sister agency the Federal Highway Administration.

Just last month the Federal Highway Administration announced a grant program called the Off Hours Freight Delivery Program for cities that ''look at how truck deliveries made outside of peak and rush hours—when there is less traffic on the highways—can save time and money for freight carriers, improve air quality and create more sustainable and livable cities.''

So clearly the agencies within the Department of Transportation are not communicating their policies with one another. We have one DOT agency trying to direct more trucks onto our Nation's highways during the daylight hours, and then we have a second agency that is pushing funding out to cities in order to keep those same large trucks from operating during daylight hours and to encourage them to operate during overnight hours.

Why we would want to prevent or discourage large trucks from being able to drive during overnight hours simply makes no sense.

On the other hand, my colleague from New Jersey says: Don't worry, we have kept in the study. We have kept the Collins study in the bill.

Well, if it has been studied so extensively, as he claims, then why is there a need for the study? You can't have it both ways. You can't say these regulations were thoroughly studied and supported by scientific evidence, but, gee, we need a study. I mean, which is it?

I think what the Administrator admitted in her testimony over on the House side is accurate, and that is the field study did not look at the overall impact of congestion on our roads, and that is a real flaw. That is why I worked with colleagues on both sides of the aisle to come up with a study that will look at all of these factors, to make sure that we do not have what the Administrator herself has conceded are unintended consequences of these changes, and that is what we have now.

The fact is that these changes that were adopted by a vote of 21 to 9 by the

Appropriations Committee are common sense. They will lead to less fatigued drivers. They deserve more study and consideration, and—as the former Administrator of this agency has said—they will improve traffic safety.

I hope my colleagues will oppose the amendment that has been offered by the Senator from New Jersey. I will speak further, but I know there are others who want to debate this issue or who are waiting to speak.

I yield the floor.

Mr. BOOKER. Will my colleague yield for one short question?

Ms. COLLINS. I would be glad to engage in more debate later, but my colleague from Missouri has been waiting for a half hour to speak, and I think it would be courteous for him to be allowed to speak.

Mr. BLUNT. Madam President, I thank my good friend from Nevada for yielding a few minutes to me. He is going to speak on an amendment which requires the Senate to pass a budget I am supportive of and support his efforts to do that, but I wish to speak in support of this great explanation of what the committee did as we just heard from the Senator from Maine.

The committee debated this. We looked at the facts as Senator COLLINS has repeated. That full debate, that full discussion in the committee ultimately had a bipartisan vote of 21 to 9. This was something the committee thought about. I think the committee reached the right decision, and I was glad to be part of the 21 votes that said this should be part of the underlying bill.

There is a wide consensus that further study is needed. That consensus goes even to the administration.

As the Senator from Maine has already pointed out, the ''restart rule'' allows drivers to restart their weekly on-duty time calculations by taking at least 34 hours off duty.

In July of 2013, new restrictions were placed on the restart provision, and the changes, frankly, have had unintended consequences and unintended effects for drivers, for their families, for customers in the supply line, and even other users of the road.

The new restrictions state that a restart period has to include two back-to-back periods in the middle of the night—from 1 a.m. to 5 a.m. I am usually up not too long after 5 a.m. I am almost never up between 1 a.m. and 5 a.m., but many people are.

The Federal Government can decide a lot of things, but what is the best work and rest pattern for people should not be one of them, particularly when that work pattern forces people to do their work at a more dangerous time. I believe that is what this rule does. That is what the accident reports would verify; that back-to-back rest periods can only be used in a way that disrupts the ability to get the job done in a way that works for these drivers and their families, and works for safety on the road.

This rule would push more trucks onto the road during the daylight hours, and accidents are worse when there is more traffic.

The Federal Motor Carrier Safety Administration just admitted that this wasn't studied as it should have been. I asked the Secretary of Transportation over 1 month ago to tell what studies were done on this issue. We still haven't gotten a report. He very nicely said, ''I would like to take that for the record.'' Apparently the record is pretty hard to complete here because we haven't had a report yet about the research done on what would happen if you took truckdrivers off the road in the middle of the night and put them on the road in the middle of the day, the middle of the afternoon, the very rush hour hours the Senator from Maine has talked about.

I have heard from a lot of drivers in our State. We are in the middle of the country. We are a transportation hub. We have lots of drivers in our State. One constituent of mine, a driver from Energy Transport Solutions in Bates City, MO, said a lot of drivers are losing a whole day on the road and a whole day with their family.

Many drivers choose to drive at night or early in the morning so they can be home when their kids come home from school. If a driver wants to be home when their kids come home from school and if they want to drive during safer parts of the driving 24-hour cycle, why would the government tell them they can't do that without any study to indicate it somehow would be safer?

The fact is this provision would in no way affect the hours-of-service rule. The Senator from Maine once again has explained what wouldn't change. It wouldn't change the daily driving time limit; it wouldn't change the daily working limit; it wouldn't change the daily break requirement; it wouldn't change the weekly work limit.

This rule only says: We are not going to move forward with more dangerous traffic times required by law until there is some proof that somehow this works out to their advantage. Drivers still can't work longer than the maximum 14 hours in a shift. They can't drive longer than 11 hours at a time. By the way, that is what the rules say now. They would still be required to take at least 10 consecutive hours' rest before starting the next shift, and they have to take at least 30 minutes before the 8 hours they come on duty. These safeguards will remain in place.

The provision the committee is offering as part of this bill merely suspends the two restrictions on the restart rule, which is only one subset of a larger part, a rule that would still be in effect.

During that suspension, the Federal motor safety group would be required to adequately study the effects of what they have required to happen here. It is also worth mentioning again that they have said they need to make this study. So why don't we let them? Traffic accident reports would indicate we are forcing people to drive at a more difficult time.

Talking about the terrible accident we saw lately, the fact is, somebody who drives 24 hours straight, whether it is their own car or a truck, is in violation of every rule that is out there now.

The rules the Senator from New Jersey says we should protect because of the recent accident are the rules that were in effect during the recent accident. Those were the rules in effect then. If anything, we should say what rules were in effect a few days ago and how would we reevaluate them so this wouldn't happen again, rather than saying we have to have exactly the rules in effect we had in effect when the tragedy occurred. That makes no sense at all.

There are reasons to research this. There are reasons to look at it. One of the reasons to keep the current rules in place is not that they would have prevented the accident that happened, because the current rules were in place when the accident happened.

Reports have stated the vehicle was traveling too fast, and the person drove in their own vehicle long before they got in the other car. There is nothing in the amendment the Senator from New Jersey proposes that would have done anything about those violations of the rules our bill would leave in effect that Senator COLLINS and I are advocates for.

We don't want to put truckdrivers and others on the road in danger unnecessarily. The more cars that are out, the more likely you are to have an accident; the more cars and trucks that are out there, the more likely you are to have an accident.

This overnight rest rule has clearly put trucks on the road at a busier, more congested time. We believe that is not good. The committee, by a vote of 21 to 9, believes that is not good. I hope the Senate decides to stay with the decision the committee has brought to the floor.

Let's have a study. It should have happened before these rules came out, and it absolutely should happen now.

I see now Senators from Nevada on the floor. I do wish to mention again I am grateful to Senator HELLER for letting me make these remarks before we get to the amendment he wants to talk about.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE CALENDAR

Mr. REID. Mr. President, I ask unanimous consent that at 1:45 p.m. today, the Senate proceed to executive session to consider the following nominations: Calendar No. 770, Aguilar; No. 538, Nichols, to be Ambassador to Peru; No. 766, McWatters, to be a Member of the National Credit Union Administration; and No. 712, which is Wormuth, to be Under Secretary of Defense for Policy;

with all other provisions of the previous order remaining in effect.

The PRESIDING OFFICER. Is there objection? Without objection, it is so ordered.

The Senator from Nevada.

Mr. HELLER. Madam President, I thank my colleagues on the floor for their healthy debate on advancing traffic safety. I am sure we will hear a lot more about it, and I look forward to continued debate.

I also thank my colleague from Missouri for his support on the amendment I am about to offer and talk about. The amendment I am speaking of is the Heller amendment No. 3269 to H.R. 4660.

While I commend the chairwoman and the ranking member of the Appropriations Committee for all of their hard work in putting together the appropriations minibus to be considered on the floor, this is only the first of the appropriations bills that Congress needs to, and should, consider before the end of the fiscal year.

This will not surprise the American public, but this Congress is once again facing another October 1 deadline to complete all of the current fiscal year appropriations bills. We are now well into the year and only now are we starting to bring appropriations bills to the Senate floor. By our own calendar there are only 8 full legislative weeks left to avoid yet another continuing resolution.

Missed deadline after missed deadline has been a staple of this Congress. Without even a basic budget process, we have failed to pass any of the current fiscal year appropriations bills on time so far this year.

I know the Appropriations Committee has been working hard to pass each of their spending bills in committee, but all too often these bills end up being rolled into one large omnibus measure or a continuing resolution that is not subject to any amendments.

As our Nation faces a rising national debt, the American people can no longer afford Congress's failure to tackle our Nation's spending addiction. I must admit that since coming to Washington back in 2006, I have never seen Congress pass all 12 appropriations bills on time. In fact, I am certain most of my colleagues who serve with me today have not experienced a normal appropriations process, and there are probably even more Members who don't think it is even a realistic expectation to pass all 12 appropriations bills on time anymore. So I am here to remind everyone that Congress has been able to accomplish its regular budget and appropriations process before in recent history.

A couple examples: It happened under President Clinton with a Republican Congress in 1996. It happened under President Reagan with a Democratic Congress in 1988. These are just two examples, but the fact remains that these deadlines have been met before, and now is the time to start meeting those deadlines again.

I have always said Washington, DC, is a pain-free zone that faces no consequences—zero consequences—if Members fail to do their jobs. I think it is time we start requiring accountability for Members of Congress in order to get things done.

I know many of my colleagues have heard me talk about my legislation, No Budget, No Pay. It is pretty simple: If Members of Congress do not pass an annual bipartisan budget resolution and all 12 spending bills on time each year, then they simply should not be paid.

I wish to repeat that last part: If Congress fails to pass all 12 spending bills on time each year, they should not get paid.

We have honest, hardworking Americans in the gallery and across this country who play by the rules. That rule says: If people do their job, they get paid. Why shouldn't it be the same for us as Members of Congress? We need to be honest.

We also need to recognize that both Democrats and Republicans are at fault. Governing from crisis to crisis while our long-term debt continues to grow is now the new normal in Washington. We need bipartisan solutions, but nothing will happen if Members of Congress don't start feeling some pain.

Instead of playing another game of brinkmanship, let's start working now on a plan that will place our Nation on sound fiscal footing or cultivate a progrowth economy that will produce jobs in the long term.

I have filed No Budget, No Pay as an amendment to this appropriations minibus to highlight that we have to end this cycle of inaction and indecision. Let's show the American people their elected officials are ready to lead and make the tough decisions these times deserve.

While I am not a betting man, I am from Nevada so I would bet that once again we will fail on passing any appropriations bills into law before October 1, and we will once again punt our responsibilities by doing another CR or omnibus.

I ask my colleagues—if you are sick and tired of this broken budget and appropriations process as much as I am, support No Budget, No Pay, and let's fix this problem once and for all.

I yield the floor and suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Ms. LANDRIEU. I would ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. LANDRIEU. Thank you, Madam President. I know Senator KIRK is on his way to give tribute to one of his staffer—a tragic situation—so I am going to be very brief.

Madam President, I come to the floor to support Senator COLLINS' efforts to bring some common sense to these truck safety regulations, and I know this is a very emotional debate because of the tragic accident that occurred recently with a very well-known and well-respected comedian, Tracy Morgan.

I understand that there are families in my State and around the country who have had horrible and, unfortunately, fatal accidents with trucks that are more and more prevalent on our overcrowded highway system. I am not insensitive to those families, to those stories, and I honestly believe that what Senator COLLINS and I and others are trying to do is going to make a very unsafe situation more safe, not less safe.

There is really an honest and sincere disagreement among us that has to be debated. I am glad we are having this debate so that the evidence, the record, and the facts can speak for themselves.

This first came to my attention a couple of months ago when a group of citizens came up from Louisiana to say: Senator, we are shocked to tell you this, but there is a new rule out that is going to require truckers to sleep between the hours of 1:00 and 5:00 two nights a week.

I looked at them and said: That cannot possibly be correct. Nobody at the Federal Government would ever mandate when people are supposed to sleep.

I mean, how would you do such a thing? How can you tell people when to sleep and when to be awake? You can tell them how many hours they need to rest, you can determine how many hours they can drive before they have to take a break, but how exactly are you going to enforce when people sleep? That is going a step too far. So that is why I signed on with Senator COLLINS to say: Wait a minute, there has to be a better way.

When they told me—which I could not believe and later found it to be true—they said: Senator, don't you think that sometimes it is better for truckdrivers to drive at night when the highways are less crowded than during the day when they are more crowded, when children are on their way to school, when people are on their way to work, when most people have day jobs?

But there are millions of Americans who work at night. It is probably two-thirds who work during the day and one-third at night.

Wouldn't it be safer for the trucks to drive at night? Some of these truckdrivers can sleep during the day.

I said: Absolutely. That makes sense to me.

They said: Well, that is soon going to be illegal under these rules.

So that is why I got into this debate.

I am very respectful of Senator BOOKER, one of the outstanding, brightest lights that has hit this Chamber in a long time. His intellect is spectacular. His heart is in the right place. He and I both agree that we want our highways safe. We want the truckers rested. We don't like the crowding on the highways. But it is going too far when

the Federal Government starts mandating when workers should sleep. We just can't go there.

So I am going to support Senator COLLINS' legislation that is going to back up these no-commonsense rules and ask them to come back with another suggestion that will result in the same safety but not mandate when Americans should sleep. I think adults who drive trucks can make those decisions for themselves.

If the law is that they have to rest 8 or 9 hours in a 24-hour period, I think they are responsible enough to do so. If they are not, then they should be held accountable and prosecuted for reckless driving—which happens frequently—and they should then be appropriately punished, whether by fine or revocation of their license or jail time. But I cannot be part of any government that is making regulations demanding that people sleep a certain hour—not from midnight to 4, not from 2:00 to 7:00, but from 1:00 to 5:00 on consecutive nights a week. I just don't understand it, and I am not going to support it.

So this is not about safety; this is about government overreach to a point where it is almost visceral. There has to be a better way to come up with a rule to get our highways safe. I am open to it. Not this rule.

I yield the floor. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. KIRK. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. BLUMENTHAL). Without objection, it is so ordered.

REMEMBERING LISA RADOGNO

Mr. KIRK. Mr. President, I rise to memorialize the life of my Washington, DC, scheduler who passed away yesterday, Lisa Radogno.

This is a picture of her. I am going to give these remarks as if I am talking to Lisa because this blow was such a severe one that we suffered yesterday.

Lisa Radogno was one of the brightest lights of my Washington, DC, office. She was such a strong supporter of mine, even stronger than I.

Lisa was a diehard White Sox fan. She even had a White Sox logo tattoo on her ankle. We will miss her so very dearly.

Lisa, I will tell you that this loss is—sorry, Mr. President. I get very emotional about this death that just happened yesterday. I want to memorialize Lisa, who was so much like her mother, State senator Christine Radogno of Lemont, dedicated to the service of the people of Illinois. She was a fierce, fierce worker on campaigns and here in the Senate. She is somebody I will miss with every fiber of my being. She was with me in the House of Representatives and here in the Senate and was so proud to represent the people of Illinois here in the Senate.

To have her die yesterday was a big blow, especially for a young woman in her thirties. It is a real shock to my staff to have Lisa gone from us.

Lisa, these days are going to be really hard. I will just say you ran the schedule so perfectly. It was a work of art, in your case, to do the complicated workings of a House office, of a Senate office, to be so perfect and so young in what you did. The staff is all now in shock. You were certainly the social light of our operation here in Washington, DC.

I spent a good part of last night on your Facebook page looking at pictures of you, and it really caused me to cry a bunch. I will miss you, especially in our office, and watching you online quite a bit, hoping that Facebook leaves up those pictures forever so I can always take a quick look at your smile and remember your humor, which was always right at the ready.

Lisa was such a strong supporter of my office. To have her lost like this so suddenly was a big shock to us. This is pretty hard for all of us in the Kirk operation to handle.

Thank you Mr. President. I yield the floor.

The PRESIDING OFFICER. The Senator from New Hampshire.

Ms. AYOTTE. Mr. President, I know we have pending now the appropriations bill for Commerce, Justice, and Science, which contains an important issue I have offered an amendment on, along with Senator CHAMBLISS, who is the ranking Republican on the intelligence committee, as well as Senators WICKER, INHOFE, CRUZ, GRAHAM, and BLUNT, all of whom serve on the Armed Services Committee, and Senator VITTER and Senator KIRK. Our amendment would prohibit the administration from transferring to or releasing to the custody or control of any foreign country Guantanamo detainees whom our own Guantanamo Review Task Force has recommended for continued law-of-war detention.

This is a task force that looks at all the circumstances surrounding those who are being held at Guantanamo, including whether they continue to represent a danger to our country and to our allies if they were to be released.

Our amendment does three things. It prohibits the transfer to foreign countries of these detainees, that this group the administration put together to review each of the detainees and their status at Guantanamo has recommended them for continued law-of-war detention.

These are the worst of the worst. These individuals have been determined to be the most dangerous to continue to present a risk to the United States of America and to our allies if they were to be released.

So our amendment is pretty straightforward. It simply says they cannot be transferred to third-party countries—or transferred to the United States of America, for that matter—and that they shall remain at the secure detention facility, Guantanamo Bay, based on the recommendation of the Guantanamo Review Task Force.

Our amendment would also prevent the transfer of Guantanamo detainees to countries that have had prior instances of Guantanamo detainees being transferred to that country and then those detainees getting back in the fight against us.

It is pretty common sense. If we have a history with a country where we previously, under either the Bush administration or the Obama administration, transferred the detainees there and then they have been released and have gotten back in the fight against us or our allies, why would we want to transfer them to this type of country again? Because, obviously, these countries cannot guarantee the security of these detainees, and it puts us and our allies at risk.

Finally, our amendment would prohibit the transfer of Guantanamo detainees to countries that have failed to honor their previous commitments to the United States of America to monitor, detain, or control the travel of former Guantanamo detainees. Again, if we have had a prior agreement with a country and we have transferred a detainee or detainees there, and they have failed to honor those agreements, why would we want to transfer detainees there now?

The most recent instance of this was the five Taliban dream team who were transferred to Qatar, because the country of Qatar actually had a prior instance where they failed to honor their commitments to us with regard to how they would treat the detention and travel restrictions on a Guantanamo detainee.

I am deeply concerned about the national security implications of the five detainees who were transferred in the prisoner swap. In fact, having asked our intelligence officials about what will happen to these five detainees, what I have heard from them is on a scale of 1 to 10, 4 out of 5 of those detainees are a 10 for 10 on the likelihood to get back in the battle against us or our allies. The fifth is about an 80–10 scale. We have a 29-percent reengagement rate or recidivism rate from those we have held at Guantanamo, meaning 29 percent of them get back in the fight against our country, against us, against our interests after they have been captured and put in Guantanamo.

So we have a history here, and it is important if the administration is going to transfer anyone out of Guantanamo they not transfer individuals who have been found too dangerous to be let loose because they have been designated for continued law-of-war detention and they present too much of a risk to our country and the world. Second, to not transfer these individuals to countries where we have already

transferred people in the past—and guess what, they couldn't keep them secure and they got back in the fight against us and our allies. Third, to prohibit transfer to countries that have not honored prior commitments when we have transferred a Gitmo detainee there, and that would apply to the country the President most recently released the five Taliban dream team to who, unfortunately, are going to get back in the fight, and that 29 percent are those who have reengaged in the fight or are suspected of reengaging in the fight against us.

Our amendment is straightforward. It is focused on making sure the terrorists held at Guantanamo—the most dangerous of those individuals who present a threat to our country—are not put in a position where they can get back in the fight against us or against our allies.

We have to think about the men and women in uniform who have put their lives on the line to capture these individuals, in some instances, and honor our commitment to them to make sure we can hold the country safe and secure, to not allow those who have been deemed the most dangerous at Guantanamo for continued law of war detention to be transferred to a third-party country or not allow us to transfer them to countries where we already have a history of either detainees getting back in the fight from that country or the country not honoring its commitment to the United States of America.

My prior job was as a prosecutor. I will tell you, it is just a matter of common sense. This is a matter of protecting the American people from dangerous captured terrorists who we already have in our custody, to make sure we are not putting them back in a position where they can harm us again.

I think that is something that America would expect of us. That is what I believe our amendment would do. I hope, as we take up this appropriations bill, this amendment will be considered so we can pass it to ensure that dangerous Guantanamo detainees are not put in a position again where they can harm us, our people or our allies because too many of them, unfortunately, have already committed acts against our country, our people, and our allies, and shame on us if we do not do everything we can to prevent that from happening again.

I thank the Chair.

I yield the floor.

EXECUTIVE SESSION

NOMINATION OF GUSTAVO VELASQUEZ AGUILAR TO BE AN ASSISTANT SECRETARY OF HOUSING AND URBAN DEVELOPMENT

NOMINATION OF BRIAN A. NICHOLS, A CAREER MEMBER OF THE SENIOR FOREIGN SERVICE, CLASS OF MINISTER-COUNSELOR, TO BE AMBASSADOR EXTRAORDINARY AND PLENIPOTENTIARY OF THE UNITED STATES OF AMERICA TO THE REPUBLIC OF PERU

NOMINATION OF J. MARK McWATTERS TO BE A MEMBER OF THE NATIONAL CREDIT UNION ADMINISTRATION BOARD

NOMINATION OF CHRISTINE E. WORMUTH TO BE UNDER SECRETARY OF DEFENSE FOR POLICY

The PRESIDING OFFICER. Under the previous order, the Senate will proceed to executive session to consider the following nominations, which the clerk will report.

The bill clerk read the nominations of Gustavo Velasquez Aguilar, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development; Brian A. Nichols, of Rhode Island, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Peru; J. Mark McWatters, of Texas, to be a Member of the National Credit Union Administration Board; and Christine E. Wormuth, of Virginia, to be Under Secretary of Defense for Policy.

VOTE ON AGUILAR NOMINATION

The PRESIDING OFFICER. The question is, Will the Senate advise and consent to the nomination of Gustavo Velasquez Aguilar, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development?

Ms. AYOTTE. Mr. President, I ask for the yeas and nays.

The PRESIDING OFFICER. Is there a sufficient second?

There appears to be a sufficient second.

The clerk will call the roll.

The assistant legislative clerk called the roll.

Mr. DURBIN. I announce that the Senator from West Virginia (Mr. ROCKEFELLER) and the Senator from Hawaii (Mr. SCHATZ) are necessarily absent.

Mr. CORNYN. The following Senators are necessarily absent: the Senator from North Carolina (Mr. BURR), the Senator from Oklahoma (Mr. COBURN), the Senator from Mississippi (Mr. COCHRAN), the Senator from Nebraska (Mr. JOHANNS), the Senator from Kansas (Mr. MORAN), and the Senator from South Dakota (Mr. THUNE).

The PRESIDING OFFICER (Mr. DONNELLY). Are there any other Senators in the Chamber desiring to vote?

The result was announced—yeas 54, nays 38, as follows:

[Rollcall Vote No. 201 Ex.]

YEAS—54

Baldwin	Harkin	Murphy
Begich	Heinrich	Murray
Bennet	Heitkamp	Nelson
Blumenthal	Heller	Pryor
Booker	Hirono	Reed
Boxer	Johnson (SD)	Reid
Brown	Kaine	Sanders
Cantwell	King	Schumer
Cardin	Klobuchar	Shaheen
Carper	Landrieu	Stabenow
Casey	Leahy	Tester
Coons	Levin	Udall (CO)
Donnelly	Manchin	Udall (NM)
Durbin	Markey	Walsh
Feinstein	McCaskill	Warner
Franken	Menendez	Warren
Gillibrand	Merkley	Whitehouse
Hagan	Mikulski	Wyden

NAYS—38

Alexander	Fischer	Murkowski
Ayotte	Flake	Paul
Barrasso	Graham	Portman
Blunt	Grassley	Risch
Boozman	Hatch	Roberts
Chambliss	Hoeven	Rubio
Coats	Inhofe	Scott
Collins	Isakson	Sessions
Corker	Johnson (WI)	Shelby
Cornyn	Kirk	Toomey
Crapo	Lee	Vitter
Cruz	McCain	Wicker
Enzi	McConnell	

NOT VOTING—8

Burr	Johanns	Schatz
Coburn	Moran	Thune
Cochran	Rockefeller	

The nomination was confirmed.

The PRESIDING OFFICER. The majority leader.

UNANIMOUS CONSENT REQUEST—CALENDAR NO. 428, H.R. 4660

Mr. REID. Mr. President, I ask unanimous consent that postcloture time on the motion to proceed be considered expired; that the Senate proceed to vote on adoption of the motion to proceed; that if the motion is agreed to, Senator MIKULSKI or her designee be recognized to offer substitute amendment No. 3244, which consists of the text of S. 2437, Calendar No. 411, division A; the text of S. 2438, Calendar No. 412, as division B; and the text of S. 2389, Calendar No. 390, as division C; provided further that for the consideration of division B, H.R. 4745, Calendar No. 430, and for the consideration of division C, H.R. 4800, as reported by the House Committee on Appropriations, be deemed House-passed text in H.R. 4660 for purposes of rule XVI; further, that the substitute amendment offered by Senator MIKULSKI or her designee be considered a committee amendment for the purposes of paragraph 1 of rule XVI; further, all amendments or motions to commit be subject to a 60-vote threshold.

Mr. President, before the Presiding Officer calls for approval of this consent, let me say a few words so everyone understands all of the procedural stuff.

It is a fairly simple matter. We have waited all week to get a simple agreement to move forward on appropriations bills the way we have always done. If it had been just one appropriations bill we wouldn't need consent. We put three of them together, and that was the right thing to do. But it seems to me we spent all week doing, so much of the time, nothing. Sadly, I am sorry this is the norm around here. For every single matter, even wildly popular matters such as an appropriations bill, it requires the full play of the cloture rule to advance. This has been so even though on Tuesday, when cloture was invoked on proceeding, 95 Senators voted to get on the bill, only 3 voted against it.

Senators on both sides said they want to have amendments, and we should have amendment votes. I am willing to have amendment votes on this and other things. Let's talk about this today.

I want to have votes on the conditions that Senator MCCONNELL has so frequently stated, a 60-vote threshold. The idea of a 60-vote threshold will not come as a surprise to anyone in this Chamber, I don't think, because I wish to take a minute outlining direct quotes from my friend the Republican leader.

No. 1: Now, look, we know that on controversial matters in the Senate, it has for quite some time required 60 votes.

No. 2: Requiring 60 votes, particularly on matters of importance, is not at all unusual. It is the way the Senate operates.

No. 3: Matters of this level of controversy require 60 votes, so I will ask my friend [referring to me] if he would modify his consent request to set the threshold for this vote at 60.

Again he said: For him to suggest that a matter of this magnitude in a body of 60 votes for almost everything is going to be done with 51 votes makes no sense at all.

And he said: So it is not at all unusual that the President's proposal of this consequence would have to achieve 60 votes. That is the way virtually all business is done in the Senate, certainly not extraordinarily unusual.

Finally he said, quite recently: Mr. President, I can only quote my good friend [again referring to me] who repeatedly has said—most recently that in the Senate, as has been the case, we need 60 votes. It requires 60 votes, certainly on measures that are controversial.

So let's make this pretty simple. We are going to have the ability to offer germane amendments, and we will follow the McConnell rule and will have 60 votes on them. It seems fair.

That is my consent request, and I would ask that it be approved.

The PRESIDING OFFICER. Is there objection to the request?

The Republican leader.

Mr. MCCONNELL. Reserving the right to object, what I think I hear the majority leader saying is that any amendment offered by any Republican is controversial and thus must require 60 votes.

It was my hope we could get forward on this appropriations bill with a full and open amendment process and a reasonable number of amendments from both sides.

The only restrictions on amendments to this bill are those in the Standing Rules of the Senate, which create a requirement that the amendments deal with an appropriations matter or, if legislative in nature, have a defense of germaneness to one of the underlying House appropriations bills.

Chairman MIKULSKI has been determined to try to get us back to regular order in considering appropriations bills.

In 2011, just a couple of years ago, we considered this same appropriations package—the very one we are considering now under the regular order—and all Senators, Democrat and Republican, were treated fairly—just 3 years ago.

Today's Senate is a totally different place. The majority leader has blocked all but nine rollcall votes on Republican amendments since July of last year. That is about a year ago.

By contrast, during that same period, House Democrats got 153 amendments, rollcall votes, over that same period of time. That is in the House where you would think it would be hard for the minority to get amendments.

In fact, one Member of Congress, SHEILA JACKSON LEE from Houston, has had 15 amendments herself. SHEILA JACKSON LEE has had more votes over the past year than Senate Republicans. In fact, the House seems to have turned into the Senate and the Senate seems to have turned into the House.

The gag rule, as was pointed out by Senator ALEXANDER and others this morning in an appropriations meeting, seems to now apply to committee meetings as well. So not only do we not get votes on the floor, we don't get votes in committee either.

They cancelled the scheduled markup on the Energy and Water bill, I assume out of concern that some Republican amendment might, my goodness, actually pass with Democratic support. So we are being shut out of amendments in committee as well as on the floor.

When do we start legislating again? What has happened to the Senate?

Therefore, I would ask unanimous consent that the proposed agreement by the majority leader be modified so that all amendments be considered under the regular order, Chairman MIKULSKI and Ranking Member SHELBY, and move this bill across the floor in a bipartisan manner exactly as we did it on the very same bill back in 2011.

The PRESIDING OFFICER. Does the majority leader so modify his request?

Mr. REID. Reserving the right to object, my friend the Republican leader is obviously not in contact with what is going on around here. This doesn't apply to Republican amendments, it applies to Republican or Democratic amendments—as all of his requests, which are in the record and I read.

A reasonable number of amendments he wants. Fine. That is what we want too. We want to have a reasonable number of amendments on this bill and move it forward. It is important we get this done.

I have served in the House of Representatives—not without going into a lot of detail here, as the Presiding Officer has served in the House of Representatives. The rules there are totally different. Of course, there are a lot of votes because every vote is predetermined in the House, with rare exception, because the Rules Committee sets the boundaries of what happens. So over in the House the majority never loses.

Here the Senate is the way it is. We are willing to do votes as the Republican leader has stated time and time again we should do it. I disagree, but as he has said, this is the way the Senate operates now. I wish it didn't, but it does and that is the way we should proceed.

I am willing to move forward on this bill. We should have a 60-vote threshold, and I think that would be the appropriate thing to do.

Therefore, I object.

The PRESIDING OFFICER. Objection is heard.

Is there objection to the original request?

Mr. MCCONNELL. I object.

The PRESIDING OFFICER. Objection is heard.

Mr. REID. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. MCCONNELL. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered. The Republican leader.

Mr. MCCONNELL. My friend the majority leader always reminds me he gets the last word, and I am sure he will have something to say further, but let me briefly say that during this same period, going back to last July, Senate Democrats have only had seven rollcall votes. Congresswoman SHEILA JACKSON LEE, in the minority in the House, has had 15 rollcall votes over the last year.

I yield the floor.

Mr. REID. The House is different than the Senate. There is no question about that. We could have on this bill a lot more than seven votes, so we should do that.

Would the Chair state the business that is before this body?

VOTE ON NICHOLS NOMINATION

The PRESIDING OFFICER. Under the previous order, the question is, Will the Senate advise and consent to the nomination of Brian A. Nichols, of

Rhode Island, a career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Peru?

The nomination was confirmed.

VOTE ON MCWATTERS NOMINATION

The PRESIDING OFFICER. Under the previous order, the question is, Will the Senate advise and consent to the nomination of J. Mark McWatters, of Texas, to be a Member of the National Credit Union Administration Board for a term expiring August 2, 2019?

The nomination was confirmed.

VOTE ON WORMUTH NOMINATION

The PRESIDING OFFICER. Under the previous order, the question is, Will the Senate advise and consent to the nomination of Christine E. Wormuth, of Virginia, to be Under Secretary of Defense for Policy?

The nomination was confirmed.

The PRESIDING OFFICER. Under the previous order, the motions to reconsider are considered made and laid upon the table, and the President will be immediately notified of the Senate's action.

VOTE EXPLANATION

Mr. THUNE. Mr. President, today, due to tornados and severe storms in South Dakota, which resulted in significant damage to homes and businesses in my State, I was traveling back to South Dakota to survey the damage and meet with local leaders coordinating response efforts during the scheduled vote. Had I been present for today's vote on the confirmation of Executive Calendar No. 770, Gustavo Velasquez Aguilar, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Devopment, I would have voted nay.

LEGISLATIVE SESSION

The PRESIDING OFFICER. The Senate will resume legislative session.

The majority leader.

The PRESIDING OFFICER. The majority leader.

Mr. REID. Mr. President, I am told there is 7 minutes remaining postcloture on the motion to proceed to H.R. 4660.

The PRESIDING OFFICER. There is 9 minutes remaining.

Mr. REID. I yield that time back.

Ms. MIKULSKI. Mr. President, I would like to claim those 9 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. REID. If she wants to use the time, please do.

Ms. MIKULSKI. Mr. President, before we move to the adoption of the motion to proceed on CJS appropriations, if in fact we do so, I wish to speak as the chairperson of the Appropriations Committee and the chair of the subcommittee on CJS.

I am really sad about what has happened here. I am really sad we couldn't find a way to proceed to bring up these three outstanding bills.

I note that what we wanted to bring to the floor was the Commerce-Justice-Science bill, the Agriculture bill, and Transportation, Housing and Urban Development.

There are significant policy differences even on each one of those bills, whether it is truck requirements, whether it is school nutrition, whether it is environmental—important discussions and decisions on the environmental protection.

On my own CJS bill, we are going to really lose a lot. You know, I had money in this bill—working with Senator SHELBY—for bulletproof vests for cops to protect those who protect us and more money for domestic violence to be able to protect those in their own homes. I have also added more money to work with those people who have been rape victims, doubly assaulted by the system where they are not only raped by a perpetrator, but the very system didn't process the forensic evidence that would have validated the guilty party or even ascertained that there was a serial rapist.

Agriculture fed the hungry in this country and fed the hungry around the world. And of course transportation and housing both created jobs, solved problems in physical infrastructure, and also at the same time met compelling human needs in our housing. Particularly, I note the items such as housing for the elderly and the economic development.

I am not going to take my full 9 minutes, but I would hope that at the end of today we figure out how we could have another day.

I know on both sides of the aisle in the Appropriations Committee itself, those subcommittee chairmen really worked hard to produce bills. As of today, we have moved six bills out of our full committee and are pending on the floor. But now we have to truly arrive at a set of rules for the road on how we can proceed to bring these bills to the floor. I really hope we can do so.

There has been so much good will on both sides of the aisle and also on both sides of the aisle a really incredible effort to be able to meet the needs of our country, to have a more frugal government and a really, truly civil process.

So this day will come to an end. But I really hope that the Appropriations Committee coming to the floor doesn't die today.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

Mr. REID. Madam President, I know there are others who wish to speak, and if they want to use time remaining postcloture, fine; otherwise, I yield the time back, and the floor will be open for everybody. But I need to do that first. So, does anyone want to speak for the 2 minutes remaining on this?

I ask unanimous consent that all time postcloture be yielded back.

The PRESIDING OFFICER (Ms. HIRONO). Without objection, it is so ordered.

The question is on agreeing to the motion to proceed.

The motion was agreed to.

BIPARTISAN SPORTSMEN'S ACT OF 2014—MOTION TO PROCEED

Mr. REID. Madam President, I now move to proceed to Calendar No. 384, S. 2363.

The PRESIDING OFFICER. The clerk will report the motion.

The legislative clerk read as follows:

Motion to proceed to Calendar No. 384, S. 2363, a bill to protect and enhance opportunities for recreational hunting, fishing, and shooting, and other purposes.

The PRESIDING OFFICER. The Republican leader.

Mr. MCCONNELL. Madam President, I know my friend from Tennessee is on the floor and would like to make a few observations. I would just very briefly make the following point ahead of him.

Another way of looking at the way the Senate is being run that affects Democratic Senators:

Democratic House Members from Oregon have had 12 rollcall votes on their amendments, but Oregon's Democratic Senator does not have any—none. Democratic House Members from Virginia have gotten 11 rollcall votes on their amendments, but Virginia's two Democratic Senators have gotten none—zero. Democratic House Members from Colorado have gotten seven rollcall votes on their amendments, but the Democratic Senators from Colorado have gotten none—zero. Democratic House Members from California have gotten 37 rollcall votes on their amendments, but California's Democratic Senators have gotten none—zero.

So that is the condition of the Senate today. It is not just affecting the Republican minority, but the Democratic majority as well.

I see Senator ALEXANDER is on the floor. I yield the floor.

The PRESIDING OFFICER. The Senator from Tennessee.

Mr. ALEXANDER. Madam President, let me see if I can say something that contributes to progress, especially while the Senator from Maryland, the chairman of the Appropriations Committee, is on the floor.

She has really done a terrific job in working with the Republican and Democratic leaders to try to get us back to the business of appropriating. We are not that far away. We have three bills ready to come to the floor. We have consent on the Republican side—which had to be unanimous over here to be able to bring it up in this way.

Now we have a difference of opinion between the two leaders about whether all the amendments ought to be 60 votes. I would respectfully suggest that is not the norm.

It is true that the Republican leader has said many times that an important amendment ought to be 60 votes. Recently when we were working on the

Child Care and Development Block Grant or some other legislation, we would say the norm is 51 votes. But for a nongermane amendment, or if it was an especially controversial amendment, then maybe it would be 60 votes. That was a matter of negotiation.

So my hope is that we could move through these appropriations bills in the normal way, which would mean most votes would be 51. Occasionally, there might be a 60-vote vote. That is what we usually have done. That is what we historically have done. The majority party has 55 members last time I checked. It has a President who can veto anything, and it takes 67 to override him. So they have plenty of advantages on their side.

Now, let me conclude in this way—and I said it this morning in our Appropriations Committee. Last week I was visiting with some Senators and an Ambassador. We had dinner at the home of an ambassador from a country who greatly admires the United States. He was saying how much he envies this great tribunal—the Senate, and how other countries in the world envy it, and how it is the only tribunal like this anywhere in the world that is set up to have extended debate on important issues until we reach a consensus and stop debate and come to a result.

That is the history of the civil rights bill, the Medicare bill, and the student loan bill last year, and bills even more recently than that.

What that means in very simple terms is that the majority decides what we are going to talk about, the minority decides what amendments it would like to offer, and we keep talking and keep talking until it is time to cut off debate and try to come to a result. That is what we should be doing.

I would respectfully say that this business of not being willing to vote on amendments because it might hurt some individual Senator is not really worthy of the Senate. It is not practical, and it really doesn't make that much difference in campaigns.

The idea that only 9 Republican amendments have received votes out of more than 800 amendments offered since last July is probably a record in the Senate. What is even worse is that—according to the Senator from Wyoming, who has counted these—there were only 7 Democratic amendments voted on out of nearly 700 offered since last July.

Now, why are we here if we are not here to speak on behalf of our constituents about Benghazi, about the new health care law, about whether we need a college rating system from Washington, DC, about fixing No Child Left Behind?

I remember in Senator Byrd's book he talked about the Panama Canal Treaty that he and Senator Baker marshaled through. It took 67 votes—a very divisive issue. He said: We allowed nearly 200 amendments, reservations, and other codicils to the amendments, and we killed them all. We beat them all. But, he said: We never would have gotten the treaty ratified if we hadn't allowed Senators to have their say.

So we have gotten to this level of distrust between that side and this side. And most of us are trying over here to say: All we want is an opportunity to have amendments offered in the regular order, a chance to debate them and a chance to vote on them, and if we are defeated, so be it. To impose a gag rule on us imposes a gag rule on the people who sent us here. This morning in the Appropriations Committee, that gag rule moved from the Senate floor to the Appropriations Committee.

If the Republicans were in charge of the Senate, the Democrats wouldn't put up with that. I don't know why they are putting up with it today.

I know there is distrust on both sides. But we are very close to a situation where we have three major appropriations bills which are on the floor. We have a disagreement only about whether all amendments ought to require 60 votes. That has not been the norm before. We should be able to work that out and use our time to represent the people of the United States so that ambassador, when he has another group of Senators out there, can say: You belong to the tribunal that is unique in the world that every country in the world wishes it had, because it is a forum—the only one in the world of this kind—where you have extended debate on major issues until you get a consensus and come to a result.

That is the only way to govern a complex country like the country that is the United States of America. We are getting back toward that, and I hope that our leaders and our Appropriations Committee members can make the next few steps and let us all go to work like we aim to do.

We have some pretty talented people here. We have Rhodes Scholars and former Governors and people who have been here a long time and people who have been here a short time. It is not easy to get here, and it is not easy to stay here. So while we are here, we would like to work—which means we would like to speak, have our say, vote, and, if we can, get a result.

Madam President, I yield the floor.

The PRESIDING OFFICER. The majority leader.

Mr. REID. Madam President, my friend from Tennessee is a fine man. He has been a good Senator, a good member of a President's cabinet, and he really has tried to be a peacemaker all the time I have known him. But his speech that he just gave could be given by any Democrat about the obstruction, the delay, the diversions that have taken place during the entire time President Obama has been President.

We have never had to file cloture on every motion to proceed as we did on this one, as we have done on everything that comes along.

So we can talk about where we have been, but I think we should talk about where we are. Everyone knows that, because of the Republicans, there has been a threshold of 60 votes.

But I say to my friend from Tennessee: I asked for my consent agreement. He says we are very close. With his skills of negotiating compromises, I am willing to listen to something else if he has a better idea to change the McConnell 60-vote threshold rule. I have some ideas myself, but perhaps they should come from him. I, on behalf of my caucus, am entirely agreeable to listen to any reasonable counteroffer.

We have been trying really hard to get things done, but every step we take is a stalling tactic. My friend talked about ambassadors. I don't know the exact count—I haven't gotten it for a day or two—but the last count I had, 54 foreign ambassadors were held up. The continent of Africa, up to a third of the countries there do not have a U.S. ambassador. That doesn't count the scores of other people who are being held up. Why are they being held up? They are being held up because we are now able to move judges. Ambassadors related to judges is nearly empty. We have a few district court judges, and we have a circuit court judge. They will report some more out. But in an effort to—use whatever term you want—''We will show you guys. You are going to get your judges, and we are not going to give you any other nominations.'' So we are working through those very slowly.

As much as I care and respect the Senator from Tennessee, he does not need to lecture me about stalling around here. We are not. If they want to beat the record of eight or nine amendments—however many it is—move this bill. They will have lots of amendments. And we can start doing that this afternoon.

So, Madam President, I repeat now for the third time: If my friend from Tennessee has a better idea on moving forward—he says we are so close—I am willing to listen to him.

The PRESIDING OFFICER. The Senator from California.

Mrs. BOXER. Madam President, I want to say to my friend from Tennessee that the majority leader has offered a way forward, and he has taken a page out of the book of the Republican leader, and he quoted him, and I have those quotes here: ''Matters of controversy always require 60 votes.'' And my friend knows. He knows.

I stand here as the chairman of the Environment and Public Works Committee. I am so grateful I have moved some bills through here—highway bills, water bills—but my friend knows that the two big amendments that his side wants to offer don't deal with ordinary matters. They deal with matters that have jurisdiction in the environment committee, and they deal with a repeal of parts of the Clean Air Act and a repeal of parts of the Clean Water Act.

So my friend wants to move forward. I am sure he would agree that to repeal

parts of landmark laws on an appropriations bill is legislating on appropriations and ought to require 60 votes. It is wrong.

Now, I would say to my friend, why is the other side so determined to repeal two laws—one dealing with the Clean Water Act and the Safe Drinking Water Act, and then the other one is this Clean Air Act—why are my friends on the other side continuing to go against these landmark laws—which, by the way, were signed into law by a Republican President? He has to explain, because I don't understand why people want to put children at risk and families at risk, pollute our rivers and streams, and suspend a plan that the President has announced is going to save thousands of lives, going after carbon pollution, making sure we don't go back to the days of smog and ozone. And we know these are the riders that my Republican friends want to offer. There is no secret.

The Republican leader defined the 60-vote threshold for controversial amendments. I can assure my friend that if there was a tweak or two that was going to be made and Senator MIKULSKI and Senator SHELBY agreed with it, I would not demand 60 votes.

We are talking about repealing basic, important landmark provisions of environmental laws, and that is exactly what this is about.

Ms. MIKULSKI. Will the gentlelady yield for a question?

Mrs. BOXER. I would be happy to yield, yes.

Ms. MIKULSKI. Because I was listening to what she said. Senator REID proposed a 60-vote threshold on amendments to our appropriations bill. It was rejected. OK. The Senator said now she wouldn't object——

Mrs. BOXER. To a 60-vote threshold, no.

Ms. MIKULSKI. On all amendments? Could the Senator clarify?

Mrs. BOXER. Yes. I would say——

Ms. MIKULSKI. In other words, the Senator does want a 60-vote threshold or is it——

Mrs. BOXER. I would go with the Mitch McConnell rule, which he has stated seven times, which is that on controversial amendments we have to have 60 votes. I am not going to stand here——

Ms. MIKULSKI. So the Senator would want——

Mrs. BOXER. I just want to answer my friend.

Ms. MIKULSKI. Sure.

Mrs. BOXER. My friend said we are trying to spare people tough votes. That is ridiculous. Members on your side, Members on our side—we are grownup Senators. We know how to win elections, cast tough votes. I want to protect the American people, and so do a lot of folks on our side of the aisle. And we don't want to see majority rule to repeal landmark environmental laws. We are not going to stand for it, and neither would the minority leader in the way he describes it. He said over and over that on amendments of controversy we have to have a 60-vote threshold.

So my friend, if he is sincere about this—he is sincere about this. But if the two chairmen can come up with a plan where amendments like this, controversial amendments, require 60 but amendments that both sides feel are not controversial can go to a voice vote, I will be a happy person. I have gotten bills through here before. I wasn't born yesterday, as you can probably tell, and we know a controversial amendment from a noncontroversial amendment.

So I will close with this: I know my friend Senator MIKULSKI is an incredible chairman, and with RICHARD SHELBY working with her, they are quite the duo. And I have seen their work—because every single Member cares about the work they do—and it is stellar. But I am not going to sit here and see amendments come to the floor that would repeal clean air, clean water, safe drinking water, and just nod approval and say: Oh yeah, just take it away. No big deal. That is it.

And that is why I feel the majority leader was right when he said let's move forward with a 60-vote threshold. That makes a lot of sense. I am sorry the Republicans objected.

I yield the floor.

The PRESIDING OFFICER. The Senator from Utah.

Mr. HATCH. I ask unanimous consent that I be permitted to continue and finish my remarks.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. HATCH. Madam President, I have been really interested in this debate. Let's just be honest about it. The Senate is being run in a shoddy fashion. I don't care which side you are on. I have only been here 38 years, and I have never seen a bigger mess than we have right now. I have never seen the majority stifling amendments by the minority like we have right now. I have never seen cloture filed almost immediately when a bill is brought up, like we are filibustering when we are not. All we want are amendments and to have a vote up or down—something we always gave the Democrats on crucial bills like this one. It is pathetic, and it has to change.

Frankly, if the American people really knew—we have had nine amendments since last July that we voted on. The Democrats have had only seven. Now, even some of my Democratic friends are up in arms about it. They are not able to act as Senators. They are not able to do the work. They are not able to be part of it. I mean, my gosh, is protecting your side from the election—is that more important than having the Senate run the way it should? The answer to that is a resounding no.

This is pathetic. I have never seen anything like it. To come out here and act holier-than-thou about it, as if it is just normal around here, is just plain wrong, and everybody knows it. That is the thing that just kills me.

If we were doing that, if we were in the majority, my gosh, the whole world would be coming down on us, especially with the beloved media we have in this country—and rightly so if we were pulling the kinds of the stunts that are being pulled on the Democratic side.

Look, I am tired of it. I know Democrats who are tired of it. Every Republican is tired of it. We are being treated as though we don't count in this battle—in this battle between the two parties in the Senate. It doesn't have to be a battle every time. Both sides have been wrong from time to time but nothing like this. This is pathetic.

IRS INVESTIGATION

Madam President, about a year ago the American people learned that the IRS—one of the most feared and powerful agencies in our government—had engaged in political targeting. There is no doubt about that. Specifically, we learned that the IRS had, by its own admissions, singled out individual conservative groups applying for tax-exempt status for harassment and extra scrutiny during the runup to the 2010 and 2012 elections, and the IRS admits it—at least some in the IRS admit it. Needless to say, the American people were outraged when this news became public, and the IRS's credibility was seriously damaged.

We saw numerous groups and individuals come forward to acknowledge that they had been targeted. Politicians across the political spectrum, including the President of the United States, condemned these actions and vowed to get to the bottom of it.

In the many months since the targeting scandal was revealed, I have said numerous times that the most important objective for the IRS and its leadership consisted of repairing its reputation with the American people. For a while there, it appeared as though the agency was serious about doing that. Sadly, over the last few days a new chapter in this scandal has been opened, and as a result the IRS's credibility has taken yet another serious hit.

For more than a year the Senate Finance Committee has been engaged in a bipartisan investigation into the targeting scandal. During most of that time we were under the impression that the IRS was acting in relative good faith to cooperate with our inquiry. As of last week we believed we were close to completing our investigation. We had prepared the bipartisan majority report and the majority and minority views in addition. We were about ready to come out with that. The facts, we believed, were coming together. Then, in what I thought would be one of the last steps in the investigation, I insisted that we send a letter to IRS Commissioner John Koskinen demanding that he formally certify that the agency had produced

all documents that were relevant to our requests. It was then—after we sent that notice to them asking them to verify—that we learned there was an enormous hole in our factfinding. I am sure glad we sent the letter.

On Friday of last week the IRS informed us that due to a hard drive crash, it was unable to produce thousands of pages of emails from Lois Lerner—the one who took the fifth amendment—the former Director of Exempt Organizations and one of the central figures, by anybody's estimation, if not the central figure, in this investigation. The gap in the emails was from 2009 through April 2011—a pivotal time in the activities under investigation.

You heard that right, Madam President. A full year after our initial investigation request or information request, the IRS informed us that a huge chunk of relevant emails was mysteriously gone.

Needless to say, this was disturbing. That is why Chairman WYDEN and I demanded to meet with Commissioner Koskinen on Monday of this week. Sadly, this meeting produced even more bad news.

The first thing we learned during the course of this meeting was that Ms. Lerner's emails were not going to be reproduced. The IRS's redundancy operations were apparently insufficient to ensure that these emails would be saved in the event of a hard drive crash. According to Commissioner Koskinen, the IRS only saves emails on its servers for 6 months. Get that. The IRS only saves emails on its computer servers for 6 months. Now, they require you and me and everybody else to save at least 3 years of our tax returns, but they only—according to them—were saving emails on their servers for 6 months. I don't know about you, but I have a rough time believing that. I cannot believe it. That is what they do.

The next thing we learned is that officials at the IRS became aware of this gap in Ms. Lerner's emails as early as February of this year and that the Commissioner was made aware of the hard drive crash about 3 weeks or more prior to our meeting—he wasn't quite sure, but sometime around the end of March or the first part of April, is my recollection, but certainly more than 3 weeks before our meeting. It was never made clear to us why it took at the very least 3 weeks and a letter from us demanding a signed certification from the Commissioner for the IRS to inform the Finance Committee that the emails were missing. As of right now we still don't know why the agency failed to inform us immediately that the emails were gone.

The IRS was more willing to share this information with others in the administration. Yesterday we learned that by April the IRS had already notified Treasury that some of Ms. Lerner's emails appeared to be missing. We also learned that in April Treasury informed the White House of this development, but they didn't inform us. The IRS has offered no explanation of why they waited 2 more months to inform Congress—and particularly the Senate Finance Committee, which is the crucial committee here in the Senate which was performing an active investigation into this very issue. You haven't heard from either me or the chairman, Senator WYDEN, popping off about this. We conducted a reasonably good investigation, doing everything we thought we could do without mouthing off about it.

Moreover, we do not know what discussions have taken place since April between the White House, Treasury, and the IRS about the lost emails.

That would be bad enough, but it gets worse.

After our meeting on Monday, we were surprised to learn, via a press release from the House Ways and Means Committee, that even more emails relevant to our investigation may be missing. Apparently the IRS had informed the Ways and Means Committee, but not us, knowing we were conducting an investigation, that it might have lost the emails for six IRS employees, all of whom were covered by the Finance Committee's document requests. Think about that.

One of these employees is reported to be Nikole Flax, who was the chief of staff to former Acting Commissioner Steve Miller. In that role Ms. Flax helped oversee the processing of tax-exempt applications. From our investigation, we also know that she directly dealt with the White House and the Office of Management and Budget on a number of issues.

It seems there is an epidemic of hard-drive crashes going on at the IRS, and it seems to be particularly focused on individuals relevant to the targeting scandal and the ongoing congressional investigations. Chairman WYDEN and I just wanted to get to the truth on these matters, but it is going to be difficult to ever get there now.

Needless to say, it is very troubling that even more emails might be missing and may never be recovered. It is also troubling that neither Commissioner Koskinen nor his staff thought they should reveal this information to Chairman WYDEN and myself during our long conversation earlier this week. They knew about it, but they didn't tell the people who were conducting the investigation about it at all.

It is obvious from the timing of the revelations that people in that room were aware of the additional missing emails. Yet it didn't occur to any of them that they should disclose this information to the chairman and ranking member of the only Senate committee with oversight authority over this agency.

As I said, the Finance Committee was getting close to completing its investigation last week. We were getting close to issuing our report, and we were moving forward under the assumption that the IRS had been cooperating. It took me a week to read the bipartisan report and the majority and minority views that were added to it—not because I am a slow reader, but because I was interrupted all day long every day. I had to set aside various times when I could read it. We were moving forward under the assumption that the IRS had been honestly cooperating—we thought. Now we have to ask ourselves whether we can trust any of the statements coming out of this agency.

Our investigation is important. We need to have a full and complete account of what went on at the IRS during the 2010 and 2012 election campaigns. Sadly, it seems that in order to get such an account, we are going to need to also delve into what has gone on at the IRS during the months the agency was supposedly trying to respond to our reasonable document requests.

One way or another, I am going to get to the bottom of this, and I am prepared to take any steps that are necessary to do so. We need to get to closure on what the facts are before we can close out the investigation. Otherwise, the conclusions in the investigation will be based on a faulty factual premise.

Earlier today, I sent a letter to Commissioner Koskinen demanding to know what he knew about the additional missing emails and why the chairman and I were not informed about them during our meeting this last Monday. He had three others with him, and at least one of them fully knew about the additional six hard drives that crashed.

I am not naive. I do a lot in the IT world, and I can tell you this: These are the first hard drives that crashed—that I have known about—that some of our IT, information technology, experts could not get into and find some of the data. That is possible but not probable in seven different cases. Once again, it appears that either the Commissioner or his staff were less than forthcoming in the meeting and someone needs to be held responsible.

This is important. If we can't trust these agencies to be truthful to congressional leaders, we have serious problems. This letter is only the first step. More action needs to be taken. There needs to be an independent review of the fiasco surrounding all of these lost emails and crashed servers.

We need an independent arbiter to determine if the agency's account of the computer problems is accurate and whether the relevant emails are, in fact, unrecoverable. We also need a review to determine if there are more missing emails. As I said, this review needs to be independent as we apparently can't trust the IRS to be fully forthcoming on these issues. This is what we are going to need to get to the bottom of it, but sadly, even that won't be enough.

The problem with these missing emails is that we won't have any assurances that we will ever get a complete

picture of what went on. We need to take the necessary steps to find out what communications these individuals were making during the time in question.

We have received many of these employees' emails from the IRS because for obvious reasons they tended to include the email addresses of other IRS employees. However, what we don't have are emails sent by these individuals to parties outside the IRS. If the computer problems at the agency have indeed made these emails impossible to recover on the IRS's end, the only way to recover them is to extend the inquiry to agencies outside the IRS.

Let me say, this is a mess. Honestly, I don't see how any reasonable person cannot conclude that there is a very real possibility that something is wrong in Washington, something is wrong at the IRS, something is wrong at Treasury, and something is wrong at the White House.

Communications to agencies such as the Treasury Department, Justice Department, and the Federal Election Commission are all relevant, as are emails sent to the White House.

I plan to send document requests to all of these parties, asking them to produce any communications they received from the seven IRS employees whose emails have been lost.

Of course, in an ideal world none of this would be necessary, but we are not living in an ideal world. Instead, we are living in a world where apparently hard drives crash every day and administration officials decide to withhold information from congressional investigators. As a result, additional steps are necessary in order for the truth to finally come out.

In conclusion, I want to make one thing clear. While I am angered and disappointed by this recent turn of events, I am not the aggrieved party here. That unfortunate distinction belongs to the American people.

Once again, the IRS is one of the most powerful and feared agencies in our government. It is one that millions of Americans have to deal with on a daily basis. The American people have a right to expect this agency will conduct itself in a fair manner without regard to parties and politics, and that trust was broken last year when the targeting scandal was made public.

Now, a year later, after all the work we have done to hold this agency accountable and to get to the bottom of these matters, that trust has been broken again.

I have to say that Chairman WYDEN has been very good on these matters. He has tried to be bipartisan in every way, and I personally appreciate it. I think he will continue to work in a bipartisan way as we try to get the real facts about all of these matters.

It is a shame, but once again I am going to get to the bottom of this one way or the other. It is going to be difficult because it appears that going forward we will not be able to trust anything the IRS says to Congress. That is why we are going to have to bring other parties into the inquiry. This is unfortunate. As I said, this is the world we are living in.

I am discouraged about this. I mean, the administration knows I am as fair as a person can be on our side, and all I want to do is get to the facts and the truth and resolve these problems in the best interest of the American people.

Why some of these were not brought up when they were known is beyond me. It is beyond me that only after we sent a letter saying: Will you verify this is everything, then all of a sudden there were other emails that were found, but not from these servers, and not for 2 years in the case of the Lois Lerner server.

Lois Lerner took the Fifth Amendment, which is her right. I am not about to condemn her as a guilty criminal around here, but I think the best thing she could have done was help provide these emails that would hopefully exonerate her, but I believe would not. Otherwise I don't think there would have been a crash of the computer.

What really bothers me is this too: When computers in the Federal Government crash, they usually have backups, and the backups will allow us to get the computer up and working. For some reason there apparently were not backups here either. Not only that, they were only keeping track of the prior 6 months, so you would have never gotten the 2 years no matter what you did if the computer crashed. But we don't have those 2 years, which were relevant years, in anybody's estimation.

There is something rotten in Washington. I am not sure who is responsible for it. I have to say I like Mr. Koskinen. I helped put him through in a very ready fashion and got him confirmed. I believed he was telling us the truth. But I am disturbed that the only way we even got the rest of the available emails—none from 2009 to 2011. And who knows, as to the other six servers, how many of those crashed and how many of those emails are gone forever.

The administration will say, well, we did look at the addresses and we got the emails in some respect from some of the people they were sent to, but that is not what the real investigation would show either. They don't have a bit of an excuse here. It just makes one wonder, why did Lois Lerner take the protections of the Fifth Amendment? Why has not the administration been outraged as much as we are? I can say I believe our distinguished chairman is as outraged as I am. I can't speak for him, naturally, but I know him, and he is as upset as I am because we sat right there last Monday and they never told us about the six servers. As far as I know, they disposed of the crashed server of Lois Lerner. So nobody will ever be able to examine it and determine whether there is the possibility of getting the emails for that crucial period between 2009 and 2011, which is probably the most crucial period of the whole investigation.

Now Senator WYDEN and I have to rework our report on this, and hopefully we can do that, even though we don't have all the information that anybody with common decency would expect us to have.

I yield the floor.

The PRESIDING OFFICER (Ms. WARREN). The Senator from Florida.

Mr. RUBIO. Madam President, I ask unanimous consent to speak as in morning business.

The PRESIDING OFFICER. Without objection, it is so ordered.

IRAQ

Mr. RUBIO. Madam President, we all continue to follow the events in Iraq that have significant national security implications for the United States now and in the years to come. The President spoke on this issue a few moments ago, and I wish to share a few thoughts before we return to our States for the next few days and then come back to Washington early next week to continue our work.

The first thing I wish to say about this issue of Iraq is, while I certainly respect those Members who have served in this body and those commentators who have either served in government and now are out and others who have strong opinions about the decisions that were made regarding Iraq in the past, I would say I hope what we spend our time around here doing during this process is focused on what is happening now and what lies ahead. That doesn't mean there shouldn't be a debate about the decisions made in 2003 and beyond. Those are important debates to have, primarily because we learn from history. We learn from the successes and the mistakes, but I think we are spending a lot of time around this process these days talking about the past. We have the rest of history to debate who was right and who was wrong with regard to the war in 2003 or the surge thereafter. I have strong opinions about it, and we should certainly spend time talking about that so we can learn from it and so we can apply it to new decisions that are being made, for example, in Afghanistan, but I would hope that 90 to 95 percent of what we spend our time on is talking about how to deal with this threat now—the one that is right before us.

The President today announced—and it is going to be covered—that they are going to send close to 300 additional American trainers and advisers into Iraq. I have no direct objection to that decision. I am hopeful, however, that it is but the first step in a multistep process in this counterterrorism risk we now face. I am hopeful what this is designed to do is set the framework for the United States to achieve a number of important goals that directly impact the national security of the United States.

The first, of course, is I believe the United States, working in conjunction

with others in the region, needs to do everything we can to cut off ISIL's supply lines. Many people may not be fully aware of this, but ISIL or ISIS—the same group involved in Syria—is not simply a bunch of Sunni Syrians or Sunni Iraqis; these are foreign fighters, including hundreds who are estimated to have come from the West, who have flocked to Syria and now Iraq to participate in this fight.

In addition, this group, in order to make the advances and the gains it is now making in Iraq, requires—as any force would—distinct supply lines that allow them to transport individuals and weapons and ammunition, in addition to, by the way, the things they are now getting their hands on as they make these advances. So one of the goals the United States must have, working in conjunction with others, is to sever those supply lines so they cannot continue to make these gains.

Secondly, I hope what the President announced today as the beginning of a process will, in part, also focus on the command and control areas they currently operate from within Syria. Without those safe havens, they would not possibly be able to expand the reach they now have. So I hope, again, that what the President announced today is but a first step toward a multistep process that allows us to address those two issues.

In addition, I think it is important to continue to revisit the issue of the opposition in Syria. When people read about the opposition in Syria, it is important to note there is no such thing as the opposition. There are a handful of groups operating within Syria against the Assad regime, but these groups also fight each other, and there is a group of nonjihadists, nonradical terrorists who are fighting in Syria to topple Assad, but this group also takes on the al-Nusra Front and ISIS. I have for many months now been calling on the administration to do more to capacitate these groups, the nonjihadists. I felt it was a mistake not to do so early on because that actually created the possibility or the eventuality that now we face; that is, that the best organized, best equipped, best trained groups in Syria happen to be the most radical ones. That includes ISIL and of course al-Nusra. By the way, al-Nusra and ISIL fight each other, which adds further complexity.

Last but not least, I think it is important to spend a significant amount of focus on helping our allies in Jordan. If we play out what is happening—if, in fact, ISIS is able to erase this border between Syria and Iraq and establish this Sunni caliphate, their next move logically will be to threaten the Kingdom of Jordan, an incredibly important ally to the United States, to the stability of the region, to Israel, and to others. So we should continue to provide assistance to Jordan in protecting their borders and their future.

These are four goals I hope we will continue to move toward, and I am hopeful that with the announcement the President made today, it is a first step as we work toward those goals.

A couple of points are important to make, and I do so every time I address this issue of Iraq. The first is this is not about the United States taking sides in a Sunni-Shia civil war. The future of Iraq depends on the people of Iraq. It is up to them to establish a government that functions. It is up to them to provide a secure and safe country where people can prosper. It is up to them to create a political system and a social system where both Sunni and Shia feel as though they have a voice in the governance of their country. This is not about the United States stepping in and saying, We are on the Shia side. In fact, I can tell my colleagues that while this is not uniform, there are many Sunnis within Iraq who do not necessarily sympathize with ISIL and what they are doing. So this is not about the United States engaging itself in a civil war.

This is also not about the United States trying to build a country. This is not about the United States going into Iraq and saying, We have to rebuild Iraq. This is about counterterrorism and this is about the future security of the United States.

Every time I come to the floor, I remind everyone that the reason 9/11 was possible was because Al Qaeda was able to establish a safe haven in Afghanistan, under the protection of the Taliban, and from that safe haven they raised money, they recruited, they plotted, they planned, and they ultimately carried out the most devastating terrorist attack in U.S. history, and we can never allow another similar safe haven to take root.

This is especially true when the group trying to establish such a safe haven—in fact, not just a safe haven but a caliphate run by a radical government—is a group whose expressed goal is to establish that caliphate, to use it to terrorize the people of the United States by attacking us in the United States, in the hopes of driving us out of the Middle East and then destroying Israel and establishing their brand of Islam and forcing it on all the peoples and countries of the region.

We cannot allow such a safe haven to take root. If they are successful in their goal of creating a new country, a new State, this Islamic radical caliphate, we will have in the future grave risks and potentially severe and devastating terrorist attacks against Americans both abroad and here in the homeland. This group has a very clear mandate. They have been very clear about what their goals are, but in order to carry that out successfully, they need an operational space, and we cannot allow them to create one in Iraq. That is what this issue is about. That is why this issue matters.

I know when I say what I have said, I open myself to those voices that say there are warmongers and people who want to go back to war. Absolutely not. On the contrary. What has happened is, after looking at this issue, studying the lessons of the past 20 years and what we have learned after 9/11 especially, it becomes evident to me that we are going to have to deal with this group. That is not what we are debating. The issue before us that we have to decide is when do we deal with them? Do we deal with them now, when they still have not created that caliphate, or do we deal with them 5 or 10 years down the road when they have established a safe haven and significant operational capacity? It is going to cost a lot more money, potentially many more lives and, in the process, significant terrorist attacks and terrorist risks if we deal with it later. It will cost less money, be more effective, and be a lot less dangerous if we deal with it now.

That must be our goal, to not allow this group ISIS to establish a safe haven of operation in Iraq, or in Syria for that matter, and then give the people of Iraq the opportunity to decide a future for themselves. That is important, which is why this issue of Iran is important.

I have been asked by reporters and others: Should we be working with Iran? My opinion, based on all I have learned regarding this situation and based on factors that are obvious for anyone to see, is we do not share the same goal Iran does. We don't have the same goal. Iran's goal is not simply to defeat ISIL. Iran's goal is to establish a Shia government that oppresses Sunnis and that is responsive to them. That is their goal. What they want to set up in Iraq is a public government under the control of Iran. That is not our goal, that should not be our goal, and it never has been our goal.

Our goal is to ensure that a terrorist organization cannot establish a safe haven, and our hope is that the Iraqi people can create for themselves a government and a country where both Shia and Sunni can live in peace and harmony among each other. That is up to them. We can help them do that, but we can't make them do that. What we can do is everything we can to ensure that this terrorist group doesn't take root. So I think our goals are completely incompatible with Iran.

The other point I would make is we should not do anything to legitimize that regime. That regime is the world's greatest State sponsor of terrorism. In virtually every continent on this planet, Iran has a hand in sponsoring terrorism. So I am not sure how we could possibly work side by side to wipe out terrorism with a government that sponsors terrorism more than any other government on the planet. I caution against that approach as well.

To close the loop, I hope we will spend most of our time focused on what we need to do now and in the future. We have forever to debate who was right and who was wrong about the war in 2003 or the surge in 2007.

Also, I hope the announcement the President made today was the first

step in a multistep process that will allow us to prevent ISIL from establishing the kingdom, the caliphate, and the safe haven they seek. I hope we make clear to the American people what the stakes are for us, that the reason we care about what is happening in Iraq is not because we want to nation build or because we want to force any sort of government on the people of Iraq. Their future belongs to them. It is because we cannot allow a terrorist group that has the stated goal and the increasing capacity of attacking the United States to establish an operational space such as Afghanistan was for Al Qaeda before 9/11.

I hope we will continue to play the important role the Senate plays in speaking out and hoping to give guidance and advice to the Commander in Chief. But as I said yesterday, ultimately, the role of leading on this matter corresponds to the President. Only the President of the United States can come up with a plan that hopefully all of us can unite behind because it is that important for our country and for our future and for our security.

I yield the floor and suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant bill clerk proceeded to call the roll.

Mr. CRUZ. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CRUZ. Madam President, I rise today to discuss the deteriorating situation in Iraq. There has been considerable debate in recent days about what we want to achieve in that country and the importance of achieving so-called political reconciliation in Baghdad. I wish to propose three simple principles that should guide any action we take in Iraq.

No. 1, we should do everything possible to secure our people. No. 2, we should defend our national security interests. No. 3, we should not partner with the Islamic Republic of Iran.

First and foremost, we need to be certain we are doing everything humanly possible to secure the Americans who are still in Iraq. The instability of the situation in the north of that country could quickly devolve into nationwide chaos, and it requires our immediate attention.

We need to be developing and implementing an immediate plan to get out all nonessential American personnel, to get them to safety now. I am deeply concerned, as all of us should be, that our people on the ground will become pawns in a sectarian conflict we cannot control. I am concerned the up to 275 marines who may be deployed to assist in embassy security, along with the 300 additional military advisers that President Obama announced today, will also become targets, isolated in Baghdad.

It is not at all reassuring to have the security in Baghdad provided by either Shia militias, loosely controlled by the al-Maliki government, or by the Iranian Quds forces themselves or their agents. If we have to rely on either to keep our people safe, we should not be there. Let me repeat that. If we have to rely on either to keep our people safe, we should not be there.

Second, we need to define and then to defend the national security interests of the United States in Iraq. There has been extensive discussion of ''political reconciliation'' in Iraq and of making any American military action contingent on achieving that ephemeral objective. This makes no sense. Although a political solution to Iraq's troubles may have been an appropriate goal in 2005 or 2011, it simply may not be feasible in 2014. The time for this sort of argument would have been 3 years ago when America was the most influential voice in Baghdad and we were completing our largest embassy on the planet on the banks of the Tigris River.

But we chose to relinquish that influence when we did not successfully negotiate a status-of-forces agreement with the Iraqis. Much of the blame for that diplomatic impasse lies with the al-Maliki government, but the Obama administration bears considerable responsibility as well. The President campaigned on ''ending the war in Iraq'' which he defined by removing all of our forces, not winning. So immediate troop withdrawal, not negotiating a proper status-of-forces agreement, was the priority. In the words of Secretary Clinton on CNN on Tuesday, ''We did not get it done.'' The result is that today we have little or no influence in Baghdad.

It is not my purpose today to relitigate the history of U.S. involvement in Iraq but, rather, to propose what we can do with the circumstances in which we find ourselves right now. Given our current circumstances, any attempt to reconcile a Sunni-Shiite religious conflict that has waged for more than 1,500 years seems either the height of hubris or naivete or both.

Rather than prioritizing an unachievable political solution we have no power to effect, it seems much more practical to focus on what is in the actual national security interests of the United States of America. The most acute security threat to the United States in Iraq is the aggressive movement of the Islamic State of Iraq and Syria, ISIS, forces out of Syria and into Iraq over the last 6 months. These vicious Sunni fanatics may be relatively small in number, but they make up for it in shear brutality. Although President Obama dismissed their aggression into Fallujah in January of this year as the terrorist equivalent of the ''junior varsity,'' recent events suggest they are of a much higher capability.

Indeed, an obvious question the administration should answer is, has the Obama administration ever armed ISIS? Has the administration given lethal weapons to ISIS? We are doing so to rebels who are fighting alongside ISIS in Syria. It is an obvious question to ask, whether we have, in fact, armed these radical Islamic terrorists as well.

ISIS is much more than a local or even regional threat. They are among the worst of the radical jihadists who attacked us on September 1, 2001, and again on September 11, 2012. They are so bad, in fact, that the ''core Al Qaeda,'' as President Obama likes to call the terrorist cells in Pakistan and Afghanistan, have renounced them. Their goal is to establish a new Islamic caliphate in the Middle East and northern Africa, from Syria to Iraq. They have publicly announced that when they achieve their ambition in Syria and Iraq, their goal is to move on to Jordan, to Israel, and to the United States of America.

Because of their actions and their stated intent, it would seem a targeted mission to seriously degrade the lethality of ISIS could well be in the national security interests of the United States. Such an action would not require the commitment of American combat forces, but it would require a commitment from the Commander in Chief that this action would not be merely a symbolic message or an effort simply to perpetuate the al-Maliki government in Baghdad.

Instead, it would need to be an expeditious and emphatic demonstration of America's ability to strike at the terrorists at the time and means of our choosing. If the President needs to respond to an imminent threat to the national security interests of the United States, or to act to an imminent threat to the lives of Americans in Iraq, he has the constitutional authority to do so. However, Congress has the constitutional authority to declare war. So if the President is planning on launching a concerted offensive attack that is not constrained by the exigency of the circumstances, he should come to Congress to seek and to receive authorization for the use of military force. A precondition for any such mission in Iraq should be the utter rejection of any partnership with the Islamic Republic of Iran on which the al-Maliki government is increasingly dependent.

Iran has been the implacable enemy of the United States since 1979, when revolutionaries took 54 American citizens hostage for 444 days, some of the darkest days of our history. Earlier this year, Iran demonstrated that this rapid anti-American hostility is alive and well by trying to get a U.S. visa for one of those hostage takers to serve as their Ambassador to the United Nations, to live in Manhattan with diplomatic immunity. It was one of my proudest days in the Senate to introduce the legislation countering this action that passed unanimously through both Houses of Congress, and that was signed into law by President Obama, stopping known terrorists from entering the United States.

When push comes to shove, the American people understand that Iran

is our enemy. We need to bring that same clarity, that same bipartisan unity to current circumstances in Iraq.

Just because Iran fears ISIS jihadists, it does not follow that we should partner with them in this fight. The enemy of our enemy, in this instance, is not our friend. If we cannot secure our people absent Iranian involvement, we need to get them out. If we cannot strike ISIS in Iraq without Iranian involvement, then we need to look for another means of doing so.

ISIS consists of radical Islamist terrorists who seek to murder Americans. Yet the Iranian regime has over and over demonstrated the same hostile intent. Indeed, it is the leading sponsor of terrorism across the world.

It is deeply concerning that not only Secretary of State John Kerry but also former Secretary of State Hillary Clinton and Secretary of Defense Chuck Hagel have all signaled in recent days they are actively interested in exploring a partnership with Iran to deal with Iraq.

Indeed, today President Obama publicly suggested: ''Iran can play a constructive role.'' This is the height of foolishness. It is deeply disturbing that so many current and former senior Obama administration officials would share this same misguided and naive view.

There could be no more ill-advised or counter-productive policy for the United States at this moment than to partner with the Islamic Republic of Iran. Rather than partnering with Iran, we should be all the more mindful of the dangers of taking our eye off the ball of Iran's nuclear program, as no doubt Tehran hopes we will in this most recent crisis.

As grim as the threat of ISIS is, it pales in comparison to the threat of a nuclear-armed Iran, given their long and well-documented history of state-sponsored terrorism. Indeed, Iran is working now and has been working for years now to develop nuclear ICBMs for one reason and one reason only, and that is to strike at America and potentially murder millions of Americans. It would be the height of folly to take any action in Iraq that would further embolden Iran, which is already moving to make Iraq a client state in its pursuit of regional hegemony.

We already know how that script plays out. We have seen it in our ally Ukraine, where former President Viktor Yanukovych acted as Vladimir Putin's stooge and planted pro-Russian agents throughout the Ukrainian government and armed forces. But the Ukrainian people refused to accept Russia's attempt to reintegrate them into a 21st century reincarnation of the Soviet Union.

They stood in the Maidan Square, a place I visited just a few weeks ago, and they braved the freezing cold. They braved the murderous army snipers who shot the protesters down in that square, and they stood and demanded freedom. They demanded to stand with America, with Europe, and the West.

Iran, in its attempt to create a modern version, a new version of the Persian Empire, has attempted a similar play on behalf of so-called Supreme Leader Ali Khamenei through the means of the Iraqi regime of Nouri al-Maliki.

Sadly, Iranian forces today permeate both the Government of Iraq and the Iraqi security forces.

America has demonstrated, beyond any shadow of doubt, our offer of liberty to the people of Iraq. Indeed, thousands of our sons and daughters have given their lives in pursuit of freedom in Iraq. But if the Iraqi Government is more interested in forging a relationship with Iran than with the United States, we should not and we cannot attempt to force them to adhere to our political goals for them.

Absent active partners in Iraq who want a closer alliance with America and with our allies, our key objective should be, quite simply, to secure our people, to counteract terrorist threats to our national security, and to make sure that we do not further embolden the Islamic Republic of Iran.

These objectives—not the fantasy of resolving the Sunni-Shiite conflict that has been raging since the death of Muhammad in 632 A.D. or the illusion that we can magically find productive common ground with Iran—should define our policy toward Iraq.

I would like to make one final note. It is my hope that my colleagues will think more broadly about what is happening in the world in Iraq, in Iran, in Russia, and in Libya. We are being faced with options of options of options that have been created by the bad choices our leaders make.

Those guiding our foreign policy at the White House, the State Department, and even, unfortunately, in the Senate have refused to address true dangers posed to Americans at home and abroad. Bad choices inevitably leave us with bad options.

Refusing to recognize the radical religious extremism of individuals who are committed to jihad and have pledged to murder Americans is a bad choice. Refusing to utter the words ''radical Islamic terrorists'' is a bad choice. Negotiating with terrorists to release terrorist leaders is a bad choice, and considering any kind of deal with Iran is a very bad choice.

In the last 5 years America has receded from leadership in the world. Into that vacuum have stepped nations such as Iran, such as Russia, such as China. As we have abandoned our allies, the consequences have been to make the world a much more dangerous place. America's leadership has never been more critical than it is today.

Until the leaders of our government stop making these bad choices, we will continue to be left with bad options.

I thank the Chair.

The PRESIDING OFFICER (Mr. MARKEY). The Senator from Rhode Island.

CJS APPROPRIATIONS

Mr. REED. Mr. President, I rise to speak about the appropriations minibus that many of us were prepared to move forward on today. I am deeply disappointed that the Republican minority is effectively blocking another bill on this floor from moving forward for consideration and ultimately approval by the Congress.

It is disappointing because I know that the bipartisan work that was done in the committee was absolutely critical and extremely productive. The Appropriations Committee, which I have the privilege of serving on, presented us, this Senate, with three very excellent pieces of legislation. I am disappointed that we are not moving forward to pass them. It is also disappointing because this process gives us the opportunity to shape the spending priorities of the government, to focus on the needs of the American people, and to do so in a way that will be responsive to their needs and we hope improves their opportunities to grow this economy and participate in the economy.

Without appropriations bills, we run the risk of being stuck with a continuing resolution—funding just what we did the last year—perhaps a little less, perhaps a little more in some areas. But it deprives us of focusing on issues that are more sensitive and more critical at this moment to the American public.

Chairman MIKULSKI has done an excellent job leading the Appropriations Committee. As I said from the beginning, she was determined to make it a substantive, respectful, and bipartisan process. The results are reflected in the unanimous or near unanimous committee votes on the bills that are coming to this floor in this minibus, as we call it. So I thank her, obviously, for her leadership.

I also want to thank my colleagues on the relevant subcommittees, Senator MURRAY, in the Transportation, Housing and Urban Development, and Related Agencies Subcommittee; Senator PRYOR, the chair of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Subcommittee. Together they have prepared balanced bills that invest in our people, our infrastructure, and in science.

The transportation-HUD bill includes $550 million for the important TIGER Discretionary Grant Program, which is shared by the entire country but has been particularly critical to Rhode Island in helping us improve our commercial ports and in jump-starting major road projects, including the replacement of a major bridge, the Providence Viaduct on route 95.

Indeed, it is one of the potential choke points on route 95 that will not only affect Rhode Island, but it will affect Massachusetts, the home of the Presiding Officer. It will affect Connecticut. It will bottle up traffic if we don't continue to fix it, improve it, and

make it traffic ready for another several decades.

The bill also maintains robust support for the Airport Improvement Program. One of the things we are very pleased about is the T.F. Green Airport. We are investing about $100 million in safety improvements, a runway extension, and an expansion. I thank Chairman MURRAY for including this funding in the bill, this general category funding which has been very helpful to the Rhode Island Airport Corporation as it has applied for these grants.

I was particularly delighted last month because Chairwoman MIKULSKI joined me at T.F. Green Airport to look at the improvements, to talk about the issues, and to get a firsthand sense of how her efforts and Senator MURRAY's efforts are translating into real projects throughout the United States.

The bill also includes more than $3 billion for the Community Development Block Grant Program, again an important program critical to all communities in Rhode Island. It provides more than $2 billion for homeless assistance grants. There is no portion of the country today that is not facing a very real problem with homeless Americans who need help, assistance, and support.

There is $75 million for the Family Self-Sufficiency Program, which again helps people who are struggling not only to find a place to live but also to deal with all of the issues of getting by in a very difficult economy.

All of these programs are extremely worthwhile. They serve the Nation—not in one particular area or in one particular State—and they contribute to our productivity—not just for the moment but looking ahead.

We can take, for example, the Commerce-Justice-Science bill with the strong support for NOAA, including funding for fisheries, aquaculture, Sea Grant, ocean exploration, and ocean education—again, initiatives that affect my home State of Rhode Island, the Commonwealth of Massachusetts, the State of Florida, the State of North Carolina, every coastal area, the gulf coast, et cetera, all critical to our country, to our productivity, to our commerce, and to the livelihood of so many Americans

We are looking also at investments in the National Science Foundation, fully funding, for example, the request for the EPSCoR Program at nearly $160 million. This is absolutely critical for many reasons, particularly to make that connection between academic institutions and business enterprises and also to economic development.

The bill also supports, with respect to our criminal justice system, $376 million for Byrne justice assistance grants and $181 million for COPS hiring grants—actually putting police officers on the street, increasing our ability to deal with crime and making our communities more livable. This is absolutely critical.

We look at the Agriculture appropriations bill—and I thank Senator PRYOR—because, today, agriculture includes aquaculture, the commercial growing, if you will, of shellfish and other seafood products.

Again, in my State—but not just in my State, in other parts of the country—it is a growing and commercially thriving enterprise which deserves support. In fact, because of federal investments, we have been able to initiate in Rhode Island aquaculture projects that have taken on their own lives and own momentum and are extremely productive.

I am disappointed we are here today only talking about these appropriations bills instead of actually moving forward and passing them.

Another topic that is very frustrating is the fact that this body passed on a bipartisan basis an extension of unemployment insurance, fully paid for, fiscally responsible—a bipartisan bill that went through all of the rigorous steps that required 60 votes to get cloture, and a majority of votes to get final passage. We didn't cut any corners. That is what we had to do, and we did it.

Unfortunately, it has languished in the House of Representatives so now the extension, which as we passed the bill would have been looking backward and forward several months—now it has been totally eclipsed. So we are back working.

I have reached out, and fortunately Senator DEAN HELLER of Nevada has been an extraordinarily thoughtful and crucial leader, along with other colleagues on the other side of the aisle and colleagues on this side of the aisle. So we are beginning again, but I have to express my frustration.

Over 3 million Americans now are without benefits that they would have received had we been able to extend unemployment compensation benefits which were terminated December 28 of last year. These are modest benefits, about $300 a week, but for people who are looking desperately for work, it could mean the difference between staying in their homes or being forced out, repairing their car, having a telephone if they need it—which we all need to communicate to look for jobs.

So we have to start again. Not only is this the right issue for individual Americans—millions of them—but it is the right issue for our economy.

Economists who look at the unemployment problem will tell us—and in fact they did—if we would have extended the program last December for a full year, this economy would gain 200,000 jobs. We are in no position to turn down 200,000 jobs. In Rhode Island, that is particularly the case. It would have added to our GDP growth, some estimates as high as 0.2 percent, again helping to grow the economy.

I hope we can rejoin this effort and move forward.

I yield the floor.

The PRESIDING OFFICER. The Senator from Wyoming.

HEALTH CARE

Mr. BARRASSO. Mr. President, I come to the floor because for those folks who picked up the Wall Street Journal this morning, this was the headline regarding the health care law: June 19, 2014, ''Large Health Plans Set to Raise Rates.''

The picture emerging from proposed 2015 insurance rates in the 10 States that have completed their filings, as the States have to do—stretching from Rhode Island to Washington State, in all but one of those 10, the largest health insurer in the State is proposing to increase premiums between 8.5 percent and 22.8 percent for next year.

That is not what the President of the United States promised the American people when he forced through a health care law with only Democrats voting for it in the House and in the Senate. What he said is that by the end of his first term, premiums for families would drop by $2,500 per family. That is not what we are seeing: Across the board, the largest insurer in each of those 10 States, anywhere between 8.5 percent to 22 percent for next year. It makes us wonder how that is going to sit with the American public when they are faced with these bills.

Republicans have been coming to this floor to talk about the health care law that Democrats in the Senate voted for, the President signed, and we talked about the many alarming side effects—the alarming side effects Americans have been feeling ever since the law has passed.

People are still trying to understand the law, and they are asking the question: How is this actually helping me? That is what people want to know, is how is the law helping them. Much of what they are hearing is not how it is helping them, but how it is hurting them. Once again, an alarming side effect in the front page of the newspaper this morning.

It seems like just about every day we pick up a newspaper and see headlines about another broken promise by the Democrats who voted for the health care law—Democrats who came to the Senate floor and the floor of the House of Representatives and said this is a good thing.

But then, of course, it was NANCY PELOSI, Speaker of the House, who said: First you have to pass it before you get to find out what is in it. As more Americans are finding out what is in it, they continue to be very unhappy with what they are getting.

American families all across the country are finding out that the President's promises didn't come true. They weren't true.

As chairman of the Republican policy committee, I have been looking at the damaging side effects of the health care law around the country and in different States and what I have found meeting people around the country. Here is what I found in North Carolina:

Last Friday there was a headline in the Triangle Business Journal in the

Raleigh-Durham, NC, area on the Affordable Care Act: ''ACA forcing majority of [North Carolina] employers to change health care offerings.''

The President said: If you like what you have, you can keep it. The headline in North Carolina is: The law is forcing a majority of employers to change their health care offerings.

The article says:

More than half of North Carolina companies are considering radical changes to the health plans they offer employees——

Not little changes, not little tweaks, radical changes to the health plans they offer employees.

''You might look at raising your deductible to keep premiums lower, or look at what you are covering,'' Hegeman says. ''Or charging more in terms of co-pay, in order to keep premiums lower.''

It quotes one human resources executive says that companies '' . . . might look at raising your deductible to keep premiums lower, or look at what you are covering. . . . ''

Those are all considerations because the President made a lot of promises that are not being able to be kept, and people who actually read the law as it was being proposed knew the President's promises were not going to be able to be kept.

This is a terrifying side effect of the health care law for many people—people who now in North Carolina are worried about these radical changes to their insurance plans. That is what some companies are going to have to do to keep down the costs.

But for many people, the costs keep going up anyway, and we are seeing higher premiums in those 10 States I mentioned in the headlines today, but specifically in North Carolina, here is what WTVD, a television station in Raleigh, reported last month. They did a story entitled, ''Blue Cross missing age sales target for ACA could mean higher bills.'' So higher bills for North Carolina.

It turns out not enough young and healthy people signed up for the insurance in the State's ObamaCare exchange.

The President said: Oh, we will get all these young, healthy people signing up, buying insurance that—in my opinion—they don't need, don't want, can't afford, will never use. The President said: We will get all these healthy people signing up.

It didn't happen. They missed the sales targets in terms of what they expected in terms of the age of those signing up. So the biggest insurer in the State in North Carolina says it may have to raise rates next year.

The news story quoted a woman named Amanda LaRoque. She and her husband own their own business, they pay their own health insurance, and they say their premiums have doubled since they signed up for the Obama health care law. They are now paying $999 a month for two people—almost $1,000 a month for two people.

I remember listening to President Obama and President Bill Clinton having a discussion in New York a couple days before the exchange opened. The President was saying: Easier to use than Amazon, and he said: Cheaper than your cell phone bill.

The plan was going to cost less than your cell phone bill.

This couple in North Carolina says they are paying almost $1,000 a month and their rates are going even higher. So it makes us wonder was the President of the United States again trying to mislead the American people intentionally? Did he not understand the law which was written behind closed doors over there in HARRY REID's office? Did he not care? Does he still not care? But that is what people are seeing and experiencing as a result of the President's health care law.

But this couple is not the only one paying more because of the health care law. According to a new analysis by the Manhattan Institute, people all over the country are going to have to pay more—much more—than what the President told them, much more than they ever anticipated.

The Manhattan Institute found that for an average 64-year-old woman in North Carolina, her premiums would have been $210 a month in 2013, before the ObamaCare mandates and everything else kicked in. In 2014, 1 year later and all the mandates, buying insurance through the ObamaCare exchange her premiums almost triple to $623 a month. She is paying almost $5,000 a year more this year than last year because of the President's health care law that the Democrats voted for in the House and in the Senate. The President said it would lower premiums by $2,500 a year. Yet she is seeing her premiums go up by $5,000 a year.

For a 27-year-old man, he would have paid an average of $80 a month in 2013. Under the President's health care law, $217 a month—an extra $1,600 a year than last year. That is not what the President promised him.

President Obama then goes and gives a speech not that long ago and said: Democrats who voted for this law—and there are a lot of Members of this body that fit this description. Democrats who voted for this law should forcefully defend and be proud of it—forcefully defend and be proud, the President of the United States said just a couple weeks ago. Is there a Senator in this body who is willing to stand and forcefully defend the fact that people in North Carolina are paying double or triple for insurance? Is there anyone who wants to defend this expensive side effect of the health care law?

I know some people have been helped by the law. Some people are paying less for insurance than they would have before, but many people are paying much more. That is because the people who pay less are getting a subsidy from Washington to help hide the rate hikes that everybody else is facing.

President Ronald Reagan once said, ''Government doesn't solve problems; it subsidizes them.'' That is exactly what is going on with the President's health care law. The Democrats who voted for this health care law did not solve the problem with our health care system. They just threw more money at it to hide the fact that the law actually made things worse. People wanted reform that gave them access to quality care, that gave them affordable care. No one wanted more expensive coverage.

I will talk about one more example. That is the devastating side effect of smaller paychecks some families will be facing because of the Democrats' health care law. Another side effect, smaller paychecks.

The law says employers—including State governments, including local governments, school districts, communities, counties—have to cover people who work 30 hours a week or more and treat them as full-time employees. They have to cover those people with insurance and treat them as full-time employees. That is what the law considers full-time employees.

There was another story in Raleigh, NC, on WTVD. It said State agencies—we are not talking about for-profit businesses. State agencies are looking at cutting the hours of part-time workers to keep them under that 30-hour limit.

The North Carolina Agriculture Department has about 240 part-time employees who are now working more than 30 hours—less than 40, more than 30—240 of these folks at the North Carolina Agriculture Department.

How about the North Carolina Department of Transportation? They have almost 600 people in exactly the same situation. So North Carolina is going to have to look very closely at what to do with those individuals. If the hours are cut back to under 30 hours, that can mean smaller paychecks.

One expert at Duke University told the TV station he expects the State will see 300,000 full-time workers be moved to part time. Local governments, State governments, private employers, they are all having to make these same decisions. Why? Because of the health care law. Those 300,000 workers moved to part time by the definition—not what the man or woman on the street thinks of as the definition of full time, but what the health care law defines it as. That is a big hit to people's paychecks, and it is another very harmful side effect in the health care law.

It didn't have to be that way. Republicans have offered solutions for patient-centered health care reform such as increasing the ability of small businesses to get together, join together, negotiate for better rates, expand health savings accounts, allow people to buy insurance that works best for them and their family and shop in other States to do it, and not have to

buy this whole big list of insurance the President says they need when it is not what their family needs. It is not what they need for their kids, for their families, for their spouses, not what they want, not what they can afford, because the President essentially thinks he knows better than American families about their own personal situation. Republicans have offered ideas that would give people the care they need from a doctor they choose at lower costs—not lower costs as a subsidy for some people, but lower costs for everybody. That is what we are working on, lower cost of care.

Republicans are going to keep coming to the floor. We are going to keep offering real solutions for better health care without all of these terrible side effects, because we know the list is there, one side effect after another. They are costly, harmful, some are irreversible, and nothing that the American people wanted.

On the front-page headline today is ''Large Health Plans Set to Raise Rates.'' Insurance rates in 10 States that have completed their filings, stretching from Rhode Island to Washington State, all but one of them, the largest health insurer in the State is proposing to increase premiums between 8.5 and 22 percent for next year. The American people will once again realize that the Democrats and the President who voted for this health care law have broken their trust, broken their promises to the American people, and the American people deserve better.

Thank you, Mr. President. I yield the floor and suggest the absence of a quorum.

The PRESIDING OFFICER (Ms. HIRONO). The clerk will call the roll.

The legislative clerk proceed to call the roll.

Mr. REID. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mrs. GILLIBRAND). Without objection, it is so ordered.

EXECUTIVE SESSION

NOMINATION OF PAUL G. BYRON TO BE UNITED STATES DISTRICT JUDGE FOR THE MIDDLE DISTRICT OF FLORIDA

Mr. REID. Madam President, I move to proceed to executive session to consider Calendar No. 779.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The assistant legislative clerk read the nomination of Paul G. Byron, of Florida, to be United States District Judge for the Middle District of Florida.

CLOTURE MOTION

Mr. REID. I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to report the motion.

The assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the nomination of Paul G. Byron, of Florida, to be United States District Judge for the Middle District of Florida.

Harry Reid, Patrick J. Leahy, Richard J. Durbin, Elizabeth Warren, Tim Kaine, Richard Blumenthal, Robert P. Menendez, Barbara A. Mikulski, Debbie Stabenow, Christopher Murphy, Sheldon Whitehouse, Sherrod Brown, Patty Murray, Tom Harkin, Tom Udall, Christopher A. Coons, Robert P. Casey, Jr.

Mr. REID. I ask unanimous consent that the mandatory quorum under rule XXII be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

Mr. REID. I now move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

NOMINATION OF CARLOS EDUARDO MENDOZA TO BE UNITED STATES DISTRICT JUDGE FOR THE MIDDLE DISTRICT OF FLORIDA

Mr. REID. I move to proceed to executive session to Calendar No. 780.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The assistant legislative clerk read the nomination of Carlos Eduardo Mendoza, of Florida, to be United States District Judge for the Middle District of Florida.

CLOTURE MOTION

Mr. REID. There is a cloture motion at the desk and I ask that it be reported.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to report the motion.

The assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the nomination of Carlos Eduardo Mendoza, of Florida, to be United States District Judge for the Middle District of Florida.

Harry Reid, Patrick J. Leahy, Tom Udall, Robert P. Casey, Jr., Cory A. Booker, Jack Reed, Tim Kaine, Barbara Boxer, Bill Nelson, Jeff Merkley, Christopher A. Coons, Angus S. King, Jr., Richard Blumenthal, Richard J. Durbin, Christopher Murphy, Patty Murray, Charles E. Schumer.

Mr. REID. I ask unanimous consent that the mandatory quorum under rule XXII be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

Mr. REID. I now move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

NOMINATION OF BETH BLOOM TO BE UNITED STATES DISTRICT JUDGE FOR THE SOUTHERN DISTRICT OF FLORIDA

Mr. REID. I move to proceed to executive session to consider Calendar No. 781.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The assistant legislative clerk read the nomination of Beth Bloom, of Florida, to be United States District Judge for the Southern District of Florida.

CLOTURE MOTION

Mr. REID. Madam President, I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to report the motion.

The assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the nomination of Beth Bloom, of Florida, to be United States District Judge for the Southern District of Florida.

Harry Reid, Patrick J. Leahy, Tom Udall, Robert P. Casey, Jr., Jack Reed, Tim Kaine, Barbara Boxer, Bill Nelson, Jeff Merkley, Christopher A. Coons, Angus S. King, Jr., Richard Blumenthal, Cory A. Booker, Richard J. Durbin, Christopher Murphy, Patty Murray, Charles E. Schumer.

Mr. REID. I ask unanimous consent that the mandatory quorum under rule XXII be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

Mr. REID. I now move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE SESSION

NOMINATION OF GEOFFREY W. CRAWFORD TO BE UNITED STATES DISTRICT JUDGE FOR THE DISTRICT OF VERMONT

Mr. REID. I now move to proceed to executive session to consider Calendar No. 836.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The assistant legislative clerk read the nomination of Geoffrey W. Crawford, of Vermont, to be United States District Judge for the District of Vermont.

CLOTURE MOTION

Mr. REID. I send a cloture motion to the desk.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to report the motion.

The assistant legislative clerk read as follows:

CLOTURE MOTION .

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the nomination of Geoffrey W. Crawford, of Vermont, to be United States District Judge for the District of Vermont.

Harry Reid, Patrick J. Leahy, Tom Udall, Robert P. Casey, Jr., Tim Kaine, Jack Reed, Cory A. Booker, Barbara Boxer, Bill Nelson, Jeff Merkley, Christopher A. Coons, Angus S. King, Jr., Richard Blumenthal, Richard J. Durbin, Christopher Murphy, Patty Murray, Charles E. Schumer.

Mr. REID. I ask unanimous consent that the mandatory quorum under rule XXII be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

Mr. REID. I now move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

EXECUTIVE CALENDAR

NOMINATION OF LEON RODRIGUEZ TO BE DIRECTOR OF THE UNITED STATES CITIZENSHIP AND IMMIGRATION SERVICES, DEPARTMENT OF HOMELAND SECURITY

Mr. REID. I move to proceed to executive session to consider Calendar No. 742.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

The PRESIDING OFFICER. The clerk will report the nomination.

The assistant legislative clerk read the nomination of Leon Rodriguez, of Maryland, to be Director of the United States Citizenship and Immigration Services, Department of Homeland Security.

CLOTURE MOTION

Mr. REID. There is a cloture motion at the desk that I ask be reported.

The PRESIDING OFFICER. The cloture motion having been presented under rule XXII, the Chair directs the clerk to report the motion.

The assistant legislative clerk read as follows:

CLOTURE MOTION

We, the undersigned Senators, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, hereby move to bring to a close debate on the nomination of Leon Rodriguez, of Maryland, to be Director of the United States Citizenship and Immigration Services, Department of Homeland Security.

Harry Reid, Patrick J. Leahy, Richard J. Durbin, Patty Murray, Jack Reed, Sheldon Whitehouse, Christopher A. Coons, Sherrod Brown, Tom Harkin, Richard Blumenthal, Benjamin L. Cardin, Angus S. King, Jr., Thomas R. Carper, Elizabeth Warren, Amy Klobuchar, Debbie Stabenow, Charles E. Schumer.

Mr. REID. I ask unanimous consent that the mandatory quorum under rule XXII be waived.

The PRESIDING OFFICER. Without objection, it is so ordered.

LEGISLATIVE SESSION

Mr. REID. I now move to proceed to legislative session.

The PRESIDING OFFICER. The question is on agreeing to the motion.

The motion was agreed to.

MORNING BUSINESS

Mr. REID. I ask unanimous consent the Senate proceed to a period of morning business with Senators permitted to speak therein for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

JUNETEENTH 149TH ANNIVERSARY

Mr. REID. Madam President, today we celebrate Juneteenth. For those who aren't familiar with this holiday, today marks the 149th anniversary of the emancipation of the slaves in Galveston, TX. Two-and-a-half years after President Lincoln's Emancipation Proclamation took effect and 2 months after General Lee's surrender at Appomattox, the slaves of Galveston were still being treated as they were years before. Union GEN Gordon Granger and his troops arrived in Galveston with one thing in mind, to right this wrong. General Granger addressed the entire city, declaring all slaves in Texas to be free, and granting them ''an absolute equality of personal rights and rights of property.''

Upon receiving the news, the newly freed slaves could not contain their joy. They were crying, they were hugging, they were celebrating, because they were previously confined to shackles. They were slaves in the true sense of the word.

So today, 149 years later, we once again celebrate the occasion of the emancipation so long overdue. Juneteenth is a reminder of promises kept.

Although it may be late in coming, it is the duty of a responsible government to honor its word and never forget any of its citizens. There are millions of Americans who need help today, right now. They are escaping the bonds of hunger, unemployment, and inequality. So may we here in the Senate come to their rescue, just as General Granger did for the slaves of Galveston those many years ago.

Mr. CARDIN. Madam President, I wish to commend the Senate for unanimously passing S. Res. 474 last week. I am a proud co-sponsor of the resolution authored by Senator LEVIN, which designates today as Juneteenth Independence Day for 2014. The resolution includes specific recognition of Frederick Douglass who was born in the State of Maryland in 1818, escaped from slavery and became a leading writer, orator, publisher, and one of the United States' most influential advocates for abolitionism and the equality of all people.

On this 149th anniversary of Juneteenth, America celebrates the end of slavery in the United States. Juneteenth—or June 19—is the day in 1865 when MG Gordon Granger and Union soldiers enforced 'General Order No. 3', finally freeing the remaining slaves in the United States.

Thanks to the hard work of Americans committed to living up to our highest ideals, we have come a long way since that first Juneteenth. This is a time for joy but also reflection for African Americans. We should use our collective history, and days like Juneteenth, to grow, learn and become more connected to one another. We owe it to those who endured the brutal institution of slavery and to those who dedicated their lives to ending such an injustice.

Today, our children study Marylanders like Harriet Tubman and Frederick Douglass, both former slaves who helped deliver freedom to millions. As we observe Juneteenth in Maryland and across the country, we also reflect on the reality that human bondage has not been abolished worldwide. The continued existence of slavery anywhere is an affront to the progress made since that first Juneteenth and a cause for action.

JOINT STRIKE FIGHTER

Mr. MCCAIN. Madam President, earlier this week I came to the floor to discuss ethics in defense procurement contracting, specifically relating to the Joint Strike Fighter. I ask unanimous consent that an article on this

topic from Inside Defense be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

[From Inside Defense, May 30, 2014]

CARTER: JSF PROGRAM MANAGER BASED F–35 AWARD FEES ON DESIRE TO PROTECT LOCKHEED EXEC

(By Jason Sherman)

A former Joint Strike Fighter program executive officer was fired in 2010 after explaining that he based the government's decision to award prime contractor Lockheed Martin 85 percent of the potential award fee—when the F–35 program was suffering from major cost growth and schedule delays—on his desire to protect the job of his Lockheed counterpart, according to a former senior Pentagon official.

Ashton Carter, deputy defense secretary from 2011 to 2013, on May 16 provided a Harvard University audience a behind-the-scenes account of his efforts in 2009, during his first year as Pentagon acquisition executive, to understand why projected costs for the F–35 aircraft had doubled and why the program was facing schedule delays.

At the time, an independent cost estimating team was advising Pentagon leaders that the true cost to develop and procure the planned F–35 fleet would be billions of dollars more than the JSF program office estimated, foreshadowing a $60 billion increase to the F–35's official price tag.

Carter said he called in the program manager, whom he does not name during his remarks. At that time, Marine Corps Maj. Gen. David Heinz had recently become the F–35 program manager, in April 2009. His predecessor, from 2006 to 2009, was Air Force Maj. Gen. Charles Davis, now a three-star general and the military deputy to the Air Force acquisition executive.

''I want to see the bill, everything that goes into the cost of this airplane,'' Carter said, in a video of his remarks posted on YouTube on May 22. ''The program office didn't know, could not tell me where the money was going.''

At that time, the F–35's development was being executed under a cost-plus contract, a vehicle that allows a contractor to pass costs on to the government in addition to seeking an award fee. ''I asked the program manager: 'Let me see your award fee history.' I look at the award fee history over 10 years, it is 85 percent a year,'' Carter said.

The former deputy defense secretary said he told the program manager the F–35 program was ''a disaster,'' adding, ''You're giving an 85 percent award fee every year, what's going on?''

''And,'' Carter continued, ''he looked me in the eye . . . and said: 'I like the program manager on the Lockheed Martin side that I work with and he tells me that if he gets less than 85 percent award fee, he's going to get fired.' ''

''So, this guy was fired,'' Carter said of Heinz. Then-Defense Secretary Robert Gates announced Heinz's dismissal during a Feb. 1, 2010, press conference.

Carter subsequently ordered a sweeping technical review of the JSF program and transitioned it to a fixed-price contract in an effort to force Lockheed to shoulder a portion of the costs associated with developmental risks.

''We began a process that was very difficult: to re-educate the Air Force-Navy team that managed this important aircraft so that they knew what the hell they were paying for,'' Carter said in the Harvard speech. ''They had no idea.''

In 2013, the Pentagon restructured the award-fee scheme for the Joint Strike Fighter program, setting aside $337 million that Lockheed Martin could earn by achieving specified goals during the balance of the aircraft's development phase.

Air Force Lt. Gen. Christopher Bogdan, the current F–35 program executive officer, told the Senate Armed Services tactical air and land forces subcommittee on April 24, 2013, that a portion of the remaining award fees Lockheed could earn would be tied to the timely delivery of planned aircraft complete with scheduled software and capability improvements. The bulk of the remaining fee is tethered to achieving the current aircraft development plan on time and budget, he said. (Defense Alert, April 24, 2013).—Jason Sherman

SIMPSONS' 60TH WEDDING ANNIVERSARY

Mr. BARRASSO. Madam President, on Saturday, June 21, 2014, Senator Alan Simpson and his wife Ann will celebrate their 60th wedding anniversary. I invite all of my colleagues to join me in wishing them heartfelt congratulations.

Their children Bill, Colin, and Sue, sent an announcement honoring this milestone saying their parents are ''celebrating 60 years of love, commitment and compromise.'' Those of us who have known and worked with Al and Ann Simpson have seen this spirit of love and devotion in every aspect of their lives.

For six decades, Wyoming has been fortunate to learn from Al and Ann. Though they met much earlier, the couple first began dating while they were students at the University of Wyoming. Over 60 years later, they are a true power couple. Each complements the other in every way—they are resilient, compassionate, and know the value of compromise. This special relationship has evolved into a lifelong partnership that serves as a model for all of us to follow.

My wife Bobbi and I look forward to celebrating this outstanding milestone with Al and Ann when we see them in Cody on July 4th. We will tell them what an inspiration they have been, not only to us, but to people all across the State. And, we will thank them for their service to Wyoming and our great Nation.

ADDITIONAL STATEMENTS

REMEMBERING LAURA LAPLANTE

● Ms. AYOTTE. Madam President, I wish to honor the life of Laura LaPlante—a law student from Hancock, NH, who was preparing to graduate from the University of Chicago Law School when her life was tragically cut short last month.

Laura was a student at St. Patrick's School in Jaffrey and at ConVal Regional High School in Peterborough, from which she graduated in 2006. After attending Columbia University, she returned to New Hampshire and graduated in 2010 from UNH—where she was a scholar-athlete who was at the top of her class.

Laura continued to distinguish herself as a student in law school, where she became a campus leader. In addition to serving as the president of the school's chapter of the Federalist Society, she also served as treasurer of the Law School Republicans. Additionally, Laura devoted her time and energy to the Saint Thomas More Society, the Law Women's Caucus, and the Edmund Burke Society.

Laura was a vibrant young woman whose kind and generous spirit and commitment to excellence—touched the lives of everyone around her.

A high school friend of hers said: ''Laura is the kind of person everybody wants to be.''

And a former teacher and coach at ConVal said, ''She was the type of person that was always there for you''—adding that Laura was ''very selfless.''

She brought that same trademark kindness to Chicago, where one of her law school classmates was quoted as saying: ''Laura was one of those people who would take the time to ask how I'm doing and actually listen.''

These are just a few remembrances of this remarkable young woman. She was smart, outgoing, kind, and curious about the world around her. I know that Laura would have been an outstanding lawyer who brought intellect and integrity to the legal profession. And I also know that she would have continued to be a leader in her community.

Tragically, we will never know the heights that Laura would have achieved. She was taken from us far too soon.

As Laura's family and friends mourn her loss, I hope and pray that they will be comforted by their warm memories of her. She was a very special person whose uncommon kindness, caring spirit, and commitment to service brightened our world. Laura leaves behind an extraordinary legacy for all of us to carry on.●

TRIBUTE TO DAVID GIORDANO

● Mr. BOOKER. Madam President, today I recognize David Giordano, the former director of the Newark Fire Department. A driving force for good in the City of Newark, Dave's exceptional career as firefighter, fire director, and trusted advisor created the foundation for the long-term strength of the department, setting it on the path to a sustainable future, and improving safety for the city's residents.

A native of North Newark, Dave grew up near Sacred Heart Basilica and is a product of the Newark Public School system. As Newark invested in him, so, too, did he invest in Newark—first as a small business owner in 1979, and then, in 1985, as a firefighter. Committed to serving as a strong voice for his colleagues, Dave became active in the Newark Firefighter's Union, serving as treasurer and vice president, and ultimately union president.

When I became mayor of Newark in 2006, I knew Dave's knowledge and experience would be an asset to my team.

Indeed, he worked hard to obtain new equipment, shorten response times, and streamline the delivery of service to make our fire department more effective. In an emergency, every second counts; Dave's commitment to excellence surely saved lives.

Dave retires from the City of Newark on June 30, 2014, after 29 years of dedicated service to the city. These years have been marked by exemplary dedication to the best interests of the community and his fellow firefighters.

It is an honor to formally recognize the contributions that David Giordano has made to the citizens of Newark throughout his career, to thank him for his tremendous service, and to wish him happiness in a well-deserved retirement.●

TRIBUTE TO LYNN WOLF GENTZLER

● Mr. BLUNT. Madam President, I wish to honor Lynn Wolf Gentzler, who has had a remarkable 42-year career with the Western Historical Manuscript Collection at the University of Missouri-Columbia and the State Historical Society of Missouri. Next month, Lynn will leave her position to enjoy a well-deserved retirement. I have served on the board of trustees of the State Historical Society for some time, and I can tell you that Lynn has played a critical role in the promotion of the history of our State of Missouri.

As a native of DeKalb County, Lynn Wolf Gentzler attended the University of Missouri-Columbia and graduated with honors and a degree in education. She then went on to earn her master's degree and began a career as a manuscript specialist at the Western Historical Manuscript Collection in Columbia. Over years of dedicated hard work, she rose to the position of senior manuscript specialist and assistant director of the Western Historical Manuscript Collection.

She eventually assumed the positions of assistant director of the State Historical Society of Missouri and associate editor of the Missouri Historical Review in 1990. A year later, she became the associate director of the State Historical Society in Missouri, while continuing in her role as the associate editor of the Missouri Historical Review. In 2003, the board of trustees for the State Historical Society of Missouri asked Lynn to take up the role of acting executive director.

Lynn Wolf Gentzler is a leader who has demonstrated an incredible understanding and commitment to the past, present, and future of her community. Outside of her work with the Missouri Historical Review, Lynn's impressive authored and editorial works include entries in the ''Dictionary of Missouri Biography,'' the ''American National Biography,'' and the State Historical Society's publication entitled ''Marking Missouri History.'' In addition, she edited every single book published by the State Historical Society of Missouri over the past decade.

In 2004, Lynn received the State Historical Society's Distinguished Service Award and Medallion for her outstanding decades of service to the cultivation and promotion of Midwestern history. Her enthusiastic and determined leadership as an administrator, writer, and editor has played a vital role in the preservation of our State and Nation's history.

Lynn has provided an incredible service to the State of Missouri for over 40 years, and I wish her well on her retirement.●

WARREN COUNTY, IOWA

● Mr. HARKIN. Madam President, the strength of my State of Iowa lies in its vibrant local communities, where citizens come together to foster economic development, make smart investments to expand opportunity, and take the initiative to improve the health and well-being of residents. Over the decades, I have witnessed the growth and revitalization of so many communities across my State. And it has been deeply gratifying to see how my work in Congress has supported these local efforts.

I have always believed in accountability for public officials, and this, my final year in the Senate, is an appropriate time to give an accounting of my work across four decades representing Iowa in Congress. I take pride in accomplishments that have been national in scope—for instance, passing the Americans with Disabilities Act, and spearheading successful farm bills. But I take a very special pride in projects that have made a big difference in local communities across my State.

Today, I would like to give an accounting of my work with leaders and residents of Warren County to build a legacy of a stronger local economy, better schools and educational opportunities, and a healthier, safer community.

Between 2001 and 2013, the creative leadership in your community has worked with me to secure funding in Warren County worth over $6.8 million and successfully acquired financial assistance from programs I have fought hard to support, which have provided more than $9.5 million to the local economy.

Of course, my favorite memories of working together include my support of the great work done by public safety entities in the county, working to improve local transportation infrastructure, as well as a strong partnership with Simpson College.

Among the highlights:

Investing in Iowa's economic development through targeted community projects: In Central Iowa, we have worked together to grow the economy by making targeted investments in important economic development projects, including improved roads and bridges, modernized sewer and water systems, and better housing options for residents of Warren County. In many cases, I have secured Federal funding that has leveraged local investments and served as a catalyst for a whole ripple effect of positive, creative changes. For example, working with mayors, city council members, and local economic development officials in Warren County, I have fought for more than $1.4 million for improvements to Highway 92, helping to create jobs and expand economic opportunities.

School grants: Every child in Iowa deserves to be educated in a classroom that is safe, accessible, and modern. That is why, for the past decade and a half, I have secured funding for the innovative Iowa Demonstration Construction Grant Program—better known among educators in Iowa as Harkin grants for public schools construction and renovation. Across 15 years, Harkin grants worth more than $132 million have helped school districts to fund a range of renovation and repair efforts—everything from updating fire safety systems to building new schools. In many cases, these Federal dollars have served as the needed incentive to leverage local public and private dollars, so it often has a tremendous multiplier effect within a school district. Over the years, Warren County has received over $4.6 million in Harkin grants. Similarly, schools in Warren County have received funds that I designated for Iowa Star Schools for technology totaling $367,796.

Disaster mitigation and prevention: In 1993, when historic floods ripped through Iowa, it became clear to me that the national emergency-response infrastructure was woefully inadequate to meet the needs of Iowans in flood-ravaged communities. I went to work dramatically expanding the Federal Emergency Management Agency's hazard mitigation program, which helps communities reduce the loss of life and property due to natural disasters and enables mitigation measures to be implemented during the immediate recovery period. Disaster relief means more than helping people and businesses get back on their feet after a disaster, it means doing our best to prevent the same predictable flood or other catastrophe from recurring in the future. The hazard mitigation program that I helped create in 1993 provided critical support to Iowa communities impacted by the devastating floods of 2008. Warren County has received over $1.1 million to remediate and prevent widespread destruction from natural disasters.

Agricultural and rural development: Because I grew up in a small town in rural Iowa, I have always been a loyal friend and fierce advocate for family farmers and rural communities. I have been a member of the House or Senate Agriculture Committee for 40 years—including more than 10 years as chairman of the Senate Agriculture Committee. Across the decades, I have championed farm policies for Iowans that include effective farm income protection and commodity programs;

strong, progressive conservation assistance for agricultural producers; renewable energy opportunities; and robust economic development in our rural communities. Since 1991, through various programs authorized through the farm bill, Warren County has received more than $1.4 million from a variety of farm bill programs.

Keeping Iowa communities safe: I also firmly believe that our first responders need to be appropriately trained and equipped, able to respond to both local emergencies and to statewide challenges such as, for instance, the methamphetamine epidemic. Since 2001, Warren County's fire departments have received over $1.1 million for firefighter safety and operations equipment and $175,000 in Department of Justice funding to support law enforcement efforts in the county.

Disability rights: Growing up, I loved and admired my brother Frank, who was deaf. But I was deeply disturbed by the discrimination and obstacles he faced every day. That is why I have always been a passionate advocate for full equality for people with disabilities. As the primary author of the Americans with Disabilities Act, ADA, and the ADA Amendments Act, I have had four guiding goals for our fellow citizens with disabilities: equal opportunity, full participation, independent living, and economic self-sufficiency. Nearly a quarter century since passage of the ADA, I see remarkable changes in communities everywhere I go in Iowa—not just in curb cuts or closed-captioned television, but in the full participation of people with disabilities in our society and economy, folks who at long last have the opportunity to contribute their talents and to be fully included. These changes have increased economic opportunities for all citizens of Warren County, both those with and without disabilities.

This is at least a partial accounting of my work on behalf of Iowa, and specifically Warren County, during my time in Congress. In every case, this work has been about partnerships, cooperation, and empowering folks at the State and local level, including in Warren County, to fulfill their own dreams and initiatives. And, of course, this work is never complete. Even after I retire from the Senate, I have no intention of retiring from the fight for a better, fairer, richer Iowa. I will always be profoundly grateful for the opportunity to serve the people of Iowa as their Senator.●

BUTLER COUNTY, IOWA

● Mr. HARKIN. Madam President, the strength of my State of Iowa lies in its vibrant local communities, where citizens come together to foster economic development, make smart investments to expand opportunity, and take the initiative to improve the health and well-being of residents. Over the decades, I have witnessed the growth and revitalization of so many communities across my State. And it has been deeply gratifying to see how my work in Congress has supported these local efforts.

I have always believed in accountability for public officials, and this, my final year in the Senate, is an appropriate time to give an accounting of my work across four decades representing Iowa in Congress. I take pride in accomplishments that have been national in scope—for instance, passing the Americans with Disabilities Act and spearheading successful farm bills. But I take a very special pride in projects that have made a big difference in local communities across my State.

Today, I would like to give an accounting of my work with leaders and residents of Butler County to build a legacy of a stronger local economy, better schools and educational opportunities, and a healthier, safer community.

Between 2001 and 2013, the creative leadership in your community has worked with me to secure funding in Butler County worth over $2.6 million and successfully acquired financial assistance from programs I have fought hard to support, which have provided more than $11 million to the local economy.

Of course, one of my favorite memories of working together has been a terrific partnership with the Butler County Rural Electric Cooperative, REC, which has done a tremendous job at securing funds for a variety of local economic development projects. I am particularly proud of the work I have done with the Homeward, Inc. project to provide quality affordable housing to Iowans throughout the region. I am pleased to have secured more than $1.9 million over the years to assist in this important work. I should also single out the outstanding leadership and tireless leadership of the former CEO and general manager of the Butler County REC, Bob Bauman, for his years of service and vision. He is the kind of Iowan, who has done so much to help those that have so little, that makes me so proud to have served Iowa in the Senate.

Among the highlights:

School grants: Every child in Iowa deserves to be educated in a classroom that is safe, accessible, and modern. That is why, for the past decade and a half, I have secured funding for the innovative Iowa Demonstration Construction Grant Program—better known among educators in Iowa as Harkin grants for public schools construction and renovation. Across 15 years, Harkin grants worth more than $132 million have helped school districts to fund a range of renovation and repair efforts—everything from updating fire safety systems to building new schools. In many cases, these Federal dollars have served as the needed incentive to leverage local public and private dollars, so it often has a tremendous multiplier effect within a school district. Over the years, Butler County has received $664,437 in Harkin grants. Similarly, schools in Butler County have received funds that I designated for Iowa Star Schools for technology totaling $115,000.

Disaster mitigation and prevention: In 1993, when historic floods ripped through Iowa, it became clear to me that the national emergency-response infrastructure was woefully inadequate to meet the needs of Iowans in flood-ravaged communities. I went to work dramatically expanding the Federal Emergency Management Agency's hazard mitigation program, which helps communities reduce the loss of life and property due to natural disasters and enables mitigation measures to be implemented during the immediate recovery period. Disaster relief means more than helping people and businesses get back on their feet after a disaster, it means doing our best to prevent the same predictable flood or other catastrophe from recurring in the future. The hazard mitigation program that I helped create in 1993 provided critical support to Iowa communities impacted by the devastating floods of 2008. Butler County has received over $6 million to remediate and prevent widespread destruction from natural disasters.

Agricultural and rural development: Because I grew up in a small town in rural Iowa, I have always been a loyal friend and fierce advocate for family farmers and rural communities. I have been a member of the House or Senate Agriculture Committee for 40 years—including more than 10 years as chairman of the Senate Agriculture Committee. Across the decades, I have championed farm policies for Iowans that include effective farm income protection and commodity programs; strong, progressive conservation assistance for agricultural producers; renewable energy opportunities; and robust economic development in our rural communities. Since 1991, through various programs authorized through the farm bill, Butler County has received more than $5.8 million from a variety of farm bill programs.

Keeping Iowa communities safe: I also firmly believe that our first responders need to be appropriately trained and equipped, able to respond to both local emergencies and to statewide challenges such as the methamphetamine epidemic. For instance, Butler County has received $449,956 in Community Oriented Policing Services grants. Also, since 2001, Butler County's fire departments have received over $323,000 for firefighter safety and operations equipment.

Disability rights: Growing up, I loved and admired my brother Frank, who was deaf. But I was deeply disturbed by the discrimination and obstacles he faced every day. That is why I have always been a passionate advocate for full equality for people with disabilities. As the primary author of the Americans with Disabilities Act, ADA, and the ADA Amendments Act, I have

had four guiding goals for our fellow citizens with disabilities: equal opportunity, full participation, independent living and economic self-sufficiency. Nearly a quarter century since passage of the ADA, I see remarkable changes in communities everywhere I go in Iowa—not just in curb cuts or closed captioned television, but in the full participation of people with disabilities in our society and economy, folks who at long last have the opportunity to contribute their talents and to be fully included. These changes have increased economic opportunities for all citizens of Butler County, both those with and without disabilities. And they make us proud to be a part of a community and country that respects the worth and civil rights of all of our citizens.

This is at least a partial accounting of my work on behalf of Iowa, and specifically Butler County, during my time in Congress. In every case, this work has been about partnerships, cooperation, and empowering folks at the State and local level, including in Butler County, to fulfill their own dreams and initiatives. And, of course, this work is never complete. Even after I retire from the Senate, I have no intention of retiring from the fight for a better, fairer, richer Iowa. I will always be profoundly grateful for the opportunity to serve the people of Iowa as their Senator.●

REMEMBERING SHEILA LUMPE

● Mrs. MCCASKILL. Madam President, I ask the Senate to join me today in honoring the life of Sheila Lumpe, who passed away on June 4, 2014. Sheila was a much-loved member of the St. Louis community. Sheila has left a legacy of public service that will always be cherished, and St. Louis will not be the same without her.

Sheila was born in Strinestown, PA and graduated from high school in Indiana where she had moved as a young girl. She attended Indiana University to study political science and met a fellow student, Gus Lumpe. They married and moved to St. Louis in 1965. Sheila served 17 years in the Missouri House representing University City, a suburb of St. Louis. After she retired from the house, the Governor named her the State's chief utilities regulator and she served 6 years on the Public Service Commission. She was a member of the Missouri Humanities Council board of directors and received numerous awards and honors.

With four children enrolled in University City schools, Sheila became involved in the Parent Teacher Association. In 1973, the school board was divided over integration and Sheila's husband Gus encouraged her to run for a seat on the board. Sheila won and spent 8 years on the school board. When her neighbor gave up his house seat to run for Lieutenant Governor, Sheila ran for his seat and won.

I had the distinct honor of serving with Sheila in the Missouri General Assembly, where her tenure was marked by excellence and community involvement and where I learned important lessons about public leadership from her. Sheila became the first woman to lead the powerful House Budget Committee and nearly became the first woman speaker of the House.

Sheila fought tirelessly for women's rights, equal pay and universal health care. She helped Planned Parenthood retain funding while in the legislature. Her legislation to expand health care for children passed the year after she left the legislature. Shelia was a role model to not only female legislators, but all legislators. She was regarded highly by everyone she interacted with, including those with very different views.

Sheila retired from the Public Service Commission and public life in 2003. She devoted herself to taking care of her husband, who passed away in 2009 from Alzheimer's disease. Sheila also passed away from Alzheimer's disease. She is survived by her three sons Abraham, Nathan and Andrew; daughter, Karen, and six grandchildren.

Sheila left an indelible and permanent mark on St. Louis and will be fondly remembered and dearly missed. Sheila's life and commitment to others serves as an inspiration to me and to all Missourians. I have lost a friend and mentor and our State has truly lost a leader and a hero.

I ask that the Senate join me in honoring the life and legacy of Sheila Lumpe.●

MESSAGE FROM THE PRESIDENT

A message from the President of the United States was communicated to the Senate by Mr. Pate, one of his secretaries.

EXECUTIVE MESSAGE REFERRED

As in executive session the Presiding Officer laid before the Senate a message from the President of the United States submitting a nomination which was referred to the Committee on the Judiciary.

(The message received today is printed at the end of the Senate proceedings.)

REPORT ON THE CONTINUATION OF THE NATIONAL EMERGENCY THAT WAS ORIGINALLY DECLARED IN EXECUTIVE ORDER 13617 OF JUNE 25, 2012, WITH RESPECT TO THE DISPOSITION OF RUSSIAN HIGHLY ENRICHED URANIUM—PM 45

The PRESIDING OFFICER laid before the Senate the following message from the President of the United States, together with an accompanying report; which was referred to the Committee on Banking, Housing, and Urban Affairs:

To the Congress of the United States:

Section 202(d) of the National Emergencies Act (50 U.S.C. 1622(d)) provides for the automatic termination of a national emergency unless, within 90 days prior to the anniversary date of its declaration, the President publishes in the *Federal Register* and transmits to the Congress a notice stating that the emergency is to continue in effect beyond the anniversary date. In accordance with this provision, I have sent to the *Federal Register* for publication the enclosed notice stating that the emergency declared in Executive Order 13617 of June 25, 2012, with respect to the disposition of Russian highly enriched uranium is to continue in effect beyond June 25, 2014.

The risk of nuclear proliferation created by the accumulation of a large volume of weapons-usable fissile material in the territory of the Russian Federation continues to pose an unusual and extraordinary threat to the national security and foreign policy of the United States. Therefore, I have determined that it is necessary to continue the national emergency declared in Executive Order 13617 with respect to the disposition of Russian highly enriched uranium.

BARACK OBAMA.
THE WHITE HOUSE, *June 19, 2014*.

MESSAGE FROM THE HOUSE

ENROLLED BILL SIGNED

At 9:32 a.m., a message from the House of Representatives, delivered by Mrs. Cole, one of its reading clerks, announced that the Speaker has signed the following enrolled bill:

S. 1254. An act to amend the Harmful Algal Blooms and Hypoxia Research and Control Act of 1998, and for other purposes.

The enrolled bill was subsequently signed by the President pro tempore (Mr. LEAHY).

MEASURES DISCHARGED

The following bill was discharged from the Committee on Commerce, Science, and Transportation, by unanimous consent, and ordered returned to the House:

H.R. 4412. An act to authorize the programs of the National Aeronautics and Space Administration, and for other purposes.

MEASURES PLACED ON THE CALENDAR

The following bill was read the second time, and placed on the calendar:

S. 2491. A bill to protect the Medicare program under title XVIII of the Social Security Act with respect to reconciliation involving changes to the Medicare program.

ENROLLED BILL PRESENTED

The Secretary of the Senate reported that on today, June 19, 2014, she had presented to the President of the United States the following enrolled bill:

S. 1254. An act to amend the Harmful Algal Blooms and Hypoxia Research and Control Act of 1998, and for other purposes.

EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–6141. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Pyroxasulfone; Pesticide Tolerances'' (FRL No. 9911–08–OCSPP) received in the Office of the President of the Senate on June 16, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6142. A communication from the Associate Administrator of the Livestock, Poultry and Seed Program, Agricultural Marketing Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''National Sheep Industry Improvement Center'' (AMS–LPS–14–0028) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Agriculture, Nutrition, and Forestry.

EC–6143. A communication from the Secretary of Homeland Security, transmitting, pursuant to law, a report relative to violations of the Antideficiency Act that occurred in the Department of Homeland Security Preparedness Directorate, Treasury Symbols 70/0911 and 70X0565; to the Committee on Appropriations.

EC–6144. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General Charles R. Davis, United States Air Force, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–6145. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting a report on the approved retirement of Lieutenant General Keith C. Walker, United States Army, and his advancement to the grade of lieutenant general on the retired list; to the Committee on Armed Services.

EC–6146. A communication from the Under Secretary of Defense (Acquisition, Technology and Logistics), transmitting, pursuant to law, a report relative to the Joint Precision Approach and Landing System (JPALS) Increment 1A program; to the Committee on Armed Services.

EC–6147. A communication from the Under Secretary of Defense (Acquisition, Technology and Logistics), transmitting, pursuant to law, a report relative to the MQ–8 Vertical Takeoff and Landing Tactical Unmanned Aerial Vehicle (VTUAV) Fire Scout program; to the Committee on Armed Services.

EC–6148. A communication from the Under Secretary of Defense (Personnel and Readiness), transmitting the report of three (3) officers authorized to wear the insignia of the grade of major general and brigadier general, as indicated, in accordance with title 10, United States Code, section 777; to the Committee on Armed Services.

EC–6149. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting the report of two (2) officers authorized to wear the insignia of the grade of rear admiral (lower half) in accordance with title 10, United States Code, section 777; to the Committee on Armed Services.

EC–6150. A communication from the Acting Under Secretary of Defense (Personnel and Readiness), transmitting, pursuant to law, a report relative to the Department of Defense assigning women to previously closed positions in the Navy; to the Committee on Armed Services.

EC–6151. A communication from the Associate General Counsel for Legislation and Regulations, Office of Housing—Federal Housing Commissioner, Department of Housing and Urban Development, transmitting, pursuant to law, the report of a rule entitled ''Manufactured Housing Constructions and Safety Standards: Correction of Reference Standard for Anti-Scald Valves'' (RIN2502–AJ21) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–6152. A communication from the Acting Chief Counsel, Federal Emergency Management Agency, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''Suspension of Community Eligibility'' ((44 CFR Part 64) (Docket No. FEMA–2014–0002)) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Banking, Housing, and Urban Affairs.

EC–6153. A communication from the Management and Program Analyst, Forest Service, Department of Agriculture, transmitting, pursuant to law, the report of a rule entitled ''Idaho Roadless Rule'' (RIN0596–AD11) received in the Office of the President of the Senate on June 16, 2014; to the Committee on Energy and Natural Resources.

EC–6154. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Pennsylvania; Portable Fuel Container Amendment to Pennsylvania State Implementation Plan'' (FRL No. 9912–21–Region 3) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Environment and Public Works.

EC–6155. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Modification of Significant New Use Rules on Certain Chemical Substances; Update of Chemical Identities'' ((RIN2070–AB27) (FRL No. 9910–51)) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Environment and Public Works.

EC–6156. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Partial Exemption of Certain Chemical Substances from Reporting Additional Chemical Data'' ((RIN2070–AK01) (FRL No. 9910–84)) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Environment and Public Works.

EC–6157. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Implementation Plans; State of Nevada; Update to Materials Incorporated By Reference'' (FRL No. 9908–86–Region 9) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Environment and Public Works.

EC–6158. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Partial Approval and Partial Disapproval and Promulgation of Air Quality Implementation Plans; South Dakota; Revisions to South Dakota Administrative Code; Permit: New and Modified Sources'' (FRL No. 9912–24–Region 8) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Environment and Public Works.

EC–6159. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Review of New Sources and Modifications in Indian Country Amendments to the Registration and Permitting Deadlines for True Minor Sources'' ((RIN2060–AS24) (FRL No. 9911–46–OAR)) received in the Office of the President of the Senate on June 16, 2014; to the Committee on Environment and Public Works.

EC–6160. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Regulation of Fuels and Fuel Additives: Extension of Compliance and Attest Engagement Reporting Deadlines for 2013 Renewable Fuel Standards'' ((RIN2060–AS25) (FRL No. 9912–00–OAR)) received in the Office of the President of the Senate on June 16, 2014; to the Committee on Environment and Public Works.

EC–6161. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Indiana; Particulate Matter Limitations for Coating Operations'' (FRL No. 9912–09–Region 5) received in the Office of the President of the Senate on June 16, 2014; to the Committee on Environment and Public Works.

EC–6162. A communication from the Director of the Regulatory Management Division, Environmental Protection Agency, transmitting, pursuant to law, the report of a rule entitled ''Approval and Promulgation of Air Quality Implementation Plans; Delaware; Amendments to Delaware's Ambient Air Quality Standards'' (FRL No. 9912–22–Region 3) received in the Office of the President of the Senate on June 16, 2014; to the Committee on Environment and Public Works.

EC–6163. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Credit for Carbon Dioxide Sequestration; 2014 Section 45Q Inflation Adjustment Factor'' (Notice 2014–40) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Finance.

EC–6164. A communication from the Chief of the Publications and Regulations Branch, Internal Revenue Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Regulations Governing Practice Before the Internal Revenue Service'' ((RIN1545–BF96) (TD 9668)) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Finance.

EC–6165. A communication from the Chairman, Medicare Payment Advisory Commission, transmitting, pursuant to law, a report entitled, ''Report to the Congress: Medicare and the Health Care Delivery System''; to the Committee on Finance.

EC–6166. A communication from the Deputy Director, Centers for Medicare and Medicaid Services, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Medicare Program; Additional Extension of the Payment Adjustment for Low-Volume Hospitals and the Medicare-dependent Hospital (MDH) Program Under the Hospital Inpatient Prospective Payment Systems (IPPS) for Acute

Care Hospitals for Fiscal Year 2014'' ((RIN0938–ZB17) (CMS–1599–N)) received during adjournment of the Senate in the Office of the President of the Senate on June 13, 2014; to the Committee on Finance.

EC–6167. A communication from the Chair of the Medicaid and CHIP Payment and Access Commission, transmitting, pursuant to law, a report entitled ''Report to the Congress on Medicaid and CHIP''; to the Committee on Finance.

EC–6168. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 14–046); to the Committee on Foreign Relations.

EC–6169. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report relative to section 36(c) of the Arms Export Control Act (DDTC 14–042); to the Committee on Foreign Relations.

EC–6170. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country (OSS–2014–0870); to the Committee on Foreign Relations.

EC–6171. A communication from the Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, of the proposed sale or export of defense articles and/or defense services to a Middle East country (OSS–2014–0871); to the Committee on Foreign Relations.

EC–6172. A communication from the Assistant Legal Adviser for Treaty Affairs, Department of State, transmitting, pursuant to the Case-Zablocki Act, 1 U.S.C. 112b, as amended, the report of the texts and background statements of international agreements, other than treaties (List 2014–0071–2014–0078); to the Committee on Foreign Relations.

EC–6173. A communication from the Assistant Secretary, Legislative Affairs, Department of State, transmitting, pursuant to law, a report consistent with the Authorization for Use of Military Force Against Iraq Resolution of 1002 (P.L. 107–243) and the Authorization for the Use of Force Against Iraq Resolution (P.L. 102–1) for the February 15, 2014–April 15, 2014 reporting period; to the Committee on Foreign Relations.

EC–6174. A communication from the Acting Assistant Secretary (Office of Postsecondary Education), Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Final Priority. Language Resource Centers Program'' (CFDA No. 84.229A); to the Committee on Health, Education, Labor, and Pensions.

EC–6175. A communication from the Acting Assistant Secretary (Office of Postsecondary Education), Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Final Priorities. National Resource Centers Program'' (CFDA No. 84.015A); to the Committee on Health, Education, Labor, and Pensions.

EC–6176. A communication from the Acting Assistant Secretary (Office of Postsecondary Education), Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Final Priority. Foreign Language and Area Studies Fellowships Program'' (CFDA No. 84.105B); to the Committee on Health, Education, Labor, and Pensions.

EC–6177. A communication from the Acting Assistant Secretary (Office of Postsecondary Education), Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Final Priorities. Centers for International Business Education Program'' (CFDA No. 84.220A); to the Committee on Health, Education, Labor, and Pensions.

EC–6178. A communication from the Acting Assistant Secretary (Office of Postsecondary Education), Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Final Priority. Undergraduate International Studies and Foreign Language Program'' (CFDA No. 84.016A); to the Committee on Health, Education, Labor, and Pensions.

EC–6179. A communication from the Assistant Secretary (Office of Elementary and Secondary Education), Department of Education, transmitting, pursuant to law, the report of a rule entitled ''Final Priorities, Requirement, and Definitions; Innovative Approaches to Literacy (IAL) Program'' (CFDA No. 84.215G); to the Committee on Health, Education, Labor, and Pensions.

EC–6180. A communication from the Director of Regulations Policy and Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Current Good Manufacturing Practices, Quality Control Procedures, Quality Factors, Notification Requirements, and Records and Reports, for Infant Formula'' ((Docket No. FDA–1995–N–0063) (formerly 95N–0309)) received during adjournment of the Senate in the Office of the President of the Senate on June 13, 2014; to the Committee on Health, Education, Labor, and Pensions.

EC–6181. A communication from the Director of Regulations Policy and Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Listing of Color Additives Exempt From Certification; Spirulina Extract; Confirmation of Effective Date'' (Docket No. FDA–2012–C–0900) received during adjournment of the Senate in the Office of the President of the Senate on June 13, 2014; to the Committee on Health, Education, Labor, and Pensions.

EC–6182. A communication from the Railroad Retirement Board, transmitting, pursuant to law, a report entitled ''Railroad Unemployment Insurance System''; to the Committee on Health, Education, Labor, and Pensions.

EC–6183. A communication from the Railroad Retirement Board, transmitting, pursuant to law, a report entitled ''Railroad Retirement System''; to the Committee on Health, Education, Labor, and Pensions.

EC–6184. A communication from the Associate General Counsel for General Law, Department of Homeland Security, transmitting, pursuant to law, a report relative to a vacancy in the position of Chief Financial Officer, Department of Homeland Security, received in the Office of the President of the Senate on June 17, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–6185. A communication from the General Counsel, Office of Management and Budget, Executive Office of the President, transmitting, pursuant to law, two (2) reports relative to vacancies in the Office of Management and Budget, received during adjournment of the Senate in the Office of the President of the Senate on June 13, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–6186. A communication from the Secretary of Housing and Urban Development, transmitting, pursuant to law, the Department of Housing and Urban Development Semiannual Report of the Inspector General for the period from October 1, 2013, through March 31, 2014; to the Committee on Homeland Security and Governmental Affairs.

EC–6187. A communication from the Secretary of Health and Human Services, transmitting, pursuant to law, a report entitled ''Consolidated Report to Congress on the Native Hawaiian Revolving Loan Fund for Fiscal Years 2005 through 2013''; to the Committee on Indian Affairs.

EC–6188. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Atlantic Bluefin Tuna Fisheries'' (RIN0648–XD277) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6189. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Northeastern United States; Atlantic Herring Fishery; 2014 Sub-Annual Catch Limit (ACL) Harvested for Management Area 1B'' (RIN0648–XD231) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6190. A communication from the Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Fisheries of the Exclusive Economic Zone Off Alaska; Yellowfin Sole in the Bering Sea and Aleutian Islands Management Area'' (RIN0648–XD300) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6191. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Commercial Gulf of Mexico Aggregated Large Coastal Shark and Gulf of Mexico Hammerhead Shark Management Groups'' (RIN0648–XD281) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6192. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Closure of the Recreational Harvest of Snowy Grouper in South Atlantic Waters'' (RIN0648–XD199) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6193. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Closure of the Recreational Harvest of Golden Tilefish in South Atlantic Waters'' (RIN0648–XD200) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6194. A communication from the General Counsel, Department of Commerce, transmitting proposed legislation relative to the implementation of two international fisheries conventions relating to the Pacific Ocean; to the Committee on Commerce, Science, and Transportation.

EC–6195. A communication from the Associate Bureau Chief, Wireline Competition Bureau, Federal Communications Commission, transmitting, pursuant to law, the report of a rule entitled ''Schools and Libraries Universal Service Support Mechanism; A National Broadband Plan For Our Future'' ((RIN3060–AF85) (DA 14–712)) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6196. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled

''Fisheries of the Northeastern United States; Summer Flounder Fishery; Quota Transfer'' (RIN0648–XD268) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6197. A communication from the Acting Director, Office of Sustainable Fisheries, Department of Commerce, transmitting, pursuant to law, the report of a rule entitled ''Atlantic Highly Migratory Species; Inseason Action to Close the Commercial Blacktip Shark Fishery in the Gulf of Mexico Region'' (RIN0648–XD312) received in the Office of the President of the Senate on June 17, 2014; to the Committee on Commerce, Science, and Transportation.

EC–6198. A communication from the General Counsel of the Department of Commerce, transmitting proposed legislation entitled ''Northwest Atlantic Fisheries Convention Amendments of 2014''; to the Committee on Commerce, Science, and Transportation.

REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. LEAHY, from the Committee on Appropriations, without amendment:

S. 2499. An original bill making appropriations for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2015, and for other purposes (Rept. No. 113–195).

By Mrs. SHAHEEN, from the Committee on Appropriations, with an amendment in the nature of a substitute:

H.R. 4487. A bill making appropriations for the Legislative Branch for the fiscal year ending September 30, 2015, and for other purposes (Rept. No. 113–196).

EXECUTIVE REPORTS OF COMMITTEE

The following executive reports of nominations were submitted:

By Mr. LEAHY for the Committee on the Judiciary.

Jill A. Pryor, of Georgia, to be United States Circuit Judge for the Eleventh Circuit.

Julie E. Carnes, of Georgia, to be United States Circuit Judge for the Eleventh Circuit.

Ronnie L. White, of Missouri, to be United States District Judge for the Eastern District of Missouri.

Andre Birotte, Jr., of California, to be United States District Judge for the Central District of California.

Robin L. Rosenberg, of Florida, to be United States District Judge for the Southern District of Florida.

Randolph D. Moss, of Maryland, to be United States District Judge for the District of Columbia.

John W. deGravelles, of Louisiana, to be United States District Judge for the Middle District of Louisiana.

Leigh Martin May, of Georgia, to be United States District Judge for the Northern District of Georgia.

Leslie Joyce Abrams, of Georgia, to be United States District Judge for the Middle District of Georgia.

Mark Howard Cohen, of Georgia, to be United States District Judge for the Northern District of Georgia.

Eleanor Louise Ross, of Georgia, to be United States District Judge for the Northern District of Georgia.

Nancy B. Firestone, of Virginia, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

Thomas L. Halkowski, of Pennsylvania, to be a Judge of the United States Court of Federal Claims for a term of fifteen years.

(Nominations without an asterisk were reported with the recommendation that they be confirmed.)

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. ENZI (for himself, Mr. PAUL, Mr. RUBIO, Mr. RISCH, Mr. BARRASSO, Mr. VITTER, and Mr. ISAKSON):

S. 2495. A bill to prevent a fiscal crisis by enacting legislation to balance the Federal budget through reductions of discretionary and mandatory spending; to the Committee on the Budget.

By Mr. BARRASSO (for himself, Mr. VITTER, Mr. MCCONNELL, Mr. RISCH, Mr. RUBIO, Mr. CRAPO, Mr. WICKER, Mr. INHOFE, Mr. COBURN, Mr. JOHANNS, Mr. ENZI, Mr. CORNYN, Mr. SESSIONS, Mr. TOOMEY, Mr. GRASSLEY, Mr. BOOZMAN, Mrs. FISCHER, Mr. HATCH, Mr. ROBERTS, Mr. PAUL, Mr. THUNE, Mr. ISAKSON, Mr. HELLER, Mr. COCHRAN, Mr. CHAMBLISS, Mr. BLUNT, Mr. HOEVEN, Mr. CRUZ, Mr. LEE, and Mr. BURR):

S. 2496. A bill to preserve existing rights and responsibilities with respect to waters of the United States; to the Committee on Environment and Public Works.

By Mr. MURPHY (for himself and Mr. SCHATZ):

S. 2497. A bill to amend the Internal Revenue Code of 1986 to allow a credit against income tax for equity investments by angel investors; to the Committee on Finance.

By Mr. MURPHY (for himself, Mr. THUNE, Mr. TOOMEY, and Mr. SCHATZ):

S. 2498. A bill to clarify the definition of general solicitation under Federal securities law; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. LEAHY:

S. 2499. An original bill making appropriations for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2015, and for other purposes; from the Committee on Appropriations; placed on the calendar.

By Mr. WALSH:

S. 2500. A bill to restrict the ability of the Federal Government to undermine privacy and encryption technology in commercial products and in NIST computer security and encryption standards; to the Committee on Commerce, Science, and Transportation.

By Mr. MANCHIN (for himself, Mr. WICKER, Mr. KIRK, and Mr. NELSON):

S. 2501. A bill to amend title XVIII of the Social Security Act to make improvements to the Medicare hospital readmissions reduction program; to the Committee on Finance.

By Mr. CARDIN (for himself, Mr. BOOZMAN, Mr. COONS, Mr. ISAKSON, and Mr. KAINE):

S. 2502. A bill to establish in the United States Agency for International Development an entity to be known as the United States Global Development Lab, and for other purposes; to the Committee on Foreign Relations.

By Mr. FLAKE (for himself and Mr. MCCAIN):

S. 2503. A bill to direct the Secretary of the Interior to enter into the Big Sandy River-Planet Ranch Water Rights Settlement Agreement and the Hualapai Tribe Bill Williams River Water Rights Settlement Agreement, to provide for the lease of certain land located within Planet Ranch on the Bill Williams River in the State of Arizona to benefit the Lower Colorado River Multi-Species Conservation Program, and to provide for the settlement of specific water rights claims in the Bill Williams River watershed in the State of Arizona; to the Committee on Indian Affairs.

By Ms. AYOTTE (for herself and Mr. DONNELLY):

S. 2504. A bill to address prescription opioid and heroin abuse; to the Committee on Health, Education, Labor, and Pensions.

By Mr. RUBIO (for himself and Mr. BOOKER):

S. 2505. A bill to promote unlicensed spectrum use in the 5 GHz band, to maximize the use of the band for shared purposes in order to bolster innovation and economic development, and for other purposes; to the Committee on Commerce, Science, and Transportation.

By Mrs. HAGAN (for herself and Mr. HARKIN):

S. 2506. A bill to award grants to States to support efforts at institutions of higher education to increase degree attainment, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. MENENDEZ:

S. 2507. A bill to provide that service of the members of the organization known as the United States Cadet Nurse Corps during World War II constituted active military service for purposes of laws administered by the Secretary of Veterans Affairs; to the Committee on Veterans' Affairs.

By Mr. MENENDEZ (for himself, Mr. CORKER, Mr. COONS, Mr. ISAKSON, Mr. MARKEY, and Mr. JOHANNS):

S. 2508. A bill to establish a comprehensive United States Government policy to assist countries in sub-Saharan Africa to improve access to and the affordability, reliability, and sustainability of power, and for other purposes; to the Committee on Foreign Relations.

By Mr. MENENDEZ (for himself, Mr. CORKER, and Mr. MARKEY):

S. 2509. A bill to ensure compliance with the 1980 Hague Convention on the Civil Aspects of International Child Abduction, to establish procedures for the prompt return of children abducted to other countries, and for other purposes; to the Committee on Foreign Relations.

By Mr. CRUZ (for himself, Ms. AYOTTE, and Mr. ROBERTS):

S. 2510. A bill to establish a temporary limitation on the use of funds to transfer or release individuals detained at United States Naval Station, Guantanamo Bay, Cuba; to the Committee on Armed Services.

By Mr. HARKIN (for himself and Mr. ALEXANDER):

S. 2511. A bill to amend the Employee Retirement Income Security Act of 1974 to clarify the definition of substantial cessation of operations; to the Committee on Health, Education, Labor, and Pensions.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. KAINE (for himself, Mr. BURR, and Mr. BLUMENTHAL):

S. Res. 479. A resolution recognizing Veterans Day 2014 as a special ''Welcome Home Commemoration'' for all who have served in the military since September 14, 2001; to the Committee on Veterans' Affairs.

By Mrs. SHAHEEN (for herself, Mr. PORTMAN, and Mr. MURPHY):

S. Res. 480. A resolution expressing condolences and supporting assistance for the victims of the historic flooding in the Western Balkans; to the Committee on Foreign Relations.

ADDITIONAL COSPONSORS

S. 603

At the request of Mr. MCCAIN, his name was added as a cosponsor of S. 603, a bill to repeal the annual fee on health insurance providers enacted by the Patient Protection and Affordable Care Act.

S. 635

At the request of Mr. BROWN, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 635, a bill to amend the Gramm-Leach-Bliley Act to provide an exception to the annual written privacy notice requirement.

S. 981

At the request of Mr. MENENDEZ, the name of the Senator from Montana (Mr. WALSH) was added as a cosponsor of S. 981, a bill to direct the Federal Trade Commission to prescribe rules prohibiting deceptive advertising of abortion services, and for other purposes.

S. 1476

At the request of Mr. REED, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 1476, a bill to amend the Internal Revenue Code of 1986 to expand the denial of deduction for certain excessive employee remuneration, and for other purposes.

S. 1504

At the request of Mr. CASEY, the name of the Senator from New York (Mr. SCHUMER) was added as a cosponsor of S. 1504, a bill to increase funds set aside for off-system bridges.

S. 1971

At the request of Ms. MURKOWSKI, the names of the Senator from Louisiana (Ms. LANDRIEU) and the Senator from Hawaii (Mr. SCHATZ) were added as cosponsors of S. 1971, a bill to establish an interagency coordination committee or subcommittee with the leadership of the Department of Energy and the Department of the Interior, focused on the nexus between energy and water production, use, and efficiency, and for other purposes.

S. 2082

At the request of Mr. MENENDEZ, the name of the Senator from Oregon (Mr. MERKLEY) was added as a cosponsor of S. 2082, a bill to provide for the development of criteria under the Medicare program for medically necessary short inpatient hospital stays, and for other purposes.

S. 2103

At the request of Mr. BOOZMAN, the names of the Senator from New Hampshire (Ms. AYOTTE) and the Senator from Mississippi (Mr. WICKER) were added as cosponsors of S. 2103, a bill to direct the Administrator of the Federal Aviation Administration to issue or revise regulations with respect to the medical certification of certain small aircraft pilots, and for other purposes.

S. 2133

At the request of Ms. BALDWIN, the name of the Senator from Michigan (Ms. STABENOW) was added as a cosponsor of S. 2133, a bill to amend title VII of the Civil Rights Act of 1964 and other statutes to clarify appropriate liability standards for Federal antidiscrimination claims.

S. 2333

At the request of Mrs. MURRAY, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 2333, a bill to amend title 10, United States Code, to provide for certain behavioral health treatment under TRICARE for children and adults with developmental disabilities.

S. 2337

At the request of Ms. MURKOWSKI, the name of the Senator from Wisconsin (Ms. BALDWIN) was added as a cosponsor of S. 2337, a bill to amend title 38, United States Code, to authorize the Secretary of Veterans Affairs to inter in national cemeteries individuals who supported the United States in Laos during the Vietnam War era.

S. 2405

At the request of Mr. REED, the name of the Senator from North Carolina (Mr. BURR) was added as a cosponsor of S. 2405, a bill to amend title XII of the Public Health Service Act to reauthorize certain trauma care programs, and for other purposes.

S. 2476

At the request of Mr. LEAHY, the name of the Senator from New Mexico (Mr. HEINRICH) was added as a cosponsor of S. 2476, a bill to direct the Federal Communications Commission to promulgate regulations that prohibit certain preferential treatment or prioritization of Internet traffic.

S. 2491

At the request of Mr. PRYOR, the names of the Senator from New Hampshire (Mrs. SHAHEEN), the Senator from Massachusetts (Ms. WARREN), the Senator from Ohio (Mr. BROWN), the Senator from Louisiana (Ms. LANDRIEU), the Senator from Oregon (Mr. MERKLEY), the Senator from Rhode Island (Mr. REED), the Senator from Montana (Mr. WALSH), the Senator from North Carolina (Mrs. HAGAN) and the Senator from New Mexico (Mr. UDALL) were added as cosponsors of S. 2491, a bill to protect the Medicare program under title XVIII of the Social Security Act with respect to reconciliation involving changes to the Medicare program.

AMENDMENT NO. 3246

At the request of Mr. COONS, his name was added as a cosponsor of amendment No. 3246 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

AMENDMENT NO. 3249

At the request of Mr. BROWN, the name of the Senator from Ohio (Mr. PORTMAN) was added as a cosponsor of amendment No. 3249 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

AMENDMENT NO. 3254

At the request of Mr. BOOKER, the names of the Senator from Hawaii (Mr. SCHATZ) and the Senator from Connecticut (Mr. MURPHY) were added as cosponsors of amendment No. 3254 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

AMENDMENT NO. 3262

At the request of Ms. KLOBUCHAR, the names of the Senator from Massachusetts (Mr. MARKEY) and the Senator from New Mexico (Mr. HEINRICH) were added as cosponsors of amendment No. 3262 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

AMENDMENT NO. 3278

At the request of Mr. LEAHY, the names of the Senator from Maine (Ms. COLLINS) and the Senator from Connecticut (Mr. MURPHY) were added as cosponsors of amendment No. 3278 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

AMENDMENT NO. 3280

At the request of Mr. VITTER, the names of the Senator from Texas (Mr. CRUZ), the Senator from Pennsylvania (Mr. TOOMEY) and the Senator from Idaho (Mr. CRAPO) were added as cosponsors of amendment No. 3280 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

AMENDMENT NO. 3289

At the request of Mr. PAUL, the name of the Senator from New Jersey (Mr. BOOKER) was added as a cosponsor of amendment No. 3289 intended to be proposed to H.R. 4660, a bill making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. CARDIN (for himself, Mr. BOOZMAN, Mr. COONS, Mr. ISAKSON, and Mr. KAINE):

S. 2502. A bill to establish in the United States Agency for International Development an entity to be known as the United States Global Development Lab, and for other purposes; to the Committee on Foreign Relations.

Mr. CARDIN. Mr. President, I rise today to discuss the Global Development Lab and the legislation I am introducing along with Senators BOOZMAN, COONS, and ISAKSON that codifies the Global Development Lab and provides the U.S. Agency for International Development, USAID, with the flexibility it needs to make the Lab the gold standard in global development innovation.

This year, the Office of Science & Technology and the Office of Innovation & Development Alliances at USAID were abolished to pave the way for the Global Development Lab—a new approach to invest, test, and bring to scale more effective solutions to the world's biggest development challenges.

The Global Development Lab partners with entrepreneurs, experts, nongovernmental organizations, NGOs, universities, and science and research institutions to solve development challenges in a faster, more cost-efficient, and more sustainable way. The lab utilizes a pay-for-success model, which uses science, technology, and innovation-driven competitions to expand the number and diversity of solutions to development challenges. This means that instead of issuing grants or contacts, USAID can give a competitor an award only after the objectives of the competition have been achieved.

The lab already has an impressive 32 cornerstone partners. These partners are businesses, NGOs, foundations, universities, and governments—all of whom are committed to sharing information and expertise and to bringing innovative development projects to scale. I am pleased that two Maryland-based organizations, Johns Hopkins University and Catholic Relief Services, are cornerstone partners of the Global Development Lab. Catholic Relief Services intends to work with the lab on food security, global health, climate change, energy, and information and communications technology, and it is already using geographic information systems in Haiti to map schools and education programs across the country to better improve education interventions. Johns Hopkins University plans to partner with the lab on improving health care and access to clean and affordable water and energy.

The Global Development Lab makes sense: America has a proud history of achieving unprecedented gains for humanity through science and technology. Evidence has shown that when we harness American science, innovation and entrepreneurship, we achieve the greatest leaps in social and economic development.

For example, ninety percent of new HIV infection in children is a result of mother-to-child transmission at birth. When newborns receive antiretroviral drugs at a clinic or hospital within 24 hours of birth, their chances of contracting HIV go from 45 percent to less than 5 percent. In regions where pregnant mothers do not have adequate access to medical facilities, getting newborns antiretroviral treatment is challenging. In response to this challenge, Dr. Robert Malkin and his students at Duke's Pratt School of Engineering and Duke's Global Health Institute—also Cornerstone Partners—designed the Pratt Pouch, a low-cost foil pouch that preserves a premeasured dose of antiretroviral medication for up to a year without requiring refrigeration. The pouch ensures accurate pediatric dosing and can be given to mothers to take home with them before birth. Mothers then simply tear open the pouch and squeeze the medication directly into their newborn's mouth, eliminating the need for a syringe and a health professional and ultimately reducing the likelihood of mother-to-child transmission of HIV at birth.

This type of innovation is exciting and is exactly what we hope to see more of as we scale up the Global Development Lab and empower it to be the world's most innovative incubator of global development projects.

By Mr. FLAKE (for himself and Mr. MCCAIN):

S. 2503. A bill to direct the Secretary of the Interior to enter into the Big Sandy River-Planet Ranch Water Rights Settlement Agreement and the Hualapai Tribe Bill Williams River Water Rights Settlement Agreement, to provide for the lease of certain land located within Planet Ranch on the Bill Williams River in the State of Arizona to benefit the Lower Colorado River Multi-Species Conservation Program, and to provide for the settlement of specific water rights claims in the Bill Williams River watershed in the State of Arizona; to the Committee on Indian Affairs.

Mr. FLAKE. Mr. President, on behalf of Senator MCCAIN and myself I am pleased to introduced S. 2503, the Bill Williams River Water Rights Settlement Act of 2014.

This measure would confirm important water rights claims of the Hualapai Tribe to water in the Bill Williams River watershed; provide protections for the Tribe's culturally significant springs in that area; secure a non-federal contribution toward a future settlement of the Tribe's claims in other river basins; provide certainty for continued water use by the Freeport Minerals Corporation, Freeport, at the Bagdad Mine complex and townsite; and facilitate the transfer of a portion of land known as Planet Ranch for use in the Lower Colorado River Multi-Species Conservation Program or MSCP. It would do all of this without any new spending authorizations.

Water users in Arizona have a long history of pro-actively addressing complex water challenges. Among the State's many accomplishments is the resolution, in whole or in part, of water rights claims asserted by 13 of the State's 22 federally recognized Indian tribes. This measure would carry forward that strong tradition by recognizing reserved water rights to a total of 694 acre-feet per year, afy, on three different parcels along the Big Sandy River as well as the Tribe's claims to the Cofer Hot Springs.

For non-Indian communities, this legislation would confirm Freeport's right to withdraw 10,055 afy at the Wikieup Wellfield, which serves the Bagdad Mine and townsite. Achieving this level of certainty with regard to water supply would help to ensure continued economic benefits throughout the State.

By enabling the transfer of a portion of Planet Ranch to the Lower Colorado River MSCP, the settlement would help Arizona, California, and Nevada meet their obligations to both water management and Endangered Species Act compliance. However, in order to properly effectuate the transfer, Congress must act before five-year window for abandonment and forfeiture of Planet Ranch's water rights expires.

Finally, this bill would help to set the table for future negotiations regarding the Tribe's claims to water in the lower Colorado River and the Verde River by securing a non-federal contribution toward those settlement efforts. As those negotiations continue, I look forward to fully and fairly evaluating any subsequent settlement on its own merits.

I am pleased to have the opportunity to work with the parties that have negotiated this settlement, and I am committed to bringing it to fruition through congressional enactment. The settlement resolves significant legal claims, provides certainty for water users, and enhances the MSCP without including any new spending. Therefore, I urge my colleagues to support this legislation.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 479—RECOGNIZING VETERANS DAY 2014 AS A SPECIAL ''WELCOME HOME COMMEMORATION'' FOR ALL WHO HAVE SERVED IN THE MILITARY SINCE SEPTEMBER 14, 2001

Mr. KAINE (for himself, Mr. BURR, and Mr. BLUMENTHAL) submitted the following resolution; which was referred to the Committee on Veterans' Affairs:

S. RES. 479

Whereas the United States, pursuant to the Authorization for Use of Military Force (Public Law 107–40), commenced a war against individuals responsible for the 9/11 attacks;

Whereas in the intervening 13 years, members of the United States Armed Forces have engaged in warfare around the globe, especially in Iraq and Afghanistan;

Whereas there have been 2,600,000 deployments to Iraq and Afghanistan and more than 500,000 soldiers have completed multiple tours;

Whereas over 110,000 sailors have deployed as individual augmentees in support of the war ashore and additional sailors have deployed on navy vessels serving over 180,000 days at sea, providing power projection, regional stability, and global presence;

Whereas over 238,000 airmen have deployed to Iraq and Afghanistan and more than 201,000 airmen have deployed to the Area of Responsibility, delivering flights in support of the war effort;

Whereas over 330,000 marines have deployed afloat and ashore, ensuring peace in some of the most dangerous provinces in Iraq and Afghanistan;

Whereas, between January 1, 2000 and January 10, 2014, 287,911 cases of traumatic brain injury (TBI), often referred to as a signature wound of the wars in Iraq and Afghanistan, were diagnosed among members of the Armed Forces, and approximately 7,100 cases were classified as severe or penetrating;

Whereas of the members of the Armed Forces who have been deployed to Iraq and Afghanistan since October 2001, more than 6,800 have been killed in action and more than 52,000 have been wounded in action;

Whereas United States Operation Iraqi Freedom and Operation New Dawn combat military operations in Iraq are complete and United States direct military operations in Afghanistan will end in 2014 as the United States transitions to a training and assistance role;

Whereas the sacrifices of United States servicemembers and their families during the last 13 years should be recognized by all citizens of the United States;

Whereas November 11, 1918, is generally regarded as the end of hostilities in World War I, and Veterans Day has been a legal holiday since May 13, 1938, when it was originally dedicated as ''Armistice Day'' to honor veterans of World War I and was subsequently amended to honor United States veterans of all wars in 1954; and

Whereas November 11th is the day for the nation to reflect on the service and sacrifice of every generation of veterans: Now, therefore be it

Resolved, That the Senate—

(1) recognizes Veterans Day 2014 as a special ''Welcome Home Commemoration'' for all who have served in the United States Armed Forces since September 14, 2001;

(2) promotes awareness of the services and contributions of all post-9/11 veterans; and

(3) encourages communities in the United States to plan activities for Veterans Day 2014 to honor and support all who have served during this time and to provide citizens of the United States an opportunity to present unified recognition of the service and sacrifices of post-9/11 veterans.

Mr. KAINE. Mr. President, I rise to talk about an American memory and the absence of a memory, and the lesson I draw both from the memory and the absence compels me to submit a resolution.

First, the memory. I would submit that the most known photograph in the history of the United States is the Alfred Eisenstadt photo of an American sailor kissing a woman in Times Square on V-J Day, August 14, 1945, at the end of World War II. If one Googles ''V-J Day photo,'' you will find more than 31 million links. Joy, celebration, gratitude—the photo says it all.

It was important to celebrate the end of that war and to thank those from that ''greatest generation'' who had made it possible by serving, and we have continued to celebrate them, most recently in the recent commemoration of the 70th anniversary of D-day.

Now the absence of a memory.

Where was that photo, where was that iconic moment of joy and celebration at the end of the Vietnam war? There was none. No iconic photo, no ritual moment of celebration and thanks—and that was a mistake.

This generation of Americans has lived through a war that began in the days after 9/11. I recently heard a student about the same age as our pages say, ''While I don't know war, all I've known is war.''

The combination of Operations Enduring Freedom, Iraqi Freedom, and New Dawn has lasted 13 years. It is the longest period of war in the history of the United States.

During these 13 years of war, over 2.5 million Americans have been deployed to Iraq and Afghanistan, hundreds of thousands completing multiple tours. This is from an all-volunteer force that comprises less than 1 percent of the American population.

More than 6,800 of our armed services have been killed in action, and more than 52,000 have been wounded in action.

Now this long period of war and sacrifice is coming to an end. U.S. combat operations in Iraq ceased in 2011, and all U.S. combat operations in Afghanistan will end this year, by the end of 2014.

Of course, while the combat mission may end, the sense of duty of our servicemembers continues and global challenges continue and U.S. troops will remain in Afghanistan in noncombat positions, just as U.S. troops remained in Germany and Japan and Korea in noncombat posts.

But in a deep and fundamental way, 2014 represents the end of a momentous and generation-defining war. The question for this generation of Americans is: How will we commemorate the end of this war?

When the war started, it started with a catastrophic attack on the World Trade Center and on the Pentagon in Virginia, with solemn speeches by the President to Congress and to the American public—whether delivered in the Capitol or standing on piles of rubble at Ground Zero—with Congress debating and voting to do the most serious thing the Nation does, which is go to war.

It began as serious undertakings should—with a sense of seriousness and purpose and even ritual. That is how this war began in America.

How will we choose to end it? Will we take steps to publicly commemorate the end of the war or will we just allow the important moment to pass, unacknowledged and unrecognized, with no iconic moment or memory? Will we celebrate with and thank those who have served or will we just turn our attention to the next headline or the next issue or the next scandal or the next crisis?

I believe that as a generation we do not want to repeat the mistake of the Vietnam era and allow the sacrifice of so many to just pass unnoticed. So, together with my cosponsors Senators BURR and BLUMENTHAL, I submit today a resolution calling on the Nation to hold the special ''welcome home'' commemoration on Veterans Day 2014.

November 11 is the day we honor the sacrifice and service of every generation of American veterans. November 11, 1918, was generally regarded as the end of hostilities in World War I, and since 1938 America has paused on November 11 to recognize veterans of all wars. This year, after 13 years of war, we wanted to designate November 11, 2014, as a special ''welcome home'' commemoration for all who have served in the military since September 11.

We submit this resolution with the strong support of veterans organizations—the American Legion, the Veterans of Foreign Wars, and the Vietnam Veterans of America. The resolution promotes special awareness of our post-9/11 veterans. It encourages communities in the United States to plan activities for Veterans Day 2014 with a special focus on honoring and supporting those who served during this time.

I imagine, as mayor, that the Presiding Officer had Veterans Day commemorations in Newark. As Governor, we have them in Virginia, and communities all over the country are right now planning what they will do on November 11, 2014. This provides our citizens with a formal opportunity to present a unified recognition all across this country, at a designated moment, of the sacrifices made by our ''greatest generation.''

This resolution is not all we must do for our post-9/11 veterans. We owe them a better VA system. We owe them a job market that understands and values their skills. And with so many of our colleagues, we will keep working on those issues.

This resolution doesn't stand for the end of wars or conflicts. The daily papers will always be filled with wars and rumors of wars around the globe, and we know American troops will continue to stand ready to serve in harm's way for our best values. But for everything there is a season, and this year where we finish the war started earlier in this millennium, it is time to welcome home our post-9/11 veterans, to shine a light on their honor and sacrifice, to celebrate with those who have borne the battle, and to remember with affection those who will never return.

SENATE RESOLUTION 480—EXPRESSING CONDOLENCES AND SUPPORTING ASSISTANCE FOR THE VICTIMS OF THE HISTORIC FLOODING IN THE WESTERN BALKANS

Mrs. SHAHEEN (for herself, Mr. PORTMAN, and Mr. MURPHY) submitted

the following resolution; which was referred to the Committee on Foreign Relations:

S. RES. 480

Whereas record rainfall beginning on May 13, 2014, has led to widespread flooding in Bosnia and Herzegovina, the Republic of Croatia, and the Republic of Serbia, causing thousands of landslides, massive destruction, and loss of life;

Whereas by May 22, 2014, the flooding caused over 40 deaths and impacted over 500,000 people across the region, particularly in western Serbia and eastern Bosnia and Herzegovina;

Whereas the equivalent of 3 months of rain fell during the course of 3 days, making this the worst flooding event in Serbia and Bosnia and Herzegovina in 120 years;

Whereas the flooding has left thousands of people stranded in their homes waiting for assistance, displaced, or without shelter;

Whereas according to the International Federation of Red Cross and Red Crescent Societies, 300,000 people in Serbia and 50,000 people in Bosnia and Herzegovina were left without clean water or electricity;

Whereas the Foreign Ministry of Bosnia and Herzegovina has reported that the flooding rendered 100,000 buildings unusable, caused 500,000 people to evacuate or flee their homes, and prompted 14 municipalities to declare a state of emergency;

Whereas the Government of Serbia has described the situation in that country as ''catastrophic'', and estimates that at least 25,000 people have been forced to evacuate, particularly in the town and municipality of Obrenovac, and that the flooding has caused over 100,000,000 Euros ($140,000,000) in damage to the Kolubara coal mine that supplies the Nikola Tesla power plants;

Whereas soldiers and energy workers scrambled to erect sandbag barriers to protect the Kostolac power plant and the Nikola Tesla power plants, which provide half of the country's electricity, from the waters of the flooded Sava, Kolubara, and Tamnava Rivers;

Whereas, according to the International Medical Corps, as many as 120,000 landmines remaining from the Balkan conflicts of the 1990s may have been lost or dislodged due to landslides, causing great concern for public safety;

Whereas the United States Government has approved or provided $2,060,000 in funds through the United States Agency for International Development's Office of United States Foreign Disaster Assistance, the Department of Defense, and the Under Secretary of Public Diplomacy and Public Affairs for the Republic of Serbia.

Whereas the United States Government has provided $2,740,000 in humanitarian assistance to Bosnia and Herzegovina; and

Whereas the Governments and people of Bosnia and Herzegovina, the Republic of Croatia, and the Republic of Serbia share an increasing commitment to core democratic values, reconciliation, and European integration: Now, therefore, be it

Resolved, That the Senate—

(1) expresses deep sympathy to all those affected by the flooding in the Western Balkans for the terrible loss of life and massive destruction;

(2) expresses solidarity with the people of Bosnia and Herzegovina, the Republic of Croatia, and the Republic of Serbia, as well as a continued desire to provide assistance to help their countries recover from this natural disaster;

(3) expresses ongoing support for humanitarian and reconstruction assistance provided by relief agencies and the international community as immediate and long-term needs are identified;

(4) commends local authorities, first responders and rescue personnel, NGOs, volunteers, and everyday citizens for their efforts to organize and deliver disaster relief to communities in need across Bosnia and Herzegovina, the Republic of Croatia, and the Republic of Serbia;

(5) commends the United States Government agencies, including USAID and the Department of Defense, for their response to the natural disaster; and

(6) urges additional assistance by other nations and organizations as needed to alleviate the difficult circumstances and suffering of the people of Bosnia and Herzegovina, the Republic of Croatia, and the Republic of Serbia, and to assist them in their recovery efforts.

AMENDMENTS SUBMITTED AND PROPOSED

SA 3290. Mrs. FISCHER submitted an amendment intended to be proposed by her to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table.

SA 3291. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3292. Mr. PAUL submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3293. Mr. BROWN submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3294. Mrs. SHAHEEN (for herself, Mr. KIRK, Mr. TOOMEY, Mr. MCCAIN, Ms. AYOTTE, Mr. WARNER, Ms. COLLINS, Mr. PORTMAN, Mr. COATS, and Mrs. FEINSTEIN) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3295. Mrs. FEINSTEIN submitted an amendment intended to be proposed by her to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3296. Mrs. FEINSTEIN submitted an amendment intended to be proposed by her to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3297. Mr. TOOMEY (for himself and Mr. CRAPO) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3298. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3299. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3300. Mr. TOOMEY (for himself and Mr. BOOZMAN) submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3301. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3302. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3303. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3304. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3305. Mr. LEE (for himself and Mr. VITTER) submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3306. Mrs. MURRAY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3307. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3308. Mr. MURPHY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3309. Mr. HARKIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3310. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3311. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3312. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3313. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3314. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3315. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3316. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3317. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3318. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3319. Mr. FLAKE submitted an amendment intended to be proposed to amendment

SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3320. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3321. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3322. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3323. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3324. Mr. FLAKE submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3325. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3326. Mr. FLAKE submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3327. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3328. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3329. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3330. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3331. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3332. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3333. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3334. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3335. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3336. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3337. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3338. Mr. VITTER submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3339. Mr. HELLER (for himself, Mrs. MCCASKILL, Mrs. GILLIBRAND, Mr. BLUMENTHAL, Mr. GRASSLEY, Mr. RUBIO, Ms. AYOTTE, and Mr. WARNER) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3340. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3341. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3342. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3343. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3344. Mrs. FISCHER (for herself and Mr. RUBIO) submitted an amendment intended to be proposed by her to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3345. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3346. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3347. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3348. Ms. CANTWELL (for herself and Mrs. MURRAY) submitted an amendment intended to be proposed by her to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3349. Mr. MERKLEY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3350. Mr. DONNELLY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3351. Mr. DONNELLY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3352. Mr. FLAKE (for himself, Mr. RISCH, Mr. MORAN, Mr. ROBERTS, and Mr. MCCAIN) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3353. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3354. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3355. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3356. Mr. COBURN (for himself and Mrs. MCCASKILL) submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3357. Mr. COBURN submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3358. Mr. COBURN submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3359. Mr. PAUL (for himself and Mr. MCCONNELL) submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3360. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3361. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3362. Mr. CASEY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3363. Mr. UDALL, of Colorado (for himself and Mr. BENNET) submitted an amendment intended to be proposed by him to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3364. Mr. BLUMENTHAL (for himself and Mr. MURPHY) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3365. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table.

SA 3366. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, supra; which was ordered to lie on the table.

SA 3367. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, supra; which was ordered to lie on the table.

SA 3368. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, supra; which was ordered to lie on the table.

SA 3369. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, supra; which was ordered to lie on the table.

SA 3370. Mr. HEINRICH (for himself and Mr. UDALL of New Mexico) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table.

SA 3371. Mr. HEINRICH (for himself and Mr. UDALL of New Mexico) submitted an

amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3372. Mr. DURBIN (for himself, Mrs. BOXER, Mr. HARKIN, Mr. REED, Mr. BLUMENTHAL, Mr. MARKEY, and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3373. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

SA 3374. Mr. RUBIO submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, supra; which was ordered to lie on the table.

TEXT OF AMENDMENTS

SA 3290. Mrs. FISCHER submitted an amendment intended to be proposed by her to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

TITLE _____—BUDGET AND ACCOUNTING TRANSPARENCY

SEC. ___01. SHORT TITLE.

This title may be cited as the ''Budget and Accounting Transparency Act of 2014''.

Subtitle A—Fair Value Estimates

SEC. ___11. CREDIT REFORM.

(a) IN GENERAL.—Title V of the Congressional Budget Act of 1974 is amended to read as follows:

''TITLE V—FAIR VALUE

''SEC. 500. SHORT TITLE.

''This title may be cited as the 'Fair Value Accounting Act of 2014'.

''SEC. 501. PURPOSES.

''The purposes of this title are to—

''(1) measure more accurately the costs of Federal credit programs by accounting for them on a fair value basis;

''(2) place the cost of credit programs on a budgetary basis equivalent to other Federal spending;

''(3) encourage the delivery of benefits in the form most appropriate to the needs of beneficiaries; and

''(4) improve the allocation of resources among Federal programs.

''SEC. 502. DEFINITIONS.

''For purposes of this title:

''(1) The term 'direct loan' means a disbursement of funds by the Government to a non-Federal borrower under a contract that requires the repayment of such funds with or without interest. The term includes the purchase of, or participation in, a loan made by another lender and financing arrangements that defer payment for more than 90 days, including the sale of a Government asset on credit terms. The term does not include the acquisition of a federally guaranteed loan in satisfaction of default claims or the price support loans of the Commodity Credit Corporation.

''(2) The term 'direct loan obligation' means a binding agreement by a Federal agency to make a direct loan when specified conditions are fulfilled by the borrower.

''(3) The term 'loan guarantee' means any guarantee, insurance, or other pledge with respect to the payment of all or a part of the principal or interest on any debt obligation of a non-Federal borrower to a non-Federal lender, but does not include the insurance of deposits, shares, or other withdrawable accounts in financial institutions.

''(4) The term 'loan guarantee commitment' means a binding agreement by a Federal agency to make a loan guarantee when specified conditions are fulfilled by the borrower, the lender, or any other party to the guarantee agreement.

''(5)(A) The term 'cost' means the sum of the Treasury discounting component and the risk component of a direct loan or loan guarantee, or a modification thereof.

''(B) The Treasury discounting component shall be the estimated long-term cost to the Government of a direct loan or loan guarantee, or modification thereof, calculated on a net present value basis, excluding administrative costs and any incidental effects on governmental receipts or outlays.

''(C) The risk component shall be an amount equal to the difference between—

''(i) the estimated long-term cost to the Government of a direct loan or loan guarantee, or modification thereof, estimated on a fair value basis, applying the guidelines set forth by the Financial Accounting Standards Board in Financial Accounting Standards #157, or a successor thereto, excluding administrative costs and any incidental effects on governmental receipts or outlays; and

''(ii) the Treasury discounting component of such direct loan or loan guarantee, or modification thereof.

''(D) The Treasury discounting component of a direct loan shall be the net present value, at the time when the direct loan is disbursed, of the following estimated cash flows:

''(i) Loan disbursements.

''(ii) Repayments of principal.

''(iii) Essential preservation expenses, payments of interest and other payments by or to the Government over the life of the loan after adjusting for estimated defaults, prepayments, fees, penalties, and other recoveries, including the effects of changes in loan terms resulting from the exercise by the borrower of an option included in the loan contract.

''(E) The Treasury discounting component of a loan guarantee shall be the net present value, at the time when the guaranteed loan is disbursed, of the following estimated cash flows:

''(i) Payments by the Government to cover defaults and delinquencies, interest subsidies, essential preservation expenses, or other payments.

''(ii) Payments to the Government including origination and other fees, penalties, and recoveries, including the effects of changes in loan terms resulting from the exercise by the guaranteed lender of an option included in the loan guarantee contract, or by the borrower of an option included in the guaranteed loan contract.

''(F) The cost of a modification is the sum of—

''(i) the difference between the current estimate of the Treasury discounting component of the remaining cash flows under the terms of a direct loan or loan guarantee and the current estimate of the Treasury discounting component of the remaining cash flows under the terms of the contract, as modified; and

''(ii) the difference between the current estimate of the risk component of the remaining cash flows under the terms of a direct loan or loan guarantee and the current estimate of the risk component of the remaining cash flows under the terms of the contract as modified.

''(G) In estimating Treasury discounting components, the discount rate shall be the average interest rate on marketable Treasury securities of similar duration to the cash flows of the direct loan or loan guarantee for which the estimate is being made.

''(H) When funds are obligated for a direct loan or loan guarantee, the estimated cost shall be based on the current assumptions, adjusted to incorporate the terms of the loan contract, for the fiscal year in which the funds are obligated.

''(6) The term 'program account' means the budget account into which an appropriation to cover the cost of a direct loan or loan guarantee program is made and from which such cost is disbursed to the financing account.

''(7) The term 'financing account' means the nonbudget account or accounts associated with each program account which holds balances, receives the cost payment from the program account, and also includes all other cash flows to and from the Government resulting from direct loan obligations or loan guarantee commitments made on or after October 1, 1991.

''(8) The term 'liquidating account' means the budget account that includes all cash flows to and from the Government resulting from direct loan obligations or loan guarantee commitments made prior to October 1, 1991. These accounts shall be shown in the budget on a cash basis.

''(9) The term 'modification' means any Government action that alters the estimated cost of an outstanding direct loan (or direct loan obligation) or an outstanding loan guarantee (or loan guarantee commitment) from the current estimate of cash flows. This includes the sale of loan assets, with or without recourse, and the purchase of guaranteed loans (or direct loan obligations) or loan guarantees (or loan guarantee commitments) such as a change in collection procedures.

''(10) The term 'current' has the same meaning as in section 250(c)(9) of the Balanced Budget and Emergency Deficit Control Act of 1985.

''(11) The term 'Director' means the Director of the Office of Management and Budget.

''(12) The term 'administrative costs' means costs related to program management activities, but does not include essential preservation expenses.

''(13) The term 'essential preservation expenses' means servicing and other costs that are essential to preserve the value of loan assets or collateral.

''SEC. 503. OMB AND CBO ANALYSIS, COORDINATION, AND REVIEW.

''(a) IN GENERAL.—For the executive branch, the Director shall be responsible for coordinating the estimates required by this title. The Director shall consult with the agencies that administer direct loan or loan guarantee programs.

''(b) DELEGATION.—The Director may delegate to agencies authority to make estimates of costs. The delegation of authority shall be based upon written guidelines, regulations, or criteria consistent with the definitions in this title.

''(c) COORDINATION WITH THE CONGRESSIONAL BUDGET OFFICE.—In developing estimation guidelines, regulations, or criteria to be used by Federal agencies, the Director shall consult with the Director of the Congressional Budget Office.

''(d) IMPROVING COST ESTIMATES.—The Director and the Director of the Congressional Budget Office shall coordinate the development of more accurate data on historical performance and prospective risk of direct loan and loan guarantee programs. They shall annually review the performance of

outstanding direct loans and loan guarantees to improve estimates of costs. The Office of Management and Budget and the Congressional Budget Office shall have access to all agency data that may facilitate the development and improvement of estimates of costs.

''(e) HISTORICAL CREDIT PROGRAMS COSTS.—The Director shall review, to the extent possible, historical data and develop the best possible estimates of adjustments that would convert aggregate historical budget data to credit reform accounting.

''SEC. 504. BUDGETARY TREATMENT.

''(a) PRESIDENT'S BUDGET.—Beginning with fiscal year 2017, the President's budget shall reflect the costs of direct loan and loan guarantee programs. The budget shall also include the planned level of new direct loan obligations or loan guarantee commitments associated with each appropriations request. For each fiscal year within the five-fiscal year period beginning with fiscal year 2017, such budget shall include, on an agency-by-agency basis, subsidy estimates and costs of direct loan and loan guarantee programs with and without the risk component.

''(b) APPROPRIATIONS REQUIRED.—Notwithstanding any other provision of law, new direct loan obligations may be incurred and new loan guarantee commitments may be made for fiscal year 2017 and thereafter only to the extent that—

''(1) new budget authority to cover their costs is provided in advance in an appropriation Act;

''(2) a limitation on the use of funds otherwise available for the cost of a direct loan or loan guarantee program has been provided in advance in an appropriation Act; or

''(3) authority is otherwise provided in appropriation Acts.

''(c) EXEMPTION FOR DIRECT SPENDING PROGRAMS.—Subsections (b) and (e) shall not apply to—

''(1) any direct loan or loan guarantee program that constitutes an entitlement (such as the guaranteed student loan program or the veteran's home loan guaranty program);

''(2) the credit programs of the Commodity Credit Corporation existing on the date of enactment of this title; or

''(3) any direct loan (or direct loan obligation) or loan guarantee (or loan guarantee commitment) made by the Federal National Mortgage Association or the Federal Home Loan Mortgage Corporation.

''(d) BUDGET ACCOUNTING.—

''(1) The authority to incur new direct loan obligations, make new loan guarantee commitments, or modify outstanding direct loans (or direct loan obligations) or loan guarantees (or loan guarantee commitments) shall constitute new budget authority in an amount equal to the cost of the direct loan or loan guarantee in the fiscal year in which definite authority becomes available or indefinite authority is used. Such budget authority shall constitute an obligation of the program account to pay to the financing account.

''(2) The outlays resulting from new budget authority for the cost of direct loans or loan guarantees described in paragraph (1) shall be paid from the program account into the financing account and recorded in the fiscal year in which the direct loan or the guaranteed loan is disbursed or its costs altered.

''(3) All collections and payments of the financing accounts shall be a means of financing.

''(e) MODIFICATIONS.—An outstanding direct loan (or direct loan obligation) or loan guarantee (or loan guarantee commitment) shall not be modified in a manner that increases its costs unless budget authority for the additional cost has been provided in advance in an appropriation Act.

''(f) REESTIMATES.—When the estimated cost for a group of direct loans or loan guarantees for a given program made in a single fiscal year is re-estimated in a subsequent year, the difference between the reestimated cost and the previous cost estimate shall be displayed as a distinct and separately identified subaccount in the program account as a change in program costs and a change in net interest. There is hereby provided permanent indefinite authority for these re-estimates.

''(g) ADMINISTRATIVE EXPENSES.—All funding for an agency's administrative costs associated with a direct loan or loan guarantee program shall be displayed as distinct and separately identified subaccounts within the same budget account as the program's cost.

''SEC. 505. AUTHORIZATIONS.

''(a) AUTHORIZATION FOR FINANCING ACCOUNTS.—In order to implement the accounting required by this title, the President is authorized to establish such non-budgetary accounts as may be appropriate.

''(b) TREASURY TRANSACTIONS WITH THE FINANCING ACCOUNTS.—

''(1) IN GENERAL.—The Secretary of the Treasury shall borrow from, receive from, lend to, or pay to the financing accounts such amounts as may be appropriate. The Secretary of the Treasury may prescribe forms and denominations, maturities, and terms and conditions for the transactions described in the preceding sentence, except that the rate of interest charged by the Secretary on lending to financing accounts (including amounts treated as lending to financing accounts by the Federal Financing Bank (hereinafter in this subsection referred to as the 'Bank') pursuant to section 405(b)) and the rate of interest paid to financing accounts on uninvested balances in financing accounts shall be the same as the rate determined pursuant to section 502(5)(G).

''(2) LOANS.—For guaranteed loans financed by the Bank and treated as direct loans by a Federal agency pursuant to section 406(b)(1), any fee or interest surcharge (the amount by which the interest rate charged exceeds the rate determined pursuant to section 502(5)(G) that the Bank charges to a private borrower pursuant to section 6(c) of the Federal Financing Bank Act of 1973 shall be considered a cash flow to the Government for the purposes of determining the cost of the direct loan pursuant to section 502(5). All such amounts shall be credited to the appropriate financing account.

''(3) REIMBURSEMENT.—The Bank is authorized to require reimbursement from a Federal agency to cover the administrative expenses of the Bank that are attributable to the direct loans financed for that agency. All such payments by an agency shall be considered administrative expenses subject to section 504(g). This subsection shall apply to transactions related to direct loan obligations or loan guarantee commitments made on or after October 1, 1991.

''(4) AUTHORITY.—The authorities provided in this subsection shall not be construed to supersede or override the authority of the head of a Federal agency to administer and operate a direct loan or loan guarantee program.

''(5) TITLE 31.—All of the transactions provided in the subsection shall be subject to the provisions of subchapter II of chapter 15 of title 31, United States Code.

''(6) TREATMENT OF CASH BALANCES.—Cash balances of the financing accounts in excess of current requirements shall be maintained in a form of uninvested funds and the Secretary of the Treasury shall pay interest on these funds. The Secretary of the Treasury shall charge (or pay if the amount is negative) financing accounts an amount equal to the risk component for a direct loan or loan guarantee, or modification thereof. Such amount received by the Secretary of the Treasury shall be a means of financing and shall not be considered a cash flow of the Government for the purposes of section 502(5).

''(c) AUTHORIZATION FOR LIQUIDATING ACCOUNTS.—(1) Amounts in liquidating accounts shall be available only for payments resulting from direct loan obligations or loan guarantee commitments made prior to October 1, 1991, for—

''(A) interest payments and principal repayments to the Treasury or the Federal Financing Bank for amounts borrowed;

''(B) disbursements of loans;

''(C) default and other guarantee claim payments;

''(D) interest supplement payments;

''(E) payments for the costs of foreclosing, managing, and selling collateral that are capitalized or routinely deducted from the proceeds of sales;

''(F) payments to financing accounts when required for modifications;

''(G) administrative costs and essential preservation expenses, if—

''(i) amounts credited to the liquidating account would have been available for administrative costs and essential preservation expenses under a provision of law in effect prior to October 1, 1991; and

''(ii) no direct loan obligation or loan guarantee commitment has been made, or any modification of a direct loan or loan guarantee has been made, since September 30, 1991; or

''(H) such other payments as are necessary for the liquidation of such direct loan obligations and loan guarantee commitments.

''(2) Amounts credited to liquidating accounts in any year shall be available only for payments required in that year. Any unobligated balances in liquidating accounts at the end of a fiscal year shall be transferred to miscellaneous receipts as soon as practicable after the end of the fiscal year.

''(3) If funds in liquidating accounts are insufficient to satisfy obligations and commitments of such accounts, there is hereby provided permanent, indefinite authority to make any payments required to be made on such obligations and commitments.

''(d) REINSURANCE.—Nothing in this title shall be construed as authorizing or requiring the purchase of insurance or reinsurance on a direct loan or loan guarantee from private insurers. If any such reinsurance for a direct loan or loan guarantee is authorized, the cost of such insurance and any recoveries to the Government shall be included in the calculation of the cost.

''(e) ELIGIBILITY AND ASSISTANCE.—Nothing in this title shall be construed to change the authority or the responsibility of a Federal agency to determine the terms and conditions of eligibility for, or the amount of assistance provided by a direct loan or a loan guarantee.

''SEC. 506. TREATMENT OF DEPOSIT INSURANCE AND AGENCIES AND OTHER INSURANCE PROGRAMS.

''This title shall not apply to the credit or insurance activities of the Federal Deposit Insurance Corporation, National Credit Union Administration, Resolution Trust Corporation, Pension Benefit Guaranty Corporation, National Flood Insurance, National Insurance Development Fund, Crop Insurance, or Tennessee Valley Authority.

"SEC. 507. EFFECT ON OTHER LAWS.

''(a) EFFECT ON OTHER LAWS.—This title shall supersede, modify, or repeal any provision of law enacted prior to the date of enactment of this title to the extent such provision is inconsistent with this title. Nothing in this title shall be construed to establish a credit limitation on any Federal loan or loan guarantee program.

''(b) CREDITING OF COLLECTIONS.—Collections resulting from direct loans obligated or loan guarantees committed prior to October 1, 1991, shall be credited to the liquidating accounts of Federal agencies. Amounts so credited shall be available, to the same extent that they were available prior to the date of enactment of this title, to liquidate obligations arising from such direct loans obligated or loan guarantees committed prior to October 1, 1991, including repayment of any obligations held by the Secretary of the Treasury or the Federal Financing Bank. The unobligated balances of such accounts that are in excess of current needs shall be transferred to the general fund of the Treasury. Such transfers shall be made from time to time but, at least once each year.''.

(b) CONFORMING AMENDMENT.—The table of contents set forth in section 1(b) of the Congressional Budget and Impoundment Control Act of 1974 is amended by striking the items relating to title V and inserting the following:

''TITLE V—FAIR VALUE

''Sec. 500. Short title.
''Sec. 501. Purposes.
''Sec. 502. Definitions.
''Sec. 503. OMB and CBO analysis, coordination, and review.
''Sec. 504. Budgetary treatment.
''Sec. 505. Authorizations.
''Sec. 506. Treatment of deposit insurance and agencies and other insurance programs.
''Sec. 507. Effect on other laws.''.

SEC. ___12. BUDGETARY ADJUSTMENT.

(a) IN GENERAL.—Section 251(b)(1) of the Balanced Budget and Emergency Deficit Control Act of 1985 is amended by adding at the end the following new sentence: ''A change in discretionary spending solely as a result of the amendment to title V of the Congressional Budget Act of 1974 made by the Budget and Accounting Transparency Act of 2014 shall be treated as a change of concept under this paragraph.''.

(b) REPORT.—Before adjusting the discretionary caps pursuant to the authority provided in subsection (a), the Office of Management and Budget shall report to the Committees on the Budget of the House of Representatives and the Senate on the amount of that adjustment, the methodology used in determining the size of that adjustment, and a program-by-program itemization of the components of that adjustment.

(c) SCHEDULE.—The Office of Management and Budget shall not make an adjustment pursuant to the authority provided in subsection (a) sooner than 60 days after providing the report required in subsection (b).

SEC. ___13. EFFECTIVE DATE.

The amendments made by section ___11 shall take effect beginning with fiscal year 2017.

Subtitle B—Budgetary Treatment

SEC. ___21. CBO AND OMB STUDIES RESPECTING BUDGETING FOR COSTS OF FEDERAL INSURANCE PROGRAMS.

Not later than 1 year after the date of enactment of this Act, the Directors of the Congressional Budget Office and of the Office of Management and Budget shall each prepare a study and make recommendations to the Committees on the Budget of the House of Representatives and the Senate as to the feasability of applying fair value concepts to budgeting for the costs of Federal insurance programs.

SEC. ___22. ON-BUDGET STATUS OF FANNIE MAE AND FREDDIE MAC.

Notwithstanding any other provision of law, the receipts and disbursements, including the administrative expenses, of the Federal National Mortgage Association and the Federal Home Loan Mortgage Corporation shall be counted as new budget authority, outlays, receipts, or deficit or surplus for purposes of—

(1) the budget of the United States Government as submitted by the President;

(2) the congressional budget; and

(3) the Balanced Budget and Emergency Deficit Control Act of 1985.

SEC. ___23. EFFECTIVE DATE.

Section ___22 shall not apply with respect to an enterprise (as such term is defined in section 1303 of the Federal Housing Enterprises Financial Safety and Soundness Act of 1992 (12 U.S.C. 4502)) after the date that all of the following have occurred:

(1) The conservatorship for such enterprise under section 1367 of such Act (12 U.S.C. 4617) has been terminated.

(2) The Director of the Federal Housing Finance Agency has certified in writing that such enterprise has repaid to the Federal Government the maximum amount consistent with minimizing total cost to the Federal Government of the financial assistance provided to the enterprise by the Federal Government pursuant to the amendments made by section 1117 of the Housing and Economic Recovery Act of 2008 (Public Law 110–289; 122 Stat. 2683) or otherwise.

(3) The charter for the enterprise has been revoked, annulled, or terminated and the authorizing statute (as such term is defined in such section 1303) with respect to the enterprise has been repealed.

Subtitle C—Budget Review and Analysis

SEC. ___41. CBO AND OMB REVIEW AND RECOMMENDATIONS RESPECTING RECEIPTS AND COLLECTIONS.

Not later than 1 year after the date of enactment of this Act, the Director of the Office of Management and Budget shall prepare a study of the history of offsetting collections against expenditures and the amount of receipts collected annually, the historical application of the budgetary terms ''revenue'', ''offsetting collections'', and ''offsetting receipts'', and review the application of those terms and make recommendations to the Committees on the Budget of the House of Representatives and the Senate of whether such usage should be continued or modified. The Director of the Congressional Budget Office shall review the history and recommendations prepared by the Director of the Office of Management and Budget and shall submit comments and recommendations to such Committees.

SEC. ___42. AGENCY BUDGET JUSTIFICATIONS.

Section 1108 of title 31, United States Code, is amended by inserting at the end the following new subsections:

''(h)(1) Whenever any agency prepares and submits written budget justification materials for any committee of the House of Representatives or the Senate, such agency shall post such budget justification on the same day of such submission on the 'open' page of the public website of the agency, and the Office of Management and Budget shall post such budget justification in a centralized location on its website, in the format developed under paragraph (2). Each agency shall include with its written budget justification the process and methodology the agency is using to comply with the Fair Value Accounting Act of 2014.

''(2) The Office of Management and Budget, in consultation with the Congressional Budget Office and the Government Accountability Office, shall develop and notify each agency of the format in which to post a budget justification under paragraph (1). Such format shall be designed to ensure that posted budget justifications for all agencies—

''(A) are searchable, sortable, and downloadable by the public;

''(B) are consistent with generally accepted standards and practices for machine-discoverability;

''(C) are organized uniformly, in a logical manner that makes clear the contents of a budget justification and relationships between data elements within the budget justification and among similar documents; and

''(D) use uniform identifiers, including for agencies, bureaus, programs, and projects.

''(i)(1) Not later than the day that the Office of Management and Budget issues guidelines, regulations, or criteria to agencies on how to calculate the risk component under the Fair Value Accounting Act of 2014, it shall submit a written report to the Committees on the Budget of the House of Representatives and the Senate containing all such guidelines, regulations, or criteria.

''(2) For fiscal year 2017 and each of the next four fiscal years thereafter, the Comptroller General shall submit an annual report to the Committees on the Budget of the House of Representatives and the Senate reviewing and evaluating the progress of agencies in the implementation of the Fair Value Accounting Act of 2014.

''(3) Such guidelines, regulations, or criteria shall be deemed to be a rule for purposes of section 553 of title 5 and shall be issued after notice and opportunity for public comment in accordance with the procedures under such section.''.

SA 3291. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 108, strike lines 8 through 12 and insert the following:

(e) None of the funds made available in this or any other appropriations Act may be used—

(1) for travel and conference activities that are not in compliance with the policies established in Office of Management and Budget Memorandum M–12–12, Promoting Efficient Spending to Support Agency Operations, issued May 11, 2012; or

(2) to establish or implement a policy that discourages or prohibits the selection of a location for travel, an event, a meeting, or a conference because the location is perceived to be a resort or vacation destination before, on, or after the date of enactment of this Act.

SA 3292. Mr. PAUL submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. None of the funds made available by this Act or any other Act may be used for—

(1) any action by the Federal Deposit Insurance Corporation to classify the sale or manufacture of a firearm or ammunition as an activity involving risk; or

(2) any action by the Department of Justice to discourage the provision or continuation of credit or the processing of payments by any financial institution to a manufacturer, dealer, or importer of firearms or ammunition, based on the fact that the business is a manufacturer, dealer, or importer of firearms or ammunition.

SA 3293. Mr. BROWN submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

In title I of division A, insert after section 110 the following:

SEC. 111. None of the funds appropriated or otherwise made available under this Act may be used to negotiate any trade agreement or treaty with the People's Republic of China unless the President first certifies to Congress that, in the one-year period preceding the certification, the Government of the People's Republic of China has not engaged in the intervention or manipulation of the exchange rate between the renminbi and the United States dollar for the purposes of—

(1) preventing the effective balance of payments adjustments; or

(2) gaining an unfair competitive advantage in international trade.

SA 3294. Mrs. SHAHEEN (for herself, Mr. KIRK, Mr. TOOMEY, Mr. MCCAIN, Ms. AYOTTE, Mr. WARNER, Ms. COLLINS, Mr. PORTMAN, Mr. COATS, and Mrs. FEINSTEIN) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7__. None of the funds appropriated or otherwise made available by this division shall be used to pay the salaries and expenses of personnel of the Department of Agriculture to make nonrecourse loans available to processors of sugarcane or sugar beets under section 156 of the Federal Agriculture Improvement and Reform Act of 1996 (7 U.S.C. 7272) and notwithstanding the provisions of that section, if the gross revenue from sugar of any such processor exceeded $300,000,000 in the previous fiscal year.

SA 3295. Mrs. FEINSTEIN submitted an amendment intended to be proposed by her to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. (a) SHORT TITLE.—This section may be cited as the ''Saving Kids From Dangerous Drugs Act of 2014''.

(b) OFFENSES INVOLVING CONTROLLED SUBSTANCES MARKETED TO MINORS.—Section 401 of the Controlled Substances Act (21 U.S.C. 841) is amended by adding at the end the following:

''(i) OFFENSES INVOLVING CONTROLLED SUBSTANCES MARKETED TO MINORS.—

''(1) UNLAWFUL ACT.—Except as authorized under this title, including paragraph (3), it shall be unlawful for any person at least 18 years of age to—

''(A) knowingly or intentionally manufacture or create a controlled substance listed in schedule I or II that is—

''(i) combined with a beverage or candy product;

''(ii) marketed or packaged to appear similar to a beverage or candy product; or

''(iii) modified by flavoring or coloring; and

''(B) know, or have reasonable cause to believe, that the combined, marketed, packaged, or modified controlled substance will be distributed, dispensed, or sold to a person under 18 years of age.

''(2) PENALTIES.—Except as provided in section 418, 419, or 420, any person who violates paragraph (1) of this subsection shall be subject to—

''(A) an additional term of imprisonment of not more than 10 years for a first offense involving the same controlled substance and schedule; and

''(B) an additional term of imprisonment of not more than 20 years for a second or subsequent offense involving the same controlled substance and schedule.

''(3) EXCEPTIONS.—Paragraph (1) shall not apply to any controlled substance that—

''(A) has been approved by the Secretary under section 505 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 355), if the contents, marketing, and packaging of the controlled substance have not been altered from the form approved by the Secretary; or

''(B) has been altered at the direction of a practitioner who is acting for a legitimate medical purpose in the usual course of professional practice.''.

(c) SENTENCING GUIDELINES.—Pursuant to its authority under section 994 of title 28, United States Code, and in accordance with this section, the United States Sentencing Commission shall review its guidelines and policy statements to ensure that the guidelines provide an appropriate additional penalty increase to the sentence otherwise applicable in Part D of the Guidelines Manual if the defendant was convicted of a violation of section 401(i) of the Controlled Substances Act, as added by subsection (b).

SA 3296. Mrs. FEINSTEIN submitted an amendment intended to be proposed by her to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. EXTRATERRITORIAL DRUG TRAFFICKING ACTIVITY.

(a) POSSESSION, MANUFACTURE OR DISTRIBUTION FOR PURPOSES OF UNLAWFUL IMPORTATIONS.—Section 1009 of the Controlled Substances Import and Export Act (21 U.S.C. 959) is amended—

(1) by redesignating subsections (b) and (c) as subsections (c) and (d), respectively; and

(2) in subsection (a), by striking ''It shall'' and all that follows and inserting the following: ''It shall be unlawful for any person to manufacture or distribute a controlled substance in schedule I or II or flunitrazepam or a listed chemical intending, knowing, or having reasonable cause to believe that such substance or chemical will be unlawfully imported into the United States or into waters within a distance of 12 miles of the coast of the United States.

''(b) It shall be unlawful for any person to manufacture or distribute a listed chemical—

''(1) intending or knowing that the listed chemical will be used to manufacture a controlled substance; and

''(2) intending, knowing, or having reasonable cause to believe that the controlled substance will be unlawfully imported into the United States.''.

(b) TRAFFICKING IN COUNTERFEIT GOODS OR SERVICES.—Chapter 113 of title 18, United States Code, is amended—

(1) in section 2318(b)(2), by striking ''section 2320(e)'' and insertion ''section 2320(f)''; and

(2) in section 2320—

(A) in subsection (a), by striking paragraph (4) and inserting the following:

''(4) traffics in a drug and knowingly uses a counterfeit mark on or in connection with such drug,'';

(B) in subsection (b)(3), in the matter preceding subparagraph (A), by striking ''counterfeit drug'' and inserting ''drug that uses a counterfeit mark on or in connection with the drug''; and

(C) in subsection (f), by striking paragraph (6) and inserting the following:

''(6) the term 'drug' means a drug, as defined in section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321).''.

SA 3297. Mr. TOOMEY (for himself and Mr. CRAPO) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 89, line 20, strike ''$775,000,000'' and insert ''$1,500,000,000''.

SA 3298. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title V of division A, insert the following:

SEC. ____. (a) Notwithstanding any other provision of this Act—

(1) the total amount made available under the heading ''JUVENILE JUSTICE PROGRAMS'' under the heading ''OFFICE OF JUSTICE PROGRAMS'' under the heading ''DEPARTMENT OF JUSTICE'' under title II of this division shall be $259,250,000; and

(2) the amount made available for missing and exploited children programs under paragraph (6) under the heading ''JUVENILE JUSTICE PROGRAMS'' under the heading ''OFFICE OF JUSTICE PROGRAMS'' under the heading ''DEPARTMENT OF JUSTICE'' under title II of this division shall be $69,750,000: *Provided*, That not less than $27,500,000 shall be used for grants to the National Center for Missing and Exploited Children and not less than $30,000,000 shall be used for task force

grants, training, and technical assistance, research and statistics, and administrative costs for the Internet Crimes Against Children Task Force program, of which not less than $1,000,000 shall be used for Internet Crimes Against Children training and technical assistance programs.

(b) Notwithstanding any other provision of this Act, the amount made available under the heading ''PERIODIC CENSUSES AND PROGRAMS'' under the heading ''BUREAU OF THE CENSUS'' under the heading ''DEPARTMENT OF COMMERCE'' in title I of this division shall be $893,244,000.

SA 3299. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. Not later than 90 days after the date of enactment of this Act, each agency that is appropriated funds under this Act shall submit to the Committee on Appropriations and Committee on the Budget of the Senate and the Committee on Appropriations and Committee on the Budget of the House of Representatives a report on—

(1) the total amount of funds the agency spends on advertising on television, radio, Internet websites, blogs, social media, newspapers, magazines, billboards, posters, and brochures;

(2) the amount of funds the agency spends on each form of advertising described in paragraph (1); and

(3) of the amount described in paragraph (1), the amount spent on advertisements to attract job applicants and the amount spent for other advertisement purposes.

SA 3300. Mr. TOOMEY (for himself and Mr. BOOZMAN) submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. None of the funds made available under this Act may be used by the Federal Housing Administration, the Government National Mortgage Association, or the Department of Housing and Urban Development to insure, securitize, or guarantee—

(1) any mortgage that refinances or otherwise replaces a mortgage that a State, municipality, or any other political subdivision of a State seized, took, or otherwise obtained by the exercise of the power of eminent domain; or

(2) any mortgage-backed security collateralized by a mortgage or pool of mortgages described under paragraph (1).

SA 3301. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title VII of division C, add the following:

SEC. 7__. Notwithstanding any other provision of this Act, in the matter under the heading ''AGRICULTURAL PROGRAMS'' of title I—

(1) the amount made available under the heading ''OFFICE OF THE SECRETARY'' shall be reduced by $1,250,000, and not more than $24,061,000 shall be available for Departmental Administration;

(2) the amount made available under the heading ''OFFICE OF THE GENERAL COUNSEL'' shall be reduced by $3,182,500;

(3) the amount made available under the heading ''ECONOMIC RESEARCH SERVICE'' shall be reduced by $3,657,500;

(4) the amount made available under the heading ''NATIONAL AGRICULTURAL STATISTICS SERVICE'' shall be reduced by $8,474,000;

(5) the amount made available under the heading ''SALARIES AND EXPENSES'' under the heading ''AGRICULTURAL RESEARCH SERVICE'' shall be reduced by $8,595,500; and

(6) the amount made available under the heading ''RESEARCH AND EDUCATION ACTIVITIES'' under the heading ''NATIONAL INSTITUTE OF FOOD AND AGRICULTURE'' shall be reduced by $35,542,000, and no funds shall be used for—

(A) supplemental and alternative crops;

(B) aquaculture renters;

(C) sustainable agriculture research and education;

(D) the alfalfa forage and research program;

(E) special research grants for potato research;

(F) special research grants for aquaculture research; or

(G) the organic transition program.

SA 3302. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7____. Notwithstanding any other provision of this division—

(1) the amount made available under the heading ''FOOD FOR PEACE TITLE II GRANTS'' under the heading ''FOREIGN AGRICULTURAL SERVICE'' under the heading ''FOREIGN ASSISTANCE AND RELATED PROGRAMS'' in title V shall be $1,225,900,000;

(2) the amount made available under section 738 for the Emergency Watershed Protection Program shall be $234,528,000; and

(3) the amount made available under section 738 for the Emergency Conservation Program shall be $136,255,000.

SA 3303. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7_____. None of the funds made available by this division may be used to pay the salaries and expenses of any officers or employees of the Department of Agriculture to enter into a contract, memorandum of understanding, or cooperative agreement with, make a grant to, or provide a loan or loan guarantee to, any individual that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the Federal agency responsible for collecting the tax liability, if the officers or employees of the Department of Agriculture are aware of the unpaid tax liability, unless a Federal agency has considered suspension or debarment of the individual and has made a determination that suspension or debarment of the individual is not necessary to protect the interests of the United States.

SA 3304. Mr. HELLER submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7____. None of the funds made available by this Act may be used to pay the salaries and expenses of any officers or employees of the Department of Agriculture to enter into a contract, memorandum of understanding, or cooperative agreement with, make a grant to, or provide a loan or loan guarantee to any individual that was convicted of a felony criminal violation under any Federal law during the 2-year period ending on the date of enactment of this Act, if the officers or employees of the Department of Agriculture are aware of the conviction, unless the officers or employees of the Department of Agriculture have considered suspension or debarment of the individual and made a determination that the prohibition of funds under this section is not necessary to protect the interests of the United States.

SA 3305. Mr. LEE (for himself and Mr. VITTER) submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. None of the funds made available by this Act may be used to implement, administer, or enforce the proposed rule entitled ''Affirmatively Furthering Fair Housing'', published by the Department of Housing and Urban Development in the Federal Register on July 19, 2013 (78 Fed. Reg. 43710; Docket No. FR–5173–P–01).

SA 3306. Mrs. MURRAY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes;

which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7____. Notwithstanding any other provision of this division—

(1) the amount made available under the heading ''OFFICE OF THE SECRETARY'' under the heading ''PRODUCTION, PROCESSING AND MARKETING'' under the heading ''AGRICULTURAL PROGRAMS'' in title I shall be $31,466,000, of which reduction—

(A) $1,800,000 shall be derived from funds made available for the immediate Office of the Secretary;

(B) $9,000,000 shall be derived from funds made available for Departmental Administration;

(C) $1,400,000 shall be derived from funds made available for the Office of the Assistant Secretary for Congressional Relations; and

(D) $2,800,000 shall be derived from funds made available for the Office of Communications;

(2) the amount made available under the heading ''OFFICE OF THE GENERAL COUNSEL'' under the heading ''AGRICULTURAL PROGRAMS'' in title I shall be $32,567,000; and

(3) the amount made available under the heading ''CHILD NUTRITION PROGRAMS'' under the heading ''FOOD AND NUTRITION SERVICE'' under the heading ''DOMESTIC FOOD PROGRAMS'' in title IV shall be $20,527,000,000, of which $30,000,000 shall remain available until expended to carry out section 749(g) of the Agriculture, Rural Development, Food and Drug Administration, and Related Agencies Appropriations Act, 2010 (Public Law 111–80; 123 Stat. 2132).

SA 3307. Mr. MANCHIN submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

Sec._____. Of the funds made available under title VI of division C the heading ''SALARIES AND EXPENSES'' under the heading ''FOOD AND DRUG ADMINISTRATION'' under the heading ''DEPARTMENT OF HEALTH AND HUMAN SERVICES'', $20,000,000 shall not be available for obligation until the Commissioner of Food and Drugs: (1) finalizes the draft guidance entitled ''Guidance for Industry: Abuse-Deterrent Opioids—Evaluation and Labeling'', issued in January 2013; (2) provides to Congress a report detailing the methodology used by the Food and Drug Administration for postmarket tracking of Zohydro and findings as of the date of enactment of this Act; and (3) produces documents responsive to Senator Manchin's letter to the Commissioner of Food and Drugs dated October 9, 2013, relating to conferences of the Initiative on Methods, Measurement, and Pain Assessment in Clinical Trials and Analgesic, Anesthetic, and Addiction Clinical Trial Translations, Innovations, Opportunities, and Networks: *Provided*, That if the Food and Drug Administration fails to meet such conditions by June 30, 2015, such funds shall be made available for obligation to the Food and Drug Administration's Office of Criminal Investigation for the purpose of assisting Federal, State, and local agencies to combat the diversion and illegal sales of controlled substances.

SA 3308. Mr. MURPHY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 220, line 18, strike ''$135,000,000, to remain available until September 30, 2018: *Provided*'' and insert ''$160,000,000, to remain available until September 30, 2018: *Provided*, That of the amounts made available under this heading, all such amounts in excess of $135,000,000 shall be used only for project rental assistance for supportive housing for persons with disabilities under section 811(d)(2) of the Cranston-Gonzalez National Affordable Housing Act: *Provided further*''.

On page 230, line 24, strike ''$250,000,000'' and insert ''$225,000,000''.

SA 3309. Mr. HARKIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 118, between lines 19 and 20, insert the following:

SEC. 105. Not later than one year after the date of the enactment of this Act, the Secretary of Transportation shall promulgate a final rule for all air carriers subject to section 41705 of title 49, United States Code, that requires that, to the maximum extent possible and at the earliest possible date, any visually displayed entertainment programming and information available to passengers on a flight be accessible to individuals with disabilities, including by making available or providing open captioning, closed captioning, and video description, and that any devices delivering individual programming must be capable of being independently operated by individuals with disabilities.

SA 3310. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 212, line 5, strike ''$950,000,000'' and insert ''$700,000,000''.

SA 3311. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 111, line 20, strike ''$550,000,000'' and insert ''$100,000,000''.

SA 3312. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 109, line 14, strike ''$108,000,000'' and insert ''$107,000,000''.

SA 3313. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 161, line 5, strike ''$110,500,000'' and insert ''$105,933,000''.

SA 3314. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 232, strike line 9 and all that follows through page 233, line 23.

SA 3315. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 157, line 24, strike ''$1,390,000,000'' and insert ''$1,190,000,000''.

SA 3316. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 160, after line 22, add the following:

SEC. 154. No Federal funds may be used by the National Railroad Passenger Corporation to subsidize food, beverage, or first class services.

SA 3317. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related

Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 160, after line 22, add the following:

SEC. 154. NO FEDERAL FUNDS MAY BE USED BY THE NATIONAL RAILROAD PASSENGER CORPORATION TO SUBSIDIZE AMTRAK ROUTES THAT OFFER FREE RIDERSHIP, INCLUDING THE AMTRAK RESIDENCY PROGRAM.

SA 3318. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 207, strike line 17 and all that follows through page 208, line 2.

SA 3319. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 227, line 10, strike ''$46,000,000'' and insert ''$40,000,000''.

SA 3320. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 325, line 25, strike ''$900,000,000'' and insert ''$360,000,000''.

On page 326, line 12, strike ''$66,420,000'' and insert ''$9,792,000''.

SA 3321. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 371, strike lines 14 through 16.

SA 3322. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 336, beginning on line 19, strike ''groups;'' and all that follows through line 23, and insert ''groups.''

SA 3323. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7___. None of the funds appropriated or otherwise made available by this Act shall be used to pay the salaries and expenses of personnel to carry out the Quality Samples Program of the Foreign Agricultural Service of the Department of Agriculture.

SA 3324. Mr. FLAKE submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the end of title VII of division ___, add the following:

SEC. ___. None of the funds made available by this Act may be used to pay the salaries and expenses of any officers or employees of the Department of Agriculture or the Federal Crop Insurance Corporation to carry out section 522(b) of the Federal Crop Insurance Act (7 U.S.C. 1522(b)).

SA 3325. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7_____. Section 508(e) of the Federal Crop Insurance Act (7 U.S.C. 1508(e)) is amended by adding at the end the following:

''(9) LIMITATION ON PREMIUM SUBSIDY BASED ON AVERAGE ADJUSTED GROSS INCOME.—

''(A) DEFINITION OF AVERAGE ADJUSTED GROSS INCOME.—In this paragraph, the term 'average adjusted gross income' has the meaning given the term in section 1001D(a) of the Food Security Act of 1985 (7 U.S.C. 1308–3a(a)).

''(B) LIMITATION.—Notwithstanding any other provision of this subtitle and beginning with the 2015 reinsurance year, in the case of any producer that is a person or legal entity that has an average adjusted gross income in excess of $750,000 based on the most recent data available from the Farm Service Agency as of the beginning of the reinsurance year, the total amount of premium subsidy provided with respect to additional coverage under subsection (c), section 508B, or section 508C issued on behalf of the producer for a reinsurance year shall be 15 percentage points less than the premium subsidy provided in accordance with this subsection that would otherwise be available for the applicable policy, plan of insurance, and coverage level selected by the producer.

''(C) APPLICATION.—

''(i) STUDY.—Not later than 1 year after the date of enactment of this paragraph, the Secretary, in consultation with the Government Accountability Office, shall carry out a study to determine the effects of the limitation described in subparagraph (B) on—

''(I) the overall operations of the Federal crop insurance program;

''(II) the number of producers participating in the Federal crop insurance program;

''(III) the level of coverage purchased by participating producers;

''(IV) the amount of premiums paid by participating producers and the Federal Government;

''(V) any potential liability for participating producers, approved insurance providers, and the Federal Government;

''(VI) different crops or growing regions;

''(VII) program rating structures;

''(VIII) creation of schemes or devices to evade the impact of the limitation; and

''(IX) administrative and operating expenses paid to approved insurance providers and underwriting gains and loss for the Federal government and approved insurance providers.

''(ii) EFFECTIVENESS.—The limitation described in subparagraph (B) shall not take effect unless the Secretary determines, through the study described in clause (i), that the limitation would not—

''(I) significantly increase the premium amount paid by producers with an average adjusted gross income of less than $750,000;

''(II) result in a decline in the crop insurance coverage available to producers; and

''(III) increase the total cost of the Federal crop insurance program.''.

SA 3326. Mr. FLAKE submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. __. None of the funds made available by this division may be used to carry out section 209 of the Agricultural Marketing Act of 1946 (7 U.S.C. 1627a).

SA 3327. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7___. None of the funds made available by this Act may be used for the construction, funding, installation, or operation of ethanol blender pumps.

SA 3328. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce

and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7__. None of the funds made available by this Act may be used to carry out the revenue assurance harvest price option program administered by the Secretary of Agriculture.

SA 3329. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 321, line 24, before the period at the end insert ": *Provided*, That the Federal Crop Insurance Corporation may only make premium payments on behalf of producers whose names are made publically available".

SA 3330. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 67, between lines 15 and 16, insert the following:

SEC. 221. (a) In this section, the term "Crime Victims Fund amounts" means the sums described in section 1402(d)(3) of chapter XIV of title II of Public Law 98–473 (42 U.S.C. 10601(d)(3)) that are available for obligation under section 510 of title V of this division.

(b) The Crime Victims Fund amounts—

(1) shall be available for—

(A) the United States Attorneys Offices and the Federal Bureau of Investigation to provide and improve services for the benefit of crime victims in the Federal criminal justice system (as described in 3771 of title 18, United States Code, and section 503 of the Victims' Rights and Restitution Act of 1990 (42 U.S.C. 10607)) through victim coordinators, victims' specialists, and advocates, including for the administrative support of victim coordinators and advocates providing such services; and

(B) a Victim Notification System; and

(2) may not be used for any purpose that is not specific in subparagraph (A) or (B) of paragraph (1).

SA 3331. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 10, beginning on line 13, strike "from" and all that follows through "That" on line 16.

On page 12, line 7, strike "not to exceed" and all that follows through "That" on line 9.

On page 26, line 1, strike "of the" and all that follows through "That"on line 4.

On page 27, line 24, strike "of the" and all that follows through "That" on page 28, line 2.

On page 30, line 18, strike "$6,000" and all that follows through line 19 and insert "$15,000,000 shall".

On page 33, strike lines 7 through 9 and insert "until expended.".

On page 34, line 6, strike "expended and not to" and all that follows through line 8 and insert "expended.".

On page 34, line 20, strike "$36,000" and all that follows through line 21 and insert "$1,000,000 shall be".

On page 36, line 6, strike "$5,400" and all that follows through "exceed" on line 8.

On page 59, strike lines 19 through 24.

On page 108, between lines 12 and 13, insert the following:

SEC. 540. Notwithstanding any other provision of this Act, none of the funds made available under this division may be used for official reception or representation expenses.

SA 3332. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 46, line 15, strike "$5,000,000" and all that follows through "decision-making" on line 16.

SA 3333. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 29, line 20, strike "$12,972,000" and insert "$12,000,000".

SA 3334. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 51, strike lines 15 and 16.

SA 3335. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 23, between lines 8 and 9, insert the following:

SEC. 111. (a) No amount appropriated or otherwise made available by this title under the heading "NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY" may be used to develop or deploy laboratory-to-market strategies that accelerate collaboration and commercialization of Federal technologies.

(b) The amount appropriated or otherwise made available by this title under each heading under the heading "NATIONAL INSTITUTE OF STANDARDS AND TECHNOLOGY" is reduced on a pro rata basis in a manner such that the aggregate amount of such reduction is $6,000,000.

SA 3336. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 23, between lines 8 and 9, insert the following:

SEC. 111. (a) None of the funds appropriated or otherwise made available by this title may be obligated or expended to carry out activities of the SelectUSA program of the International Trade Administration.

(b) The amount appropriated or otherwise made available by this title under the heading "OPERATIONS AND ADMINISTRATION" under the heading "INTERNATIONAL TRADE ADMINISTRATION" is hereby decreased by $15,000,000.

SA 3337. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 5, strike line 6 and all that follows through page 6, line 16.

SA 3338. Mr. VITTER submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. Notwithstanding any other provision of this Act—

(1) no funds shall be made available under the heading "SALARIES AND EXPENSES, COMMUNITY RELATIONS SERVICE" under the heading "LEGAL ACTIVITIES" under the heading "DEPARTMENT OF JUSTICE" under title II of division A of this Act; and

(2) of the amounts made available under the heading "STATE AND LOCAL LAW ENFORCEMENT ASSISTANCE" under the heading "STATE AND LOCAL LAW ENFORCEMENT ACTIVITIES" under the heading "DEPARTMENT OF JUSTICE" under title II of division A of this Act—

(A) the total amount made available for grants, contracts, cooperative agreements,

and other assistance authorized under provisions of law described under such heading shall be $1,162,472,000;

(B) the amount made available for the Edward Byrne Memorial Justice Assistance Grant program shall be $388,972,000; and

(C) the amount made available for a Preventing Violence Against Law Enforcement Officer Resilience and Survivability Initiative (VALOR) shall be $27,297,000.

SA 3339. Mr. HELLER (for himself, Mrs. MCCASKILL, Mrs. GILLIBRAND, Mr. BLUMENTHAL, Mr. GRASSLEY, Mr. RUBIO, Ms. AYOTTE, and Mr. WARNER) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 41, line 15, insert ''including to provide training for campus officials, victim advocates, or campus law enforcement officials who are the initial point of contact for victims of sexual assault,'' after ''campus,''.

SA 3340. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. SAFE COMMUNITIES.

(a) SHORT TITLE.—This section may be cited as the ''Keep Our Communities Safe Act of 2014''.

(b) SENSE OF CONGRESS.—It is the sense of Congress that—

(1) Constitutional rights should be upheld and protected;

(2) Congress intends to uphold the Constitutional principle of due process; and

(3) due process of the law is a right afforded to everyone in the United States.

(c) DETENTION OF DANGEROUS ALIENS DURING REMOVAL PROCEEDINGS.—Section 236 of the Immigration and Nationality Act (8 U.S.C. 1226) is amended—

(1) by striking ''Attorney General'' each place such term appears (except in the second place it appears in subsection (a)) and inserting ''Secretary of Homeland Security'';

(2) in subsection (a)—

(A) in the matter preceding paragraph (1), by inserting ''the Secretary of Homeland Security or'' before ''the Attorney General—''; and

(B) in paragraph (2)(B), by striking ''conditional parole'' and inserting ''recognizance'';

(3) in subsection (b)—

(A) in the subsection heading, by striking ''PAROLE'' and inserting ''RECOGNIZANCE''; and

(B) by striking ''parole'' and inserting ''recognizance'';

(4) in subsection (c)(1), by striking the undesignated matter following subparagraph (D) and inserting the following:

''any time after the alien is released, without regard to whether an alien is released related to any activity, offense, or conviction described in this paragraph; to whether the alien is released on parole, supervised release, or probation; or to whether the alien may be arrested or imprisoned again for the same offense. If the activity described in this paragraph does not result in the alien being taken into custody by any person other than the Secretary, then when the alien is brought to the attention of the Secretary or when the Secretary determines it is practical to take such alien into custody, the Secretary shall take such alien into custody.'';

(5) in subsection (e), by striking ''Attorney General's'' and inserting ''Secretary of Homeland Security's''; and

(6) by adding at the end the following:

''(g) LENGTH OF DETENTION.—

''(1) Notwithstanding any other provision of this section, an alien may be detained under this section for any period, without limitation, except as provided in subsection (i), until the alien is subject to a final order of removal.

''(2) The length of detention under this section shall not affect a detention under section 241.

''(h) ADMINISTRATIVE REVIEW.—

''(1) LIMITATION.—The Attorney General's review of the Secretary's custody determinations under subsection (a) shall be limited to whether the alien may be detained, released on bond (of at least $1,500 with security approved by the Secretary), or released with no bond. Any review involving an alien described in paragraph (2)(D) shall be limited to a determination of whether the alien is properly included in such category.

''(2) CLASSES OF ALIENS.—The Attorney General's shall review the Secretary's custody determinations for the following classes of aliens:

''(A) Aliens in exclusion proceedings.

''(B) Aliens described in sections 212(a)(3) and 237(a)(4).

''(C) Aliens described in subsection (c).

''(D) Aliens in deportation proceedings subject to section 242(a)(2) (as in effect between April 24, 1996 and April 1, 1997).

''(i) RELEASE ON BOND.—

''(1) IN GENERAL.—An alien detained under subsection (a) may seek release on bond. No bond may be granted except to an alien who establishes by clear and convincing evidence that the alien is not a flight risk or a risk to another person or the community.

''(2) CERTAIN ALIENS INELIGIBLE.—No alien detained under subsection (c) may seek release on bond.''.

(d) ALIENS ORDERED REMOVED.—Section 241(a) of the Immigration and Nationality Act (8 U.S.C. 1231(a)) is amended—

(1) by striking ''Attorney General'' each place it appears, except for the first place it appears in paragraph (4)(B)(i), and inserting ''Secretary of Homeland Security'';

(2) in paragraph (1)—

(A) by amending subparagraphs (B) and (C) to read as follows:

''(B) BEGINNING OF PERIOD.—The removal period begins on the latest of—

''(i) the date on which the order of removal becomes administratively final;

''(ii) the date on which the alien is taken into such custody if the alien is not in the custody of the Secretary on the date on which the order of removal becomes administratively final; and

''(iii) the date on which the alien is taken into the custody of the Secretary after the alien is released from detention or confinement if the alien is detained or confined (except for an immigration process) on the date on which the order of removal becomes administratively final.

''(C) SUSPENSION OF PERIOD.—

''(i) EXTENSION.—The removal period shall be extended beyond a period of 90 days and the Secretary may, in the Secretary's sole discretion, keep the alien in detention during such extended period, if—

''(I) the alien fails or refuses to make all reasonable efforts to comply with the removal order, or to fully cooperate with the Secretary's efforts to establish the alien's identity and carry out the removal order, including making timely application in good faith for travel or other documents necessary to the alien's departure or conspires or acts to prevent the alien's removal that is subject to an order of removal;

''(II) a court, the Board of Immigration Appeals, or an immigration judge orders a stay of removal of an alien who is subject to an administratively final order of removal;

''(III) the Secretary transfers custody of the alien pursuant to law to another Federal agency or a State or local government agency in connection with the official duties of such agency; or

''(IV) a court or the Board of Immigration Appeals orders a remand to an immigration judge or the Board of Immigration Appeals, during the time period when the case is pending a decision on remand (with the removal period beginning anew on the date that the alien is ordered removed on remand).

''(ii) RENEWAL.—If the removal period has been extended under clause (i), a new removal period shall be deemed to have begun on the date on which—

''(I) the alien makes all reasonable efforts to comply with the removal order, or to fully cooperate with the Secretary's efforts to establish the alien's identity and carry out the removal order;

''(II) the stay of removal is no longer in effect; or

''(III) the alien is returned to the custody of the Secretary.

''(iii) MANDATORY DETENTION FOR CERTAIN ALIENS.—The Secretary shall keep an alien described in subparagraphs (A) through (D) of section 236(c)(1) in detention during the extended period described in clause (i).

''(iv) SOLE FORM OF RELIEF.—An alien may only seek relief from detention under this subparagraph by filing an application for a writ of habeas corpus in accordance with chapter 153 of title 28, United States Code. No alien whose period of detention is extended under this subparagraph shall have the right to seek release on bond.'';

(3) in paragraph (3)—

(A) in the matter preceding subparagraph (A), by inserting ''or is not detained pursuant to paragraph (6)'' after ''the removal period''; and

(B) by amending subparagraph (D) to read as follows:

''(D) to obey reasonable restrictions on the alien's conduct or activities that the Secretary prescribes for the alien—

''(i) to prevent the alien from absconding;

''(ii) for the protection of the community; or

''(iii) for other purposes related to the enforcement of Federal immigration laws.'';

(4) in paragraph (4)(A), by striking ''paragraph (2)'' and inserting ''subparagraph (B)''; and

(5) by amending paragraph (6) to read as follows:

''(6) ADDITIONAL RULES FOR DETENTION OR RELEASE OF CERTAIN ALIENS.—

''(A) DETENTION REVIEW PROCESS FOR COOPERATIVE ALIENS ESTABLISHED.—

''(i) IN GENERAL.—The Secretary shall establish an administrative review process to determine whether an alien who is not otherwise subject to mandatory detention, who has made all reasonable efforts to comply with a removal order and to cooperate fully with the Secretary of Homeland Security's efforts to establish the alien's identity and carry out the removal order, including making timely application in good faith for travel or other documents necessary to the

alien's departure, and who has not conspired or acted to prevent removal should be detained or released on conditions.

''(ii) DETERMINATION.—The Secretary shall make a determination whether to release an alien after the removal period in accordance with subparagraph (B), which—

''(I) shall include consideration of any evidence submitted by the alien; and

''(II) may include consideration of any other evidence, including—

''(aa) any information or assistance provided by the Secretary of State or other Federal official; and

''(bb) any other information available to the Secretary of Homeland Security pertaining to the ability to remove the alien.

''(B) AUTHORITY TO DETAIN BEYOND REMOVAL PERIOD.—

''(i) IN GENERAL.—The Secretary of Homeland Security may continue to detain an alien for 90 days beyond the removal period (including any extension of the removal period under paragraph (1)(C)). An alien whose detention is extended under this subparagraph shall not have the right to seek release on bond.

''(ii) SPECIFIC CIRCUMSTANCES.—The Secretary of Homeland Security may continue to detain an alien beyond the 90 days authorized under clause (i)—

''(I) until the alien is removed, if the Secretary determines that there is a significant likelihood that the alien—

''(aa) will be removed in the reasonably foreseeable future;

''(bb) would be removed in the reasonably foreseeable future; or

''(cc) would have been removed if the alien had not—

''(AA) failed or refused to make all reasonable efforts to comply with the removal order;

''(BB) failed or refused to cooperate fully with the Secretary's efforts to establish the alien's identity and carry out the removal order, including making timely application in good faith for travel or other documents necessary to the alien's departure; or

''(CC) conspired or acted to prevent removal;

''(II) until the alien is removed, if the Secretary of Homeland Security certifies in writing—

''(aa) in consultation with the Secretary of Health and Human Services, that the alien has a highly contagious disease that poses a threat to public safety;

''(bb) after receipt of a written recommendation from the Secretary of State, that release of the alien is likely to have serious adverse foreign policy consequences for the United States;

''(cc) based on information available to the Secretary of Homeland Security (including classified, sensitive, or national security information, and without regard to the grounds upon which the alien was ordered removed), that there is reason to believe that the release of the alien would threaten the national security of the United States; or

''(dd) that the release of the alien will threaten the safety of the community or any person, conditions of release cannot reasonably be expected to ensure the safety of the community or of any person; and

''(AA) the alien has been convicted of 1 or more aggravated felonies (as defined in section 101(a)(43)(A)) or of 1 or more crimes identified by the Secretary of Homeland Security by regulation, or of 1 or more attempts or conspiracies to commit any such aggravated felonies or such identified crimes, if the aggregate term of imprisonment for such attempts or conspiracies is at least 5 years; or

''(BB) the alien has committed 1 or more crimes of violence (as defined in section 16 of title 18, United States Code, but not including a purely political offense) and, because of a mental condition or personality disorder and behavior associated with that condition or disorder, the alien is likely to engage in acts of violence in the future; or

''(III) pending a certification under subclause (II), if the Secretary of Homeland Security has initiated the administrative review process not later than 30 days after the expiration of the removal period (including any extension of the removal period under paragraph (1)(C)).

''(iii) NO RIGHT TO BOND HEARING.—An alien whose detention is extended under this subparagraph shall not have a right to seek release on bond, including by reason of a certification under clause (ii)(II).

''(C) RENEWAL AND DELEGATION OF CERTIFICATION.—

''(i) RENEWAL.—The Secretary of Homeland Security may renew a certification under subparagraph (B)(ii)(II) every 6 months after providing an opportunity for the alien to request reconsideration of the certification and to submit documents or other evidence in support of that request. If the Secretary does not renew a certification, the Secretary may not continue to detain the alien under subparagraph (B)(ii)(II).

''(ii) DELEGATION.—Notwithstanding section 103, the Secretary of Homeland Security may not delegate the authority to make or renew a certification described in item (bb), (cc), or (dd) of subparagraph (B)(ii)(II) below the level of the Assistant Secretary for Immigration and Customs Enforcement.

''(iii) HEARING.—The Secretary of Homeland Security may request that the Attorney General or the Attorney General's designee provide for a hearing to make the determination described in subparagraph (B)(ii)(II)(dd)(BB).

''(D) RELEASE ON CONDITIONS.—If it is determined that an alien should be released from detention by a Federal court, the Board of Immigration Appeals, or if an immigration judge orders a stay of removal, the Secretary of Homeland Security may impose conditions on release as provided under paragraph (3).

''(E) REDETENTION.—

''(i) IN GENERAL.—The Secretary of Homeland Security, without any limitations other than those specified in this section, may detain any alien subject to a final removal order who is released from custody if—

''(I) removal becomes likely in the reasonably foreseeable future;

''(II) the alien fails to comply with the conditions of release or to continue to satisfy the conditions described in subparagraph (A); or

''(III) upon reconsideration, the Secretary determines that the alien can be detained under subparagraph (B).

''(ii) APPLICABILITY.—This section shall apply to any alien returned to custody pursuant to this subparagraph as if the removal period terminated on the day of the redetention.

''(F) REVIEW OF DETERMINATIONS BY SECRETARY.—A determination by the Secretary under this paragraph shall not be subject to review by any other agency.''.

(e) SEVERABILITY.—If any of the provisions of this section, any amendment made by this section, or the application of any such provision to any person or circumstance, is held to be invalid for any reason, the remainder of this section, the amendments made by this section, and the application of the provisions and amendments made by this section to any other person or circumstance shall not be affected by such holding.

(f) EFFECTIVE DATES.—

(1) APPREHENSION AND DETENTION OF ALIENS.—The amendments made by subsection (c) shall take effect on the date of the enactment of this Act. Section 236 of the Immigration and Nationality Act, as amended by subsection (c), shall apply to any alien in detention under the provisions of such section on or after such date of enactment.

(2) ALIENS ORDERED REMOVED.—The amendments made by subsection (d) shall take effect on the date of the enactment of this Act. Section 241 of the Immigration and Nationality Act, as amended by subsection (d), shall apply to—

(A) all aliens subject to a final administrative removal, deportation, or exclusion order that was issued before, on, or after the date of the enactment of this Act; and

(B) acts and conditions occurring or existing before, on, or after such date of enactment.

SA 3341. Mr. INHOFE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 23, line 19, insert before the period the following: '', and $5,000,000 shall be used by the Attorney General to investigate the release of 36,007 criminal aliens by the Secretary of Homeland Security pending their removal and the 68,000 criminal aliens that United States Immigration and Customs Enforcement encountered, primarily in jails, and chose not to proceed against for removal in 2013''.

SA 3342. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. No funds made available under this Act under the heading ''COMMUNITY ORIENTED POLICING SERVICES'' may be used by a government entity in violation of section 642(a) of the Illegal Immigration Reform and Immigrant Responsibility Act of 1996 (8 U.S.C. 1373(a)).

SA 3343. Mr. INHOFE submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. (a) Congress makes the followings findings:

(1) The text of the United States Constitution clearly confers upon an individual the right to bear arms.

(2) The United Nations Arms Trade Treaty establishes a separate category of small arms and light weapons to which all Treaty provisions must apply, which could subject firearms lawfully owned by law-abiding United States citizens to international regulation.

(3) The Treaty urges recordkeeping of weapons transferred or sold within the United States, which could result in the creation of a de-facto registry of law-abiding United States citizens who lawfully own firearms.

(b) None of the funds authorized to be appropriated by this Act or otherwise made available for fiscal year 2015 or any fiscal year thereafter for the Department of Justice may be obligated or expended to implement the Arms Trade Treaty, or to make any change to existing programs, projects, or activities as approved by Congress in furtherance of, pursuant to, or otherwise to implement the Arms Trade Treaty, unless the Arms Trade Treaty has been signed by the President, received the advice and consent of the Senate, and has been the subject of implementing legislation by Congress.

SA 3344. Mrs. FISCHER (for herself and Mr. RUBIO) submitted an amendment intended to be proposed by her to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ___. PREVENTING REGULATORY OVERREACH TO ENHANCE CARE TECHNOLOGY.

(a) FINDINGS; SENSE OF CONGRESS.—

(1) FINDINGS.—Congress finds as follows:

(A) The mobile health and mobile application economy was created in the United States and is now being exported globally, with the market expected to exceed $26,000,000,000 by 2017.

(B) The United States mobile application economy is responsible for nearly 500,000 new jobs in the United States.

(C) Consumer health information technologies, including smart phones and tablets, have the potential to transform health care delivery through reduced systemic costs, improved patient safety, and better clinical outcomes.

(D) Clinical and health software innovation cycles evolve and move faster than the existing regulatory approval processes.

(E) Consumers and innovators need a new risk-based framework for the oversight of clinical and health software that improves on the framework of the Food and Drug Administration.

(F) A working group convened jointly by the Food and Drug Administration, the Federal Communications Commission, and the Office of the National Coordinator for Health Information Technology identified in a report that there are several major barriers to the effective regulation of health information technology that cannot be alleviated without changes to existing law.

(2) SENSE OF CONGRESS.—It is the sense of Congress that—

(A) the President and Congress must intervene to facilitate interagency coordination across regulators that focuses agency efforts on fostering health information technology and mobile health innovation while better protecting patient safety, improving health care, and creating jobs in the United States;

(B) the President and the Congress should work together to develop and enact legislation that establishes a risk-based regulatory framework for such clinical software and health software that reduces regulatory burdens, fosters innovation, and, most importantly, improves patient safety;

(C) The National Institute of Standards and Technology should be the Federal agency that has oversight over technical standards used by clinical software; and

(D) The National Institute of Standards and Technology, in collaboration with the Federal Communications Commission, the National Patient Safety Foundation, and the Office of the National Coordinator for Health Information Technology, should work on next steps, beyond current oversight efforts, regarding health information technology, such as collaborating with nongovernmental entities to develop certification processes and to promote best practice standards.

(b) CLINICAL SOFTWARE AND HEALTH SOFTWARE.—

(1) DEFINITIONS.—Section 201 of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321) is amended by adding at the end the following:

''(ss)(1) The term 'clinical software' means clinical decision support software or other software (including any associated hardware and process dependencies) intended for human or animal use that—

''(A) captures, analyzes, changes, or presents patient or population clinical data or information and may recommend courses of clinical action, but does not directly change the structure or any function of the body of man or other animals; and

''(B) is intended to be marketed for use only by a health care provider in a health care setting.

''(2) The term 'health software' means software (including any associated hardware and process dependencies) that is not clinical software and—

''(A) that captures, analyzes, changes, or presents patient or population clinical data or information;

''(B) that supports administrative or operational aspects of health care and is not used in the direct delivery of patient care; or

''(C) whose primary purpose is to act as a platform for a secondary software, to run or act as a mechanism for connectivity, or to store data.

''(3) The terms 'clinical software' and 'health software' do not include software—

''(A) that is intended to interpret patient-specific device data and directly diagnose a patient or user without the intervention of a health care provider;

''(B) that conducts analysis of radiological or imaging data in order to provide patient-specific diagnostic and treatment advice to a health care provider;

''(C) whose primary purpose is integral to the function of a drug or device; or

''(D) that is a component of a device.''.

(2) PROHIBITION.—Subchapter A of chapter V of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 351 et seq.) is amended by adding at the end the following:

''SEC. 524B. CLINICAL SOFTWARE AND HEALTH SOFTWARE.

''Clinical software and health software shall not be subject to regulation under this Act.''.

(c) EXCLUSION FROM DEFINITION OF DEVICE.—Section 201(h) of the Federal Food, Drug, and Cosmetic Act (21 U.S.C. 321(h)) is amended by adding at the end ''The term 'device' does not include clinical software or health software.''.

SA 3345. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

INTERNET GOVERNANCE AND DOMAIN NAME SYSTEM OVERSIGHT

SEC. _____. None of the amounts made available under this Act may be used by the National Telecommunications and Information Administration to plan for or implement any change to—

(1) the contract between the United States Government and the Internet Corporation for Assigned Names and Numbers to carry out the Internet Assigned Numbers Authority functions; or

(2) the Cooperative Agreement between the United States Government and VeriSign to perform root zone management functions.

SA 3346. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place in title II of division A, insert the following:

SEC. ____. The Department of Justice may not use any funds to bring suit based on disparate impact against a State or local school choice program, including a charter school program, or a school voucher, tax credit, or scholarship program that involves students who attend a private elementary school or secondary school.

SA 3347. Mr. CRUZ submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. IRS SPECIAL PROSECUTOR.

(a) APPROPRIATION FOR SPECIAL PROSECUTOR.—There are appropriated to the Attorney General out of any money in the Treasury not otherwise appropriated, $800,000 for the appointment of a special prosecutor, who shall be a United States attorney, to investigate (and prosecute if warranted) actions by the Internal Revenue Service, its officers and employees, and other individuals involved in the targeting of groups that applied for tax exempt status, including the targeting of groups the names of which include the terms ''Tea Party'' or ''Patriot''. Amounts appropriated under this subsection may be used to pay salaries and expenses for employees and consultants, including forensic experts to obtain electronic evidence, including recovery of allegedly lost e-mails.

(b) OFFSET.—Notwithstanding any other provision of this Act, the amount appropriated for necessary expenses for information sharing technology, including planning, development, deployment and departmental direction under the heading ''JUSTICE INFORMATION SHARING TECHNOLOGY'' under the heading ''GENERAL ADMINISTRATION'' under the heading ''DEPARTMENT OF JUSTICE'' under title II of division A of this Act shall be $25,042,000.

SA 3348. Ms. CANTWELL (for herself and Mrs. MURRAY) submitted an amendment intended to be proposed by her to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other

purposes; which was ordered to lie on the table; as follows:

At the end of title VII of division C, add the following:

SEC. 7____. Notwithstanding any other provision of this Act, the amount made available for fiscal year 2015 to carry out section 4213 of the Agricultural Act of 2014 (42 U.S.C. 1755b) shall be $2,000,000, and the amount made available under the heading ''AGRICULTURE BUILDINGS AND FACILITIES (INCLUDING TRANSFERS OF FUNDS)'' of title I shall be $62,844,000.

SA 3349. Mr. MERKLEY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 298, line 17, after ''Secretary;'', insert the following: ''not to exceed $3,000,000 may be available for the cost of loans under the rural energy savings program authorized by section 6407 of the Farm Security and Rural Investment Act of 2002 (7 U.S.C. 8107a) and, if the Secretary of Agriculture elects to so use the funds, the Secretary shall promulgate a proposed rule to implement the program not later than 90 days after the date of enactment of this Act;''.

SA 3350. Mr. DONNELLY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 324, line 17, before the period at the end insert '': *Provided further*, That of the amounts made available for the Natural Resources Conservation Service, the Risk Management Agency, and the Farm Service Agency, the Secretary of Agriculture shall use such amounts as are necessary to continue the Interagency Task Force to Harmonize Policies on Cover Crops during fiscal year 2015 to maintain reasonable and effective guidance regarding cover crops and crop insurance that align with evolving cover crop practices''.

SA 3351. Mr. DONNELLY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 307, line 20, before the period at the end, insert '': *Provided further*, That the Secretary of Agriculture, acting through the Director of the National Institute of Food and Agriculture, shall use such sums as are necessary of funds made available for the National Institute of Food and Agriculture to coordinate research efforts to collect information regarding cover crop practices, adoption rates, and effects on soil health and crop yields, and to provide effective and widespread dissemination of the results of the research to agricultural producers through extension and outreach activities''.

SA 3352. Mr. FLAKE (for himself, Mr. RISCH, Mr. MORAN, Mr. ROBERTS, and Mr. MCCAIN) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. _____. (a) The Senate finds the following:

(1) On May 14, 2013, the Treasury Inspector General for Tax Administration released the audit report, ''Inappropriate Criteria Were Used to Identify Tax-Exempt Applications for Review,'' detailing the inappropriate targeting of social welfare organizations by the Internal Revenue Service (referred to in this section as the ''IRS'').

(2) There are on-going Congressional investigations of the inappropriate targeting by the IRS of social welfare organizations that necessitate the prompt sharing of all requested documents.

(3) On June 13, 2014, the IRS disclosed that a computer failure reportedly resulted in a loss of emails sent or received by former IRS Exempt Organizations Director Lois Lerner for the period between January 1, 2009, and April 2011.

(4) On June 16, 2014, it was exposed that the emails of 6 other IRS employees involved in the inappropriate targeting were also reportedly unrecoverable.

(5) A thorough investigation of the inappropriate targeting of social welfare organizations by the IRS is essential to ensure future confidence in the integrity of the United States tax administration.

(b) It is the sense of the Senate that—

(1) the Commissioner of the IRS and other Administration officials involved in the investigation of the inappropriate targeting by the IRS of social welfare organizations should provide full cooperation to the investigation; and

(2) the on-going bipartisan Senate Finance Committee investigation should be encouraged to include efforts to uncover details related to the loss of emails and the subsequent discovery and reporting of such loss.

SA 3353. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 387, after line 23, add the following:

SEC. 7____. None of the funds made available under this division for the Agricultural Research Service may be used to continue to carry out extramural research projects, or to operate research laboratories, that have been identified for termination by the Secretary of Agriculture.

SA 3354. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 357, strike line 16 and all that follows through page 359, line 12, and insert the following:

SEC. 702. Notwithstanding any other provision of this division, the Secretary of Agriculture shall transfer unobligated balances of discretionary funds appropriated under this division or any other available unobligated discretionary balances of the Department of Agriculture to the general fund of the Treasury for the purpose of debt reduction.

SA 3355. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 156, between lines 19 and 20, insert the following:

SEC. 1____. None of the funds made available by this division shall be used to administer the National Roadside Survey of the National Highway Traffic Safety Administration.

SA 3356. Mr. COBURN (for himself and Mrs. MCCASKILL) submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

After section 110 of title I of division A, insert the following:

SEC. 111. No amount appropriated or otherwise made available by this Act may be used to purchase or pay for any good or service offered by the National Technical Information Service that is otherwise available for free or at a lower cost from a different source.

SA 3357. Mr. COBURN submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. 301. (a) None of the funds made available by this Act may be used to carry out the functions of the Political Science Program in the Division of Social and Economic Sciences of the Directorate for Social, Behavioral, and Economic Sciences of the National Science Foundation, except for research projects that the Director of the National Science Foundation certifies as promoting national security or the economic interests of the United States.

(b) The Director of the National Science Foundation shall publish a statement of the reason for each certification made pursuant to subsection (a) on the public website of the National Science Foundation.

(c) Any unobligated balances for the Political Science Program described in subsection (a) may be provided for other scientific research and studies that do not duplicate those being funded by other Federal agencies.

SA 3358. Mr. COBURN submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. None of the funds made available for specialty crop block grants under section 101 of the Specialty Crops Competitiveness Act of 2004 (7 U.S.C. 1621 note; Public Law 108-465), the provision of value-added agricultural product market development grants to producers under section 231(b) of the Agricultural Risk Protection Act of 2000 (7 U.S.C. 1632a(b)), and the market access program established under section 203 of the Agricultural Trade Act of 1978 (7 U.S.C. 5623) may be used—

(1) to sponsor field days at, or attend, amusement parks or festivals;

(2) to support pageants or tours by pageant winners;

(3) for the production of television shows;

(4) for animal spa products;

(5) for cat or dog food or other pet food;

(6) for wine tastings, beer festivals or beer award contests, beer tasting or beer school seminars, and tastings or seminars for alcohol of any kind (including whiskeys and distilled spirits); and

(7) for award shows and contests.

SA 3359. Mr. PAUL (for himself and Mr. MCCONNELL) submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. Before applying the provisions for awarding discretionary grants for capital investments in surface transportation infrastructure set forth under the heading ''NATIONAL INFRASTRUCTURE INVESTMENTS'', the Secretary of Transportation, shall prioritize the distribution of such funding by ranking the projects for which such grants are sought, in descending order, based upon the following criteria:

(1) The extent of the positive impact the project will have on 1 or more interstate highways.

(2) The project will repair or replace a road or bridge that—

(A) has been determined to be structurally or functionally obsolete; and

(B) poses a risk to public safety.

(3) The extent of the positive impact of the project on interstate commerce, as evidenced by an examination of economic indicators, including—

(A) the impact of the project on shipping and trucking commerce;

(B) the project's nexus to other States; and

(C) the availability of alternative routes.

(4) The difference between—

(A) the estimated volume of traffic that will utilize the road or bridge after the project is completed; and

(B) the volume of traffic that the existing road or bridge was designed to accommodate.

(5) The national significance of the project, rather than the regional significance of the project.

(6) The ability of the State or local government to provide additional funding for the project.

SA 3360. Mr. MCCAIN submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

Beginning on page 317, line 22, strike '': *Provided further*,'' and all that follows through ''on Appropriations'' on page 318, line 3.

SA 3361. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 23, line 19, insert '': *Provided*, That $38,333,333 of the amount appropriated under this heading may not be expended until after the Attorney General produces and disseminates, through appropriate channels in the United States, El Salvador, Guatemala, and Honduras, a public service announcement video that features the President of the United States explaining that current and recent illicit border crossers, including unaccompanied alien children, are not covered by, and will not receive consideration of, deferred action for childhood arrivals, and any legislative remedy Congress approves to deal with aliens who entered the United States illegally as children will likely require the alien to have resided in the United States for an extended period'' before the period at the end.

SA 3362. Mr. CASEY submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 346, line 4, insert before the period at the end the following: ''*Provided further*, That of the funds made available under this heading, $1,000,000 may be used to provide necessary expenses of the Administrator of the Food and Nutrition Service to allow a veteran to be considered disabled for purposes of benefits under the supplemental nutrition assistance program during any period in which the veteran has filed a claim for disability compensation with the Secretary of Veterans Affairs and the claim has not yet been adjudicated by the Secretary''.

SA 3363. Mr. UDALL of Colorado (for himself and Mr. BENNET) submitted an amendment intended to be proposed by him to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

At the appropriate place, insert the following:

SEC. ____. UNUSED EARMARKS.

(a) SHORT TITLE.—This section may be cited as the ''Orphan Earkmarks Act''.

(b) DEFINITIONS.—In this section—

(1) the term ''agency'' has the meaning given the term ''Executive agency'' under section 105 of title 5, United States Code;

(2) the term ''earmark'' means—

(A) a congressionally directed spending item, as defined in rule XLIV of the Standing Rules of the Senate; and

(B) a congressional earmark, as defined in rule XXI of the Rules of the House of Representatives; and

(3) the term ''unused DOT earmark'' means an earmark of funds provided for the Department of Transportation as to which more than 90 percent of the dollar amount of the earmark of funds remains available for obligation at the end of the 9th fiscal year following the fiscal year during which the earmark was made available.

(c) RESCISSIONS.—

(1) FEDERAL RAILROAD ADMINISTRATION.—

(A) SAFETY AND OPERATIONS ACCOUNT.—Of the unobligated balances available in the Federal Railroad Administration's Safety and Operations Account, $6,000,000 is hereby rescinded.

(B) RAILROAD RESEARCH AND DEVELOPMENT ACCOUNT.—Of the unobligated balances available in the Federal Railroad Administration's Railroad Research and Development Account, $7,765,000 is hereby rescinded.

(2) RESCISSIONS OF UNUSED DOT EARMARKS.—Except as provided in paragraph (3), effective on October 1 of the 10th fiscal year after funds under an unused DOT earmark are made available, all unobligated amounts made available under the unused DOT earmark are rescinded.

(3) EXCEPTION.—The Secretary of Transportation may delay the rescission of amounts made available under an unused DOT earmark for 1 year if the Secretary determines that an additional obligation of the earmark is likely to occur during the 10th fiscal year after funds under the unused DOT earmark are made available.

(d) GRANTS AUTHORIZED.—

(1) IN GENERAL.—The Secretary of Transportation is authorized to award grants, on a competitive basis, to local governments for the purpose of establishing quiet zones in accordance with appendix C to part 222 of title 49, Code of Federal Regulations.

(2) FUNDING.—Of the funds made available as a result of the rescissions under subsection (c), $38,765,000 shall be made available to carry out the grant program authorized under paragraph (1).

(e) DEFICIT REDUCTION.—Other than the amount set aside for the grant program under subsection (d), all of the amounts made available as a result of the rescissions under subsection (c) shall be dedicated for the sole purpose of deficit reduction.

(f) AGENCY-WIDE IDENTIFICATION AND REPORT.—

(1) AGENCY IDENTIFICATION.—Each agency shall identify and submit to the Director of

the Office of Management and Budget an annual report regarding every project of the agency for which—

(A) amounts are made available under an earmark; and

(B) as of the end of a fiscal year, unobligated balances remain available.

(2) ANNUAL REPORT.—The Director of the Office of Management and Budget shall submit to Congress and publically post on the website of the Office of Management and Budget an annual report that includes—

(A) a listing and accounting for earmarks for which unobligated balances remain available, summarized by agency, which shall include, for each earmark—

(i) the amount of funds made available under the original earmark;

(ii) the amount of the unobligated balances that remain available;

(iii) the fiscal year through which the funds are made available, if applicable; and

(iv) recommendations and justifications for whether the earmark should be rescinded or retained in the next fiscal year;

(B) the number of rescissions resulting from this section and the annual savings resulting from this section for the previous fiscal year; and

(C) a listing and accounting for earmarks provided for the Department of Transportation scheduled to be rescinded under subsection (c)(2) at the end of the fiscal year during which the report is submitted.

SA 3364. Mr. BLUMENTHAL (for himself and Mr. MURPHY) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 278, line 17, strike ''$103,981,000'' and insert ''$108,000,000''.

SA 3365. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle H of title X, add the following:

SEC. _____. PILOT PROGRAM ON PROVISION OF CERTAIN INFORMATION TO STATE VETERANS AGENCIES TO FACILITATE THE TRANSITION OF MEMBERS OF THE ARMED FORCES FROM MILITARY SERVICE TO CIVILIAN LIFE.

(a) PILOT PROGRAM REQUIRED.—Commencing not later than 90 days after the date of the enactment of this Act, the Secretary of Defense shall carry out a pilot program to assess the feasibility and advisability of providing the information described in subsection (b) on members of the Armed Forces who are separating from the Armed Forces to State veterans agencies as a means of facilitating the transition of members of the Armed Forces from military service to civilian life.

(b) COVERED INFORMATION.—The information described in this subsection with respect to a member is as follows:

(1) Department of Defense Form DD 214.

(2) A personal email address.

(3) A personal telephone number.

(4) A mailing address.

(c) VOLUNTARY PARTICIPATION.—The participation of a member in the pilot program shall be at the election of the member.

(d) FORM OF PROVISION OF INFORMATION.—Information shall be provided to State veterans agencies under the pilot program in digitized electronic form.

(e) USE OF INFORMATION.—Information provided to State veterans agencies under the pilot program may be shared by such agencies with appropriate county veterans service offices in such manner and for such purposes as the Secretary shall specify for purposes of the pilot program.

(f) REPORT.—Not later than 450 days after the date of the enactment of this Act, the Secretary shall submit to Congress a report on the pilot program. The report shall include a description of the pilot program and such recommendations, including recommendations for continuing or expanding the pilot program, as the Secretary considers appropriate in light of the pilot program.

SA 3366. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle H of title X, add the following:

SEC. 1087. DEPARTMENT OF VETERANS AFFAIRS STUDY ON MATTERS RELATING TO CLAIMING AND INTERRING UNCLAIMED REMAINS OF VETERANS.

(a) STUDY AND REPORT REQUIRED.—Not later than one year after the date of the enactment of this Act, the Secretary of Veterans Affairs shall—

(1) complete a study on matters relating to the identification, claiming, and interring of unclaimed remains of veterans; and

(2) submit to Congress a report on the findings of the Secretary with respect to the study required under paragraph (1).

(b) MATTERS STUDIED.—The matters studied under subsection (a)(1) shall include the following:

(1) Determining the scope of issues relating to unclaimed remains of veterans, including an estimate of the number of unclaimed remains of veterans on the day before the date of the enactment of this Act.

(2) Assessing the effectiveness of the procedures of the Department of Veterans Affairs for claiming and interring unclaimed remains of veterans.

(3) Identifying and assessing State and local laws that affect the ability of the Secretary to identify, claim, and inter unclaimed remains of veterans.

(4) Developing recommendations for such legislative or administrative action as the Secretary considers appropriate

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SA 3367. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title XII, add the following:

SEC. 1213. CONTINGENT LIMITATION ON AVAILABILITY OF FUNDS FOR UNITED STATES PARTICIPATION IN JOINT MILITARY EXERCISES WITH EGYPT.

(a) LIMITATION.—None of the funds authorized to be appropriated by this Act may be made used for United States participation in joint military exercises with Egypt if the Government of Egypt abrogates, terminates, or withdraws from the 1979 Egypt-Israel peace treaty signed at Washington, D.C., on March 26, 1979.

SA 3368. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle A of title XII, add the following:

SEC. 1213. SENSE OF CONGRESS ON SUPPORT TO ISRAEL TO ADDRESS IRANIAN THREAT.

It is the sense of Congress that the United States should ensure that Israel, as a critical United States ally, is able to adequately address an existential Iranian nuclear threat, and the Secretary of Defense should seek related opportunities for defense cooperation and partnership on military capabilities where appropriate.

SA 3369. Mr. TOOMEY submitted an amendment intended to be proposed by him to the bill S. 2410, to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes; which was ordered to lie on the table; as follows:

At the end of subtitle H of title X, add the following:

SEC. 1087. CORPORAL MICHAEL J. CRESCENZ DEPARTMENT OF VETERANS AFFAIRS MEDICAL CENTER.

(a) DESIGNATION.—The medical center of the Department of Veterans Affairs located at 3900 Woodland Avenue in Philadelphia, Pennsylvania, shall after the date of the enactment of this Act be known and designated as the ''Corporal Michael J. Crescenz Department of Veterans Affairs Medical Center''.

(b) REFERENCES.—Any reference in any law, regulation, map, document, paper, or other record of the United States to the medical center referred to in subsection (a) shall be considered to be a reference to the Corporal Michael J. Crescenz Department of Veterans Affairs Medical Center.

SA 3370. Mr. HEINRICH (for himself and Mr. UDALL of New Mexico) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 111, line 24, insert ''Indian tribe,'' after ''local government,''.

SA 3371. Mr. HEINRICH (for himself and Mr. UDALL of New Mexico) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 114, line 7, before the period insert the following: '': *Provided further*, That of the funds made available under this heading, not less than 3 percent shall be for grants awarded to Indian tribes (as that term is defined in section 4 of the Indian Self-Determination and Education Assistance Act (25 U.S.C. 450b)) for projects located on or providing access to Indian lands (as that term is defined in section 3 of the Native American Business Development, Trade Promotion, and Tourism Act of 2000 (25 U.S.C. 4302))''.

SA 3372. Mr. DURBIN (for himself, Mrs. BOXER, Mr. HARKIN, Mr. REED, Mr. BLUMENTHAL, Mr. MARKEY, and Mr. BROWN) submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 118, between lines 19 and 20, insert the following:

SEC. 105. Not later than 90 days after the date of the enactment of this Act, the Secretary of Transportation shall issue a final rule pursuant to the notice of proposed rulemaking relating to the use of electronic cigarettes on aircraft published in the Federal Register on September 15, 2011 (76 Fed. Reg. 57,008).

SA 3373. Mr. FLAKE submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 23, line 19, insert '': *Provided*, That $38,333,333 of the amount appropriated under this heading may not be expended until after a public service announcement video is produced by the Federal Government, is disseminated through appropriate channels in the United States, El Salvador, Guatemala, and Honduras, and features the President of the United States explaining that current and recent illicit border crossers, including unaccompanied alien children, are not covered by, and will not receive consideration of, deferred action for childhood arrivals, and any legislation Congress may adopt to provide immigration benefits to aliens who entered the United States illegally as children will likely require the alien to have resided in the United States for an extended period'' before the period at the end.

SA 3374. Mr. RUBIO submitted an amendment intended to be proposed to amendment SA 3244 submitted by Ms. MIKULSKI and intended to be proposed to the bill H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015, and for other purposes; which was ordered to lie on the table; as follows:

On page 118, between lines 19 and 20, insert the following:

SEC. _____. (a)(1) Beginning in fiscal year 2015 and for each subsequent fiscal year, not later than 30 days after the date on which the Secretary of Transportation (referred to in this section as the ''Secretary'') selects a project for funding under the heading ''NATIONAL INFRASTRUCTURE INVESTMENTS'', the Secretary shall submit to the Committee on Environment and Public Works of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives a report that describes the reasons for selecting the project, based on the criteria set forth in the document entitled ''Notice of Funding Availability for the Department of Transportation's National Infrastructure Investments Under the Consolidated and Further Continuing Appropriations Act, 2013'' and published at 78 Fed. Reg. 24786 (April 26, 2013).

(2) The report submitted under paragraph (1) shall specify each criteria established by the Secretary under subsection (a) that the project meets.

(3) The Secretary shall make available on the website of the Department of Transportation the report submitted under paragraph (1).

(4) This subsection applies to all projects funded under the heading ''NATIONAL INFRASTRUCTURE INVESTMENTS'' that the Secretary selects after January 1, 2014.

(b) Beginning in fiscal year 2015 and for each subsequent fiscal year, not later than 1 year after the date on which the Secretary selects projects for funding under the heading ''NATIONAL INFRASTRUCTURE INVESTMENTS'', the Inspector General of the Department of Transportation shall—

(1) conduct an assessment of the establishment, solicitation, selection, and justification process with respect to the funding of projects under the heading ''NATIONAL INFRASTRUCTURE INVESTMENTS''; and

(2) submit to the Committee on Environment and Public Works of the Senate and the Committee on Transportation and Infrastructure of the House of Representatives a final report that describes the findings of the Inspector General of the Department of Transportation with respect to the assessment conducted under paragraph (1).

NOTICES OF HEARINGS

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. HARKIN. Mr. President, I wish to announce that the Committee on Health, Education, Labor, and Pensions will meet in executive session on Wednesday, June 25, 2014, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building to mark-up S. 2449, Autism Collaboration, Accountability, Research, Education and Support Act, Autism CARES Act, of 2014; S. , a bill to amend the Employee Retirement Income Security Act of 1974; the nomination of William D. Adams, of Maine, to serve as Chairperson of the National Endowment for the Humanities; and the nomination of Robert M. Gordon, of the District of Columbia, to serve as Assistant Secretary for the Office of Planning, Evaluation, and Policy Development, Department of Education; as well as any additional nominations cleared for action.

For further information regarding this meeting, please contact the Committee at (202) 224–5375.

SUBCOMMITTEE ON WATER AND POWER

Ms. LANDRIEU. Mr. President, I would like to announce for the information of the Senate and the public that a hearing has been scheduled before the Subcommittee on Water and Power of the Committee on Energy and Natural Resources. The hearing will be held on Wednesday, June 25, 2014, at 2:30 p.m., in room SD–366 of the Dirksen Senate Office Building in Washington, DC.

The purpose of this hearing will be to hear testimony on the following measure:

S. 1971, to establish an interagency coordination committee or subcommittee with the leadership of the Department of Energy and the Department of the Interior, focused on the nexus between energy and water production, use, and efficiency, and for other purposes.

Because of the limited time available for the hearing, witnesses may testify by invitation only. However, those wishing to submit written testimony for the hearing record should send it to the Committee on Energy and Natural Resources, United States Senate, Washington, DC 20510–6150, or by email to John__Assini@energy.senate.gov.

For further information, please contact Sara Tucker at (202) 224–6224 or John Assini at (202) 224–9313.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. President, I wish to announce that the Committee on Health, Education, Labor, and Pensions will meet on June 26, 2014, at 10 a.m., in room SD–430 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Sexual Assault on Campus: Working to Ensure Student Safety.''

For further information regarding this meeting, please contact Aissa Canchola of the committee staff on (202) 224–2009.

AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON ARMED SERVICES

Mr. CARDIN. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on June 19, 2014, at 9:30 a.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ARMED SERVICES

Mr. CARDIN. Mr. President, I ask unanimous consent that the Committee on Armed Services be authorized to meet during the session of the Senate on June 19, 2014, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON ENERGY AND NATURAL RESOURCES

Mr. CARDIN. Mr. President, I ask unanimous consent that the Committee on Energy and Natural Resources be authorized to meet during the session of the Senate on June 19, 2014, at 2:30 p.m., in room SD–366 of the Dirkse,n Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. CARDIN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on June 19, 2014, at 11 a.m., to hold a hearing entitled ''Treaties.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON FOREIGN RELATIONS

Mr. CARDIN. Mr. President, I ask unanimous consent that the Committee on Foreign Relations be authorized to meet during the session of the Senate on June 19, 2014, at 2 p.m., to hold a hearing entitled ''CLOSED/TS: Iraq Update.''

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. CARDIN. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on June 19, 2014, at 9:30 a.m., in SD–226 of the Dirksen Senate Office Building, to conduct an executive business meeting.

The PRESIDING OFFICER. Without objection, it is so ordered.

SELECT COMMITTEE ON INTELLIGENCE

Mr. CARDIN. Mr. President, I ask unanimous consent that the Select Committee on Intelligence be authorized to meet during the session of the Senate on June 19, 2014, at 2:30 p.m.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—EXECUTIVE NOMINATIONS

Mr. REID. I ask unanimous consent that on Monday, June 23, 2014, at 5:30 p.m., the Senate proceed to executive session and vote on cloture on Executive Calendar Nos. 779, 780, 781, and 836; further, that if cloture is invoked on any of these nominations, on the next day, Tuesday, June 24, 2014, at 11 a.m., all postcloture time be expired, and the Senate proceed to vote on confirmation of the nominations in the order upon which cloture was invoked; further, that following Senate action on these nominations on Tuesday, the Senate proceed to vote on cloture on Calendar No. 742; further, that there be 2 minutes for debate prior to each vote and all rollcall votes after the first vote in each sequence be 10 minutes in length; further, with respect to the nominations in this agreement, that if any nomination is confirmed, the motions to reconsider be considered made and laid upon the table and the President be immediately notified of the Senate's action.

The PRESIDING OFFICER. Without objection, it is so ordered.

UNANIMOUS CONSENT AGREEMENT—H.R. 803

Mr. REID. I ask unanimous consent that at a time to be determined by me after consultation with Senator MCCONNELL, the HELP Committee be discharged from further consideration of H.R. 803 and the Senate proceed to its consideration; that a Murray-Isakson-Harkin-Alexander substitute amendment, which is at the desk, be considered; that the only other amendments in order be the following amendments to the substitute: Flake, making the appointment and certification of a new local board permissible instead of required; Lee, evaluation report requirement; and managers' technical amendment—that is three amendments; that there be 10 minutes of debate equally divided between the two leaders or their designees on each amendment; that upon the use or yielding back of that time, the Senate proceed to vote in relation to the amendments in the order listed; that no second-degree amendments be in order prior to the votes; that upon disposition, the managers' technical amendment, the substitute amendment, as amended, if amended, be agreed to; the bill, as amended, be read a third time; that there be 10 minutes of debate equally divided between the two leaders or their designees; that upon the use or yielding back of time, the Senate proceed to vote on passage of the bill, as amended; that if the bill is passed, the Murray-Isakson-Harkin-Alexander amendment to the title, which is at the desk, be agreed to; and the motions to consider be considered made and laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

GUN LAKE TRUST LAND REAFFIRMATION ACT

Mr. REID. I ask unanimous consent the Senate proceed to Calendar No. 432, S. 1603.

The PRESIDING OFFICER. The clerk will report the bill by title.

The legislative clerk read as follows:

A bill (S. 1603) to reaffirm that certain land has been taken into trust for the benefit of the Match-E-Be-Nash-She-Wish Band of Pottawatami Indians, and for other purposes.

There being no objection, the Senate proceeded to consider the bill.

Mr. REID. I further ask unanimous consent that the bill be read the third time and passed, and the motion to reconsider be considered made and laid upon the table, with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

The bill (S. 1603) was ordered to be engrossed for a third reading, was read the third time, and passed, as follows:

S. 1603

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Gun Lake Trust Land Reaffirmation Act''.

SEC. 2. REAFFIRMATION OF INDIAN TRUST LAND.

(a) IN GENERAL.—The land taken into trust by the United States for the benefit of the Match-E-Be-Nash-She-Wish Band of Pottawatomi Indians and described in the final Notice of Determination of the Department of the Interior (70 Fed. Reg. 25596 (May 13, 2005)) is reaffirmed as trust land, and the actions of the Secretary of the Interior in taking that land into trust are ratified and confirmed.

(b) NO CLAIMS.—Notwithstanding any other provision of law, an action (including an action pending in a Federal court as of the date of enactment of this Act) relating to the land described in subsection (a) shall not be filed or maintained in a Federal court and shall be promptly dismissed.

(c) RETENTION OF FUTURE RIGHTS.—Nothing in this Act alters or diminishes the right of the Match-E-Be-Nash-She-Wish Band of Pottawatomi Indians from seeking to have any additional land taken into trust by the United States for the benefit of the Band.

MEASURE PLACED ON THE CALENDAR—S. 2491

Mr. REID. Madam President, I understand that S. 2491 is at the desk and due for a second reading.

The PRESIDING OFFICER. The clerk will read the bill by title for the second time.

The legislative clerk read as follows:

A bill (S. 2491) to protect the Medicare program under title XVIII of the Social Security Act with respect to reconciliation involving changes to the Medicare program.

Mr. REID. I object to any further proceedings with respect to this bill.

The PRESIDING OFFICER. Objection is heard.

The bill will be placed on the calendar.

COMMITTEE DISCHARGE AND RETURN—H.R. 4412

Mr. REID. Madam President, I ask unanimous consent that the commerce committee be discharged from further consideration of H.R. 4412 and the Senate agree to the request of the House for the return of the papers with respect to H.R. 4412.

The PRESIDING OFFICER. Without objection, it is so ordered.

SIGNING AUTHORITY

Mr. REID. Madam President, I ask unanimous consent that during the adjournment or recess of the Senate from Thursday, June 19, through Monday, June 23, the majority leader and Senators Rockefeller and Feinstein be authorized to sign duly enrolled bills or joint resolutions.

The PRESIDING OFFICER. Without objection, it is so ordered.

ORDERS FOR MONDAY, JUNE 23, 2014

Mr. REID. Madam President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 2:00 p.m. on Monday, June 23, 2014; that following the prayer and the pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate be in a period of morning business until 5:30 p.m, with Senators permitted to speak therein for up to 10 minutes each; that following morning business, the Senate proceed to executive session under the previous order.

The PRESIDING OFFICER. Without objection, it is so ordered.

PROGRAM

Mr. REID. Madam President, there will be four rollcall votes on Monday at 5:30 p.m.

ADJOURNMENT UNTIL MONDAY, JUNE 23, 2014, AT 2 P.M.

Mr. REID. Madam President, if there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order.

There being no objection, the Senate, at 6:48 p.m., adjourned until Monday, June 23, 2014, at 2 p.m.

NOMINATIONS

Executive nominations received by the Senate:

DEPARTMENT OF JUSTICE

ARTHUR LEE BENTLEY III, OF FLORIDA, TO BE UNITED STATES ATTORNEY FOR THE MIDDLE DISTRICT OF FLORIDA FOR THE TERM OF FOUR YEARS, VICE ROBERT E. O'NEILL, RESIGNED.

THE JUDICIARY

DAVID J. HALE, OF KENTUCKY, TO BE UNITED STATES DISTRICT JUDGE FOR THE WESTERN DISTRICT OF KENTUCKY, VICE CHARLES R. SIMPSON III, RETIRED.

DEPARTMENT OF JUSTICE

DAVID RIVERA, OF TENNESSEE, TO BE UNITED STATES ATTORNEY FOR THE MIDDLE DISTRICT OF TENNESSEE FOR THE TERM OF FOUR YEARS, VICE JERRY E. MARTIN, RESIGNED.

THE JUDICIARY

GREGORY N. STIVERS, OF KENTUCKY, TO BE UNITED STATES DISTRICT JUDGE FOR THE WESTERN DISTRICT OF KENTUCKY, VICE THOMAS B. RUSSELL, RETIRED.

CONFIRMATIONS

Executive nominations confirmed by the Senate June 19, 2014:

DEPARTMENT OF STATE

Brian A. Nichols, of Rhode Island, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador Extraordinary and Plenipotentiary of the United States of America to the Republic of Peru.

DEPARTMENT OF DEFENSE

Christine E. Wormuth, of Virginia, to be Under Secretary of Defense for Policy.

NATIONAL CREDIT UNION ADMINISTRATION

J. Mark McWatters, of Texas, to be a Member of the National Credit Union Administration Board for a term expiring August 2, 2019.

DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT

Gustavo Velasquez Aguilar, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development.

EXTENSIONS OF REMARKS

2014 CONGRESSIONAL AWARDS

HON. JOHN A. BOEHNER

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. BOEHNER. Mr. Speaker, the Congressional Awards recognize four avenues of individual growth—community service, physical fitness, exploration, and personal development—and how the fulfillment of these goals forms balanced and promising young citizens.

In their pursuit of these goals, recipients of the Congressional Awards have gained new skills and greater confidence. For many, these projects will be the cornerstone for future endeavors, further enriching their lives and encouraging others to follow their lead.

The recipients of the 2014 Congressional Awards set the finest example and demonstrate dedication to improving their communities and the Nation as a whole.

On behalf of the U.S. House of Representatives, it is my privilege to recognize the honored recipients of the 2014 Congressional Award Gold Medal—the highest achievement for America's youth:

Nina Alerte, Evie Anderson, Divya Arya, Raja Atluri, Ellie Bakkedahl, Erin Barbeau, Amber Barron, Carolyn Beard, Bryan Bell, Jr., Melissa Benn, Lauren Bernard, Ryker Bierhuizen, Josiah Bierle, Trevor Boice, Kathryn Bolt, Madison Bowden, John Broadhead, Morgan Brownfield, Jon Brownfield Jr., Rebekah Broyles, Anna Bryant, Corey Buckley, Kinley Buckley, Madeleine Burrell.

Benjamin Casstevens, James Cavenaugh IV, Puspa Chamlagai, Meenakshi Chatrathi, Lauren Christoffersen, Cade Chudy, Casey Coffey, Corey Coffey, Aaron Coon, Mackenzie Corson, Erica Coslop, Benjamin Crane, Christopher Crary, Adriana Culotta, Aleksandra Cvetkovic, San Da, Abigail da Silva, Soham Daga, Jenna Daniel, Kathryne Day.

Michael Deng, Payal Desai, Suveer Desai, Pallavi Dev, Allison Diamond, Richard Donahoe II, Abigail Dorfman, Madailein Dubrosa, Laxmi Dulal, Bhaskar Dutt, Brianna Eisert, Jonah Elyachar, Luke Emmoth, Guy Erickson, Seth Evans, Derek Faraldo, Julia Filloon, Joseph Finelli, Sydney Fisher, Olivia Fogel, Breanna Foley, Emma Ford.

Gabrielle Gafford, Rachel Gaines, Jocelyn Ganzert, Ghanashyam Gautam, Hari Gautam, Cynthia Gibson Staley, John Gillen, Tia May Goebel, Collin Goldstein, Stephen Grammer, Neha Gupta, Mahroosa Haideri, Jessica Halter, Jihun Han, Elizabeth Handen, Meghan Hanley, Loriana Harkey, Alexandra Harten, Jackson Hartley, Dhonovan Hauserman.

Heather Hearn, Peter Hegland, Mikael Heins, Alex Hirst, Connor Hoehle, Charles Holmes, Eliane Holmlund, Camille Holt, Candice Holt, Abigail Hoyt, Caroline Hsu, Spence Hutcheson, Gian Christian Ignacio, Mukund Iyer, Vighnesh Iyer, Christopher Jellen, James Jendrusina, Lauren Jessen, Kyle Johnson, Gabriel Johnson, Sapphire Johnson.

Ashna Kadam, Beda Kafley, Chandra Kafley, Homa Kafley, Sovit Kafley, Caleb Kammel, Srilakshmi Karuturi, Cimron Kashyap, Rachel Kelly, Matthew Kemp, Pau Khan Khai, Noshin Khan, Yong-Hyun Kim, Allison Koontz, Alexander Kriese, Tulasha Kuikel, Charlotte Kwon.

Dalia Lache, Sarah Laper, Danielle Lecher, Justin Jinwon Lee, Jackie Lender, Jake Levy, Avery Lewis, Mackenzie Lewis, Angela Li, Richard Lindemanis, James Lindsey, Matthew Liscinski, Stephanie Liu, Matthew Lively, Katya Lopatko, Christopher Lopez, Alexander Louie, Angeline Low, Marcel Luhur, Cassie Lukasiewicz, Kathryn Lundgren, Kara Lunny, Danielle Lyle.

Sakshi Mahajan, Nicholas Makos, Christin Manilal, Alexander Marchal, Katie Marshall, Melinda Mastel, Lauren Maunus, Christian Maurno, Sophia Mauro, Theresa McGrath, Jed McGuigan, Julia McKenna, Noah McRea, Patrick Meier, Max Meirow, Katie Mersereau, Nicholas Meyer, Katherine Meyers, Naw Mi.

Brett Miller, Samantha Miller, Jeremiah Mitchell, Haleigh Monyek, Jennifer Morehouse, Natalie Moreno, Shelby Mosier, Harley Mueller, Casey Mulroy, Ariel Murphy, Emory Nager, Josephine Needs, Amira Nelson, Saraswati Nepal, Courtney Newell, Graham Novak, Zachary Oliver, Andrew O'Neill, Lesly Ortiz.

Robert Page, Isabelle Paik, Grace Lee Pak, Jasmine Panton, David Park, Elizabeth Parker, Victoria Pavlock, Dane Pearson, Sydney Peavy, Sara Penka, Matthew Percival, Samuel Pfister, Gabriela Poveda Posada, Mark Powers, Jr., Tabitha Prescott, Patricia Purcell, Eduard Rainer, Swetha Ramamurthy, Stephanie Ramer, Nakul Rao.

Robert Rasmussen, Hari Ravichandran, Emily Reed, Kate Reed, Courtlyn Reekstin, Alexandra Reich, Matthew Reidy, Bishnu Rimal, Angela Rogers, Scout Royce, Gili Rusak, Sovanak Sam, Hashani Samarasena, Morgan Scheibler, Alexis Schmid, Susanna Schriever, Alexander Schultz, Abhinav Seetharaman.

Andrew Shafer, Aarthy Shah, Brittney Sheena, Devon Sherrerd, Priya Sheth, Jackie Shipman, Xavier Shiu, Ryan Sim, Haleigh Singer, Nina Sjostrom, Cheyenne Smith, Eleanor Smith, Rachel Smith, Reagan Smith, Danielle Snow, Leah Soloff, Julianna Song, Stephen Song, Katelyn Sorensen, Preetam Soundararajan.

Katelyn Sparks, Ian Stafford, Selena Steinberg, Olivia Stogner, Andrew Stone, Sarah Stover, Govinda Subedi, Hannah Summer, Jasmine Sun, Van Ro Sung, Akilesh Tangella, Anselm Teather, Walker Thole, Nathaniel Tilp, Salvador Tinoco, Julian Tubello-Cassinari, Vikas Vavilala, Victoria Vega, Sadhvi Venkatramani, Sahaj Viradia.

Go Khawm Vung, Nel Lun Vung, Elana Waldstein, Tony Wang, Christie Webb, Shannon Wedel, Gillian Wilkins, Stuart Wilkins, Madelyn Winchester, Carla Winsor, Christopher Wong, Soohyun Woo, Christina Xiao, Sharon Yang, Tony Yi, So Young Yoo, Robert Youel, Stefania Young, Daniel Yuan, Ana Zeneli.

TRIBUTE TO ALEXANDRA GRADY

HON. TOM LATHAM

OF IOWA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. LATHAM. Mr. Speaker, I rise today to recognize and congratulate Alexandra Grady for being selected as the 2014 Distinguished Young Woman of Iowa.

Distinguished Young Women is a national scholarship program that supports young women to reach their full potential. Founded in 1958, Distinguished Young Women is the largest and oldest national scholarship program for high school girls. It was founded on the mission to ''positively impact the lives of young women by providing a transformative experience that promotes and rewards scholarship, leadership and talent.'' As Iowa's Distinguished Young Woman, Ms. Grady will compete in the National Finals competition later this month in Mobile, Alabama.

Mr. Speaker, the example set by this young woman demonstrates the rewards of harnessing one's talents and sharing them with the world. Alex's efforts embody the Iowa spirit and I am honored to have her represent our state in this national competition. I know that all of my colleagues in the United States House of Representatives will join me in congratulating Alex's achievement and I wish her continued success in her future education and career.

NEVADA LEADERS REMEMBER MEDIA TITAN, EDUCATION LEADER JIM ROGERS

HON. DINA TITUS

OF NEVADA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Ms. TITUS. Mr. Speaker, I submit the following Las Vegas Review-Journal news article:

NEVADA LEADERS REMEMBER MEDIA TITAN, EDUCATION LEADER JIM ROGERS, DEAD AT 75

[From The Las Vegas Review-Journal, June 15, 2014]

Philanthropist, education advocate and media pioneer Jim Rogers, 75, died Saturday night following a lengthy battle with cancer.

Friends will always remember him as a man with passion.

In addition to owning KSNV–TV, Channel 3, in Las Vegas, Rogers served as the ninth chancellor of the Nevada System of Higher Education from 2005–09, after serving one year as interim chancellor.

''He was very strong-minded on certain things,'' said former UNLV President Carol Harter, who worked with Rogers when he was chancellor of the Board of Regents. ''It was never dull.''

Rogers famously harried Harter out of her position at the university in 2006, but later became her friend and ally. In 2013, he donated $10 million to the Black Mountain Institute, UNLV's graduate-level creative writing program. And Rogers backed Harter to serve as interim president of the university when Neal Smatresk suddenly stepped down.

Harter attributed Rogers' generosity to his wife, Beverly Rogers.

''He wanted to honor her through that gift,'' she said. ''I can't tell you how grateful we are. That started many opportunities.''

Harter added that as part of the donation, Rogers requested the name of the program

and the building be named for his wife. Toward the end of his life, he saw how important it was to his wife that she assume some of his legacy of fighting for higher education, she said.

''He was the most interesting man,'' Harter said. ''Right to the end, he was energetic.''

Not only was Rogers vocal about who should step in as interim president at UNLV, but he was not shy about sharing his opinions on elections to the Board of Regents.

''He made it his personal mission to fight for higher education funding when he was chancellor and continued that work after he returned to the private sector,'' said Kevin Page, chairman of the Board of Regents, whom Rogers' adamantly endorsed on Twitter the night before he died. ''Improving Nevada's education system was Jim's way of giving back to the community.''

And Rogers' work in education was not confined to Nevada.

Rogers made the largest gift to a law school in history at the time to the University of Arizona. Rogers graduated from the law school in 1962. His son also went there and now the school is named after him.

''This wasn't just a man who put his support and name on the school. He actually cared,'' said Marc Miller, dean of the James E. Rogers College of Law. ''He wanted to change the world.''

Miller said students loved Rogers, who frequently came to give speeches and engage the community. He was always taking students to lunch and coming up with ways to improve their law school experience.

''Jim had no shortage of ideas. I wish I could have had many more years of his friendship and council,'' Miller said. ''We're all feeling it. Everyone here is in shock.''

In addition to his philanthropic record, Rogers will also be remembered as a media pioneer.

''Jim was a mercurial, fiery and passionate man who changed the face of local television,'' politics reporter and TV personality Jon Ralston wrote in an email. ''He didn't care about ratings. He wanted his legacy to be providing as much real news to viewers, no matter the cost. It was a bold and visionary step.''

''I remember when he took me back to New York to meet with NBC executives to inform them of his plan to turn KSNV into a local version of CNN. They looked at him like he was crazy. And you know what? He didn't care.''

Ralston, whose show ''Ralston Reports'' airs on Channel 3, said Rogers changed his life.

''(Rogers) quietly tried to woo me to come to KSNV for many years before it happened. He gave me a statewide audience and had confidence in me from the start,'' Ralston wrote. ''I will never forget that. I will miss him.''

A Las Vegas native, Rogers founded Valley Broadcasting Co. in 1971 and won FCC approval to operate an NBC affiliate, Channel 3, in 1979.

He parlayed that into Sunbelt Communications, which grew into 14 TV stations in five Mountain states, including three in Nevada. Others were in Montana, Idaho, Wyoming and Arizona. Sunbelt's title was changed to Intermountain West Communications Co. about five years ago.

KSNV president and chief operating officer Lisa Poe-Howfield described Rogers as tough, unfiltered, kind and charismatic.

''You always knew exactly where you stood with him, and I appreciated that,'' she said.

In January, the Review-Journal learned of a Channel 3 meeting in which Rogers revealed he was having another bout with cancer.

Rogers fought off bladder cancer about seven years ago, but he said station employees would still have a job no matter what happened.

A Channel 3 insider who attended the meeting said Rogers made it clear that when he ''goes, everything goes to (his wife) Beverly, and when she goes, everything goes to the colleges.''

Poe-Howfield said she plans to keep working to fulfill Rogers' wishes for the station.

''He has always wanted the station to be the station of record for the people,'' she said. ''That was his vision, and I plan to continue that.''

Channel 3 will be airing special segments highlighting Rogers' life each day this week, she said.

''As much as we thought we would be prepared, somewhere in the back of my mind I thought if anyone could beat cancer, it would be Jim,'' she said.

Several prominent Nevadans issued statements Sunday that highlight Rogers' philanthropy and charisma.

U.S. Senate Majority Leader Harry Reid, D–Nev., said he has known Rogers for a long time.

''Jim and I were contemporaries while practicing law, and what a terrific lawyer he was,'' Reid said. ''And his talents were not limited to law. What he has done in the communications world is record-setting, and not just in Nevada but in the Western United States. What he has done in education is superb.

''His philanthropic endeavors are unsurpassed in the state of Nevada. He was my friend and his friendship to me I will always remember.''

Republican Gov. Brian Sandoval, and Reps. Dina Titus and Steven Horsford, both D–Nev., also expressed their condolences in statements.

''With the passing of Jim Rogers, Nevada has lost one of its most outspoken and fearless advocates,'' Sandoval said. ''Jim was nationally recognized as a successful philanthropist and business leader. In the state of Nevada, he was so much more. Jim dedicated his time and resources to advancing our education system and as chancellor of higher education, was fierce in his commitment to make sure our students had the resources they needed to succeed.''

Horsford said Rogers had a huge impact on Nevada, and he will be missed.

Titus touched on Rogers' big personality.

''Jim Rogers had no fear,'' she said. ''His business acumen, philanthropic generosity, and ferocious passion for learning made him a true game changer. He started the conversation, directed the dialogue, and produced results that propelled Nevada, sometimes kicking and screaming, toward a brighter future.''

Former Nevada Gov. Bob Miller, a Democrat, praised Rogers for his commitment to education.

''Jim Rogers was the exemplary role model for giving back to the community,'' he said in a statement. ''His particular passion and devotion to education, specifically his unmatched generosity and resolute attention for higher education, is a legacy that will be a challenge for us all to live up to.''

''We in Nevada have lost one of our most vocal leaders for increasing education opportunities.''

Funeral arrangements for Rogers have not been finalized as of Sunday.

HONORING SARAH K. R. WOODWARD

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize a special member of my staff. After more than ten years of service, Sarah K. R. Woodward will be leaving her post in my Kansas City District Office.

Sarah began working in my campaign office, then joined my Washington office staff in 2004. She has filled many roles in the office, including staff assistant, scheduler, field representative and caseworker. Whatever role I needed Sarah to fill, she did so with exceptional proficiency and skill.

Most recently serving as a field representative and caseworker, Sarah is known for her patience and kindness in dealing with constituents. Whether it is listening to a veteran's retelling of war stories, speaking to a room of civic-minded high school students, or assisting a single-mother in getting Social Security numbers for her daughters, Sarah's experience and listening ear can put constituents at ease. When it came to planning events, I knew Sarah would always put together an excellent event, whether for the Congressional Art Contest, the Sixth Congressional District Leadership Academy, or a veteran's medal presentation ceremony.

I have received many letters of thanks for the outstanding constituent service Sarah has provided. Her professionalism and dedication to serving my constituents was a great example of how government should work. While I am losing a valuable member of my team, I am excited for Sarah to begin the next chapter of her career.

Mr. Speaker, I proudly ask you to join me in thanking Sarah K. R. Woodward for her many years of service to the people of the Sixth Congressional District. I know Sarah's colleagues, family and friends join with me in thanking her for her commitment to others and wishing her best of luck in all her endeavors and many years of success to come.

RECOGNIZING THE CENTENNIAL CELEBRATION OF THE TOWN OF PEMBINE

HON. REID J. RIBBLE

OF WISCONSIN

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. RIBBLE. Mr. Speaker, I rise today to recognize the 100th anniversary of the Town of Pembine, located in Marinette County.

The Town of Pembine certainly has a unique history starting with the Wisconsin State Legislature's efforts to create this township out of two separate communities in 1913. By the spring of 1914, the first town meeting was held at the Pembine jail and the township was officially formed.

The name of the community was derived from the nearby Pemebonwon River. Even before it became a township, Pembine played an important role in Wisconsin's early economy offering jobs in the logging and rail industries. According to Pembine resident Edmund Willis,

it was among these early loggers "that many of the legends of the mythical Paul Bunyan and his daring exploits originated, as men gathered in their bunkhouses at the end of the day."

Today, Pembine is a popular tourist destination in northern Wisconsin affording traveler's wonderful outdoor experiences like hunting, fishing and snowmobiling. In fact, Pembine has been referred to as a "Sportsman's Paradise". As Congressman, I am proud to represent the citizens of Pembine and hope that everyone in Northeast Wisconsin will join me in celebrating the 100th anniversary of the Town of Pembine on August 2nd, 2014.

HONORING SANTOS GONZALEZ RUBIO

HON. STEPHEN LEE FINCHER

OF TENNESSEE

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. FINCHER. Mr. Speaker, I rise today to congratulate Mr. Santos Gonzalez Rubio of Brownsville, Tennessee for achieving naturalization in the United States of America. Mr. Gonzalez is a dedicated, hardworking, and honest young man who has chosen to permanently commit to the United States, showing loyalty to both the Constitution and the people of this nation.

In order to become a United States citizen, Mr. Gonzalez had to take the Oath of Allegiance. This means that he: gives up his former allegiance to Mexico and now swears allegiance to the United States; supports and defends the Constitution and the laws of this country; and will serve the country, if and when he is required to do so. In addition to these requirements, Mr. Gonzalez now has the responsibility to vote and participate in important political matters, as well as serve on a jury.

Achieving naturalization is a huge accomplishment, and I could not be more proud of Mr. Gonzalez for becoming a citizen of the United States of America. Congratulations, Mr. Gonzalez, on joining the greatest nation on earth. I wish you nothing but the best as you begin this new chapter in your life.

RECOGNIZING VENTURA COUNTY'S 24TH ANNUAL JUNETEENTH CELEBRATION

HON. JULIA BROWNLEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Ms. BROWNLEY of California. Mr. Speaker, today I rise to recognize Ventura County's 24th Annual Juneteenth Celebration, which commemorates the announcement of the abolition of slavery in the United States of America. Today, this event serves as an observance and celebration of African-American history and heritage. Additionally, Juneteenth serves as a reminder to us all of the importance of our country's multi-cultural diversity and the spirit of community we hold as a nation.

On June 19, 1865, Major General Gordon Granger announced to all who were enslaved that they were free, thus marking the memorial of this occurrence as the Juneteenth celebration. The early Juneteenth festivities were held in the spirit of celebrating and honoring the newly freed citizens' ancestors. The bountiful feasts and lively celebrations fueled the overall cherishment of African-American heritage, with great emphasis put on the exploration and education of the African-American community.

For over a century, Juneteenth is celebrated in all corners of the nation and has established a role of promoting reverence for African American history and achievement. Over the last several years, this vibrant event has extended beyond the African-American community and has seen an increase in focus on respect for all the cultures that make up our great nation.

In Ventura County, this annual celebration brings together the tradition from the earliest days of Juneteenth and the rich diversity of our community throughout the region. The community-wide involvement in this historic event is a true testament to the multiculturalism of our county. Juneteenth not only highlights the culture of the African-American community, but it expresses the importance of recognizing the heritage of all the citizens that comprise Ventura County.

Juneteenth embodies the spirit of community and offers the promise of a bright future by embracing the richness of the culture and heritage of a community as a whole, especially in communities like Ventura County where the festivities continue to grow and the overall goal of respect for diversity becomes instilled in all who take part in the excitement.

It is with great enthusiasm that I join the Ventura County Chapter of the Black American Political Association of California in the historical celebration of their 24th Annual Juneteenth Celebration.

RECOGNIZING THE WORK AND DEDICATION OF REV. LOU NESS

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mrs. BUSTOS. Mr. Speaker, I rise today to recognize the work and devotion of Rev. Louisett Ness of Rockford, Illinois, who has, in just over two months, walked from Rockford to Washington D.C. to draw attention to the plight of the poverty stricken in America.

Lou, a 65 year old grandmother, is the Executive Director of Shelter Care ministries in Rockford. Lou's dedication on this 756-mile march has been inspiring, and I was proud to greet her today as she reached her final destination, here at the U.S. Capitol.

I'd also like to applaud the staff and volunteers at Shelter Care Ministries for the work they do every day to provide emergency and transitional housing for the homeless, as well as valuable support services including child care and career counseling.

Mr. Speaker, I commend Lou for having the courage to confront the societal challenge of poverty by embarking on this journey and acting as a voice for those less fortunate.

INDIAN COAL PRODUCTION TAX CREDIT

HON. STEVE DAINES

OF MONTANA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. DAINES. Mr. Speaker, since it was first offered as part of the Energy Tax Incentives Act of 2005, the Indian Coal Production Tax Credit has been a crucial tax incentive that levels the playing field for the production of Indian coal. However, it expired last year.

Before its expiration, this important incentive served as a counter-balance to the additional costs and time required to develop Tribal coal deposits, which are subject to more regulatory requirements than comparable development on private, state, or federal lands.

The production of coal has been a boon for the Crow Tribe of the State of Montana and has already generated more than 125 jobs for Tribal members. Crow Tribal Chairman Darrin Old Coyote has called the tax credit an "essential tool" to "the economic viability of our existing coal mining operations."

Montana's Northern Cheyenne tribe and other coal-producing tribes stand ready to likewise utilize this important policy to create jobs and increase energy development.

I urge my colleagues to pass H.R. 4785 and make the Indian Coal Production Tax Credit permanent to ensure strong economic benefits for future generations of Montana Tribes.

HONORING CUB SCOUT PACK 290

HON. SAM JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. SAM JOHNSON of Texas. Mr. Speaker, I rise today to recognize the 70 young men of Cub Scout Pack 290 of Frisco, Texas. This is no ordinary Cub Scout Pack. These individuals go above and beyond to be involved in civic activities and community events and place a great emphasis on leading the community in patriotic awareness.

Pack 290 was established in 2005 and has contributed over 1,000 hours of community service in the last three years. In previous years, Pack 290 has participated in the Frisco Veteran's Community Parade where they won the Grand Marshal's Award and the Best Theme Related Award. They have also participated in "Clean It and Green It" three consecutive years. This is a city wide event where residents of all ages celebrate Earth Day by not only picking up trash and aesthetically improving the community, but also labeling storm drains with educational tiles about the city's storm water program.

It is essential for our leaders of tomorrow to be engaged in civic affairs and know and preserve our history. Through participating in our government at an early age, these young men have learned lessons that will last a lifetime. It is my hope that they will continue to be involved in our community in the years ahead.

Mr. Speaker, I ask my colleagues to join me in thanking these scouts, the troop leaders, their parents and families for their dedication to our community and wish them the best on their future endeavors.

HONORING EVAN TODD

HON. SAM GRAVES

OF MISSOURI

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Mr. GRAVES of Missouri. Mr. Speaker, I proudly pause to recognize Evan Todd. Evan is a very special young man who has exemplified the finest qualities of citizenship and leadership by taking an active part in the Boy Scouts of America, Troop 357, and earning the most prestigious award of Eagle Scout.

Evan has been very active with his troop, participating in many scout activities. Over the many years Evan has been involved with scouting, he has not only earned numerous merit badges, but also the respect of his family, peers, and community. Most notably, Evan has contributed to his community through his Eagle Scout project. Evan organized and led the construction of a sidewalk outside of Ravenwood Elementary School in Kansas City, Missouri.

Mr. Speaker, I proudly ask you to join me in commending Evan Todd for his accomplishments with the Boy Scouts of America and for his efforts put forth in achieving the highest distinction of Eagle Scout.

A TRIBUTE TO HONOR ERNEST H. BUEHL, SR.

HON. ANNA G. ESHOO

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Ms. ESHOO. Mr. Speaker, I rise today to pay tribute to aviation pioneer Ernest H. Buehl Sr.

Ernest Buehl was born in Germany in 1897. He learned to fly in 1914—just 11 years after the Wright Brothers' first flight. Buehl's career began at BMW where he quickly became one of their leading technicians and in 1920, he was sent to the United States to train American technicians to work with the BMW engines he had help design in Germany.

That same year, Buehl flew on the first transcontinental airmail flight from New York to Oakland, California. Buehl made frequent stops along the way to consult with local officials about the need for airports suitable to land larger aircraft. Eddie Rickenbacker, a World War I ace was a passenger on the transcontinental flight.

Throughout the 1920s, Buehl took aircraft to areas just below the Arctic Circle in Canada, and in 1922 he worked with Roald Amundsen to prepare aircraft to fly over the North Pole.

Buehl moved to Philadelphia, Pennsylvania in 1923 to work for a company pioneering the use of aerial photography. This technology made it possible to create highly qualified topographic maps. Buehl and his partner, a black aviator named E.C. Malick, started the Flying Dutchman Air Service and in 1923, Buehl earned his first pilot's license, signed by Orville Wright himself.

After becoming a citizen of the United States in 1928, Buehl went on to open three airports in the Philadelphia area where he trained pilots and promoted civilian aviation. During World War II, Buehl served as a Flight Commander for the flight training program at Franklin & Marshall College, in Lancaster, Pennsylvania. It is estimated that he trained 1,400 cadets. Buehl would also routinely serve as the personal pilot for General deGaulle on his visits to the United States raising funds for the French Resistance.

Buehl has been recognized in the CONGRESSIONAL RECORD before. On April 23, 1996, the Honorable Ronald V. Dellums mentioned him in connection with the training of "Chief" C. Alfred Anderson, who organized the famous African-American Tuskegee Airmen who fought in World War II. In 1930, after Alfred Anderson had repeadtly been denied a pilot's license because he was black, Buehl accepted him as a student and advocated on his behalf. Buehl forcefully insisted that he be allowed to take the pilot's license test, even when a Federal examiner refused to let Anderson apply. Tuskegee Airmen historians and members of the Anderson family say that without Buehl's willingness to work with Anderson and to stick up for him, there would have been no Tuskegee Airmen.

Mr. Speaker, I ask the entire House of Representatives to join me in paying tribute to Ernest H. Buehl, Sr. for his lasting contributions to aviation and our nation by supporting his nomination to the National Aviation Hall of Fame.

RECOGNIZING CAPTAIN DEAN A. TUFTS

HON. JULIA BROWNLEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Ms. BROWNLEY of California. Mr. Speaker, today I rise in recognition of Captain Dean A. Tufts, a qualified Seabee Combat Warfare Officer, a skilled Fleet Marine Force Officer, a member of the Defense Acquisition Corps, and a registered Professional Engineer in the state of Hawaii.

Born on December 25, 1967 in Springfield, Massachusetts, Captain Tufts earned a Bachelor of Science degree in Mechanical Engineering from Cornell University and was commissioned through the Naval Reserve Officer Training Corps program. He holds a Master of Science Degree in Civil Engineering from the University of California, Berkeley and a Master of Arts degree in National Security and Strategic Studies from the College of Naval Command and Staff from Naval War College in Newport, Rhode Island.

In his extensive and distinguished career in the United States Navy, Captain Tufts has shown exceptional leadership and gallantry. Captain Tufts' tours in the Navy include Assistant Resident Officer in Charge of Construction in the Oakland Army Base in Oakland, California; Readiness and Military Training Officer in the THIRTY–FIRST Naval Construction Regiment in Port Hueneme, California; Sustainment, Restoration, and Modernization Budget/Execution Program Director in the Commander, Navy Installations Command (CNIC) in Washington DC; and Assistant Operations Officer in the Naval Facilities Engineering Command (NAVFAC) in Washington DC. Captain Tufts assumed.

After assuming command of NMCB ONE, in Gulfport, Mississippi in July 2006, Captain Tufts deployed to both Japan and Iraq. Since then, Captain Tufts has assumed other leadership positions in various capacities; he has been assigned as Operations Officer for Naval Facilities Engineering Command (NAVFAC) Far East and has also served as the Civil Engineer Corps' Head Detailer at Navy Personnel Command in Millington, Tennessee. Since August 2012, Captain Tufts has served as Commander for Naval Construction Group ONE in Port Hueneme, CA.

Captain Tufts' exemplary character and boundless service to our nation has earned him several decorations including the Bronze Star, six Meritorious Service Medals, three Navy Commendation Medals, the Navy Achievement Medal, the Iraqi Campaign Medal, the Korea Defense Service Medal, two Navy Unit Commendation Ribbons, the Meritorious Unit Commendation Ribbon, and four Navy "E" Ribbons. These accomplishments are indicative of Captain Tufts' unwavering commitment and dedication to his work, nation and community.

I appreciate Captain Tufts' dedication to our nation and his work during his time at Port Hueneme. It is with sincere appreciation that I would like to recognize Captain Dean A. Tufts, salute and thank him for his honorable and selfless service to our country. I wish him the absolute best as he transfers to Naval Facilities Engineering Command in the state of Hawaii, where I know he will continue his successful naval career.

HOUSE CONSIDERATION OF TAX EXTENDER PROVISIONS

HON. SUZANNE BONAMICI

OF OREGON

IN THE HOUSE OF REPRESENTATIVES

Thursday, June 19, 2014

Ms. BONAMICI. Mr. Speaker, I rise to express my opposition to the process that has brought the bills under consideration before us today. Once again, my colleagues and I find ourselves in the difficult position of opposing the extension of tax provisions that are worthy of support, and long overdue for consideration. The Section 179 provisions that allow for businesses to expense the cost of certain asset purchases, and the tax treatment of S corporations that allows them to pay a reduced "built-in gains" tax, have long helped our small businesses thrive. I was pleased to vote for them as part of a bill to avert the fiscal cliff in January 2013. But because of inaction by the House on tax reform, these provisions were allowed to expire at the end of last year. Now, we are being given a choice: extend these provisions permanently without paying for them, and without also extending the many other important provisions that have expired, or don't extend them at all.

More than three million Americans have lost access to emergency unemployment insurance. Despite the Senate passing legislation to extend unemployment benefits, the House has refused to join in this important, bipartisan effort to help our hardest-hit constituents. Our colleagues in the majority insist that an extension of the emergency unemployment insurance program be fully paid for, but now are putting forward costly permanent legislation that will add $75 billion to the deficit. Of course small businesses are worthy of support from this Congress, but not at the expense of

those who are still unable to find work. I fully support the motion to recommit, which extends these important provisions for another two years. This will give our businesses the tax relief they deserve, while allowing us to engage in a broader conversation on tax reform that our constituents have demanded.

In May, we considered a similarly misguided effort to extend the Research and Development Tax Credit permanently and without an offset. I expressed frustration that by extending this tax credit while not acting on others, we appear more concerned with the needs of the business community than with those of working families when we should be concerned about both. The credits we are considering today should be extended, yes, but so should important provisions such as the Earned Income Tax Credit, the Child Tax Credit, and the Production Tax Credit for renewable energy projects.

The House must be mindful of its commitment to help all Americans, and we should consider a slate of tax extenders that will benefit all of our constituents. For this reason, I oppose the bills before us today, and I urge my colleagues to do the same.

CORRECTION

Daily Digest

Senate

Chamber Action

Routine Proceedings, pages S3825–S3885

Measures Introduced: Seventeen bills and two resolution were introduced, as follows: S. 2495–2511, and S. Res. 479–480. **Pages S3863–64**

Measures Reported:

S. 2499, making appropriations for the Department of State, foreign operations, and related programs for the fiscal year ending September 30, 2015. (S. Rept. No. 113–195)

H.R. 4487, making appropriations for the Legislative Branch for the fiscal year ending September 30, 2015, with an amendment in the nature of a substitute. (S. Rept. No. 113–196) **Page S3863**

Measures Passed:

Gun Lake Trust Land Reaffirmation Act: Senate passed S. 1603, to reaffirm that certain land has been taken into trust for the benefit of the Match-E–Be-Nash-She-Wish Band of Pottawatami Indians. **Page S3884**

Measures Considered:

Commerce, Justice, Science, and Related Agencies Appropriations Act: Senate agreed to the motion to proceed to consideration of H.R. 4660, making appropriations for the Departments of Commerce and Justice, Science, and Related Agencies for the fiscal year ending September 30, 2015.

Pages S3836–42, S3845

Bipartisan Sportsmen's Act: Senate began consideration of the motion to proceed to consideration of S. 2363, to protect and enhance opportunities for recreational hunting, fishing, and shooting.

Pages S3845–47

Supporting Knowledge and Investing in Lifelong Skills Act—Agreement: A unanimous-consent-time agreement was reached providing that at a time to be determined by the Majority Leader, after consultation with the Republican Leader, the Committee on Health, Education, Labor, and Pensions be discharged from further consideration of H.R. 803, to reform and strengthen the workforce investment system of the Nation to put Americans back to work and make the United States more competitive in the 21st century, and Senate proceed to its consideration; that a Murray-Isakson-Harkin-Alexander substitute amendment, which is at the desk, be considered; that the only other amendments in order be the following amendments to the substitute: Flake (making the appointment and certification of a new local board permissible instead of required); Lee (evaluation report requirement); and Managers' technical amendment; that there be ten minutes of debate equally divided between the two Leaders, or their designees, on each amendment; that upon the use or yielding back of time, Senate vote on or in relation to the amendments in the order listed; that no second-degree amendments be in order prior to the votes; that upon disposition of the Managers' technical amendment, the substitute amendment, as amended, if amended, be agreed to; that there be ten minutes of debate equally divided between the two Leaders, or their designees; that upon the use or yielding back of time, Senate vote on passage of the bill, as amended; and that if the bill is passed, the Murray-Isakson-Harkin-Alexander amendment to the title, which is at the desk, be agreed to. **Page S3884**

National Aeronautics and Space Administration Authorization Act—Agreement: A unanimous-consent agreement was reached providing that the Committee on Commerce, Science, and Transportation be discharged from further consideration of H.R. 4412, to authorize the programs of the National Aeronautics and Space Administration, and the Senate agree to the request of the House for the return of the papers with respect to H.R. 4412.

Page S3884

Signing Authority—Agreement: A unanimous-consent agreement was reached providing that during the adjournment or recess of the Senate from Thursday, June 19, 2014 through Monday, June 23, 2014, the Majority Leader and Senators Rockefeller and Feinstein be authorized to sign duly enrolled bills or joint resolutions. **Page S3884**

Message from the President: Senate received the following message from the President of the United States:

Transmitting, pursuant to law, a report on the continuation of the national emergency that was originally declared in Executive Order 13617 of June 25, 2012, with respect to the disposition of Russian highly enriched uranium; which was referred to the Committee on Banking, Housing, and Urban Affairs. (PM–45) **Page S3860**

Byron Nomination—Cloture: Senate began consideration of the nomination of Paul G. Byron, of Florida, to be United States District Judge for the Middle District of Florida. **Page S3855**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, June 19, 2014, a vote on cloture will occur at 5:30 p.m., on Monday, June 23, 2014. **Page S3855**

Mendoza Nomination—Cloture: Senate began consideration of the nomination of Carlos Eduardo Mendoza, of Florida, to be United States District Judge for the Middle District of Florida. **Page S3855**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, June 19, 2014, a vote on cloture will occur at 5:30 p.m., on Monday, June 23, 2014. **Page S3855**

Bloom Nomination—Cloture: Senate began consideration of the nomination of Beth Bloom, of Florida, to be United States District Judge for the Southern District of Florida. **Page S3855**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, June 19, 2014, a vote on cloture will occur at 5:30 p.m., on Monday, June 23, 2014. **Page S3855**

Crawford Nomination—Cloture: Senate began consideration of the nomination of Geoffrey W. Crawford, of Vermont, to be United States District Judge for the District of Vermont. **Page S3856**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, June 19, 2014, a vote on cloture will occur at 5:30 p.m., on Monday, June 23, 2014. **Page S3856**

Rodriguez Nomination—Cloture: Senate began consideration of the nomination of Leon Rodriguez, of Maryland, to be Director of the United States Citizenship and Immigration Services, Department of Homeland Security. **Page S3856**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of Rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, June 19, 2014, a vote on cloture will occur at 11 a.m., on Tuesday, June 24, 2014. **Page S3856**

A unanimous-consent-time agreement was reached providing that at 5:30 p.m., on Monday, June 23, 2014, Senate vote on the motion to invoke cloture on the nominations of Paul G. Byron, of Florida, to be United States District Judge for the Middle District of Florida, Carlos Eduardo Mendoza, of Florida, to be United States District Judge for the Middle District of Florida, Beth Bloom, of Florida, to be United States District Judge for the Southern District of Florida, and Geoffrey W. Crawford, of Vermont, to be United States District Judge for the District of Vermont; that if cloture is invoked on any of these nominations, that at 11 a.m., on Tuesday, June 24, 2014, all post-cloture time be expired, and Senate vote on confirmation of the nominations in the order upon which cloture was invoked; that following Senate action on these nominations on Tuesday, June 24, 2014, Senate vote on the motion to invoke cloture on the nomination of Leon Rodriguez, of Maryland, to be Director of the United States Citizenship and Immigration Services, Department of Homeland Security; that there be two minutes for debate prior to each vote and all roll call votes after the first vote in each sequence be ten minutes in length; and, with respect to the nominations in this agreement, that if any nomination is confirmed, the motions to reconsider be considered made and laid upon the table. **Page S3884**

Nominations Confirmed: Senate confirmed the following nominations:

By 54 yeas to 38 nays (Vote No. EX. 201), Gustavo Velasquez Aguilar, of the District of Columbia, to be an Assistant Secretary of Housing and Urban Development. **Pages S3843, S3885**

Brian A. Nichols, of Rhode Island, to be Ambassador to the Republic of Peru. **Pages S3843–45, S3885**

J. Mark McWatters, of Texas, to be a Member of the National Credit Union Administration Board for a term expiring August 2, 2019. **Pages S3843, S3845, S3885**

Christine E. Wormuth, of Virginia, to be Under Secretary of Defense for Policy. **Pages S3843, S3845, S3885**

Nominations Received: Senate received the following nominations:

Arthur Lee Bentley III, of Florida, to be United States Attorney for the Middle District of Florida for the term of four years.

David J. Hale, of Kentucky, to be United States District Judge for the Western District of Kentucky.

David Rivera, of Tennessee, to be United States Attorney for the Middle District of Tennessee for the term of four years.

Gregory N. Stivers, of Kentucky, to be United States District Judge for the Western District of Kentucky. Page S3885

Messages from the House: Page S3860

Measures Placed on the Calendar: Pages S3860, S3884

Enrolled Bills Presented: Pages S3860–61

Executive Communications: Pages S3861–63

Executive Reports of Committees: Page S3863

Additional Cosponsors: Page S3864

Statements on Introduced Bills/Resolutions: Pages S3864–67

Additional Statements: Pages S3857–60

Amendments Submitted: Pages S3867–83

Notices of Hearings/Meetings: Page S3883

Authorities for Committees to Meet: Pages S3883–84

Record Votes: One record vote was taken today. (Total—201) Page S3843

Adjournment: Senate convened at 9:30 a.m. and adjourned at 6:48 p.m., until 2:00 p.m. on Monday, June 23, 2014. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S3885.)

Committee Meetings

(Committees not listed did not meet)

APPROPRIATIONS: STATE, FOREIGN OPERATIONS, AND RELATED PROGRAMS, AND THE LEGISLATIVE BRANCH

Committee on Appropriations: Committee ordered favorably reported the following business items:

An original bill (S. 2499) making appropriations for State, Foreign Operations, and Related Programs for fiscal year 2015; and

H.R. 4487, making appropriations for the Legislative Branch for the fiscal year ending September 30, 2015, with an amendment in the nature of a substitute.

NOMINATIONS

Committee on Armed Services: Committee concluded a hearing to examine the nominations of Laura Junor, of Virginia, to be a Principal Deputy Under Secretary for Personnel and Readiness, Gordon O. Tanner, of Alabama, to be General Counsel of the Department of the Air Force, Debra S. Wada, of Hawaii, to be Assistant Secretary of the Army for Manpower and Reserve Affairs, and Miranda A. A. Ballentine, of the District of Columbia, to be Assistant Secretary of the Air Force for Installations, Environment, and Energy, all of the Department of Defense, and Monica C. Regalbuto, of Illinois, to be an Assistant Secretary of Energy for Environmental Management, after the nominees testified and answered questions in their own behalf.

SECURITY SITUATION IN IRAQ

Committee on Armed Services: Committee received a closed briefing on the security situation in Iraq from Elissa Slotkin, Performing the duties of the Principal Deputy Under Secretary for Policy, and Principal Deputy Assistant Secretary for International Security Affairs, Vice Admiral Frank C. Pandolfe III, USN, Director of Strategic Plans and Policy (J–5), Joint Staff, and Paul N. Wolfe, Senior Defense Intelligence Expert for Iraq, Egypt, and the Levant, Middle East and African Regional Center, and Joseph Gigliotti, Senior Defense Intelligence Expert for Counter Network Operations, Target Development, and Threat Finance, both of the Defense Intelligence Agency, all of the Department of the Defense.

RESOURCES FOR EXPORT, DOMESTIC CONSUMPTION, AND TRANSPORTATION FUEL

Committee on Energy and Natural Resources: Committee concluded a hearing to examine resources for export, domestic consumption, and transportation fuel, after receiving testimony from Christopher Smith, Principal Deputy Assistant Secretary of Energy for Fossil Energy; and Martin J. Durbin, America's Natural Gas Alliance, Robert McNally, The Rapidan Group LLC, Elizabeth Rosenberg, Center for a New American Security, and Daniel J. Weiss, Center for American Progress, all of Washington, D.C.

BUSINESS MEETING

Committee on Finance: Committee ordered favorably reported the nominations of Henry J. Aaron, of the District of Columbia, Lanhee J. Chen, of California, and Alan L. Cohen, of Virginia, all to be a Member of the Social Security Advisory Board.

TAXATION TREATIES

Committee on Foreign Relations: Committee concluded a hearing to examine the Protocol Amending the Convention between the United States of America and the Kingdom of Spain for the Avoidance of

Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income and its Protocol, signed at Madrid on February 22, 1990 (Treaty Doc. 113–04), and the Convention between the United States of America and the Republic of Poland for the Avoidance of Double Taxation and the Prevention of Fiscal Evasion with Respect to Taxes on Income, signed on February 13, 2013, at Warsaw (Treaty Doc. 113–05), after receiving testimony from Robert B. Stack, Deputy Assistant Secretary of the Treasury for International Tax Affairs; Thomas A. Barthold, Chief of Staff, Joint Committee on Taxation; Mary Jean Riley, North American Stainless, Ghent, Kentucky; and Catherine Schultz, National Foreign Trade Council, Inc., Washington, D.C.

IRAQ UPDATE

Committee on Foreign Relations: Committee received a closed briefing on an update on Iraq from Anne Patterson, Assistant Secretary for Near Eastern Affairs, and Gregory B. Starr, Assistant Secretary for Diplomatic Security, both of the Department of State.

BUSINESS MEETING

Committee on the Judiciary: Committee ordered favorably reported the nominations of Julie E. Carnes, of Georgia, and Jill A. Pryor, of Georgia, both to be a United States Circuit Judge for the Eleventh Circuit, Andre Birotte, Jr., to be United States District Judge for the Central District of California, John W. deGravelles, to be United States District Judge for the Middle District of Louisiana, Randolph D. Moss, to be United States District Judge for the District of Columbia, Robin L. Rosenberg, to be United States District Judge for the Southern District of Florida, Ronnie L. White, to be United States District Judge for the Eastern District of Missouri, Leslie Joyce Abrams, to be United States District Judge for the Middle District of Georgia, Mark Howard Cohen, Leigh Martin May, and Eleanor Louise Ross, all to be a United States District Judge for the Northern District of Georgia, and Nancy B. Firestone, of Virginia, and Thomas L. Halkowski, of Pennsylvania, both to be a Judge of the United States Court of Federal Claims.

INTELLIGENCE

Select Committee on Intelligence: Committee met in closed session to receive a briefing on certain intelligence matters from officials of the intelligence community.

Committee recessed subject to the call.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 22 public bills, H.R. 4899–4902; 4904–4921; and 2 resolutions, H. Res. 631–632 were introduced.

Pages H5556–58

Additional Cosponsors: **Page H5559**

Reports Filed: Reports were filed today as follows:

H.R. 6, to provide for expedited approval of exportation of natural gas to World Trade Organization countries, and for other purposes, with an amendment (H. Rept. 113–477);

H.R. 1281, to amend the Public Health Service Act to reauthorize programs under part A of title XI of such Act, with an amendment (H. Rept. 113–478);

H.R. 4092, to amend the Energy Policy and Conservation Act to establish the Office of Energy Efficiency and Renewable Energy as the lead Federal agency for coordinating Federal, State, and local assistance provided to promote the energy retrofitting of schools, with an amendment (H. Rept. 113–479);

H.R. 4263, to amend the Homeland Security Act of 2002 to authorize the Department of Homeland Security to establish a social media working group, and for other purposes, with an amendment (H. Rept. 113–480);

H.R. 4903 making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2015, and for other purposes (H. Rept. 113–481);

H.R. 3301, to require approval for the construction, connection, operation, or maintenance of oil or natural gas pipelines or electric transmission facilities at the national boundary of the United States for the import or export of oil, natural gas, or electricity to or from Canada or Mexico, and for other purposes, with an amendment (H. Rept. 113–482, Pt. 1);

H.R. 83, to require the Secretary of the Interior to assemble a team of technical, policy, and financial experts to address the energy needs of the insular areas of the United States and the Freely Associated States through the development of action plans aimed at reducing reliance on imported fossil fuels

and increasing use of indigenous clean-energy resources, and for other purposes, with amendments (H. Rept. 113–483); and

H.R. 4289, to amend the Homeland Security Act of 2002 to require the Under Secretary for Management of the Department of Homeland Security to take administrative action to achieve and maintain interoperable communications capabilities among the components of the Department of Homeland Security, and for other purposes (H. Rept. 113–484).

Page H5556

Speaker: Read a letter from the Speaker wherein he appointed Representative Fleischmann to act as Speaker pro tempore for today. **Page H5499**

Recess: The House recessed at 10:45 a.m. and reconvened at 12 noon. **Page H5504**

Chaplain: The prayer was offered by the guest chaplain, Mr. Rajan Zed, Universal Society of Hinduism, Reno, Nevada. **Page H5504**

Customer Protection and End User Relief Act—Rule for Consideration: The House agreed to H. Res. 629, the rule that is providing for consideration of the bill (H.R. 4413) to reauthorize the Commodity Futures Trading Commission, to better protect futures customers, to provide end users with market certainty, to make basic reforms to ensure transparency and accountability at the Commission, and to help farmers, ranchers, and end users manage risks to help keep consumer costs low, by a yea-and-nay vote of 230 yeas to 184 nays, Roll No. 317, after the previous question was ordered without objection. **Pages H5508–13**

Recess: The House recessed at 1:23 p.m. and reconvened at 4:35 p.m. **Page H5513**

Department of Defense Appropriations Act, 2015: The House resumed consideration of H.R. 4870, making appropriations for the Department of Defense for the fiscal year ending September 30, 2015. Consideration is expected to continue tomorrow, June 20th. **Pages H5514–55**

Agreed to:

Walorski amendment that was debated on June 18th that prohibits funds from being used to transfer or release to the Republic of Yemen (or any entity within Yemen) a detainee who is or was held, detained, or otherwise in the custody of DoD on or after June 24, 2009, at the United States Naval Station, Guantanamo Bay, Cuba (by a recorded vote of 238 ayes to 179 noes, Roll No. 321); **Pages H5516–17**

Runyan amendment that prohibits funds from being used to retire, divest, or transfer, or to prepare or plan for the retirement, divestment, or transfer of, the entire KC–10 fleet during fiscal year 2015; **Pages H5520–21**

Walberg amendment that prohibits funds from being used to promulgate Directive 293, issued December 16, 2010, by the Office of Federal Contract Compliance Programs; **Pages H5523–24**

DeLauro amendment that prohibits funds from being used to enter into any contract with an incorporated entity if such entity's sealed bid or competitive proposal shows that such entity is incorporated or chartered in Bermuda or the Cayman Islands, and such entity's sealed bid or competitive proposal shows that such entity was previously incorporated in the United States; **Pages H5524–25**

Fleming amendment (No. 14 printed in the Congressional Record of June 18, 2014) that prohibits funds from being used to appoint chaplains for the military departments in contravention of the Department of Defense Instruction 1304.28, dated June 11, 2004, incorporating change 3, dated March 20, 2014, regarding the appointment of chaplains for the military departments; **Pages H5525–26**

Flores amendment that prohibits funds from being used to enforce section 526 of the Energy Independence and Security Act of 2007; **Pages H5527–28**

Conyers amendment that prohibits funds from being obligated or expended to transfer man-portable air defense systems (MANPADS) to any entity in Syria; **Page H5528**

McKinley amendment that prohibits funds from being used to design, implement, administer, or carry out the U.S. Global Climate Research Program National Climate Assessment, the Intergovernmental Panel on Climate Change's Fifth Assessment Report, the United Nations' Agenda 21 sustainable development plan, or the May 2013 Technical Update of the Social Cost of Carbon for Regulatory Impact Analysis Under Executive Order 12866; **Pages H5528–29**

Hanabusa amendment that prohibits funds from being used with respect to Iraq in contravention of the War Powers Resolution, including for the introduction of U.S. forces into hostilities in Iraq, into situations in Iraq where imminent involvement in hostilities is clearly indicated by the circumstances, or into Iraqi territory, airspace, or waters while equipped for combat, in contravention of the Congressional consultation and reporting requirements of sections 3 and 4 of such Resolution; **Page H5529**

Nugent amendment (No. 27 printed in the Congressional Record of June 18, 2014) that prohibits funds from being used to plan for or carry out a furlough of a dual status military technician; **Pages H5532–33**

Speier amendment that prohibits funds from being used to implement Executive Order 12473 of April 13, 1984, as amended by Executive Order

13669 of June 13, 2014, as those amendments apply to section 405(I) of the Rules for Courts-Martial; **Page H5533**

Gosar amendment that prohibits funds from being used to pay for storage for patrol boats procured under the Department of Navy Memorandum #105–E2P–196 dated October 12, 2010; **Pages H5533–34**

Rogers (AL) amendment that prohibits funds from being used to implement the Treaty on Open Skies, done at Helsinki March 24, 1992, and entered into force January 1, 2002; **Page H5535**

Murphy (FL) amendment that prohibits funds from being used to maintain or improve Department of Defense real property with a zero percent utilization rate according to the Department's real property inventory database, except in the case of maintenance of an historic property as required by the National Historic Preservation Act or maintenance to prevent a negative environmental impact as required by the National Environmental Policy Act of 1969; **Pages H5535–36**

Gosar amendment that prohibits funds from being used to procure any Army Aircrew Combat Uniforms; **Pages H5536–37**

Forbes amendment that prohibits funds from being obligated or expended to implement the Convention on the Prohibition of the Use, Stockpiling, Production and Transfer of Anti-Personnel Mines and on their Destruction; **Pages H5537–38**

McClintock amendment that prohibits funds from being used to carry out specified sections of Executive Order 13423 and Executive Order 13514; section 2911 of title 10, U.S.C.; sections 400AA or 400FF of the Energy Policy and Conservation Act; section 303 of the Energy Policy Act of 1992; and section 203 of the Energy Policy Act of 2005; **Pages H5539–40**

Grayson amendment that prohibits funds from being used to ''consult'', as the term is used in reference to the Department of Defense and the National Security Agency, in contravention of the ''assurance'' provided in section 20(c)(1)(A) of the National Institute of Standards and Technology Act; **Pages H5540–41**

Wittman amendment that prohibits funds from being used to propose, plan for, or execute an additional Base Realignment and Closure round; **Pages H5541–42**

Jackson Lee amendment that prohibits funds from being used in contravention of Article II, section 2 of the Constitution; **Pages H5542–43**

King (IA) amendment that prohibits funds from being used to transfer weapons to the Palestinian Authority; **Page H5543**

Barrow (GA) amendment that prohibits funds from being used to disestablish, or prepare to disestablish, a Senior Reserve Officers' Training Corps program or close, downgrade from host to extension center, or place on probation a Senior Reserve Officers' Training Corps program; **Page H5547**

Conaway amendment that prohibits funds from being used to enter into a contract for the planning, design, refurbishing, or construction of a biofuels refinery unless such planning, design, refurbishing, or construction is specifically authorized by law; **Pages H5547–48**

Miller (MI) amendment that was debated on June 18th that prohibits funds from being used to divest, retire, transfer, or place in storage, or prepare to divest, retire, transfer, or place in storage, any A–10 aircraft, or to disestablish any units of the active or reserve component associated with such aircraft (by a recorded vote of 300 ayes to 114 noes, Roll No. 322); **Pages H5548–49**

Cotton amendment (No. 2 printed in the Congressional Record of June 17, 2014) that prohibits funds from being used to transfer or release any individual detained at United States Naval Station, Guantanamo Bay, Cuba to the individual's country of origin or to any other foreign country (by a recorded vote of 230 ayes to 184 noes, Roll No. 323); **Pages H5517–20, H5549–50**

Massie amendment that prohibits funds from being used by an officer or employee of the United States to query a collection of foreign intelligence information acquired under FISA using a United States person identifier except in specified instances (by a recorded vote of 293 ayes to 123 noes with 1 answering ''present'', Roll No. 327); and **Pages H5544–47, H5552**

Ellison amendment that prohibits funds from being used to enter into a contract with any person whose disclosures of a proceeding with a disposition listed in section 2313(c)(1) of title 41, United States Code, in the Federal Awardee Performance and Integrity Information System include the term ''Fair Labor Standards Act'' (by a recorded vote of 212 ayes to 204 noes, Roll No. 331). **Pages H5554–55**

Rejected:

Gohmert amendment that was debated on June 18th that sought to increase funding, by offset, for Drug Interdiction and Counter-Drug Activities, Defense by $35,956,000 for the National Guard counter-drug program (by a recorded vote of 130 ayes to 292 noes, Roll No. 318); **Pages H5514–15**

Blumenauer amendment (No. 4 printed in the Congressional Record of June 17, 2014) that was debated on June 18th that sought to increase funding, by offset, for Environmental Restoration, Formerly

Used Defense Sites by $3,400,000 (by a recorded vote of 179 ayes to 242 noes, Roll No. 319); **Page H5515**

Nadler amendment that was debated on June 18th that sought to strike section 8132, which prohibits funds from being used to reduce, convert, decommission, or otherwise move to nondeployed status any Minuteman III ballistic missile silo that contains a deployed missile as of the date of the enactment of this Act (by a recorded vote of 187 ayes to 233 noes, Roll No. 320); **Pages H5515–16**

Grayson amendment that sought to prohibit funds from being used to detain, without conviction, any person for more than 15 years at United States Naval Station, Guantanamo Bay, Cuba; **Pages H5543–44**

Moran amendment that sought to prohibit funds from being used to carry out sections 8107 and 8108 (by a recorded vote of 163 ayes to 249 noes, Roll No. 324); **Pages H5521–22, H5550**

Lee amendment (No. 31 printed in the Congressional Record of June 18, 2014) that sought to prohibit funds from being used for the purposes of conducting combat operations in Iraq (by a recorded vote of 165 ayes to 250 noes, Roll No. 325); **Pages H5522–23, H5550–51**

Lee amendment (No. 33 printed in the Congressional Record of June 18, 2014) that sought to prohibit funds from being obligated or expended pursuant to the Authorization for Use of Military Force Against Iraq Resolution of 2002 (by a recorded vote of 182 ayes to 231 noes, Roll No. 326); **Pages H5526–27, H5551–52**

Fortenberry amendment that sought to prohibit funds from being used to provide weapons in Syria (by a recorded vote of 167 ayes to 244 noes, Roll No. 328); **Pages H5529–31, H5552–53**

Grayson amendment that sought to prohibit funds from being used to transfer aircraft (including unmanned aerial vehicles), armored vehicles, grenade launchers, silencers, toxicological agents, launch vehicles, guided missiles, ballistic missiles, rockets, torpedoes, bombs, mines, or nuclear weapons through the DoD Excess Personal Property Program established pursuant to the National Defense Authorization Act for Fiscal Year 1997 (by a recorded vote of 62 ayes to 355 noes, Roll No. 329); and **Pages H5531–32, H5553–54**

Lee amendment (No. 34 printed in the Congressional Record of June 18, 2014) that sought to prohibit funds from being obligated or expended pursuant to the Authorization for Use of Military Force after December 31, 2014 (by a recorded vote of 157 ayes to 260 noes, Roll No. 330). **Pages H5534–35, H5554**

Proceedings Postponed:

Lee amendment (No. 32 printed in the Congressional Record of June 18, 2014) that seeks to prohibit funds from being used for the purpose of conducting combat operations in Afghanistan after December 31, 2014. **Pages H5538–39**

H. Res. 628, the rule providing for consideration of the bill (H.R. 4870) and providing for consideration of the Senate amendments to the bill (H.R. 3230), was agreed to yesterday, June 18th.

Presidential Message: Read a message from the President wherein he notified Congress that the emergency declared in Executive Order 13617 of June 25, 2012 with respect to the disposition of Russian highly enriched uranium is to continue in effect beyond June 25, 2014—referred to the Committee on Foreign Affairs and ordered to be printed (H. Doc. 113–122). **Page H5555**

Senate Message: Message received from the Senate today appears on page H5504.

Senate Referral: S. 1237 was held at the desk. **Page H5504**

Quorum Calls—Votes: One yea-and-nay vote and 14 recorded votes developed during the proceedings of today and appear on pages H5513, H5514–15, H5515, H5516, H5516–17, H5549, H5549–50, H5550, H5550–51, H5551–52, H5552, H5552–53, H5553–54, H5554 and H5554–55. There were no quorum calls.

Adjournment: The House met at 10 a.m. and adjourned at 11:09 p.m.

Committee Meetings

INTERPRETIVE RULE REGARDING THE APPLICABILITY OF CLEAN WATER ACT AGRICULTURAL EXEMPTIONS

Committee on Agriculture: Subcommittee on Conservation, Energy, Forestry held a hearing on a review of the Interpretive Rule regarding the applicability of Clean Water Act agricultural exemptions. Testimony was heard from Robert Bonnie, Under Secretary, Natural Resources and Environment, Department of Agriculture; and public witnesses.

P5+1 NEGOTIATIONS OVER IRAN'S NUCLEAR PROGRAM AND ITS IMPLICATIONS FOR UNITED STATES DEFENSE

Committee on Armed Services: Full Committee held a hearing entitled ''P5+1 Negotiations over Iran's Nuclear Program and Its Implications for United States Defense''. Testimony was heard from public witnesses.

EPA'S PROPOSED CARBON DIOXIDE REGULATIONS FOR POWER PLANTS

Committee on Energy and Commerce: Subcommittee on Energy and Power held a hearing entitled "EPA's Proposed Carbon Dioxide Regulations for Power Plants". Testimony was heard from Janet McCabe, Acting Assistant Administrator, Air and Radiation, Environmental Protection Agency.

MISCELLANEOUS MEASURES

Committee on Energy and Commerce: Subcommittee on Health held a markup on the following legislation: H.R. 4771, the "Designer Anabolic Steroid Control Act"; H.R. 4250, the "Sunscreen Innovation Act"; H.R. 4701, the "Vector-Borne Disease Research Accountability and Transparency Act of 2014"; H.R. 594, the Paul D. Wellstone Muscular Dystrophy Community Assistance, Research and Education Amendments of 2014; H.R. 669, the "Sudden Unexpected Death and Data Enhancement and Awareness Act"; and H.R. 4290, the "Wakefield Act of 2014". The following bills were forwarded, as amended: H.R. 4250; H.R. 4701; H.R. 594; H.R. 669; H.R. 4290. The following bill was forwarded without amendment: H.R. 4771.

MISCELLANEOUS MEASURES

Committee on Financial Services: Full Committee began markup on H.R. 4871, the "TRIA Reform Act of 2014"; H.R. 4881, to place a 6-month moratorium on the authority of the Financial Stability Oversight Council to make financial stability determinations; and H.R. 4387, the "FSOC Transparency and Accountability Act". The Full Committee will reconvene tomorrow.

MISCELLANEOUS MEASURES

Committee on Foreign Affairs: Subcommittee on Middle East and North Africa held a markup on H. Res. 109, condemning the Government of Iran for its state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights; and H. Res. 435, calling on the government of Iran to fulfill their promises of assistance in this case of Robert Levinson, one of the longest held United States civilians in our Nation's history. The resolutions were ordered reported, as amended.

ONE YEAR UNDER ROUHANI: IRAN'S ABYSMAL HUMAN RIGHTS RECORD

Committee on Foreign Affairs: Subcommittee on the Middle East and North Africa; and the Subcommittee on Africa, Global Health, Global Human Rights, and International Organizations held a joint subcommittee hearing entitled "One Year Under Rouhani: Iran's Abysmal Human Rights Record". Testimony was heard from public witnesses.

GSA'S FAILURE TO MEET THE NEEDS OF THE JUDICIARY: A CASE STUDY OF BUREAUCRATIC NEGLIGENCE AND WASTE

Committee on the Judiciary: Subcommittee on Courts, Intellectual Property and the Internet held a hearing entitled "GSA's Failure to Meet the Needs of the Judiciary: A Case Study of Bureaucratic Negligence and Waste". Testimony was heard from William P. Johnson, District Judge, United States District Court, District of New Mexico; Glen E. Conrad, Chief Judge, United States District Court, Western District of Virginia; Jennifer Smith, Architect and Project Manager, United States District Court, Western District of Virginia; Michael Gelber, Deputy Commissioner, Public Buildings Service, General Services Administration.

MISCELLANEOUS MEASURES

Committee on Natural Resources: Full Committee held a markup on the following legislation: H.R. 2455, the "Nevada Native Nations Lands Act"; H.R. 3716, the "Pyramid Lake Paiute Tribe—Fish Springs Ranch Settlement Act"; H.R. 4049, the "Ashland Breakwater Light Transfer Act"; H.R. 4283, to amend the Wild and Scenic Rivers Act to authorize the Secretary of the Interior to maintain or replace certain facilities and structures for commercial recreation services at Smith Gulch in Idaho, and for other purposes; H.R. 4489, the "World War I Memorial Act of 2014"; H.R. 4508, to amend the East Bench Irrigation District Water Contract Extension Act to permit the Secretary of the Interior to extend the contract for certain water services; H.R. 4527, to remove a use restriction on land formerly a part of Acadia National Park that was transferred to the town of Tremont, Maine, and for other purposes; H.R. 4562, to authorize early repayment of obligations to the Bureau of Reclamation within the Northport Irrigation District in the State of Nebraska ; and H.R. 4873, the "Cabin Fee Act of 2014". The following bills were ordered reported, as amended: H.R. 2455; H.R. 4283; and H.R. 4489. The following bills were ordered reported, without amendment: H.R. 3716; H.R. 4049; H.R. 4508; H.R. 4527; H.R. 4562; and H.R. 4873.

WHISTLEBLOWER REPRISAL AND MANAGEMENT FAILURE AT THE U.S. CHEMICAL SAFETY BOARD

Committee on Oversight and Government Reform: Full Committee held a hearing entitled "Whistleblower Reprisal and Management Failure at the U.S. Chemical Safety Board". Testimony was heard from Rafael Moure-Eraso, Chairman, U.S. Chemical Safety and Hazard Investigation Board; Carolyn N. Lerner, Special Counsel, U.S. Office of Special Counsel; Arthur A. Elkins, Jr., Inspector General, Environmental Protection Agency; Patrick Sullivan, Assistant Inspector General for Investigations, Environmental Protections Agency; Mark Griffon, Board Member, U.S. Chemical Safety and Hazard Investigation Board; and a public witness.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR FRIDAY, JUNE 20, 2014

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

Committee on Financial Services, Full Committee continued markup on H.R. 4871, the "TRIA Reform Act of 2014"; H.R. 4881, to place a 6-month moratorium on the authority of the Financial Stability Oversight Council to make financial stability determinations; and H.R. 4387, the "FSOC Transparency and Accountability Act", 9 a.m., 2128 Rayburn.

Committee on Homeland Security, Subcommittee on Oversight and Management Efficiency, hearing entitled "Stakeholder Perspectives on Priorities for the Quadrennial Homeland Security Review", 9:30 a.m., 311 Cannon.

Committee on the Judiciary, Subcommittee on Regulatory Reform, Commercial and Antitrust Law, hearing entitled "Net Neutrality: Is Antitrust Law More Effective than Regulation in Protecting Consumers and Innovation?", 9 a.m., 2141 Rayburn.

Committee on Natural Resources, Subcommittee on Energy and Mineral Resources, hearing on H.R. 4293, the "Natural Gas Gathering Enhancement Act"; and H.R. 1587, the "Energy Infrastructure Improvement Act", 9:30 a.m., 1334 Longworth.

Committee on Oversight and Government Reform, Subcommittee on Government Operations, hearing entitled "Mixed Signals: The Administration's Policy on Marijuana, Part Four—the Health Effects and Science", 9 a.m., 2154 Rayburn.

Committee on Science, Space, and Technology, Subcommittee on Space; and Subcommittee on Oversight, hearing entitled "NASA Security: Assessing the Agency's Efforts to Protect Sensitive Information", 10 a.m., 2318 Rayburn.

Committee on Veterans' Affairs, Full Committee, meeting on Subpoena of SES Performance Information; and hearing entitled "Review of Awarding Bonuses to Senior Executives at the Department of Veterans Affairs", 9:30 a.m., 334 Cannon.

Committee on Ways and Means, Full Committee, hearing on the IRS's recent statement about the production of Ms. Lerner's emails, 9 a.m., 1100 Longworth.

Next Meeting of the SENATE

2 p.m., Monday, June 23

Senate Chamber

Program for Monday: After the transaction of any morning business (not to extend beyond 5:30 p.m.), Senate will vote on the motion to invoke cloture on the nominations of Paul G. Byron, of Florida, to be United States District Judge for the Middle District of Florida, Carlos Eduardo Mendoza, of Florida, to be United States District Judge for the Middle District of Florida, Beth Bloom, of Florida, to be United States District Judge for the Southern District of Florida, and Geoffrey W. Crawford, of Vermont, to be United States District Judge for the District of Vermont.

Next Meeting of the HOUSE OF REPRESENTATIVES

9 a.m., Friday, June 20

House Chamber

Program for Friday: Complete consideration of H.R. 4870—Department of Defense Appropriations Act, 2015.

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